



Burnley
.gov.uk

JULY 2018

BURNLEY'S LOCAL PLAN

Erratum

1) Page 84 Paragraph 5.1.22 Supporting Text to Policy HS2 Affordable Housing.

Should say (changes emphasised in bold):

5.1.22 Policy HS2 clauses **1) to 4)** are sufficiently flexible to apply with or without the currently planned change in the definition of affordable housing. Clause **5)** would however need to be read alongside any confirmed changes to national policy or legislation.

28 Sep 2018

Plan Adopted: 31 July 2018

Version: Final Print September 2018

Burnley Borough Council
Economy and Growth
Email: localplan@burnley.gov.uk

Contents

1	Introduction	3
1.1	What is Burnley's Local Plan?	3
1.2	Local Plan Context.....	4
1.3	Sustainability Appraisal	6
1.4	Habitats Regulations Assessment	6
1.5	Development of the Local Plan	6
2	Spatial Portrait & Key Issues	9
2.1	Context.....	9
2.2	Population	10
2.3	Housing	11
2.4	Economy and Employment	13
2.5	Retail, Town Centres & Tourism.....	15
2.6	Built and Historic Environment	17
2.7	Natural Environment.....	19
2.8	Transport and Other Infrastructure.....	23
3	Spatial Vision and Objectives	29
3.1	A Vision for Burnley	29
3.2	Objectives.....	29
4	Strategic Policies.....	33
4.1	Achieving Sustainable Development	33
4.2	Housing Requirement.....	35
4.3	Employment Land Requirement	39
4.4	Development Strategy.....	41
4.5	Development Quality and Sustainability	46
4.6	Green Infrastructure	51
4.7	The Green Belt	55
5	Policies	57
5.1	Housing.....	58
	Site Allocations	59
	Affordable Housing.....	82
	Housing Density and Mix	85
	Housing Developments.....	87
	House Extensions and Alterations	90
	Agricultural and Rural Workers' Dwellings	91
	Gypsy, Traveller and Travelling Showpeople's Provision	92
5.2	Economy and Employment	96
	Site Allocations	97
	Improving and Making Best Use of Existing Employment Land.....	112
	Supporting New and Existing Businesses	113
	Office Development	114
	The Rural Economy.....	115
	Conversion of Rural Buildings	116
	Equestrian Development	117

5.3	Town Centres, Retail and Leisure	119
	Retail Capacity	119
	Hierarchy of Centres.....	120
	Town Centres	122
	Burnley Town Centre Development Opportunities	126
	The Weavers' Triangle	128
	District Centres.....	130
	Hot Food Takeaways	130
	Shopfront & Advertisement Design.....	132
5.4	Historic Environment	135
	Identifying and Protecting Burnley's Historic Environment	135
	Conserving and Enhancing Heritage Assets and their Settings	137
	Conservation and Enhancement of Non-Designated Heritage Assets.....	143
	Scheduled Monuments and Archaeology	144
5.5	Natural Environment	147
	Protecting Biodiversity	147
	Open Spaces.....	152
	Landscape Character	153
	Trees, Hedgerows and Woodland	155
	Environmental Protection.....	158
5.6	Climate Change.....	162
	Renewable Energy.....	162
	Flood Risk	173
5.7	Infrastructure and Connectivity	178
	Travel and Transport	178
	Infrastructure and Planning Contributions.....	182
	Social and Community Infrastructure	184
	Telecommunications	185
	Taxi Booking Offices	186
6	Implementation and Monitoring.....	191
6.1	Implementation	191
6.2	Monitoring and Review	191
	Appendix 1: Glossary	207
	Appendix 2: Reference List.....	215
	Appendix 3: List of Superseded Policies.....	221
	Appendix 4: Designated Heritage Assets	227
	Appendix 5: Housing Trajectory	229
	Appendix 6: Main and Small Villages (Tiers 3 and 4) – Audit of Facilities - April 2016	231
	Appendix 7: Protected Open Spaces.....	233
	Appendix 8: Transport Assessments and Travel Plans	235
	Appendix 9: Car Parking Standards.....	238

List of Policies

Policy SP1:	Achieving Sustainable Development	34
Policy SP2:	Housing Requirement 2012-2032	37
Policy SP3:	Employment Land Requirement 2012-2032	41
Policy SP4:	Development Strategy	44
Policy SP5:	Development Quality and Sustainability.....	49
Policy SP6:	Green Infrastructure.....	52
Policy SP7:	Protecting the Green Belt	56
Policy HS1:	Housing Allocations	59
Policy HS2:	Affordable Housing Provision.....	84
Policy HS3:	Housing Density and Mix	86
Policy HS4:	Housing Developments.....	88
Policy HS5:	House Extensions and Alterations	90
Policy HS6:	Agricultural Workers' Dwellings	91
Policy HS7:	Gypsy and Traveller Site Criteria	94
Policy HS8:	Gypsy and Traveller Site Occupancy Condition.....	95
Policy EMP1:	Employment Allocations.....	98
Policy EMP2:	Protected Employment Sites	113
Policy EMP3:	Supporting Employment Development.....	113
Policy EMP4:	Office Development	114
Policy EMP5:	Rural Business & Diversification	116
Policy EMP6:	Conversion of Rural Buildings.....	117
Policy EMP7:	Equestrian Development	118
Policy TC1:	Retail Hierarchy.....	121
Policy TC2:	Development within Burnley and Padiham Town Centres	123
Policy TC3:	Burnley Town Centre - Primary and Secondary Frontages	125
Policy TC4:	Development Opportunities in Burnley Town Centre	126
Policy TC5:	Uses within the Weavers' Triangle	129
Policy TC6:	District Centres.....	130
Policy TC7:	Hot Food Takeaways	131
Policy TC8:	Shopfront & Advertisement Design	133
Policy HE1:	Identifying and Protecting Burnley's Historic Environment.....	136
Policy HE2:	Designated Heritage Assets: Listed Buildings; Conservation Areas; and Registered Parks and Gardens	142
Policy HE3:	Non-Designated Heritage Assets	144
Policy HE4:	Scheduled Monuments and Archaeological Assets.....	146
Policy NE1:	Biodiversity and Ecological Networks	151
Policy NE2:	Protected Open Space	153
Policy NE3:	Landscape Character	155
Policy NE4:	Trees, Hedgerows and Woodland.....	157
Policy NE5:	Environmental Protection.....	159
Policy CC1:	Renewable and Low Carbon Energy (not including Wind Energy).....	165
Policy CC2:	Suitable Areas for Wind Energy Development	170
Policy CC3:	Wind Energy Development	172
Policy CC4:	Development and Flood Risk.....	174
Policy CC5:	Surface Water Management and Sustainable Drainage Systems (SuDS).....	177
Policy IC1:	Sustainable Travel	179
Policy IC2:	Managing Transport and Travel Impacts.....	180
Policy IC3:	Car Parking Standards.....	181
Policy IC4:	Infrastructure and Planning Contributions.....	183
Policy IC5:	Protection and Provision of Social and Community Infrastructure	185
Policy IC6:	Telecommunications	186
Policy IC7:	Taxis and Taxi Booking Offices	187

List of Tables, Figures & Maps

Figure 1:	Location of Burnley and Pennine Lancashire	9
Table 1:	House Purchase Affordability Ratios 2017	12
Figure 2:	Burnley's job types	14
Figure 3:	Hameldon Hill Safeguarded Consultation Zone	26
Figure 4:	Key Diagram.....	32
Table 2:	Green Infrastructure Types and Functions.....	53
Figure 5:	Burnley Green Infrastructure Key Diagram	54
Table 3:	Suggested Property Size and Type - 2016 SHMA	85
Table 4:	Requirement for Gypsy and Traveller Pitches 2012 - 2026.....	93
Table 5:	Burnley renewable energy deployment projections, 2020 and 2030.....	165
Table 6:	Sensitivity of Burnley Landscape Character Types to Wind Energy Development	168
Table 7:	Turbine sizes and Outputs.....	169
Table 8:	Monitoring Framework	193
Table 9:	Thresholds for Transport Assessments, Statements and Travel Plans.....	236

Maps

© = Based upon Ordnance Survey mapping with permission of the Controller of Her Majesty's Stationery Office. Unauthorised reproduction infringes Crown copyright and may lead to prosecution or civil proceedings. Reproduced under licence - Burnley Borough Council 100021714.

1 Introduction

1.1 What is Burnley's Local Plan?

1.1.1 Burnley's Local Plan covers the whole of Burnley borough for the period from 2012 to 2032. It provides the statutory planning framework for the borough. The Local Plan will be used to guide decisions on planning applications and areas where investment should be prioritised. It replaces the 2006 Burnley Local Plan Second Review. A separate Gypsy and Traveller Site Allocations development plan document (DPD) is also proposed to supplement the Plan to meet the identified need for Gypsy and Traveller pitches.

1.1.2 The Plan contains a vision, objectives and an overall strategy for development. It includes policies on both the scale of development and its overall pattern across the borough. It allocates many of the sites that are needed to accommodate new development along with areas to be protected or enhanced. It also sets out policies on how planning applications on allocated and 'windfall' sites will be judged.

1.1.3 The Plan will provide developers, residents and service providers some certainty about what sites will be developed in the future and for what purposes. It indicates how public and private sector action will achieve the Plan's objectives and it establishes a framework for monitoring whether the Plan and its policies are being achieved.

1.1.4 The Local Plan begins with an explanation about Burnley's Local Plan and a summary of its development. It is then set out as follows:

- Section 2 provides a concise geographic, economic, environmental and social portrait of Burnley borough (called the spatial portrait) and the key issues facing the borough.
- Section 3 sets out the spatial vision for Burnley describing the sort of place Burnley will be by 2032. In order to achieve this vision and to respond to current issues, a number of objectives have been defined to help guide the strategy for Burnley.
- Section 4 sets out the strategy for housing and employment growth and the strategic/overarching policies for development.
- Section 5 sets out the specific policies by subject area.
- Section 6 sets out the arrangements for implementation and monitoring. An Infrastructure Delivery Plan (IDP) has been produced alongside the Local Plan. The IDP reviews and evaluates the social, environmental and economic infrastructure that that will be required to support the development and growth set out in the Plan.

1.1.5 This Local Plan does not cover minerals and waste planning as this is the responsibility of Lancashire County Council. The adopted Joint Lancashire Minerals and Waste Local Plan forms part of the development plan for Burnley.

1.1.6 The policies of the Local Plan supersede all the formerly saved policies from the Burnley Local Plan of 2006.

1.1.7 Appendix 3 contains a full list of the policies which are now superseded and those policies considered to have replaced them.

1.2 Local Plan Context

1.2.1 Local Plans are not prepared in a vacuum. They are drawn up in accordance with the legislation governing plan-making and in the context of national planning policy with which they must be consistent. They are also prepared having regard to other relevant local strategies and the plans of other public bodies, including those of neighbouring authorities.

National Planning Policy

1.2.2 The Local Plan is prepared in the context of national planning policy set out principally in the National Planning Policy Framework (NPPF) published in March 2012, and more detailed National Planning Practice Guidance (NPPG). *(See Note on Revised NPPF after para 1.5.2 on Page 6)*

1.2.3 The NPPF (paragraph 7) states that the purpose of the planning system is to contribute to the achievement of sustainable development and sets out the three dimensions to sustainable development: economic, social and environmental, and the need for the planning system to perform a number of roles in this regard.

1.2.4 Legislation requires that plans are “sound” and one of the four tests of soundness set out in the NPPF is that plans are consistent with national policy.

Relationship with other Local Plans and the Duty to Cooperate

1.2.5 As a statutory consultee, the Council is consulted by, and in turn consults with, neighbouring local authorities in the preparation of Local Plans. In addition, councils and a number of other public sector bodies and service providers are required to cooperate proactively on strategic cross-boundary matters in the preparation of Local Plans (for the Council this is both a legal requirement and relates to the tests of soundness). The Council has cooperated with the relevant bodies in developing the Plan and in the preparation of the evidence base that will be used to support the Local Plan. This includes the Strategic Housing Market Assessment, the Gypsy, Traveller and Travelling Showpeople Accommodation Assessment and a number of technical studies on landscape and wind energy development. In accordance with the Duty to Cooperate, partners were involved in early discussions about the issues affecting Burnley and Local Plan options that could help deal with these and helped build an understanding of strategic and cross-boundary issues.

Lancashire Enterprise Partnership

1.2.6 The Lancashire Enterprise Partnership (LEP) is dedicated to driving local growth through the delivery of a number of strategic economic priorities and national initiatives, with a focus on securing prosperity for the whole of Lancashire.

1.2.7 The Lancashire Enterprise Partnership Growth Deal received £84.2million in its first year, and as part of the Government's on-going commitment to the LEP it provided an indicative award of a further £149.6million of funding from 2016/17 onwards. The deal was to help create up to 5,000 jobs, allow more than 6,000 homes to be built and generate up to £140 million in public and private investment.

1.2.8 Within Burnley, the Growth Deal has directly funded projects such as the Burnley–Pendle Growth Corridor, which targeted junction improvements and other transport improvements to release additional site capacity and enable quicker movement of goods, services and people through this key economic corridor, and the Centenary Way viaduct maintenance scheme.

East Lancashire Highways and Transport Masterplan

1.2.9 Transport provision and infrastructure across the borough is currently coordinated by Lancashire County Council as the local transport and highway authority. The County Council developed the Local Transport Plan (LTP)¹ which the Local Plan must have regard to. As part of the LTP, the East Lancashire Highways and Transport Masterplan was adopted by the County Council in February 2014. The Masterplan sets out how the area's roads, rail and cycle networks could be transformed in the future, by improving connections to neighbouring areas, and travel opportunities within East Lancashire and its communities.

1.2.10 The Masterplan identified a number of opportunities to enable East Lancashire as a whole to improve transport infrastructure and connectivity to the rest of Lancashire and adjoining city regions of Leeds and Manchester. The main opportunity identified in the Masterplan which directly relates to the borough is the development of the Burnley-Pendle Growth Corridor strategy. This strategy identified a number of proposals to provide additional capacity on the highway network and reduce congestion. (See Section 5.7)

1.2.11 The Masterplan was the first step towards ensuring the transport network is appropriate to boost economic growth by supporting new businesses and homes while promoting healthy lifestyles and avoiding gridlock on the roads.

1.2.12 The Masterplan set in motion detailed work needed to justify investment in new transport and connectivity schemes, including:

- Improving rail connections between East Lancashire and the growth areas of Preston and Central Lancashire, Manchester and Leeds.
- Measures to reduce congestion and improve connectivity in the key M65 and M66 gateway corridors.
- Ensuring routes into key growth sites continue to function well and support future development.
- Ensuring that the needs of people who live in remote and rural locations to access work, education and health opportunities are met, making best use of funding likely to be available in future.
- Building an effective cycle network linking towns, employment sites and communities.
- Improving local links in the community so that everyone can get to the services and opportunities that they need, from education and employment to leisure and health.

Burnley's Future 2017 - 2020: The Community Strategy for Burnley

1.2.13 Although there is no longer a statutory requirement to produce a Sustainable Community Strategy, 'Burnley's Future' was updated in 2017 to provide a framework for organisations to deliver services that meet the needs of the borough and improve life in the borough for all. Its overarching strategic priorities are:

- Prosperity: to grow the borough's economy (the top priority)
- People: to help people lead healthier lives and the next generation to realise its potential
- Places: to improve housing and make the neighbourhoods in the borough cleaner, greener and safer

1.2.14 Burnley's Local Plan provides an important means of articulating these priorities spatially.

¹ A plan which set out the objectives and plans for developing transport in an area.

1.3 Sustainability Appraisal

1.3.1 The Local Plan must be prepared with a view to contributing towards the achievement of sustainable development. The Planning and Compulsory Purchase Act 2004 requires all Local Plans to be subject to Sustainability Appraisal (SA) to assess the social, environmental and economic effects of the policies and proposals in the Local Plan. SA is an iterative process that is undertaken throughout the development of the Local Plan as options are explored and refined and policies produced. A final SA Report detailing the process and the effect it has had on the production of the Local Plan is produced alongside the final version of the Local Plan.

1.3.2 The Local Plan also requires a strategic environmental assessment (SEA) in accordance with the requirements of the European Directive 2001/42/EC (the 'SEA' Directive) as transposed into English law by the Environmental Assessment of Plans and Programmes Regulations 2004. This assessment considers the environmental effects of the Plan.

1.3.3 Although the requirements to carry out SA and SEA are separate and the scope of the assessments differ, national policy recommends that these should be integrated into a single, integrated appraisal process. Consequently, in this Plan, the term 'SA' should be taken to mean 'SA incorporating the requirements of the SEA Directive' unless indicated otherwise.

1.4 Habitats Regulations Assessment

1.4.1 The EC Habitats Directive 1992 as transposed into UK law by the Conservation of Habitats and Species Regulations (2017) require a Habitats Regulations Assessment (HRA) of land use plans to establish whether the plan alone, or in combination with other plans or projects, is likely to have a significant effect on a European Site (Special Protection Areas (SPA), Special Areas of Conservation (SAC) or Ramsar site - collectively called Natura 2000 sites). If this is the case, then the impacts on the integrity of the Site must be considered by an Appropriate Assessment.

1.4.2 Under normal circumstances, a land use plan can be brought into effect only after it has been ascertained that it will not adversely affect the integrity of a Site in terms of the Site's conservation objectives. A Habitats Regulations Assessment (Screening Assessment and Appropriate Assessment) has been carried out of the Local Plan and this is published separately.

1.5 Development of the Local Plan

1.5.1 Following consultation on Issues and Options in 2014 which encouraged early involvement in the Plan's preparation, a Preferred Options draft of the Local Plan was issued for consultation in July 2016. The comments received in response to this Preferred Options consultation were considered and a Proposed Submission Document was published for statutory consultation in April 2017. This was then submitted to the Secretary of State for independent Examination in July 2017.

1.5.2 Following the Examination, the Inspector issued his final report on 9 July 2018 and the Plan with 'main modifications' was adopted by the Council on 31 July 2018.

Note on the Revised NPPF:

The Government issued a revised NPPF on the 24 July 2018. Its paragraph 124 sets out transitional arrangements for plan-making and states that:

"The policies in the previous Framework will apply for the purpose of examining plans, where those plans are submitted on or before 24 January 2019. Where such plans are withdrawn or otherwise do not proceed to become part of the development plan, the policies contained in this Framework will apply to any subsequent plan produced for the area concerned."

References in this Plan to the NPPF therefore continue to refer to the NPPF published in March 2012.

Section 2 - Spatial Portrait & Key Issues

2 Spatial Portrait & Key Issues

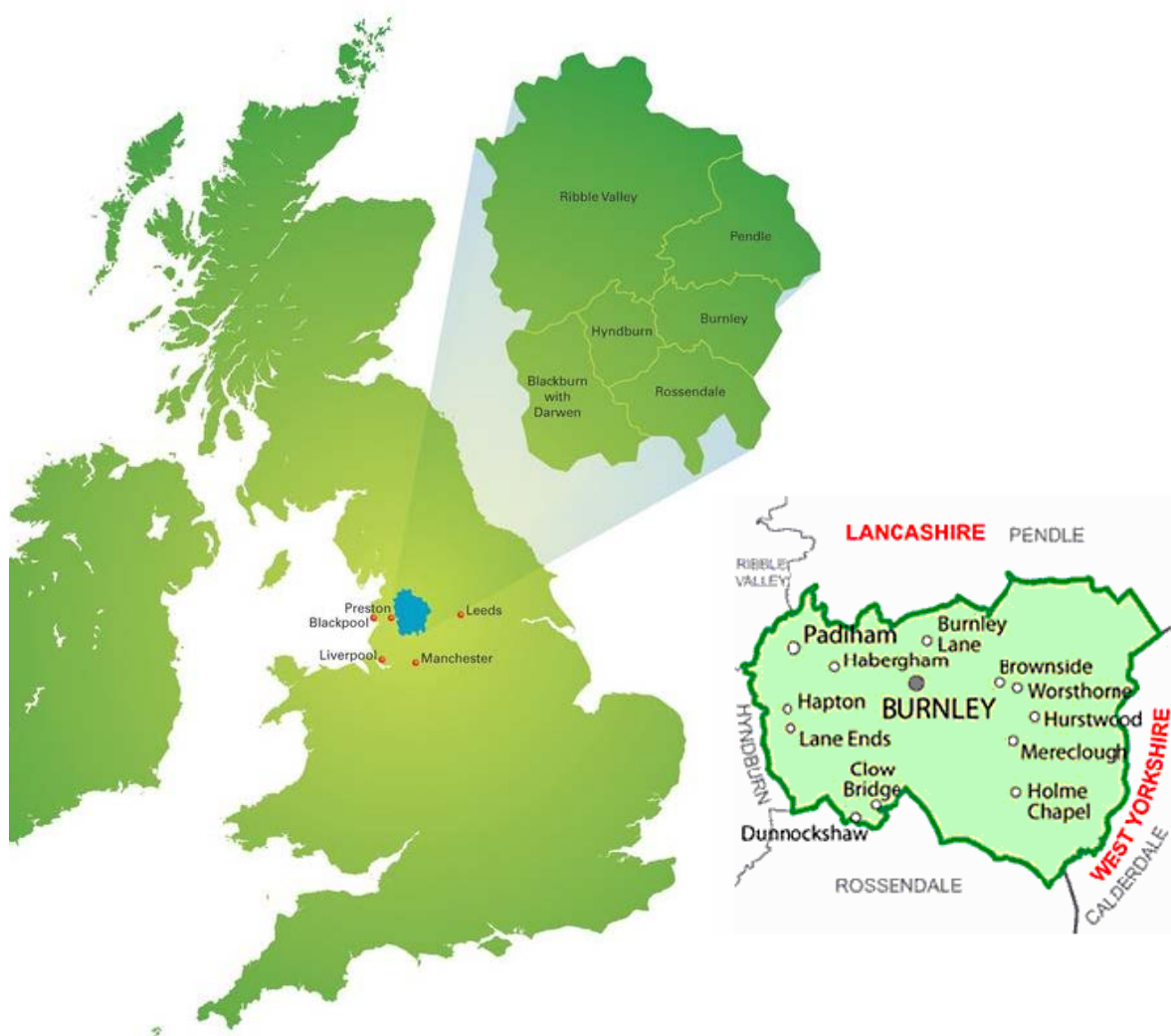
2.1 Context

2.1.1 Burnley borough is situated in Pennine Lancashire. It covers an area of 11,072 hectares (42 square miles). Its compact urban area, stretching along the two river valleys of the Brun and Calder, is surrounded by the moorland countryside of the South Pennines to the south and east and the Forest of Bowland AONB and the gritstone outcrop of Pendle Hill to the north. Coal Clough wind farm, which is visible from many parts of Burnley, dominates the skyline to the south east of the town whilst, nearby, the landmark panopticon, the Singing Ringing Tree, overlooks the town from the hills at Crown Point.

2.1.2 There are two main urban settlements, Burnley and Padiham, and a number of small villages and hamlets in the rural area.

2.1.3 Along with Blackburn, Blackpool and Preston, Burnley is one of the key centres in Lancashire. Burnley town centre with its combination of modern shopping facilities and fine civic buildings is an important retail, business and service centre for Pennine Lancashire. Padiham's town centre is much smaller, reflecting its role as a traditional market town serving a wide rural hinterland.

Figure 1: Location of Burnley and Pennine Lancashire



2.1.4 Much of Burnley's character and distinctiveness today derives not only from its attractive Pennine setting, but also from its development during the Industrial Revolution. This gave the inner parts of the urban area their distinctive sandstone terraces in grid-iron street patterns, its mills and fine parks.

2.2 Population

Population

2.2.1 The borough's population at the time of the 2011 Census was 87,059. The most recent ONS 2016 mid-year population estimate (MYE) indicates an increase in Burnley's population to 87,496. Between 1991 and 2011, Burnley's population fell by 4.5% in stark contrast to a 12.7% rise in England as a whole.

2.2.2 The 2014-based ONS sub-national population projections (SNPP) released in 2016 give a projected population at the end of the proposed new Local Plan period (2032) of 87,303, an increase of 176 people or 0.2% from 2012.

2.2.3 In general, the proportion of older people within the borough population is growing as with the trend in England generally and this is due to a combination of people living longer, lower birth rates and outmigration of younger age groups.

2.2.4 The borough's population is diverse with about 12.6% of its residents at the 2011 Census being black or minority ethnic, an increase from 8.2% in 2001. There is a continuing pattern of residential separation in Burnley with eight out of fifteen of its wards having 3% or fewer residents who are not white, while two wards have a black or minority ethnic population greater than 25% (Queensgate 29%, Daneshouse with Stoneyholme 82%).²

Deprivation

2.2.5 Within some of the inner urban neighbourhoods there are significant pockets of deprivation. This is in stark contrast to the greater affluence of some suburbs and villages.

2.2.6 In the 2015 Index of Multiple Deprivation (IMD) Burnley was ranked the 9th most deprived area out of 326 local authority areas in England (based on rank of average scores). The most prevalent form of deprivation in the borough relates to health and disability.

2.2.7 Life expectancy for both men and women is lower than the Lancashire and England average³. According to the Burnley Health Profile 2015 (Public Health England), life expectancy is 11.8 years lower for men and 6.0 years lower for women in the most deprived areas of Burnley than in the least deprived areas. Burnley's rates of mortality from heart disease and stroke, cancer and respiratory disease are all significantly higher than the Regional and England averages (2011-2013 Public Health England, Public Health Outcomes Framework).

2.2.8 Compared to other districts in Lancashire and the country as a whole, Burnley has relatively high levels of crime, the second highest of all Lancashire districts. For 2016 the crime rate was 103.07 per 1,000 population compared to a Lancashire Force average of 70.58 – both figures representing an increase on the previous year.⁴

² Source: 2011 Census table KS210EW

³ Office for National Statistics, Life Expectancy at Birth and at Age 65 by Local Areas in England and Wales, 2012-14

⁴ Excluding Fraud. Source Home Office and ONS 2015 MYE population

Key Issues & Challenges: • An ageing population • Reversing trends of outmigration, particularly of the working age population • Reducing deprivation and health inequalities • Reducing crime
--

2.3 Housing

Type

2.3.1 Burnley has a much higher proportion of terraced housing than England or the region as a whole. According to the 2011 Census, 50.1% of Burnley's housing stock consisted of terraced houses compared to the regional average of 30% and England average of 24.5%. Much of the terraced housing stock comprises pre-1919 two-bedroomed terraced houses and this constrains choice in the housing market.

2.3.2 The previous Pathfinder Housing Market Renewal (HMR) scheme recognised that poor condition, high vacancy rates and a lack of quality and choice of housing, in particular an oversupply of small two-bedroomed Victorian terraced housing without gardens, were key drivers of housing market failure.

2.3.3 Analysis by Council Tax band shows that in 2016, 61% of dwellings in Burnley were in the lowest band 'A' compared to the average for England of 24.5%. The proportion is decreasing gradually. The highest tax bands of 'F' to 'H' accounted for 9.1% of properties in England but just 1.2% in Burnley.

2.3.4 Census data shows that between 2001 and 2011 there had been a significant decrease in the number of Burnley residents in owner occupation and an increase in the percentage in private rented accommodation. These changes most likely reflect the national recession from 2008 and its ongoing after-effects.

Vacancy

2.3.5 At October 2016, there were 2,384 empty homes in the borough, 5.83% of the overall housing stock. This vacancy rate is lower than the previous year and part of a gradual downward trend, but it remains significantly higher than the average for England (2.62%).

Fuel Poverty

2.3.6 The Department of Energy and Climate Change (DECC) defines fuel poverty through the 'low income high costs' method of calculation. A household is defined as 'fuel poor' if:

- A household has required fuel costs that are above the median level; and
- Were the household to spend that amount, they would be left with a residual income below the official poverty line.

2.3.7 The 2014 results indicate that in Lancashire, 71,075 households (11.3%) were in fuel poverty. Within Lancashire, Pendle (14%) had the 20th worst rate in the country, whilst Burnley at 13.5% had the 27th worse rate (DECC/Lancashire Profile).

The Housing Market

House Prices & Sales

2.3.8 In 2017 average (mean) house prices in Burnley at £103,758 were around 37% of the national average for England and Wales (£292,550) and 55% of the regional average (£188,752), although there is a marked difference between house prices in the rural area and the more urban parts of the borough. In 2016 average overall house prices in the borough rose for the first time above their pre-recession peak level of £97,795 set in June 2008.

2.3.9 Pre-recession dwelling sales in Burnley (2002-2007) totalled over 3,000 transactions per annum (CLG Live Table 588). Since 2007 when the figure stood at 3,121, transactions have more than halved. They have increased significantly in the last few years from 998 in 2013 to 1,549 in 2017 suggesting some recovery in the local housing market (ONS & Land Registry).

Affordability

2.3.10 The now revoked DCLG Practice Guidance for Strategic Housing Market Assessments (March 2007) stated that a household could be considered able to afford to buy a home if it costs 3.5 times the gross household income for a single earner household or 2.9 times the gross household income for dual-income households and that where possible, an allowance should be made for access to capital that could be used towards the cost of home ownership (e.g. a deposit). For those seeking to access mortgage finance, these tend now to be calculated on lifestyle and outgoings rather than on gross income.

2.3.11 The table below shows the ratios of house prices (all types) to income for 2017. These ratios do not include any allowance for a deposit.

2.3.12 Using a median measure, Burnley has the third lowest ratio in England and Wales and for the lower quartile measure, it has the lowest. (The lower the ratio, the more affordable). These contrast to the adjoining district of Ribbles Valley with ratios of 1:7.51 and 1: 7.47.

Table 1: House Purchase Affordability Ratios 2017

		Burnley	England & Wales
Median Income to Median House Price	2017	1 to 3.59	1 to 7.91
Lower Quartile Income to Lower Quartile House Price	2017	1 to 3.08	1 to 7.26

Source: ONS & Land Registry 6 April 2018

2.3.13 Further detailed information on the borough's housing market is set out in the Burnley Strategic Housing Market Assessment 2016 and in the Authority Monitoring Report (AMR).

Key Issues & Challenges:

- Meeting the housing needs and demand of all communities, including the elderly, those with disabilities and Gypsies and Travellers
- Significantly boosting the supply of housing in line with national policy whilst protecting the borough's natural and built environment
- Improving housing choice, especially detached and semi-detached and larger terraced housing with off-street parking and gardens
- Tackling vacancies and improving neighbourhoods
- Addressing poor quality housing and reducing fuel poverty

2.4 Economy and Employment

2.4.1 The Sustainable Community Strategy prepared by the Burnley Action Partnership identifies growing the borough's economy as the Partnership's top priority, underpinning all efforts to improve quality of life in the borough. Essential to the whole approach of addressing the socio-economic context is skills development in support of the current and future labour market.

2.4.2 Many parts of Lancashire, including Burnley, still have a high proportion of employment in the manufacturing sector. Burnley now enjoys a strong reputation for advanced manufacturing/engineering, and for aerospace excellence through companies like Aircelle, MB Aerospace and BCW Engineering, producing parts for aircraft and performance cars.

2.4.3 Burnley has a significant concentration of employment activity, including at four large industrial estates: Heasandford, Rossendale Road, Network 65 and Shuttleworth Mead, with new development in more recent years at Burnley Bridge and the aerospace supply village at Innovation Drive. In 2013 the borough was named the most enterprising place in the UK (See <https://www.gov.uk/government/news/burnley-named-most-enterprising-place-in-britain>).

2.4.4 Projects such as Burnley Bridge, Innovation Drive and On the Banks (Weavers' Triangle) were supported with loan funding from the Lancashire Local Enterprise Partnership (LEP). The LEP was formed in 2011 to make Lancashire the location for business growth and inward investment and is made up of leaders from business, universities and local councils. The LEP priorities include:

- Establishing Lancashire as a natural home for high growth companies;
- Reclaiming Lancashire's role as one of the nation's key centres for advanced manufacturing;
- Maximising the economic value and benefits of an emerging arc of innovation across Lancashire;
- Driving forward the Lancashire Enterprise Zone and Preston City Deal, as the key drivers of new growth;
- Overseeing and developing complementary Local Growth Accelerator Strategies;
- Creating economic opportunities for local communities in acute need;
- Developing Sector Delivery Plans to unlock opportunities of national significance in emerging and established growth sectors;
- Creating the right local conditions for business success;
- Refocusing the local skills system to make it more responsive to business skills demands;
- Ensuring Lancashire's major transport projects are fully aligned with the delivery of key economic priorities;
- Strengthening Lancashire's strategic case, making and refreshing the area's offer to attract new investors and businesses.

Commuting

2.4.5 At the time of the 2011 Census, Burnley had an inflow of 14,608 people commuting into the borough on a daily basis against 15,272 out-commuters, giving a net total of 664 out-commuters. The borough has high levels of out-commuting to Pendle, Hyndburn and Blackburn with Darwen, whilst Pendle and Hyndburn also have high levels of commuters travelling into Burnley in return. More recent data⁵ indicates this out-commuting trend continues.

⁵ Annual Population Survey and Experian Jobs Growth – See 2017 SHMA Addendum para 3.2 - 7

2.4.6 This represented a change from the time of the previous Census, when 13,020 residents commuted out of the borough daily, against 13,085 in-commuters, giving a net total of 65 in-commuters.

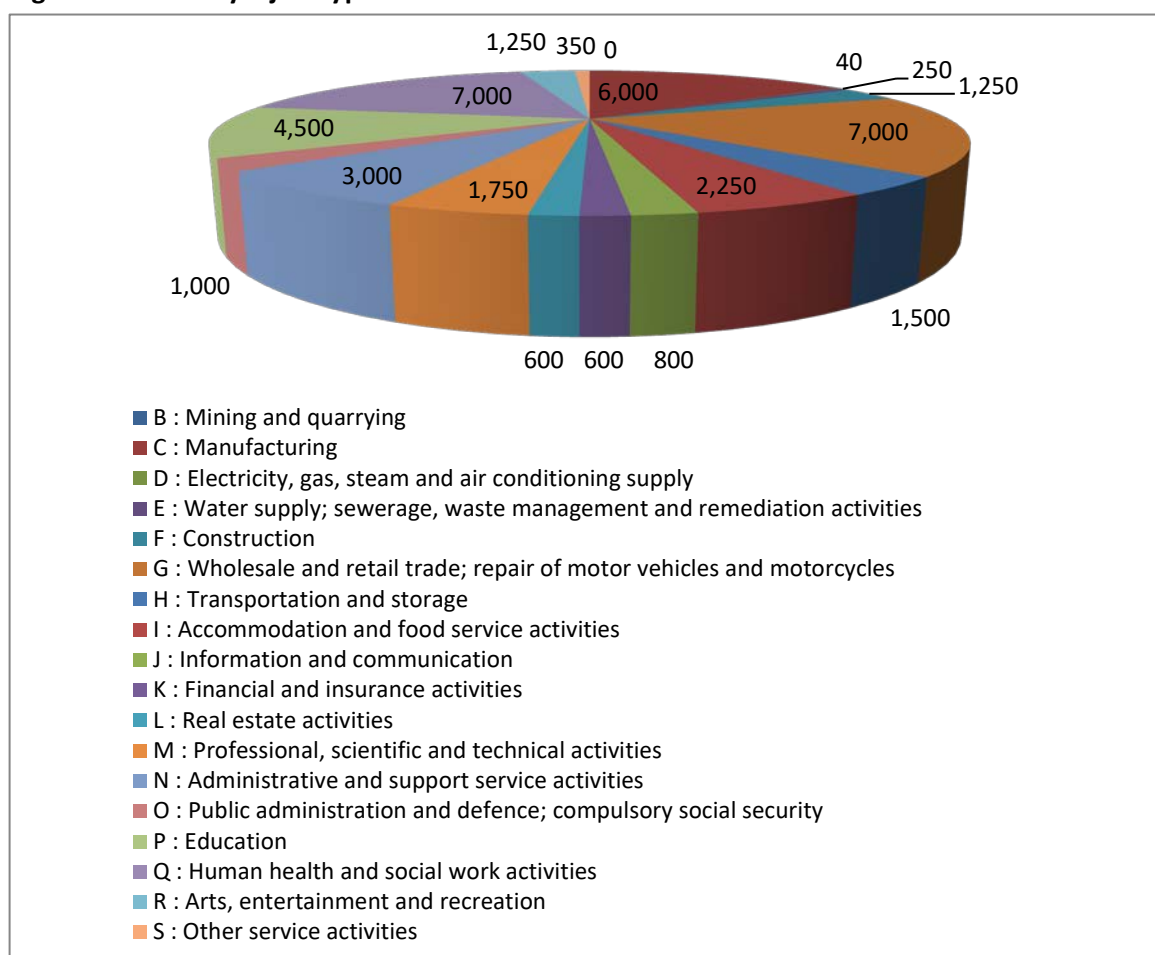
Employment

2.4.7 The borough was home to 3,075 enterprises and 38,000 employees jobs in 2016, of which 26,000 were full-time and 12,000 part-time⁶.

2.4.8 The largest employment sector in Burnley in 2016 was public services (categories o to q) with an estimated 12,500 jobs (32.9%) a decline from the previous years' figures but still a higher proportion than the regional and Great Britain averages. Similarly, wholesale and retail (class G) at 18.4%, and manufacturing (class C) at 15.8% also accounted for a higher proportion of workforce jobs than the regional and national average. The proportion of Financial and other business services jobs (classes K to N) at 15.7% was significantly lower than the regional and Great Britain averages of 21.6% and 22.8% respectively.⁷

2.4.9 The split of jobs types in Burnley in 2016 can be seen in Figure 2.

Figure 2: Burnley's job types



(Source: ONS Business Register and Employment Survey, 2016)

⁶ Interdepartmental Business Register and ONS Business Register and Employment Survey. The employees figures do not include the self-employed, farm based agriculture Gov supported trainees and HM Forces

⁷ ONS Business Register and Employment Survey: open access

Workforce and Earnings

2.4.10 The economically active population includes all those who are in employment and those unemployed but seeking work.

2.4.11 In 2016 (Jan to Dec) Burnley had an estimated 45,600 economically active residents with an economic activity rate of 80.4%, which is greater than the regional (75.6%) and Great Britain rate (77.8%), the rates having risen above the regional and national rates in late 2015, reflecting the recent jobs growth figures reported by Experian (2,600 jobs 2012-2016).^{8 9}

2.4.12 Historically claimant count unemployment levels in Burnley have been above the regional and national rates. Levels of JSA claimants rose significantly in Burnley between 2008 and 2009 (as they did across the region and Great Britain as a whole, reflecting the onset of the recession, although they rose more significantly in Burnley), with levels peaking at 5.3% in February 2012. Due to the gradual move to Universal Credit, which includes a wider range of claimants than job seekers allowance, comparison is difficult.

2.4.13 In 2016 full-time resident wages in Burnley at £474.1 per week (£24,170 per annum) were significantly lower than across the North West (£501.2 or £26,178 per annum) and Great Britain (£541.0 or £28,314 per annum) as a whole. Workplace earnings are also significantly lower than the North West and Great Britain averages (£440.5, £503.2 and £540.2 respectively). Those who live in the borough earn more on average than those who work in the borough (and may live in the borough or elsewhere). These figures, together with the overall net out-commuting pattern shown in the 2011 Census, suggest that borough residents are seeking higher paid work outside the borough.¹⁰

2.4.14 A fuller analysis of the borough's economy and employment sites and land demand is set out in the Burnley Employment Land Demand Study of June 2016 and the Authority Monitoring Report.

Key Issues & Challenges:

- Raising the level of workforce participation
- Attracting higher paid employment
- Attracting a variety of employment opportunities
- Attracting inward investment and supporting business and job growth through the provision of a portfolio of suitable sites

2.5 Retail, Town Centres & Tourism

Town Centres

2.5.1 Burnley town centre is the dominant retail and leisure destination in the borough. The main shopping area is centred on St James's Street and the Charter Walk Shopping Centre which has been partly refurbished, with further works planned. The night time economy is focused on Hammerton Street and neighbouring streets. Burnley town centre is reasonably compact, being

⁸ ONS Annual Population Survey (2016)

⁹ See 2017 SHMA Addendum

¹⁰ ONS Annual Survey of Hours and Earnings

largely contained within an inner ring road. However, there are retail parks, superstores and leisure facilities outside the inner ring, including a cinema and bowling alley.

2.5.2 Although a large part of its central shopping area dates from the 1960s, Burnley town centre does retain much of its Victorian character of attractive buildings and streets built around a number of waterways, including the Rivers Calder and Brun and the Leeds & Liverpool Canal. The 'Straight Mile' stretch of the Canal is a distinctive landmark.

2.5.3 In 2013, Burnley town centre contained a lower than average proportion of Use Class A3/A5 (food and drink establishments). The proportion of Use Class A1 retail units had decreased by 15% between 2000 and 2012, whilst the number of vacant units increased. The Burnley Retail, Office and Leisure Assessment 2013 prepared by Nathaniel Lichfield and Partners considers that Burnley town centre could reasonably accommodate additional Use Class A3/A5 units without prejudicing the retail function of the centre. Since 2013, the number of Use Class A3/A5 units has increased.

2.5.4 Padiham town centre performs a supporting role to Burnley in terms of the retail hierarchy. It is linear in nature and divided by the busy A671. A Tesco store is located to the east of the A671.

Visitor Economy

2.5.5 As well as its attractive countryside with walking routes, cycle paths and bridleways, visitors are drawn to the area by the historic houses of Towneley Hall and Gawthorpe Hall. The borough's industrial heritage also plays an important role in the visitor economy, notably the Weavers' Triangle - one of the finest examples of a Victorian industrial landscape in the North West.

2.5.6 Burnley Football Club and the Woodland Spa attract significant numbers of visitors to the town. The Pennine Way is located to the east of the borough. Part of the Pennine Bridleway National Trail, the Bronte Way and the Burnley Way, offer riders, walkers and cyclists clearly signed routes through the countryside immediately surrounding the town. The Leeds & Liverpool Canal is also a key tourist asset and its towpath forms part of the National Cycle Network.

2.5.7 Based on figures for Burnley's main attractions, overall visitor numbers stood at 2.5 million equating to 4% of all tourism visits to Lancashire in 2016. A total of £109.4 million was generated within the local economy through visitor and tourism business expenditure. Full time equivalent jobs supported in the visitor economy stood at 1,408 - around 2% of the total jobs.

2.5.8 In relation to its size, the borough does not have the amount or range of accommodation that might be anticipated. Total bedstock in Burnley is 801 beds comprising 73 non-serviced and 728 serviced beds.¹¹

2.5.9 In terms of hotel accommodation, there are good quality hotels in the borough but there are none above 3-star rating and no hotels able to deal with coach parties of 50+ people on a regular basis.

Key Issues & Challenges:

- Maintaining the vitality and viability of Burnley and Padiham Town Centres as retail and leisure and service centres against the pressures from larger centres, out of centre stores and online shopping

¹¹ 2016 STEAM figures from Visit Lancashire / Global Tourism Solutions (UK) Ltd

- Encouraging new cafes and restaurants to contribute to the vitality and viability of Burnley Town Centre and supporting, strengthening and growing the night time economy offer
- Maintaining a strong retail presence in Padiham
- Filling vacant units in Burnley and Padiham Town centres
- Growing the visitor economy and attracting more staying visitors

2.6 Built and Historic Environment

The Historic Environment

2.6.1 Burnley's built and historic environment is a major strength which contributes significantly to the quality of life that underpins the borough's economy and attracts investment. The borough has a rich and varied collection of heritage assets of local, regional and national importance which are not only important for their own sake, but are central to the character and identity of the borough, acting as a stimulus and inspiration to contemporary architecture and regeneration initiatives.

2.6.2 Burnley's built heritage serves as a unique and irreplaceable record of Burnley's development over time. It is the rapid and concentrated development of Burnley during the Industrial Revolution that contributes most significantly and positively to the character of the built urban environment. However, there is a long history of human settlement in the borough with evidence of human activity to the eastern moorland fringes dating back to the Bronze Age. The oldest surviving buildings originate from the 1500s and include Towneley Hall, St Peter's Church and Spenser House (Hurstwood). The rural parts of the borough are characterised by vernacular buildings (built from locally available materials that reflect custom and tradition rather than the architectural fashions of the time) and include a significant number of farmhouses, cottages and barns of 17th Century origins. The evolution of the borough continues to be relevant to people living within and outside the area and its history and heritage act to shape people's lives and the landscape around them.

2.6.3 It is widely accepted that the borough's heritage assets make a positive contribution to the environment, the quality of life of the local community, and economic regeneration of the area. Indeed, significant steps have already been taken by the Council to ensure the preservation of the architectural and historic environment of the borough through direct involvement in projects such as the restoration of Victoria Mill (UTC), Weavers' Triangle Townscape Heritage Initiative and Towneley Park Restoration Project. These initiatives have been strongly supported by Historic England and the Heritage Lottery Fund.

2.6.4 The key elements that make a significant contribution to the local character and distinctiveness include:

- A restrained palette of mostly indigenous natural materials with the prevalent use of locally quarried sandstone gritstone;
- A rich legacy of high quality Victorian architectural heritage; formal public parks, gardens and cemeteries;
- Extensive areas of late 19th Century terraced mill workers housing built on a grid iron network of straight connected streets;
- The industrial heritage relating to the textile industry including the Leeds & Liverpool Canal;
- Pre-industrial heritage barns, farmhouses, cottages and higher status buildings of 16th and 17th Century origins.

Heritage Assets

2.6.5 There are 306 listed building entries in the borough. Of these, five are Grade I, 14 Grade II* and 287 Grade II. Each entry can include a number of buildings and structures; for example, one listing entry can comprise a row of terraced housing.

2.6.6 The Council also has a non-statutory local list of buildings with more than 400 entries.

2.6.7 There are 10 Conservation Areas and 22 Scheduled Monuments (see list at Appendix 4).

2.6.8 There are five Registered Historic Parks and Gardens in Burnley; Towneley Park, Thompson Park, Scott Park, Queen's Park and the gardens associated with Gawthorpe Hall, all of which are open to the public, forming a significant resource for local residents and visitors.

2.6.9 Whilst many of Burnley's heritage assets are in use and well maintained, problems occur when buildings fall out of use and/or are not easily adaptable to alternative uses, thus falling into a state of neglect and disrepair. Heritage at risk of being lost through vacancy, neglect or decay is a significant issue in the borough. Vacant and poorly maintained heritage assets are more likely to fall into disrepair and this can ultimately lead to the partial, or complete, loss of the asset itself and the character of the area of which they are irreplaceable components. The poor management and maintenance of heritage assets can detract from their ability to meet their intended function, as well as significantly detract from the environmental quality and attractiveness of the borough. This can have a wider range of impacts, such as acting as a disincentive to investment in the area, increasing crime and the fear of crime and creating a poor image of a neighbourhood. Securing appropriate, viable and continued use of Burnley's heritage assets should therefore be an important priority as this will help manage those heritage assets already at risk and prevent further assets falling into disrepair.



Slater's Terrace in the Weavers' Triangle – part of the 'On the Banks' development on the Leeds & Liverpool Canal which forms part of the Canalside Conservation Area

Design and Public Realm

2.6.10 There is a tradition of innovative and high quality design approaches to development in Burnley, many of which have proven to be of exceptional quality and significance. Buildings such as Burnley Bus Station, Unity College, Burnley Youth Theatre, Job Centre Plus and Burnley College, and residential developments including Hirst Gardens (Burnley Wood) and Pennine View (South West Burnley) demonstrate how high quality architecture and good urban design can enrich the environment. These schemes serve as benchmarks for design quality and demonstrate a commitment to contextual, sustainable and innovative design.

2.6.11 Good design that draws on the existing strengths of the borough's unique heritage and creates a sense of place is essential in creating attractive, safe and prosperous places. As with many places there are examples of modern design and public realm treatment that have failed to positively contribute to the character of the area or to local distinctiveness, resulting in standard, 'anywhere' developments.

2.6.12 Public art installations such as the Singing Ringing Tree at Crown Point and Rainbow Gate on Princess Way enrich the public realm and reinforce the borough's identity.



Photos - Hirst Gardens, Burnley Wood and Burnley College

Key Issues & Challenges:

- Reducing the number of heritage assets at risk in a positive and proactive way
- Exploring ways to provide appropriate protection and enhancement for non-designated heritage assets and the wider historic environment
- Ensuring that heritage assets are used to best advantage in underpinning the regeneration and economic growth of the borough and recognising their mutually supportive roles
- Ensuring that new development meets good design standards that promote safe, secure and accessible streets and places, maintains local identity and respects important townscape and landscape settings
- Where necessary, balancing the care of the built heritage with the economic and social imperatives of the present

2.7 Natural Environment

Landscape

2.7.1 An estimated 80% of the borough is rural and the urban area characteristically has open views of the surrounding countryside, including the Pennines and the distinctive landmark of Pendle Hill.

2.7.2 The borough's open landscapes are one of its greatest assets. They provide a visually striking setting for the urban area, a recreational resource and a 'green lung' in close proximity to the built-up area. Burnley's distinct landscape character types each face their own set of challenges, including pressure from development, recreational activities and climate change. Agriculture and forestry activities can present challenges, but these industries also play a valuable role in protecting the landscape as we value it today.

2.7.3 The borough falls across two National Character Areas (NCAs); No. 35 Lancashire Valleys (2013) and No. 36 Southern Pennines (2012).¹²

2.7.4 The close interrelationship between urban and rural areas is a key part of Burnley's character and the accessibility of the borough's urban areas to open countryside and high quality landscapes, such as the South Pennine Moors, is crucial in terms of promoting the borough as a place to live, work and visit. The rural area is a significant resource for walkers, cyclists and horse riders.

2.7.5 Most of the rural area to the north and west of the borough is designated as Green Belt which contains the built-up area and prevents coalescence with the urban areas of Pendle and Hyndburn.

Open Space and Green Infrastructure

2.7.6 Burnley's green infrastructure (GI) is the network of green spaces, both urban and rural, natural elements and pathways that intersperse towns and villages. As a network it includes parks, open spaces, playing fields, woodlands, but also street trees, allotments and private gardens. It also includes Burnley's rivers and streams, the Leeds & Liverpool Canal and other water bodies (blue infrastructure).



Photo - Burnley's Parks

¹² NCAs are compiled by Natural England, full details can be viewed at <http://publications.naturalengland.org.uk/publication/12237027>

2.7.7 GI makes a vital contribution to health and well-being. Burnley's GI is recognised as a significant asset, providing a range of functions that support broader economic, social and environmental objectives.

2.7.8 The borough has a range of high quality and accessible parks and open spaces that effectively bring the countryside into the urban area, but this masks the situation in some of the borough's urban neighbourhoods where open space provision falls short of standards set in the Council's Green Spaces Strategy 2015-2025. The Strategy includes an audit of all types of green space in terms of quality, quantity and accessibility.

2.7.9 A growing network of high quality off-road routes or greenways promote walking and cycling within the urban area and provide people with access to the open countryside close to where they live. This network includes the Leeds & Liverpool Canal towpath and greenways established along the banks of the Calder, Brun and Sweet Clough rivers and the former Padiham railway line.



Photos – Left Padiham Greenway and right Allotments

2.7.10 Many of Burnley's urban neighbourhoods are lacking in recreational open space and play provision according to the local standards set out in the Council's Green Spaces Strategy 2015-2015.

Biodiversity

2.7.11 The borough has one nature conservation site of international significance, the South Pennine Moors which is a Special Protection Area (SPA), Special Area of Conservation (SAC) and Site of Special Scientific Interest (SSSI). The Moors are protected under European and national legislation both for their mosaic of habitats and the range of species and number of breeding birds they support.

County Biological and Geodiversity Sites

2.7.12 Burnley has 43 Local Wildlife Sites, known in Lancashire as Biological Heritage Sites (BHS). These are the most important non-statutory wildlife sites in Lancashire and cover a wide variety of habitats such as ancient woodland, grassland, and wetlands. Burnley also has five Local Geodiversity Sites (LGS) identified by GeoLancashire as the most important places for geology and geomorphology outside statutorily protected sites such as SSSIs. They are important as an educational, historical and recreational resource.

Ecological networks

2.7.13 A coherent, well connected network of habitats is essential to maintain biodiversity and enable species to adapt to a changing climate. Lancashire County Council has identified three key ecological networks across Lancashire; grassland, woodland and heath/wetland¹³, collectively known as the Lancashire Ecological Network. To date, specific networks have been identified and mapped for grassland and woodland habitats.

Local Nature Reserves

2.7.14 Local Nature Reserves (LNR) are a statutory designation made under Section 21 of the National Parks and Access to the Countryside Act 1949. LNRs are for both people and wildlife and offer convenient access to nature and special opportunities to study or learn about nature or simply to enjoy it. All district and county councils have powers to acquire, declare and manage LNRs. To qualify for LNR status, a site must be of importance for wildlife, geology, education or public enjoyment.

2.7.15 There are two LNRs in Burnley; the Deer Pond in Towneley Park and Lowerhouse Lodges. Both are also Biological Heritage Sites.

2.7.16 Natural England recommends 1 hectare of LNR per 1000 population. The land area of LNRs in Burnley totals 11.47 hectares, far short of the 87 hectares recommended for Burnley's population.

Rivers and Flood Risk

2.7.17 There are almost 50km of watercourses within the borough. Water quality has improved significantly in recent years and work undertaken to improve Burnley's heavily modified urban rivers has seen major improvements for wildlife and recreation.

2.7.18 The Calder and its tributaries (particularly the Brun in Burnley and Pendle Water and Green Brook in Padiham) are the main source of fluvial flood risk in the borough. The urban areas most at risk of fluvial flooding are Padiham town centre where serious flooding occurred in December 2015, Burnley town centre and the adjacent Burnley Wood/Fulledge neighbourhood all of which include significant areas at high risk of flooding (i.e. within Flood Zone 3). Risk of flooding from sources other than rivers including surface water, groundwater and sewer flooding is increasing due to the quantity and intensity of rainfall. Lancashire County Council is the Lead Local Flood Authority responsible for managing this local flood risk and for advising the Borough Council on drainage matters in new development.

Climate Change & Pollution

2.7.19 Burnley, like all other districts in Lancashire, has seen emissions of carbon dioxide fall between 2005 and 2013. The domestic sector makes the greatest contribution to Burnley's total emissions. Burnley's total per capita output of carbon emissions (5.4 tonnes, DECC 2013) is among the lowest of Lancashire authorities. Renewable energy generation has a key role in reducing pollution, and the location and design of buildings and green infrastructure all have an important role to play both in reducing pollution and mitigating and adapting to climate challenge.

2.7.20 Implementing measures to reduce air pollution at a local level is extremely important, including air quality limits for nitrogen dioxide. Although there are no formal Air Quality

¹³ Lancashire Ecological Network and Framework report 2013

Management Areas (AQMA), there are several areas of the borough where traffic emissions are impacting on air quality.

2.7.21 The borough has a number of sites contaminated by past industrial uses and tipping. Development can provide an opportunity to remediate and bring such sites back into use, or these can be restored as open space.

Key Issues & Challenges:

- Reducing carbon dioxide and other polluting emissions whilst meeting development needs and demands
- Reducing the reliance on fossil fuels and supporting the transition to a low carbon economy
- Protecting the borough's distinctive landscape character
- Increasing access to open space in those parts of the borough where this is in short supply
- Improving and protecting green infrastructure
- Protecting and enhancing biodiversity and ensuring coherent and resilient ecological networks
- Reducing flood risk and increasing the resilience of communities to the impacts of climate change
- Continuing to improve the quality, biodiversity and accessibility of Burnley's river and canal corridors

2.8 Transport and Other Infrastructure

Transport

2.8.1 Transport and economic growth are interlinked. The 18th Century saw the rapid growth of Burnley with the opening of the Leeds & Liverpool Canal in 1801 making possible the transportation of goods in bulk. In 1848, the East Lancashire Railway Company's extension from Accrington linked the borough to the nation's nascent railway system for the first time. This was another significant boost to the local economy. In the 20th Century, the completion of the M65 motorway in 1997 attracted the development of new employment areas, such as Network 65 and Shuttleworth Mead.

2.8.2 Burnley is served by Junctions 9, 10 and 11 of the M65, which runs west to Accrington, Blackburn and Preston where it connects to the M6, and north east to Nelson and Colne. The A56 (T) dual carriageway skirts the western edge of the borough, linking the M65 at Junction 8 to the M66 heading south towards Manchester, the M60 and M62.

2.8.3 Although Burnley is relatively close to Manchester, which offers a wide variety of services and employment opportunities, inadequate public transport links restricted the ability of Burnley residents to access them. This reduced the attractiveness of Burnley as a place to live. The introduction of a direct rail service to Manchester in 2015 has improved connectivity and, although this is initially only an hourly service, it is important that the Local Plan maximises the opportunities that this presents.

2.8.4 Road links to larger centres like Manchester, Preston and Leeds are good, but capacity is constrained. The M65 Corridor Study (2010) commissioned by the Highways Agency suggests that the inconsistent configuration of lanes could potentially lead to congestion and that between junctions 9 -10 eastbound the motorway will be approaching capacity in the morning and evening peak periods throughout the assessment period up to 2025. In addition, on junction 10, there were a high number of incidents involving rear end shunts. The section of motorway between junctions

11-12 had one of the highest frequencies of incidents where driver error was the most common cause.

2.8.5 Within Burnley, only one of the three junctions has both east and westbound exits, placing additional demands on local roads. The connection to Manchester is via the M65 (T)/M66 which is congested at peak times and is identified by the Highways Agency as a key pressure point. Road connections east to the Leeds City Region are poor.

2.8.6 There are five railway stations in the borough: Burnley Manchester Road, Burnley Central, Burnley Barracks, Rosegrove and Hapton. Manchester Road is the busiest station with an hourly service west to Preston and Blackpool North and east to Leeds and York. An hourly service to Manchester Victoria runs from a redeveloped Manchester Road station and Rosegrove station. Burnley Central and the three other stations in the borough are served by an hourly stopping service west to Blackpool South and Preston, and east to Nelson and Colne.

2.8.7 According to the 2011 Census, 32% of the borough's households do not own a car, the highest rate in Lancashire and compared to the Lancashire average of 23%. However, travel by car is still the predominant mode of transport to get to work (39%). Only 0.4% of people travel to work by train and only 5.1% by bus. 7.3% travel to work on foot and 0.6% by bicycle.

2.8.8 Burnley is notable for the high proportion of work trips of less than 5km (47%). 21% of these journeys are made on foot and 1.6% by bicycle. There is potential to increase the number of these journeys made by cycling and walking by providing safe and convenient routes.

2.8.9 Burnley has low but increasing cycle use. In 2013/14, Burnley had a rate of 5.8% of residents who cycle at least once a month, irrespective of length or purpose. This was the second lowest rate in the country. Traffic on main roads is one factor which acts as a barrier to cycle use and, a particular problem for cyclists is the Burnley town centre inner ring road. The Canal towpath has been upgraded over a number of years to offer an alternative cycle route. However, access to the town centre from the Canal is poor.

2.8.10 Bus provision is good with regular services to nearby towns and around the borough. These operate through Burnley bus station which was opened in 2002 and is centrally located in the town. In addition to the good services connecting residential areas to both Burnley and Padiham town centres, there are frequent services to Manchester via the X43 route and services between Padiham and Barnoldswick (via Burnley), Clitheroe and Colne (via Padiham and Burnley), Accrington and Trawden (via Hapton, Padiham and Burnley) and Burnley and Keighley.

Education

2.8.11 Burnley has the benefit of reorganised and renewed secondary school provision that was completed in three phases between 2008 and 2010 under the Building Schools for the Future Programme.

2.8.12 The former further education Burnley College facilities closed and a combined further education college and University at Princess Way opened in September 2009. This new campus complex, in conjunction with University of Central Lancashire (UCLAN), offers over 70 degree programmes from foundation level to postgraduate entry, as well as more than 40 A-Level courses and a range of vocational subjects and apprenticeship schemes.

2.8.13 The percentage of Burnley pupils attaining 5 A*-C GCSEs, including English and Maths was 47.2% in 2014.15 which represents an 11.2% increase since the start of the Building Schools for the Future (BSF) programme in 2008/9.

2.8.14 However, skills and educational attainment still remain a challenge. The percentage of adults qualified to NVQ Level 4 and above (HND, Degree and Higher Degree level qualifications or equivalent) was 25.7% for the 2016 calendar year, significantly below the national average¹⁴, and there is a mismatch between skill levels in the borough and growth sectors within the economy.

Sport and Leisure Facilities

2.8.15 The image of sport in the borough is dominated by Burnley Football Club and for a town of its size Burnley has good public sporting facilities.

2.8.16 In terms of sports and leisure facilities, the St Peter's Centre in Burnley, Padiham Leisure Centre and the Prairie Sports Village at Windermere Avenue to the north of Burnley are managed by Burnley Leisure Trust.

2.8.17 The St Peter's Centre in Burnley town centre offers swimming, short tennis, squash courts and a fitness suite. The Prairie Sports Village offers a 16-bay golf driving range and an FA approved 3G floodlit football pitch. The nearby Spirit of Sport complex at Blessed Trinity RC College has an indoor sports hall, astroturf, dance studio and netball courts. Ten public outdoor bowls facilities are available within the borough and one indoor ten-pin bowling centre.

2.8.18 There is an outdoor athletics track at Barden Lane in the north of the borough and both a 9-hole and 18-hole municipal golf course and tennis courts at Towneley Park. There is a skate park at Queen's Park. There are private sport and recreation facilities at Crow Wood including a swimming pool, tennis and squash courts and at Burnley Golf Club. 25 village halls and community centres provide opportunities for participating in events, activities and fitness classes.

2.8.19 Fishing occurs on the Rivers Calder and Brun, Cant Clough Reservoir, Lowerhouses Lodges, Cornfield Fishery, Swinden Reservoir and at Cliviger fish ponds. Rowley Lake, the pond adjacent to Netherwood Road and the Leeds & Liverpool Canal are also regularly used by anglers.

2.8.20 The Council's Playing Pitch Strategy 2016-2026 produced jointly with Pendle and Rossendale councils indicates there is an identified future demand shortfall in the provision of pitches for adult and youth football.

2.8.21 Sport England conducted an Active People survey¹⁵ during 2012/13 and this suggested that 70.1% of Burnley residents do not participate in sport at least once a week (compared to 64.2% in the North West and 64.3% in England). This has increased by 5.4% from 2011/12. According to the survey, 34.9% of men and 25.1% of women participate in sport at least once a week. These figures are 7.4% below the North West average for men and 4.5% below the North West average for women.

Other Infrastructure

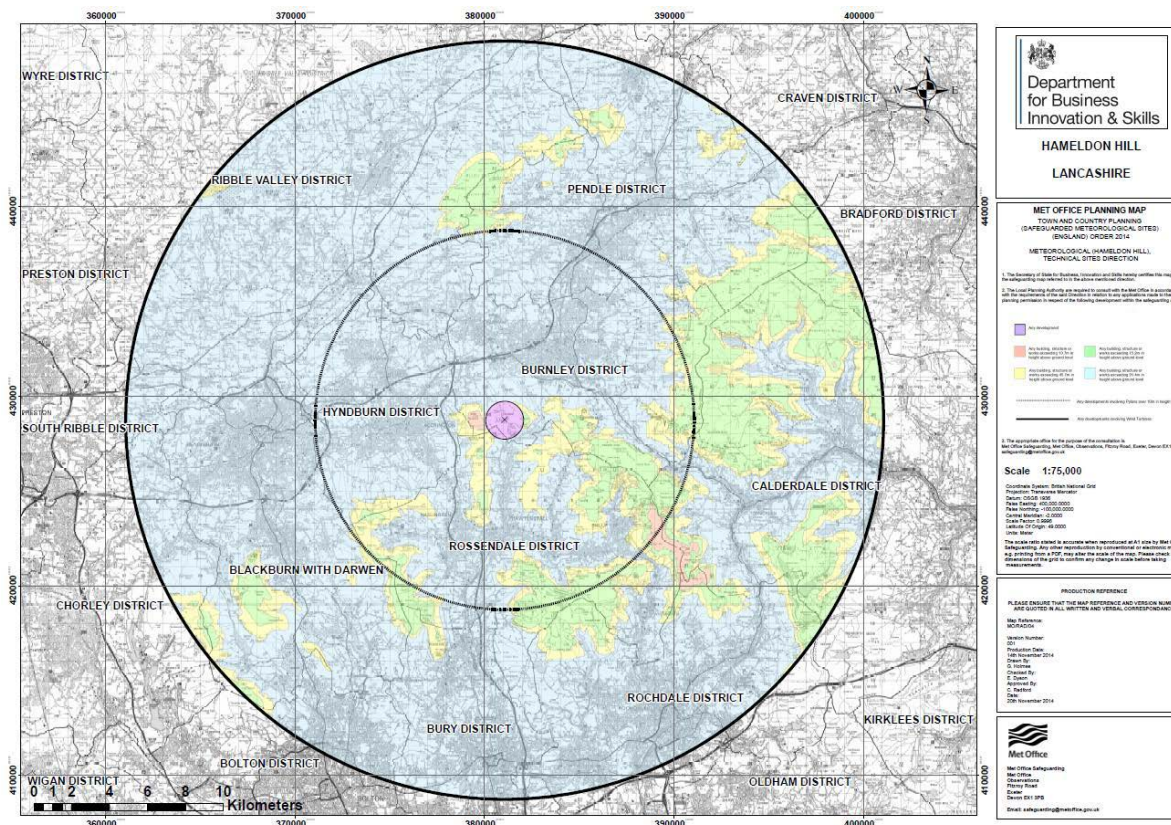
2.8.22 The Met Office's radar at Hameldon Hill provides important observation information which is essential for producing weather warnings and forecasts for a large number of customers including Local Authorities, MOD, the Environment Agency, airports, emergency services and other maintainers of essential infrastructure. In recognition of this, a Government Direction was issued in 2014 to require consultation with the Secretary of State for Business Innovation and Skills (BIS) acting through the Met Office on planning proposals within consultation zones around the installation.

¹⁴ Source ONS Annual Population Survey - % is a proportion of resident population of area aged 16-64.

¹⁵ Source: Sport England Local Sport Profile, 2014

2.8.23 The safeguarded consultation zone identified by BIS covers an area up to 20km in radius from the installation as shown on the map below.

Figure 3: Hameldon Hill Safeguarded Consultation Zone



Key Issues & Challenges:

- Maintaining and improving connectivity by public transport to the wider area and between rail and other modes of sustainable transport
- Improving walking and cycling routes/facilities
- Addressing congestion on some of the borough's roads and strategic network, particularly at peak times
- Raising educational attainment and aspirations
- Meeting any identified future demand shortfall in the provision of pitches for adult, youth and junior football.
- Safeguarding Hameldon Hill

Section 3 – Spatial Vision and Objectives

3 Spatial Vision and Objectives

3.1 A Vision for Burnley

3.1.1 An important factor in producing an effective Local Plan for Burnley and addressing the challenges that have been identified is having a clear idea about the place that Burnley will be at the end of the Plan period. The vision for Burnley is:

In 2032:

"The borough is a place of choice. Its excellent road and rail links to Manchester, Preston and Leeds and its attractive countryside setting have encouraged people to remain and to move into the borough. It is a place where businesses want to invest because of its skilled workforce, entrepreneurial culture, its competitive modern economy and its reputation for advanced manufacturing and engineering. Burnley town centre has firmly established itself as a vibrant retail and service centre for much of Pennine Lancashire. It is complemented by the more specialist independent retail and leisure offer provided by the attractive historic market town of Padiham.

The borough's rich industrial heritage and attractive countryside and recreational offer have helped it become firmly established as a prime residential location. The Leeds & Liverpool Canal is now flanked, in the regenerated Weavers' Triangle, by contemporary homes and bars. Fine historic parks form part of a well-connected network of greenspaces, including the Brun Valley Forest Park, linked to the wider countryside and the South Pennine uplands. This network has significantly improved the health of residents and the quality of the natural and built environment, extended the range of visitor opportunities and helped Burnley adapt to climate change. The borough's heritage is a source of pride that runs alongside the celebration of the multicultural and diverse nature of its communities that play such an important part in invigorating its economic, cultural and social life.

The borough is a desirable place to live offering a choice of high quality, affordable and aspirational homes as well as a diverse range of high quality employment opportunities. The Burnley Bridge Business Park, the Knowledge Park and a vibrant cultural and educational offer centred on the Weavers' Triangle have secured Burnley's reputation as an important employment centre for Pennine Lancashire. Education and training has been key to this. The borough has established itself as a hub of educational excellence with attainment levels above the national average and quality training and apprenticeship opportunities at Burnley College and the University of Central Lancashire."

3.2 Objectives

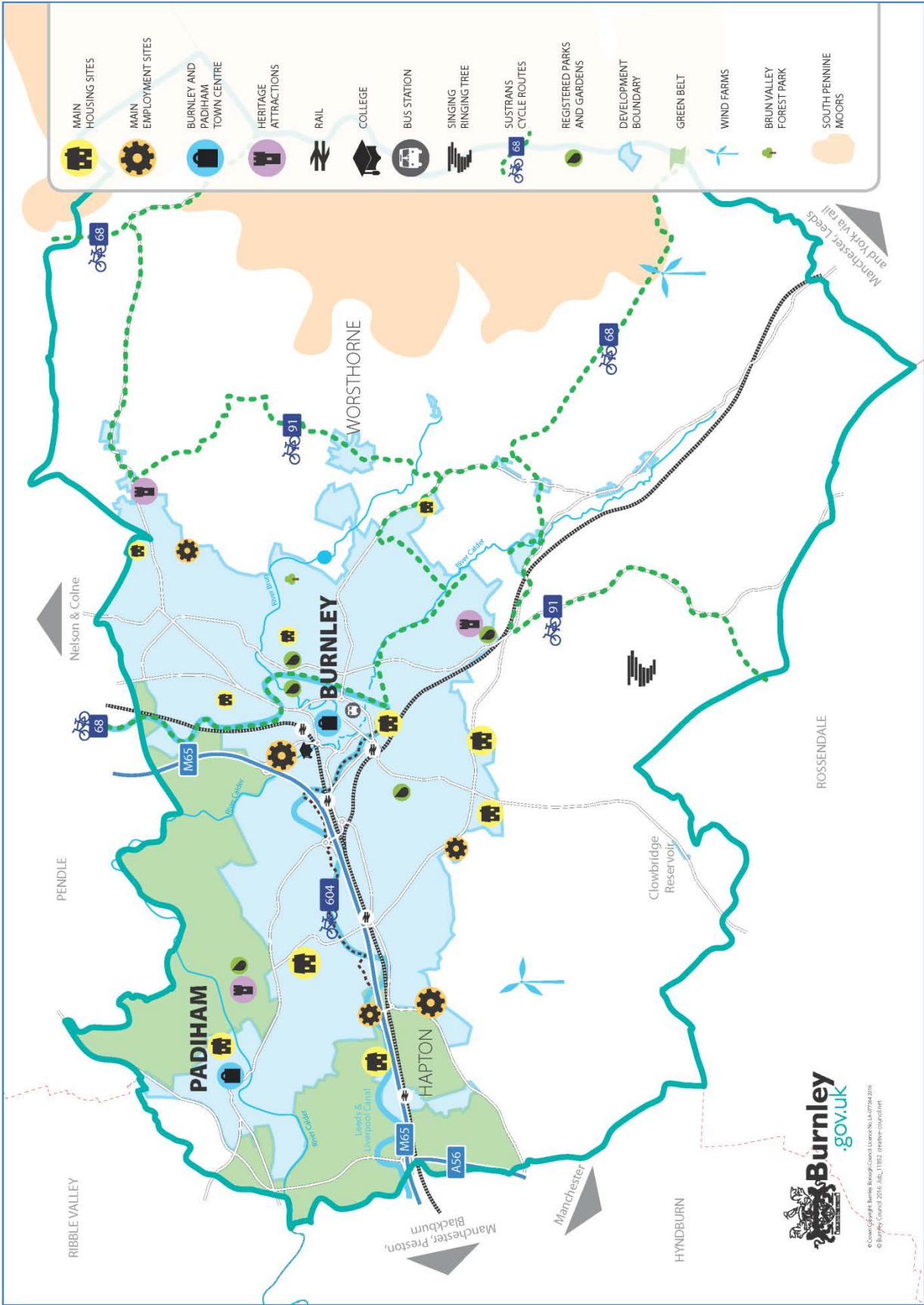
3.2.1 In order to achieve the vision and address the issues that have been identified, a number of strategic plan objectives have been identified. The policies in the Plan will set out how development will be managed so as to deliver these objectives and achieve the overall Plan vision.

Delivering Sustainable Growth	
1.	To minimise the adverse impacts of climate change and support growth to meet the need for jobs, homes and services in the context of moving towards a low carbon economy and stemming population decline. Growth will be managed so that it takes place in the most appropriate locations, promotes the re-use of previously-developed land and buildings, energy efficiency and sustainable design; and encourages the use of decentralised and

	renewable or low carbon energy sources.
Population and Housing	
2.	To revitalise the housing market by encouraging a well-integrated mix of high quality, aspirational and affordable homes of different types and tenures to meet the needs of a wide range of households and support economic growth.
Economy and Employment	
3.	To create an environment that supports economic prosperity, growth, entrepreneurship and a diverse business base.
4.	To enhance and develop Burnley town centre's role as a sub-regional commercial centre and Padiham's as a market town, supported by a network of other smaller centres that supply accessible services to local neighbourhoods; encouraging development that supports these service centres to ensure they are vibrant and prosperous.
The Natural Environment	
5.	To protect and enhance the borough's distinctive landscape character and high quality network of habitats and open spaces necessary for people and wildlife to thrive.
6.	To improve mental and physical health and wellbeing by improving environmental quality and increasing opportunities for exercise and for sport and recreation, including improved access to nature and the wider countryside.
The Built and Historic Environment	
7.	To create a safe, healthy, attractive, locally distinctive and accessible public realm for all.
8.	To ensure that the intrinsic qualities and distinctive character of the historic environment is protected and, where possible, enhanced; and that heritage assets are used positively to promote and support regeneration and recreation and stimulate 'pride of place'.
Accessibility, Transport and Other Infrastructure	
9.	To improve connectivity to major cities, including Manchester and Leeds, and provide infrastructure that supports sustainable economic growth and travel patterns.
10.	To establish Burnley as a centre of educational excellence with high levels of educational attainment and a skilled, highly qualified workforce that meets the needs of the borough's economy.
Community Involvement	
11.	To promote a diverse, vibrant and creative local culture encouraging pride and community cohesion and to seek community involvement in planning the future of the borough.

Section 4 – Strategic Policies

Figure 4: Key Diagram



4 Strategic Policies

Policies in this Section:

SP1: Achieving Sustainable Development	SP5: Development Quality & Sustainability
SP2: Housing Requirement 2012-2032	SP6: Green Infrastructure
SP3: Employment Land Requirement 2012-2032	SP7: Protecting the Green Belt
SP4: Development Strategy	

4.1 Achieving Sustainable Development

Sustainable Development

4.1.1 Resolution 42/187 of the United Nations General Assembly defined sustainable development as “meeting the needs of the present without compromising the ability of future generations to meet their own needs”. The UK Sustainable Development Strategy Securing the Future (2005) set out five guiding principles of sustainable development: living within the planet’s environmental limits; ensuring a strong, healthy and just society; achieving a sustainable economy; promoting good governance; and using sound science responsibly.

4.1.2 The NPPF sets out the Government’s view of what sustainable development in England means in practice for the planning system. It identifies three dimensions of sustainable development which the planning system should support:

- Economic: contributing to building a strong, responsive and competitive economy;
- Social: supporting strong, vibrant and healthy communities; and
- Environmental: contributing to protecting and enhancing our natural, built and historic environment.

4.1.3 These roles are interdependent. To achieve sustainable development, economic, social and environmental matters should be considered jointly and balanced through the planning system.

4.1.4 The NPPF sets out a presumption in favour of sustainable development which should be seen as a golden thread running through both plan-making and decision-taking.

4.1.5 The NPPF at paragraph 15 states that: “Policies in Local Plans should follow the approach of the presumption in favour of sustainable development so that it is clear that development which is sustainable can be approved without delay. All plans should be based upon and reflect the presumption in favour of sustainable development, with clear policies that will guide how the presumption should be applied locally.”

4.1.6 The Burnley Borough Local Plan is the starting point for the determination of relevant planning applications and these must be determined in accordance with the development plan unless material considerations indicate otherwise.¹⁶

4.1.7 The NPPF makes it clear that local planning documents should reflect the presumption in favour of sustainable development and Policy SP1 responds to this requirement.

¹⁶ Section 38(6) of the Planning and Compulsory Purchase Act 2004 and section 70(2) of the Town and Country Planning Act 1990

Policy SP1: Achieving Sustainable Development

- 1) When considering development proposals, Burnley Borough Council will take a positive approach that reflects the presumption in favour of sustainable development set out in the National Planning Policy Framework. It will work proactively with applicants and to find solutions which mean that proposals can be approved wherever possible to secure development that improves the economic, social and environmental conditions of the Borough.**
- 2) Planning applications that accord with the policies in this Local Plan (and, where relevant, with policies in any neighbourhood development plans) will be approved without delay, unless material considerations indicate otherwise.**
- 3) Where there are no policies relevant to the application or relevant policies are out of date at the time of making the decision, the Council will grant permission unless material considerations indicate otherwise - taking into account whether:**
 - a) any adverse impacts of granting permission would significantly and demonstrably outweigh the benefits, when assessed against the policies in the National Planning Policy Framework taken as a whole; or**
 - b) specific policies in the National Planning Policy Framework indicate that development should be restricted.¹⁷**



Photo - Leeds & Liverpool Canal

¹⁷ The NPPF gives the following examples: those policies relating to sites protected under the Birds and Habitats Directives and/or designated as Sites of Special Scientific Interest; land designated as Green Belt, Local Green Space, an Area of Outstanding Natural Beauty, Heritage Coast or within a National Park (or the Broads Authority); designated heritage assets; and locations at risk of flooding or coastal erosion

4.2 Housing Requirement

Objectively Assessed Need

4.2.1 The NPPF (paragraph 159) indicates that local planning authorities should prepare a Strategic Housing Market Assessment (SHMA) in order to gain a clear understanding of housing needs in their areas. It also indicates (paragraph 47) that local planning authorities should use their evidence base “to ensure that their Local Plan meets the full, objectively assessed housing needs for market and affordable housing in the housing market area” in so far as this is consistent with the other policies in the NPPF. The housing target for the borough must be set out in the Local Plan.

4.2.2 The NPPF states that SHMAs should identify the scale and mix of housing and the range of tenures that the local population is likely to need over the plan period which:

- meets household and population projections, taking account of migration and demographic change;
- addresses the need for all types of housing including affordable housing and the needs of different groups in the community; and
- caters for housing demand and the scale of housing supply necessary to meet this demand.

The Burnley and Pendle Strategic Housing Market Assessment (SHMA)

4.2.3 A SHMA has been prepared jointly with Pendle Borough Council in recognition of the fact that the two boroughs form a single Housing Market Area (HMA). The SHMA examines the inter-relationships between the HMA and adjacent areas and clearly indicates that the surrounding districts operate as separate housing markets.

4.2.4 The SHMA includes an assessment of housing need and demand for the whole HMA as well as for each borough, and sets out the likely housing requirement for the two boroughs over the respective plan periods. The SHMA tests a number of future scenarios based on different demographic, economic and policy/supply factors.

4.2.5 The Burnley & Pendle SHMA first prepared in December 2013 is now in a number of separate documents due to the different stages the two Councils were at with regard to plan-making. For Burnley Borough, the SHMA of June 2016 and its October 2017 Addendum is the most up to date version.

4.2.6 The NPPF and National Planning Practice Guidance (NPPG) both indicate that the latest population and household projections¹⁸ should be used as the starting point for assessing the future housing needs through the SHMA.

4.2.7 The SHMA uses these data sources and then tests a number of different scenarios to establish the Objectively Assessed Need ‘OAN’ (i.e. demand) for housing over the Plan period 2012-2032 including: a number of demographic (population driven) scenarios to see how much housing would be required to meet the projected population change and its characteristics; and a number of economic (jobs led) scenarios to see how much housing would be required to meet the projected levels of job growth, making assumptions about the likelihood and/or desirability of Burnley based residents filling the jobs.

4.2.8 The scenarios also make assumptions about the number of dwellings required to meet the estimated number of new households and assume a rate for second homes and vacancies of 6.42%.

¹⁸ ONS Sub-national population projections (SNPP) and DCLG Household Projections

4.2.9 The SHMA also considered whether any uplifts were needed to the scenario outputs to meet the guidance set out in the NPPG and concluded this was the case for the demographic scenarios to assist with the provision of affordable housing at a rate of 10%.

4.2.10 The 2017 SHMA Addendum identified an OAN range from within its overall scenario range as **2,060 to 4,000** net additional dwellings over the plan period, equivalent to **103 to 200** dwellings per annum (dpa).

4.2.11 The SHMA findings in relation to affordable housing are set out in section 5.1 and Policy HS2.

Establishing the Housing Target

4.2.12 In determining the Plan's housing requirement figure from the OAN range identified in the SHMA, it is important to ensure that the requirement:

- meets the latest population and housing projections;
- makes an allowance for the borough's economic aspirations; and
- boosts significantly the supply of housing in the borough.

4.2.13 The housing market and local economy are intrinsically linked. It is important to have a sufficient supply of homes to attract and retain a skilled workforce, to enable residents to have a choice of employment opportunities within easy reach and to help prevent unsustainable levels of commuting.

4.2.14 New housing is in itself critical to attracting investment into the local economy, creating new jobs in construction and the supply chain and improving community infrastructure. It is therefore important that the Local Plan provides for sufficient housing to meet the need and demand for housing and to attract and retain economically active residents who will contribute to the long term economic growth and social wellbeing of the borough.

4.2.15 National Planning Practice Guidance (NPPG): Assessment of Housing and Economic Development Needs states that "the assessment of development needs is an objective assessment based on facts and unbiased evidence. Plan makers should not apply constraints to the overall assessment of need, such as limitations imposed by the supply of land for new development, historic under performance, infrastructure or environmental constraints. However, these considerations will need to be addressed when bringing evidence bases together to identify specific policies within development plans."

4.2.16 Once the OAN is established, therefore, the decision about the level of growth to be set out in the Plan can take into account the 'environmental capacity' of borough to accommodate the OAN. The Burnley SHLAA indicates that there is no need to seek delivery in adjacent boroughs and that the borough can meet its own objectively assessed needs for housing in full.

4.2.17 The NPPF (paragraph 162) requires local planning authorities to work with infrastructure providers to assess the quality and capacity of local infrastructure provision and its ability to meet forecast demands. It is necessary to look at whether existing infrastructure can cope with the identified level and distribution of new housing development and/or whether proposed infrastructure improvements will adequately address any identified problems. There are no known major infrastructure barriers to delivering new housing in the borough.

4.2.18 The Local Plan has identified a housing requirement/target based on Scenario Ei of the 2017 SHMA Addendum (Experian Job Growth plus PCU¹⁹) i.e. the top of the OAN range but with a more positive assumption in respect of vacancies in new stock and small allowance for second homes, totalling 3.5% giving a requirement of 3,880 net additional dwellings which equates to an indicative average of 194 dwellings per annum.

Policy SP2: Housing Requirement 2012-2032

1) Over the 20 year period from 2012 to 2032 provision will be made to deliver a minimum of 3,880 net additional dwellings, equating to an indicative average of 194 dwellings per annum.		
a)	Net additional dwelling requirement 2012- 2032	3,880
b)	Completions: 1 April 2012 to 31 March 2017	(872)
c)	Demolitions: 1 April 2012 to 31 March 2017	(199)
d)	Net Additional Dwellings provided: 1 April 2012 to 31 March 2017 [b) minus c)]	673
e)	Re-occupation of empty homes 1 April 2012 to 31 March 2017	148
f)	Commitments:	
i)	Of which number of remaining units on sites under construction as at 31 March 2017	678
ii)	Of which developable sites with planning permission under the 0.4 ha allocation thresholds as at 31 March 2017²⁰	114
iii)	Other Commitments²¹	51
g)	Allowance for brownfield Windfalls on sites under 0.4 ha from 1 April 2019 to 31 March 2032²²	338
h)	Re-occupation of empty homes	80
i)	Residual Requirement to be met by site allocations	1,798
2) The housing requirement will be provided for in line with the overall Development Strategy identified in Policy SP4.		

Delivering the Housing Requirement

Strategic Housing Land Availability Assessment (SHLAA)

4.2.19 The NPPF (paragraph 159) requires local planning authorities to prepare a Strategic Housing Land Availability Assessment (SHLAA) to establish realistic assumptions about the availability, suitability and likely economic viability of land to meet the identified need for housing over the plan period. Paragraph 161 encourages authorities to undertake assessments of land available for economic development at the same time as, or combined with, the housing SHLAA.

¹⁹ See 2017 SHMA Addendum, Scenario Ei - Experian Job Growth plus Partial Catch Up Page 18 plus Erratum Sheet as per Examination Library correction EL3.080

²⁰ An allowance for non-implementation (lapse rate) of 10% has been applied

²¹ 51 further dwellings at Former William Blythe Site within the Green Belt consented under planning application APP/2016/0021

²² based on average rate over a 5 year period 2010/11 to 2014/15 i.e. 26 per annum

4.2.20 The Burnley Strategic Housing and Economic Land Availability Assessment (SHLAA) 2017 is a combined assessment which assesses the amount of land available within the borough that is potentially available to meet the identified need and demand for new employment and housing development.

4.2.21 The NPPF requires (paragraph 47) that the Local Plan, in meeting the requirement set out, ensures that a five-year supply of specific 'deliverable' sites is identified and updated annually. In addition, where there has been persistent under-delivery of new housing, the five-year supply should also include a 20% buffer 'moved forwards from later in the plan period' to ensure choice and competition in the market for land. This buffer is not an addition to the overall plan requirement.

4.2.22 The Burnley SHLAA (2017) provides details of the amount of land with the potential to accommodate new housing development. Consideration of a site in the SHLAA or it being categorized as potentially 'developable' does not mean that the site will or should be allocated for development, or that a planning application would be supported. The SHLAA provides a pool of potential sites from which to select those to be allocated in the Plan and these were selected on the basis of many factors, including:

- How they help deliver the Plan's Vision and Objectives and support economic growth;
- How they fit with the Plan's overall spatial strategy set out in Policy SP4;
- Whether they collectively offer the quality and choice of housing to meet the needs and demands of all sections of the community;
- Whether they can deliver housing within the next 5 years;
- Their environmental, social and economic impacts, including as evaluated through the Sustainability Appraisal and Strategic Flood Risk Assessment process;
- Their infrastructure requirements and potential community benefits; and
- The comments received through the Plan consultation.

4.2.23 The sites allocated for development are set out in Policy HS1.

Housing Trajectory

4.2.24 The NPPF (paragraph 47) requires local planning authorities to illustrate the expected rate of housing delivery in their Local Plan through a 'housing trajectory'. The housing trajectory is set out in Appendix 5.

4.2.25 The trajectory indicates that the Plan provides for a sufficient supply to deliver the overall housing requirement in the borough and a five year supply of deliverable sites.

4.2.26 The trajectory illustrates that since the start of the Plan period (1 April 2012) the number of net additional dwellings delivered has been below the indicative cumulative requirement figure of 194 dpa. Between 2012/13 and 2016/17 there was a cumulative deficit of 149 dwellings. This under-delivery needs to be addressed by the Local Plan, either in the next five year period ('Sedgefield' approach) or over the remaining Plan period ('Liverpool' approach).

4.2.27 Housing delivery since the start of the Plan period has been affected by adverse economic conditions which have delayed construction on a number of sites. In addition, the net additional dwellings figures have been impacted upon by the Housing Market Renewal clearance programme in Daneshouse, Burnley Wood and South West Burnley. Economic constraints are likely to continue in the short to medium term and may continue to suppress housing completions; however, the housing market renewal clearance programme has been substantially completed and the building of new and replacement homes continues. The last two years (2015/16 and 2016/17) have seen an upturn in starts and completions.

4.2.28 The SHLAA will be regularly updated and the Authority's Monitoring Report (AMR) will annually update the housing trajectory helping to ensure a five year supply is maintained throughout the Plan period and signalling any need for intervention and/or Plan review.

Empty homes

4.2.29 The NPPF (paragraph 51) indicates that local planning authorities should identify and bring back into residential use empty homes and buildings in line with empty homes strategies and, where appropriate, acquire property by compulsory purchase. In October 2014, there were 2,458 vacant dwellings in the borough in Burnley, equivalent to 6.06% of the housing stock. This is noticeably higher than the average for England (2.62%). In order for a housing market to function properly there will always be a number of vacant homes to allow sale and refurbishment ('churn'), normally around 3%.

4.2.30 Targeted action by the Council through the Vacant Property Initiative has helped to reduce the overall vacancy rate and the number of long-term empty properties. The Council has current specific plans to target a further 80 empty properties over the period 2017/18 to 2018/19.

4.3 Employment Land Requirement

Establishing the Employment Land Requirement

4.3.1 The Burnley Employment Land Demand Study (ELDS) (June 2016) provides an important part of the evidence base to inform the preparation of the Local Plan. This objectively assesses employment land demand in line with the NPPF and Planning Practice Guidance (NPPG) over the Plan period 2012 to 2032. It examines a range of future scenarios which forecast jobs growth in the main 'B class'²³ sectors.

- Three demographic (population driven) scenarios assess how much land would be required to meet the forecast labour force in Burnley.
- Three economic (jobs-led) scenarios assess how much land would be required to meet the projected levels of job growth in Burnley.
- One scenario assesses and projects forward the past take-up of employment land through planning application and completions monitoring.

4.3.2 One of the economic scenarios (Key Growth Sectors) takes account of non-local plan 'policy' interventions and as such could be seen as not being objective.

4.3.3 These scenarios identify a potential demand for between 66.54 and 103.81 hectares of employment land over the Plan period.

4.3.4 Having considered these scenarios and a number of quantitative and qualitative factors, the Study suggests that the Plan requirement should be within the range of 68 to 104 hectares to 2032.

4.3.5 The selection of a specific employment land requirement for the Local Plan and the choice of sites is dependent upon a number of factors including:

- How this would help deliver the Plan's Vision and Objectives and support economic growth;
- How this would fit with the Plan's overall spatial strategy set out in Policy SP4;
- Whether it would collectively offer sufficient and could offer the range of sites to meet the needs and demands of business, and provide a variety of employment opportunities for

²³ See Glossary

existing and new residents to achieve a more aspirational level of economic activity in the area;

- The environmental, social and economic impacts, including as evaluated through the Sustainability Appraisal and Strategic Flood Risk Assessment process, and in particular the impact on commuting;
- The infrastructure requirements and potential community benefits; and
- The comments received through the Plan consultation.



Photo – Phase 1 Vision Park, Burnley - completed 2018

4.3.6 The NPPG: Assessment of Housing and Economic Development Needs states that “the assessment of development needs is an objective assessment based on facts and unbiased evidence. Plan makers should not apply constraints to the overall assessment of need, such as limitations imposed by the supply of land for new development, historic under performance, infrastructure or environmental constraints. However, these considerations will need to be addressed when bringing evidence bases together to identify specific policies within development plans.”

4.3.7 Once the need/demand is established, therefore, the decision about the level of growth to be set out in the Plan can take into account the ‘environmental capacity’ of the borough to accommodate this level of growth.

4.3.8 There are no known major infrastructure barriers to delivering new employment development in the borough.

4.3.9 The Local Plan requirement/target figure is for at least **66 Ha** of employment land over the Plan period. This figure aligns with the 2016 ELDS’s Experian Baseline (Jobs Growth) scenario of 82.49 Ha (which is a reflection of recent job growth trends) which in the ELDS was made up of 9.77 Ha plus an allowance for the replacement of employment land losses of 65.2 Ha and a flexibility factor 7.53 Ha.

4.3.10 The Plan requirement based on this Scenario is for 9.77 Ha plus a reduced allowance for past and future losses within the Plan period of 55.8 Ha²⁴. Given the net requirement of this scenario of 9.77 Ha, the significant allowance for losses and the position with regard existing completions, the Local Plan Inspector considered that a further flexibility factor as proposed in the ELDS was not necessary.

Policy SP3: Employment Land Requirement 2012-2032

1) Over the 20 year period from 2012 to 2032 provision will be made to deliver at least 66 hectares of employment land.		
a)	Employment Land requirement 2012 - 2032	66 Ha
b)	Completions - 1 April 2012 to 31 March 2017	27.64 Ha
c)	Commitments	10.49 Ha
i)	Of which, sites under construction as at 31 March 2017	4.57 Ha
ii)	Of which developable sites with planning permission under the 0.4 Ha allocation threshold as at 31 March 2017	0.33 Ha
iii)	Of which Other Commitments²⁵	5.59 Ha
d)	Residual Requirement to be met by site allocations	27.87 Ha
2) The employment land requirement will be provided for in line with the overall Development Strategy identified in Policy SP4.		

4.4 Development Strategy

The Focus and Distribution of Development

4.4.1 The Core Principles of the NPPF state that plan-making and decision-taking should, amongst other factors:

- take account of the different roles and character of different areas, promoting the vitality of our main urban areas, protecting the Green Belts around them, recognizing the intrinsic character and beauty of the countryside and supporting thriving rural communities within it;
- contribute to conserving and enhancing the natural environment and reducing pollution. Allocations of land for development should prefer land of lesser environmental value, where consistent with other policies in the Framework;
- encourage the effective use of land by reusing land that has been previously developed (brownfield land), provided that it is not of high environmental value;
- actively manage patterns of growth to make the fullest possible use of public transport, walking and cycling, and focus significant development in locations which are or can be made sustainable; and

²⁴ This figure was determined during the Local Plan Examination and was derived from updated information on past and anticipated future losses of employment land over the plan period – see examination library document EL3. 077a

²⁵ Site EMP1/2 Parcel A and EMP1/4 as set out in Proposed Submission Draft Local Plan of March 2017 – these sites were under construction in 2017/18 and were set to be completed by 31 March 2018 i.e. before adoption

- support the transition to a low carbon future in a changing climate, taking full account of flood risk and coastal change, and encourage the reuse of existing resources, including conversion of existing buildings, and encourage the use of renewable resources (for example, by the development of renewable energy).

4.4.2 Focusing development on urban areas not only helps protect the countryside, but complements efforts to encourage urban regeneration and renaissance to improve the quality of the built environment through the redevelopment and conversion of vacant sites and buildings.

4.4.3 Evidence from the SHLAA indicates that development requirements set out in Policy SP2 and SP3 could not be met in full on previously-developed sites, or on sites within the urban boundary as defined in the 2006 Burnley Local Plan; and that a number of sites outside of the 2006 urban boundary were required to meet the housing and employment land requirements and to deliver housing quality and choice to support economic growth. The focus of development, however, remains on the towns of Burnley and Padiham, on sites within the current built-up areas and on sites adjoining and well related to them.

4.4.4 The borough's open countryside provides a visually striking and attractive setting for Burnley and Padiham and its villages and hamlets. There are strong pressures for development in the countryside and strict control of the scale and location of development is needed in rural areas to protect agricultural land, landscape, wildlife, recreational opportunities and the character of rural settlements; and to prevent these settlements coalescing. However, some development can and should be supported in rural settlements and in the countryside to support the rural economy, to help sustain infrastructure and services, and to provide quality and choice of housing for existing and new residents.

The Settlement Hierarchy

Burnley

4.4.5 In the previous Lancashire Structure Plan²⁶ the town of Burnley was identified as one of five 'principal urban areas' where development in Lancashire should be concentrated. In the former Regional Strategy²⁷ Burnley was identified as a regional town within the Central Lancashire city region (the third priority after the centres of, and inner urban areas of, Manchester and Liverpool), where development should be focused in and around the centre of the town.

Padiham

4.4.6 In the previous Lancashire Structure Plan the market town of Padiham was identified as a Key Service Centre (KSC) where development of an appropriate scale would be sufficient to promote its regeneration and support and enhance its role as a service centre and public transport hub for the surrounding villages and rural areas. These KSCs sat third in the development hierarchy below the Principal Urban Areas (e.g. Burnley and Blackburn) and the Main Towns (e.g. Darwen). KSCs were described but not named in the former Regional Strategy, but Padiham would have fulfilled this role, which was similar to that described in the former Structure Plan.

Villages

4.4.7 The previous Lancashire Structure Plan did not identify specific settlements below the level of KSCs but anticipated that Local Plans would identify villages and settlements for development of

²⁶ Joint Lancashire Structure Plan 2001-2016 (2005)

²⁷ North West of England Plan Regional Spatial Strategy to 2021 (2008)

an appropriate scale aimed at meeting local needs. The Regional Strategy identified a tier of settlement below KSCs called Local Service Centres (LSC). Again, these were not named as they were to be identified in district-level plans. These were to be towns or villages which already provided a limited range of services to the local community and to be areas of small scale development to help sustain local services, meet local needs, or support local businesses.

4.4.8 A Rural Masterplanning Study for the borough (with the enabling support of CABE) was undertaken in 2011 in order to investigate where housing and other development could be located to support growth and the sustainability of rural settlements. It focused on issues of urban design and land use and set out character and landscape appraisals in order to determine the physical capacity for development in the borough's villages. An updated assessment of village services has been undertaken for the Local Plan and this is included in Appendix 6.

Identifying the New Hierarchy

4.4.9 Whilst the 2006 Burnley Local Plan identified Burnley and Padiham as being within a single urban area boundary which also included the villages of Hapton and Worsthorne, individual Plan policies recognised the different roles and functions of the settlements and took a different approach to the type and scale of development they could support. The Plan did not identify key or local service centres but adopted an approach of 'named settlements' in the rural area i.e. settlements outside the urban area where small scale development, subject to a number of caveats, would be supported. Outside of these named settlements the Local Plan proposed that development be strictly controlled.

4.4.10 In view of the need for significant employment and housing development outside of the 2006 urban boundary and also for modest growth to provide new homes to increase housing quality and choice in the borough's villages, the approach of the 2006 Local Plan has been reviewed. A clear settlement hierarchy is proposed to be set out to reflect and inform the overall plan strategy and help manage development pressures, particularly in view of the NPPF's approach to housing development which seeks to boost significantly the supply of housing including by meeting in full the need and demand for affordable and market housing.

Development Boundaries

4.4.11 Whilst the 2006 Burnley Local Plan identified an 'urban boundary', settlement or development boundaries for the named settlements were not defined.

4.4.12 Whilst this approach provided a framework for allowing small scale development in the named settlements, it provided very limited opportunities for new housing and other development within them, and it did not provide the clarity that defined development boundaries could.

4.4.13 Development Boundaries are therefore proposed around the small villages identified as Tier 4 settlements to reflect and inform the overall plan strategy and help manage development pressures. A single Development Boundary is proposed to be retained for Burnley and Padiham and separate Boundaries for Worsthorne and for Hapton. The 2006 urban boundary has also been reviewed to take account of any relevant allocations at Burnley, Padiham, Hapton and Worsthorne.

4.4.14 These Development Boundaries are not purely housing-focused. They are not intended to be settlement boundaries indicating the existence or extent of villages, but a planning tool to indicate where infill development of an appropriate type and scale may be acceptable; with land outside them being regarded as open countryside.

The Open Countryside

4.4.15 Development within the open countryside will be strictly controlled and will only be permitted where it has a genuine need to be located in the countryside and is of an appropriate scale and type. Policies on these developments are set out elsewhere in the Plan based on the development type e.g. Agricultural Workers Dwellings - Policy HS6, House Extensions and Modifications - Policy HS5, Conversion of Rural Buildings - Policy EMP6. Additional restrictions will apply to development within the Green Belt (see Policy SP7).

4.4.16 Whilst the NPPF does encourage the reuse of previously-developed (brownfield land) providing that it is not of high environmental value, it also seeks to boost significantly the supply of housing and meet the demand for housing and employment land in full. Para 4.4.3 above recognises the need to allocate greenfield land to accommodate the borough's housing and employment development requirements and deliver the Plan objectives. Policy SP4 does not, therefore, propose a sequential test which seeks to prevent the development of greenfield land where brownfield land exists.

Policy SP4: Development Strategy

1) Development will be focused on Burnley and Padiham with development of an appropriate scale also supported in the following main and small villages:

Settlement Hierarchy:

Tier	Category	Settlement	
1	Principal Town	Burnley	Role & Function: Principal service centre for the Borough and home to the majority of the borough's population and a town of a sub-regional importance for retail, leisure and public administration and services with excellent public and private transport links. Development Scale Housing: Large scale, major and a variety of smaller sites to deliver a comprehensive range of choice of types and tenures. Employment: Large scale, medium and a variety of smaller sites to deliver a comprehensive range of units for new and existing businesses and employment opportunities for new and existing residents. Retail: Sub regional centre for retailing and the principal retail destination for the borough. Town centre with defined Town Centre boundary and defined Primary Shopping Area and Primary and Secondary Frontages where new development will be concentrated including through a new allocation and by virtue of its size.
2	Key Service Centre	Padiham	Role & Function: A key service centre and public transport hub for the surrounding villages and rural areas and home to a significant proportion of the borough's population. Development Scale Housing: Large scale, major and a variety of smaller sites to deliver a comprehensive range of choice of types and tenures. Employment: Large scale, medium and a variety of smaller sites to deliver a comprehensive range of units for new and existing businesses and employment opportunities for new and existing residents. Retail: Town centre with defined Town Centre boundary with a supporting role to Burnley in the retail hierarchy where by virtue of its smaller size, more modest development would be focussed.

3	Main Village	Hapton Worsthorne	Role & Function: Predominantly residential areas but with some local employment sites, which provide a limited but reasonable range of services to the local community and local businesses and have good public and private transport links to larger towns.
			Development Scale Housing: Medium and small scale sites to deliver quality and choice and modern adaptable stock for existing and new residents and to deliver aspirational housing and support and enhance existing service provision. Employment: Small scale schemes to provide opportunities for new and existing businesses and employment opportunities for new and existing residents. Retail: No defined centre – local shops to serve local community
4	Small Village	Clow Bridge Mereclough Lane Bottom Hurstwood Overtown Holme Chapel Walk Mill	Role & Function: Predominantly residential areas but with some small scale local/rural employment sites, which provide a basic range of services to the local community and local businesses and have reasonable public and private transport links to larger towns and villages. Development Scale Housing: Small scale schemes to deliver quality and choice and modern adaptable stock for existing and new residents and support and enhance existing service provision. Employment: Limited small scale schemes to provide opportunities for new and existing rural businesses or rural diversification and employment opportunities for new and existing residents. Retail: No defined centre – local shops or facilities selling basic convenience goods to serve local community.

Development Boundaries and development within them

2) In addition to those sites specifically allocated for development in policies elsewhere in this Plan, new development will be supported within the Development Boundaries as defined on the Policies Map where it is of an appropriate type and scale bearing in mind the role of the settlement in the hierarchy and where it satisfies the following overarching criteria and other relevant policies of this Plan:

- a) It makes efficient use of land and buildings;
- b) It is well located in relation to services and infrastructure and is, or can be made, accessible by public transport, walking or cycling; and
- c) It does not have an unacceptably detrimental impact on residential amenity or other existing land users.

3) In considering the acceptability of development proposals on unallocated sites within these Development Boundaries, consideration will also be given to:

- a) Whether schemes appropriately re-use existing buildings and infrastructure; or
- b) Whether schemes make use of previously-developed land that is not of recognised high biodiversity value.

Development in the Open Countryside

4) The open countryside is defined as land beyond any Development Boundary. In the open countryside development will be strictly controlled.

Coalescence

5) Development proposals should not lead to the coalescence of settlements.

4.5 Development Quality and Sustainability

Sustainability

4.5.1 Section 39 of the Planning and Compulsory Purchase Act 2004 requires local planning authorities to exercise their plan-making functions “with the objective of contributing to sustainable development”. Section 19 (1A) of the Act requires them to include in their local plans “policies designed to secure that the development and use of land in the local planning authority’s area contribute to the mitigation of, and adaptation to, climate change.”

4.5.2 The Core Principles of the NPPF state that plan-making and decision-taking should “support the transition to a low carbon future in a changing climate, taking full account of flood risk and coastal change, and encourage the reuse of existing resources, including conversion of existing buildings, and encourage the use of renewable resources (for example, by the development of renewable energy).”

4.5.3 The Lancashire Climate Change Strategy²⁸ sets out a framework for how the sub-region will work together towards meeting its target that Lancashire is low carbon and well adapted by the 2020, and identifies the carbon savings that can be achieved through four key sectors: domestic; transport; business and public sector; and land use.

4.5.4 Whilst the location and focus for new development is important in reducing the demand for fossil fuels and minimising emissions, the design, layout and orientation of buildings and open spaces can also make a positive contribution to improving the overall sustainability of new development by minimising or avoiding negative on or off-site environmental impacts and through minimizing both the embodied energy costs and the energy usage of new development.

4.5.5 Paragraph 95 of the NPPF states local planning authorities should actively support energy efficiency improvements to existing buildings and when setting any local requirement for a building’s sustainability, do so in a way consistent with the Government’s zero carbon buildings policy and adopt nationally described standards.

4.5.6 In terms of minimising embodied energy costs and the energy usage in new development, the Government now proposes that the mechanism for achieving the requirements of this policy is through an incremental increase in the mandatory energy efficiency requirements of the Building Regulations (Part L). However, planned improvements to Part L building fabric energy standards in 2016 have not been implemented and current standards are being instead “will keep energy efficiency standards under review”.²⁹

4.5.7 In March 2015 the Government introduced a new approach to establish planning and building regulation technical standards for homes, in an attempt to rationalise a number of pre-existing standards e.g. the Code for Sustainable Homes and Lifetime Homes, into three ‘Optional Standards’; two within the Building Regulations themselves and the third an optional nationally described space standard. These optional standards cover three matters, accessibility, water efficiency and internal space. Councils can through their Local Plans introduce the one or more of the optional standards where they address a clearly evidenced need and where their impact on viability has been considered; and can set out what proportion of new dwellings should comply with the standards. Guidance on introducing the standards is set out in the NPPG.

²⁸ Lancashire Climate Change Strategy 2009-2020 The Lancashire Climate Change Partnership adopted by the Lancashire Leaders in 2009

²⁹ HM Treasury - Fixing the foundations: Creating a more prosperous nation - July 2015

4.5.8 Water Efficiency: Under the basic standard set out in the Building Regulations, all new homes have to meet the requirement of 125 litres/person/day. There is not considered to be sufficient evidence to support the optional higher standard of 110 litres/person/day.

4.5.9 Internal Space: It is not considered that there is sufficient clear evidence to introduce the optional nationally prescribed space standard although this is an important issue in Burnley given the oversupply of small two bedroomed terraced homes without indoor ground floor toilets.

4.5.10 Accessibility: It is considered that there is sufficient evidence as set out in the Council's SHMA to support the optional standard on accessibility. There are two optional accessibility standards: M4(3) wheelchair user dwellings and M4(2) wheelchair adaptable dwellings (i.e. those which are constructed with the potential to be adapted for occupation by a wheelchair user). It is the latter, which addresses similar matters to the former non-statutory Lifetime Homes standards, that is considered appropriate in Burnley. This is set out in Policy HS4.

4.5.11 The changes to the standards for housing do not affect those for commercial buildings where BREEAM standards are still relevant (Building Research Establishment Environmental Assessment Methodology). First published by the Building Research Establishment in 1990 BREEAM is the world's longest established method of assessing, rating, and certifying the sustainability of buildings. More than 250,000 buildings have been BREEAM certified and over a million are registered for certification – many in the UK and others in more than 50 countries around the world.³⁰

4.5.12 Whilst the Council recognises that the viability of new development may be affected by unduly onerous policy requirements, important matters such as improved adaptability and energy efficiency can be addressed without compromising viability and the Plan needs to look at viability across the economic cycle to 2032. Lower running costs, particularly in terms of energy is an important factor in areas such as Burnley where there are high levels of fuel poverty.

Design Quality

4.5.13 Section 39 of the Planning and Compulsory Purchase Act 2004³¹ requires local planning authorities to “have regard to the desirability of achieving good design”. One of the 12 core planning principles set out in the NPPF is to “always seek to secure high quality design and a good standard of amenity for all existing and future occupants of land and buildings”.

4.5.14 Definitions of good design are many and varied. Design is often interpreted to be solely about appearance, but good design must also take account of functionality. High quality design is design which positively addresses its context, local character, appropriate scale and form, continuity and enclosure, quality of the public realm, ease of access, legibility, adaptability and affordable maintenance, and uses high quality materials and methods of construction.

4.5.15 The borough's industrial legacy and natural topography has created an interesting and distinctive townscape, recently enhanced by high quality new developments and refurbishments around the town such as at the Weavers' Triangle. It is important that new development, of whatever type and scale, respects the area's character and seeks to achieve high quality design and where possible improvement in the built environment to help create attractive and successful neighbourhoods and thriving town centres. Simple elegant designs are generally preferable to over-designed or 'fussy' schemes, but there is always a place for idiosyncrasy and for creating new

³⁰ Wikipedia

³¹ Introduced by S183 of the Planning Act 2008

landmark buildings and structures, particularly as many of these (mills and chimneys, church towers and spires) can be been lost over time.

Key Gateways

4.5.16 The image or perception of a town can be formed by a visitor's experience on their first approach to it. For residents, their pride and enjoyment of their own town will also be affected by their approaches to and journey across it. The quality of key entrances to and key junctions across the town that people pass daily is important to the town's overall image and can also set the tone for other development in the town and on routes between these key gateways. Key gateways can serve different functions and should not all be treated the same; some should proudly announce your arrival, whilst other should provide a smooth and gentle transition from countryside to town. In order to protect and enhance them for the wider benefits they bring, the Council has identified the location of the Key Gateways on the Policies Map.

Materials

4.5.17 The choice of materials is important to any new development, including extensions and alterations to existing buildings. The choice of materials, their colour, texture and pattern of use has a major impact on the way a development looks and can help articulate and communicate a sense of quality and belonging. A limited and carefully selected palette of materials appropriate to the locality is most effective and the use of high quality durable materials will lead to the most sustainable and successful developments.

Security

4.5.18 Designing out crime and designing in community safety should be central to the planning and delivery of new development. Section 17 of the Crime and Disorder Act 1998 requires all local authorities to exercise their functions with due regard to their likely effect on crime and disorder, and to do all they reasonably can to prevent crime and disorder. The role of the planning system in helping to secure safe and accessible environment is in paragraphs 58 and 69 of the NPPF.

4.5.19 One tool in helping to achieve this is 'Secured by Design' (SBD). SBD is an initiative managed by the Mayor's Office for Policing and Crime (MOPAC) on behalf of the UK police services which awards this accreditation to schemes which are designed and laid out to address a range of crime prevention initiatives.

Accessibility

4.5.20 The Equality Act 2010 requires service providers to make reasonable adjustment where disabled customers or potential customers would otherwise be at a substantial disadvantage compared with non-disabled people. This can include making changes to the structure of a building to improve access and to provide auxiliary aids and services. The Council will support, wherever possible, adaptations to existing buildings, subject to balancing this with any other important policy imperatives. New buildings should be designed from the outset with all users in mind.

Building for Life

4.5.21 'Building for Life 12' is a Government-endorsed industry standard for well-designed homes and neighbourhoods led by three partners: CABE at the Design Council, Design for Homes and the Home Builders Federation, supported by Nottingham Trent University. It uses 12 urban design criteria and a 'traffic light' system whereby developments that achieve 9 'greens' are eligible for 'Built for Life' accreditation. Schemes that achieve 12 greens will be eligible to be awarded Built for Life 'Outstanding' status, and the best new housing across the country will be recognised at events organised by the Building for Life Partnership.

Active Design

4.5.22 Good design should contribute positively to making places better for people, to create environments that make the active choice the easy and attractive choice for people and communities. Policy SP5 and other policies in the Local Plan reflect this important aspiration. Further information can be found in 'Active Design' prepared by Sport England, which is a key guidance document intended to help unify health, design and planning by promoting the right conditions and environments for individuals and communities to lead active and healthy lifestyles.

Policy Approach

4.5.23 Policy SP5 provides a comprehensive strategic policy framework for design which will be applied to all development as appropriate to its particular nature and scale. This should be read alongside any specific policies elsewhere in the Plan applying to the development type, for example housing, or subject e.g. landscape character, parking etc.; and additional area or topic-specific design guidance may be set out in future Supplementary Planning Documents.

4.5.24 Whilst the delivery of high standards of design and construction can affect development costs, much can be achieved by careful thought and the limited use of high quality natural local materials. High quality design and materials will have lower maintenance costs over the lifetime of developments.

4.5.25 Development proposals, as appropriate to their nature and scale, will be expected to demonstrate through the use of detailed, clear and accurate drawings (and a Design and Access Statement where appropriate), how they have successfully addressed their context.

Policy SP5: Development Quality and Sustainability

The Council will seek high standards of design, construction and sustainability in all types of development. Proposals will be expected to address the following minimum requirements, as appropriate to their nature and scale:

1) Energy Efficiency

- a) Incorporate measures to minimise energy and water consumption;
- b) A BREEAM Assessment must be carried out for all non-residential development with a floor space above 1,000m² and a rating of 'Very Good' or better will be expected;
- c) Seek opportunities for on-site energy supply from renewable and low carbon energy sources; and
- d) Seek opportunities to contribute to local and community-led renewable and low carbon energy initiatives.

2) Design and Layout

- a) Respect existing, or locally characteristic street layouts, scale and massing;
- b) Contribute positively to the public realm and avoiding unnecessary street clutter;
- c) Maximise the benefits of any waterfront locations, and at canalside locations optimising views and natural surveillance of the canal and opportunities for public access to it;
- d) Provide for new open space and landscaping which enhances and/or provides mitigation against loss of biodiversity and assists with the physical and visual integration of new development;

- e) Have respect for their townscape setting and where appropriate, landscape setting;
- f) Be orientated to make good use of daylight and solar gain;
- g) Ensure there is no unacceptable adverse impact on the amenity of neighbouring occupants or adjacent land users, including by reason of overlooking;
- h) Not result in unacceptable conditions for future users and occupiers of the development; and
- i) Provide adequate and carefully designed storage for bins and recycling containers. These should be located or designed in a way which is both convenient and safe for occupants and supports the quality of the street scene.

3) Key Gateways

- a) Where development is at or highly visible from a Key Gateway identified on the Policies Map, it should address in its design, orientation and layout, the Key Gateway and its particular nature/location and include where appropriate:
 - i) a landmark building;
 - ii) landmark tree planting;
 - iii) public art (can be incorporated into the public realm); or
 - iv) a carefully designed gentle transition from countryside to town.

4) Materials

- a) Use a palette of high quality materials which are appropriate to the local context in all respects including: type, colour, texture, element size and laying pattern and avoid unnecessary and excessive patterning;
- b) Where contemporary materials are appropriate, use these in manner which respects the established character of the locality; and
- c) Wherever practical, use low embodied energy materials, including materials that are sourced locally or involve the appropriate reuse of existing resources through the conversion of existing buildings or reuse of demolished structures.

5) Accessibility

- a) Seek to incorporate and promote sustainable methods of transport, including cycle routes, walking routes and good links to public transport; and
- b) Be inclusive and accessible to all and promote permeability by creating places that connect with each other and with existing services and are easy to move through.

6) Security

- a) Be designed with the safety and security of occupants and passers-by in mind, helping to reduce crime and the fear of crime including through increasing the opportunity for natural surveillance.

4.6 Green Infrastructure

4.6.1 The NPPF defines green infrastructure as a network of multi-functional green space, urban and rural, which is capable of delivering a wide range of environmental and quality of life benefits for local communities.

4.6.2 Green Infrastructure (GI) is not simply an alternative description for conventional open space. As a network it includes parks, open spaces, playing fields, woodlands, but also street trees, allotments and private gardens. It can also include streams, canals and other water bodies (Blue Infrastructure) and features such as green roofs and walls.

4.6.3 The NPPF states that local planning authorities should set out a strategic approach in their Local Plans, planning positively for the creation, protection, enhancement and management of networks of biodiversity and green infrastructure (para 114).

4.6.4 The NPPG identifies how GI can help support a number of planning policies including:

- Building a strong, competitive economy by helping to create high quality environments which are attractive to businesses and investors. The components of GI exist within the wider landscape context and can enhance local landscape character and contribute to place-making.
- Delivering a wide choice of high quality homes, providing opportunities for recreation, social interaction and play in new and existing neighbourhoods and enhancing local landscape character, contributing to a sense of place.
- Promoting healthy communities by improving environmental quality in new development, helping create safe and accessible environments, providing opportunities for recreation and exercise and delivering mental and physical health benefits.
- Conserving and enhancing the natural environment by halting the decline in biodiversity and helping species adapt to climate change by providing opportunities for movement through ecological networks.
- Helping to reduce air pollution, noise and the impacts of extreme heat and extreme rainfall events.
- Meeting the challenge of climate change by storing carbon; improving drainage (including the use of sustainable drainage systems), managing flooding and water resources; improving water quality; and reducing the urban heat-island effect.

Burnley's GI Strategy

4.6.5 The Council published the Burnley Green Infrastructure Strategy in September 2013. This Strategy describes the GI assets of the borough, the functions and benefits they provide and a strategy for improvement.³² This complements the Council's Green Spaces Strategy which categorizes the types of Council owned open space in the borough, assesses its quantity, quality and accessibility, identifies any areas of deficiency and sets out the Council's approach to the management of its open spaces.

4.6.6 The GI Strategy identifies 11 functions of GI and divides the GI assets into 17 types (see Table 2). Each type may fulfil one or more function.

³² Burnley Green Infrastructure Strategy 2013 - 2031

4.6.7 The GI strategy identifies the key assets and opportunities (See Figure 5) and highlights the corridor greening of the borough's main road infrastructure as a key opportunity for delivering a number of GI functions, including: aesthetic value, supporting wildlife, shading from the sun, trapping air pollutants and noise absorption. The Leeds & Liverpool Canal corridor is identified as another linear corridor with opportunities for delivering multiple GI functions, including: green travel routes, supporting heritage and supporting wildlife.

4.6.8 Two areas of urban greening priority are identified for their need for a number of GI interventions - North Burnley and Burnley town centre. Off-road green travel routes are mapped with the recommendation to raise awareness of these routes through improvements to key gateways.

4.6.9 The Local Plan has an important role to play in protecting and enhancing GI and the wide range of environmental and quality of life benefits it brings for local communities. New development should seek to protect, maintain and enhance GI wherever possible. Much of this will be achieved through a number of individual policies e.g. a requirement for the protection of or provision of new play and recreation space in housing developments (HS4), the protection of the Green Belt (SP7), community infrastructure (IC5) open spaces (NE2), Ecological Networks (NE1) etc. and through the overall development strategy set out in SP4. Given the multi-functional nature of GI, however, the Council will expect developments to look at GI comprehensively and will develop a GI Audit checklist to assist with this process. For major developments and/or those requiring an Environmental Impact Assessment (EIA) an audit taking account of the Council's GI Strategy, Green Spaces Strategy and Playing Pitch Strategy where relevant will be expected. For other proposals a 'light touch' audit will be required.

Policy SP6: Green Infrastructure

- 1) In line with Burnley's Green Infrastructure Strategy, the Council will, in partnership with other agencies and stakeholders, seek to protect, enhance and extend the borough's multifunctional green infrastructure network in order to maintain and develop the wider public health, ecological and economic benefits it provides and to ensure that there is an overall net gain.**
- 2) In addition to satisfying the requirements of other policies, development proposals should, as appropriate to their nature and scale:**
 - a) Seek to retain and enhance green infrastructure assets and functionality through the design process, in particular the key assets identified in Figure 5;³³ and**
 - b) Be accompanied by an audit of the green infrastructure functions within and adjacent to the site as set out in Table 2 together with a statement demonstrating:**
 - i) How these will be retained or enhanced through the development process; or**
 - ii) Where loss of or negative impact on GI functionality is unavoidable, what mitigation measures are proposed and/or replacement GI will be provided. Any replacement or mitigation measure should be deployed as closely as possible to the affected GI asset.**

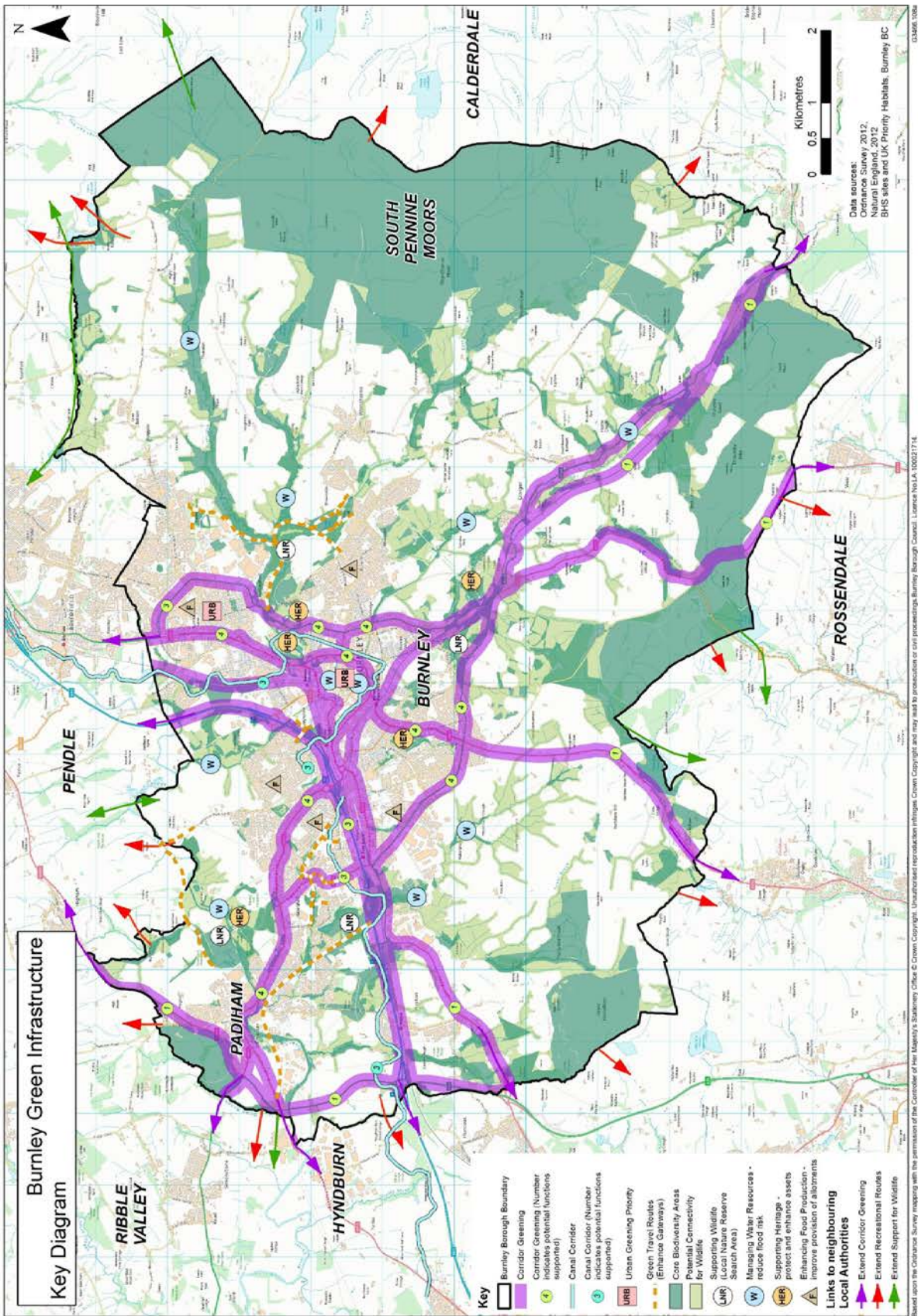
³³ This is a reproduction of Figure 6.1 from the Burnley GI Strategy of 2013 Page 37. Updated information on some of the assets described in the GI Strategy now exists e.g. the Lancashire Ecological Networks for Woodland and Grassland – see Policies Map

Table 2: Green Infrastructure Types and Functions

			Green Infrastructure Types																
			Park or Public Garden	General Amenity Space	Outdoor Sports Facility	Woodland	Watercourses	Water Bodies	Grassland, Heathland, Scrub	Moorland	Agricultural Land	Allotment, Community Garden	Cemetery, Churchyard, Burial Ground	Derelict Land	Private Garden	Wetland	Street Trees	Green Routes	Play Area
Green Infrastructure Function	Recreation	Recreation - Private																	
		Recreation - Public (Restricted)																	
		Recreation - Public																	
	Green Travel Route																		
	Supporting Wildlife	Habitat for Wildlife																	
		Connectivity For Wildlife																	
	Mitigating and Adapting to Climate Change	Shading from the Sun																	
		Evaporative Cooling																	
		Carbon Storage																	
	Managing Water Resources and Reducing Flood Risk	Inaccessible Water Storage																	
		Accessible Water Storage																	
		Water Interception																	
		Water Infiltration																	
		Water Conveyance																	
		Pollutant Removal from Soil/Water																	
		Flow Reduction through Surface Roughness																	
	Improving Environmental Health	Trapping Air Pollutants																	
		Noise Absorption																	
	Aesthetic																		
	Supporting Heritage and Cultural Assets	Heritage																	
		Cultural Asset																	
	Providing Learning Opportunities																		
	Enhancing Food Production																		
	Timber and Biofuels Production	Timber Production																	
		Biofuels Production																	
		Wind Shelter																	

Information Source: Burnley GI Strategy 2013 Appendix 7

Figure 5: Burnley Green Infrastructure Key Diagram



4.7 The Green Belt

National Planning Policy Background

4.7.1 The NPPF (para 79) states that “the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open; the essential characteristics of Green Belts are their openness and permanence.”

4.7.2 The NPPF sets out five purposes of the Green Belt:

- 1) To check the unrestricted sprawl of large built up areas;
- 2) To prevent neighbouring towns from merging into one another;
- 3) To safeguard the countryside from encroachment;
- 4) To preserve the setting and special character of historic towns; and
- 5) To assist urban regeneration by encouraging the recycling of derelict and other urban land.

4.7.3 The NPPF states that: “Once established, Green Belt boundaries should only be altered in exceptional circumstances, through the preparation or review of the Local Plan”.

The Borough's Green Belt

4.7.4 The Council recognises the important role of the Green Belt. It has been a very successful instrument in limiting urban sprawl, preventing the coalescence of settlements and encouraging the reuse of derelict and previously developed land in the urban areas. The general extent of the Green Belt in Lancashire was originally established in the North East Lancashire Structure Plan of 1979; and the boundaries in Burnley were first defined in the 1985 Burnley District Local Plan and had remained unchanged since. The borough had around 1,060 hectares of Green Belt, located in the northern and western parts of the borough.

4.7.5 To inform the Plan, the Council undertook a Green Belt Review³⁴ which considered, in respect of each parcel of Green Belt land:

- Whether any parcels no longer fulfilled Green Belt purposes and so could be removed from it?
- Whether land outside but adjacent to the current Green Belt should be included within it?
- The contribution the parcel made to the purposes of the Green Belt in order that the impact of its release for development could be properly considered?

4.7.6 It was considered that overall, the Green Belt still fulfilled its purpose and its general extent should be maintained.

4.7.7 An alteration is to be made to its boundary to exclude an area of land which it is considered no longer fulfils green belt purposes. The site of the former Ridgewood School on March Street in Stoneyholme already has outline planning permission for residential development on the footprint of the former school and its particular circumstances in relation to other developments along Oswald Street over time have significantly altered its role in green belt terms. It is, therefore, proposed that this site be removed from the Green Belt.

- **Removed** - Former Ridgewood School, March Street, Stoneyholme (Parcel 30)

4.7.8 Land at the Former William Blythe Site (HS1/3) has been granted planning permission for 202 dwellings. Part of this site is within the Green Belt and ‘very special circumstances’ have been

³⁴ Burnley Green Belt Review June 2016 - LUC for Burnley Borough Council

demonstrated by the applicant in respect of this particular development scheme. However, the land in question is not proposed to be removed from the Green Belt at this time as there are not currently any 'exceptional circumstances' to warrant its removal as it currently fulfils its Green Belt purposes and there are sufficient sites outwith the Green Belt that could meet the identified housing requirement set out in Policy SP2. Should this planning permission be implemented, the land developed for housing will be considered for removal from the Green Belt in any future Plan review.

Policy SP7: Protecting the Green Belt

- 1) The revised extent of the Green Belt is defined on the Policies Map.**
- 2) Within the Green Belt, planning permission will not be granted for 'inappropriate'³⁵ development except in very special circumstances. The construction of new buildings in the Green Belt is 'inappropriate' development. Exceptions to this are:**
 - a) buildings for agriculture and forestry;**
 - b) provision of appropriate facilities for outdoor sport, outdoor recreation and for cemeteries, as long as it preserves the openness of the Green Belt and does not conflict with the purposes of including land within it;**
 - c) the extension or alteration of a building provided that it does not result in disproportionate additions over and above the size of the original building;**
 - d) the replacement of a building, provided the new building is in the same use and not materially larger than the one it replaces;**
 - e) limited infilling in villages, and limited affordable housing for local community needs under policies set out in the Local Plan; or**
 - f) limited infilling or the partial or complete redevelopment of previously developed sites (brownfield land), whether redundant or in continuing use (excluding temporary buildings), which would not have a greater impact on the openness of the Green Belt and the purpose of including land within it than the existing development.**
- 3) Within the Green Belt, certain other forms of development are also not 'inappropriate'³⁶ providing they preserve the openness of the Green Belt and do not conflict with the purposes of including land with it. These are:**
 - a) mineral extraction;**
 - b) engineering operations;**
 - c) local transport infrastructure which can demonstrate a requirement for a Green Belt location;**
 - d) the re-use of buildings provided that the buildings are of permanent and substantial construction; and**
 - e) development brought forward under a Community Right to Build Order.**
- 4) Development that is not 'inappropriate' will be judged in relation to the other policies of the Development Plan and any relevant Supplementary Planning Documents.**

³⁵ See para 89 of NPPF

³⁶ See para 90 of NPPF

Policies in this Section:

HS1: Housing Allocations	HS5: House Extensions and Alterations
HS2: Affordable Housing Provision	HS6: Agricultural Workers' Dwellings
HS3: Housing Density and Mix	HS7: Gypsy and Traveller Site Criteria
HS4: Housing Developments	HS8: Gypsy and Traveller Site Occupancy Condition

5.1 Housing

National Planning Policy Background

5.1.1 A core principle of the NPPF³⁷ is to proactively drive and support sustainable economic development to deliver the homes, business and industrial units, infrastructure and thriving local places that the country needs, and respond positively to wider opportunities for growth.

5.1.2 The NPPF requires local authorities to boost significantly the supply of housing, and to:

- Use their evidence base to ensure that their Local Plan meets the full, objectively assessed needs for market and affordable housing in the housing market area, as far as is consistent with the policies set out in the Framework, including identifying key sites which are critical to the delivery of the housing strategy over the plan period;
- Identify and update annually a supply of specific deliverable sites sufficient to provide five years' worth of housing against their housing requirements with an additional buffer of 5% (moved forward from later in the plan period) to ensure choice and competition in the market for land. Where there has been a record of persistent under delivery of housing, local planning authorities should increase the buffer to 20% (moved forward from later in the plan period) to provide a realistic prospect of achieving the planned supply and to ensure choice and competition in the market for land;
- Identify a supply of specific, developable sites or broad locations, for years 6-10 and, where possible, for years 11-15;
- For market and affordable housing, illustrate the expected rate of housing delivery through a housing trajectory for the plan period and set out a housing implementation strategy for the full range of housing describing how they will maintain delivery of a five-year supply of housing land to meet their housing target; and
- Set out their own approach to housing density to reflect local circumstances.

The Requirement

5.1.3 Section 4 and Policy SP2 set out the target for new dwellings over the Plan period 2012-2032. Taking account of existing completions, the re-occupation of vacant homes, a windfall allowance and planning application commitments, it identifies a need to allocate sufficient land to deliver 1,798 new dwellings.

³⁷ Paragraph 17

Identifying the supply

Housing and Economic Land Availability Assessment 'SHLAA'

5.1.4 The NPPF (paragraph 159) requires local planning authorities to prepare a Strategic Housing Land Availability Assessment (SHLAA) to establish realistic assumptions about the availability, suitability and likely economic viability of land to meet the identified need for housing over the plan period. Paragraph 161 encourages authorities to undertake assessments of land available for economic development at the same time as, or combined with the housing SHLAA.

5.1.5 The Burnley Strategic Housing and Economic Land Availability Assessment Update of March 2017 (SHLAA) is a combined assessment which assesses the amount of land available within the borough that is potentially available to meet the identified need and demand for new employment and housing development.

5.1.6 It indicates that over the Plan period there is sufficient 'developable' land to provide approximately 3,620 new dwellings on a range of sites. Of these 3,282 could be accommodated on site of 0.4 hectares or larger.

5.1.7 Informed by the SHLAA, the housing target is to be provided for in line with the Spatial Strategy identified in Policy SP4 through the allocation of vacant or underused previously-developed sites within the existing Tier 1, 2 and 3 settlements (Burnley and Padiham, Hapton and Worsthorne) and through the allocation of new greenfield sites beyond but closely related to the 2006 Local Plan development boundaries.³⁸

Site Allocations

5.1.8 The sites identified in Policy HS1 below will provide sufficient sites to meet the identified residual requirement and provide a range of sites to meet the full, objectively assessed needs for market and affordable housing. A number of these sites would be suitable for C3 sheltered or C3 extra care housing or custom and self-build housing which would contribute towards meeting the requirement set out in Policy SP2.

Policy HS1: Housing Allocations

In order to meet the requirement of Policy SP2, the following sites, as identified on Policies Map, are allocated for housing development.				
Site Ref	Name	Greenfield/Brownfield	Site Area (Ha)	Indicative Number of Dwellings
HS1/1	Former Hameldon Schools Sites	Greenfield/Brownfield	10.10	250
HS1/2	Hollins Cross Farm	Greenfield	8.65	184
HS1/3	Former William Blythe Site	Brownfield	6.00	151
HS1/4	Land at Rossendale Road (housing)	Greenfield	7.52	188
HS1/5	Former Baxi Site (housing)	Brownfield	8.23	244
HS1/6	Lambert Howarth	Brownfield	2.99	100

³⁸ These are called the Urban Boundary in the 2006 Local Plan

HS1/7	Ridge Wood	Greenfield	0.87	18
HS1/8	Red Lees Road, Cliviger	Greenfield	5.00	125
HS1/9	Higher Saxifield	Greenfield	5.17	120
HS1/10	Land at Burnley General Hospital	Brownfield	1.27	64
HS1/11	Former AIT Site	Brownfield	1.81	54
HS1/12	Former Heckenhurst Reservoir	Greenfield	1.38	35
HS1/13	Tay Street	Brownfield	1.18	35
HS1/14	Former Gardner Site	Brownfield	1.43	43
HS1/15	Coronation Avenue, Thompson Street	Greenfield/Brownfield	0.90	41
HS1/16	Gordon Street Mill	Greenfield/Brownfield	1.41	39
HS1/17	Livingstone Mill	Brownfield	0.95	38
HS1/18	Perseverance Mill, Padiham	Brownfield	1.18	56
HS1/19	Land NE of Sycamore Avenue	Brownfield	0.77	34
HS1/20	Ridge Avenue	Greenfield	1.46	24
HS1/21	Land adjacent 2 Queens Park Road	Greenfield	0.95	29
HS1/22	Former Dexter Paints	Brownfield	0.83	27
HS1/23	Land to rear of Bull and Butcher	Greenfield	0.95	24
HS1/24	Land at Oswald Street	Brownfield	0.60	20
HS1/25	Brampton House, 500 Colne Road	Greenfield/Brownfield	0.50	18
HS1/26	Land adjacent 250 Brownside Road	Greenfield/Brownfield	0.73	18
HS1/27	Cleavelands Road (South)	Greenfield	0.42	13
HS1/28	George Street Mill (EMP1/11)	Brownfield	0.00	0
HS1/29	Lodge Mill, Barden Lane	Brownfield	2.32	35
HS1/30	Land West of Smithyfield Avenue ³⁹	Greenfield	1.72	30
HS1/31	Barden Mill, Barden Lane	Brownfield	0.85	37
HS1/32	Butchers Farm	Brownfield/Greenfield	1.17	24
	Total		79.31	2,118
Development on these sites will be acceptable in principle for housing development and will be required to be delivered in accordance with the following specific requirements together with the requirements of other relevant policies set out elsewhere in this Plan:				

³⁹ This site was part of Heckenhurst Reservoir then referenced HS1/15 at Preferred Options Stage

HS1/1 – Former Hameldon Schools Site	
Housing Delivery	The site is acceptable for around 250 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types, including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected, of which at least 50% should be detached; 2) Vehicular access should be provided from Kiddrow Lane with only an emergency (and cycle and pedestrian) access onto Scott Street; 3) Any necessary off-site highway improvement works agreed to be necessary must be carried out in accordance with a phasing plan to be agreed; 4) The existing playing pitches should be retained and/or replaced by equivalent or better provision in the locality, detailed proposals for which should be submitted with any planning application. Planning contributions may be required in accordance with Policy IC4; 5) A new equipped play area must be provided on site (see Policy HS4); 6) A footpath link should be maintained to the Sweet Clough Greenway; 7) The site forms part of the Lancashire Ecological Network for Woodland and Protected Species have been recorded. An ecological survey will be required to accompany any planning application which addresses these issues in accordance with Policy NE1; 8) A substantial area of multi-functional green infrastructure through the central area of the southern half of the site must be retained; 9) A small part of the site lies within Flood Zones 3a and 3b and further areas are at risk from surface water flooding. The layout and design of the development should take account of the recommendations of the Council's Strategic Flood Risk Assessment; and 10) The former Ivy Bank House to the south of the site has local archaeological interest and whilst this does not present an over-riding constraint on redevelopment suitable provision will need to be made for archaeological desk based assessment and field evaluation of the former Ivy Bank House consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.	
Supporting Information 1) Lancashire County Council Highways has advised that it has concerns regarding additional traffic on Scott Street due to its poor access onto Padiham Road and would prefer access onto Kiddrow Lane which benefits from signalised access onto Padiham Road. Contributions are likely to be sought for off-site highway improvements including to the junction(s) onto Padiham Road. 2) The Green Spaces Strategy 2015 identifies a deficit of fixed equipment play areas in the neighbourhood. 3) The site includes three disused playing pitches. 4) The Lancashire Ecological Network for Woodland identifies part of the site as being Stepping Stone habitat.	

HS1/2 – Hollins Cross Farm	
Housing Delivery	The site is acceptable for around 184 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types, including a minimum of 40% 4+ bedroomed detached and 30% 3+ bedroomed detached or semi-detached houses will be expected; 2) Vehicular access should be from a single point onto New Road. Contributions may be sought for off-site highway improvement work in the vicinity; 3) No vehicular access will be permitted from Woodplumpton Lane; 4) Protected Species have been recorded on the site which also includes Priority Habitat (lowland fen). An ecological survey will be required to accompany any planning application which addresses these issues in accordance with Policy NE1; 5) Appropriate landscaping and boundary treatment should include screening to the southern boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3; and 6) The presence of known heritage assets (Medieval and earlier) within close proximity of the site would suggest some limited potential for unknown archaeology of local-regional significance and suitable provision will need to be made for archaeological desk based assessment and field evaluation consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.	
Supporting Information 1) This is a prominent greenfield site in the open countryside. A scheme of high quality is expected in line with Policy SP5 and lower density detached housing preferred not only to increase/ provide quality and choice, but lower density development would provide greater opportunity for landscaping, planting and minimising impact. 2) Lancashire County Council Highways has advised that access via Woodplumpton Lane would not be considered appropriate as there is no footway provision. 3) Contributions may be sought for off-site highway improvement works in the vicinity, both to Glen View Road and for traffic management works to the A646 and Manchester Road signal junction as development is likely to have cumulative impacts on this junction.	

HS1/3 – Former William Blythe Site	
Housing Delivery	The site is acceptable for around 151 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types, including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected; 2) Vehicular access should be from a single point onto Manchester Road; 3) Appropriate landscaping and boundary treatment should include screening to the northern and eastern boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3; 4) Safe and convenient access for pedestrians and cyclist should be provided which connects to	

the canal towpath; 5) The site forms part of the Lancashire Ecological Networks for Woodland and Grassland. An ecological survey will be required to accompany any planning application which identifies and addresses this issue in accordance with Policy NE1; and 6) To the north of the site is a Scheduled Monument. The Monument should be preserved in situ and within an amenity area for the housing site.
Supporting Information 1) Planning permission for residential development on a larger site for 202 dwellings has been approved (APP/2016/0021). 2) Part of the site is identified within the Lancashire Ecological Network for Grassland as a stepping stone habitat. 3) A significant area of the site is at high risk of surface water flooding. Any updated Site Specific Flood Risk Assessment required will need to address this issue to meet the requirements of Policies CC4 and CC5 of this Plan. 4) Archaeological significance does not present an over-riding constraint on redevelopment. Sensitive and well-designed development can make a significant contribution to the long term preservation and presentation of the Scheduled Monument.

HS1/4 – Land at Rossendale Road	
Housing Delivery	The site is acceptable for around 188 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types, including a minimum of 55% 3+ bedroomed detached and semi-detached houses will be expected; 2) Appropriate traffic management systems will be required both at the site entrance and within the locality, for which contributions may be sought in accordance with Policy IC4; 3) Protected Species have been recorded on the site. An ecological survey will be required to accompany any planning application which identifies and addresses this issue in accordance with Policy NE1; 4) Appropriate landscaping and boundary treatment should include screening to the northern and western boundary to reduce the impact on the wider landscape, along with roadside trees and shrubs adjacent to Rossendale Road. New planting on the site will need to accord with Policy NE3; and 5) The presence of known heritage assets (Medieval and earlier) within close proximity of the site would suggest some limited potential for unknown archaeology of local-regional significance and suitable provision will need to be made for archaeological desk based assessment and field evaluation consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.	
Supporting Information 1) This is prominent greenfield site in the open countryside. A scheme of high quality is expected in line with Policy SP5. 2) A listed Butter Cross base exists on the site and should be retained in situ and sensitively incorporated into the development scheme.	

- 3) Lancashire County Council Highway engineers have advised that vehicular access should be from Rossendale Road with appropriate sight lines and traffic management infrastructure; and have highlighted that the development could adversely impact on the local road network with increased congestion at the Rosegrove and the Manchester Road signal junctions. The Burnley-Pendle Growth Corridor programme has identified fully funded improvements to the Rosegrove junction to be undertaken by Lancashire County Council and Burnley Borough Council but further works may be required for which a contribution may be sought.
- 4) The Burnley Green Infrastructure Strategy identifies Rossendale Road as an area which would benefit from enhanced GI in terms of improving the aesthetics of the road and its surroundings. New tree planting would assist whilst also providing other beneficial actions including the trapping of air pollutants, the absorption of noise, providing shade from the sun and evaporative cooling opportunities.
- 5) There is potential to explore a combined access strategy in conjunction with Site 'HS1/23 – Land to rear of Bull and Butcher'.

HS1/5 – Former Baxi Site

Housing Delivery

The site is acceptable for around 244 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected; of which at least 50% should be detached;
- 2) Over 60% of the site lies within Flood Zone 3a and a small percentage in Flood Zone 3b. Further areas of the site are at risk from surface water flooding. The layout and design of the development should take account of the recommendations of the Council's Strategic Flood Risk Assessment which indicates how flood risk can be adequately mitigated in order to pass the Exception Test as set out in the NPPF;
- 3) The development of the site is dependent on the delivery by the Environment Agency of a wider flood alleviation scheme for Padiham, towards which contributions may be required in accordance with Policy IC4. Outline planning permission will not be granted until the outline design of the flood alleviation scheme and its implications for the site layout has been agreed in consultation with the Environment Agency. Detailed planning permission will not be granted until the flood alleviation scheme has been designed in detail and no built development (access roads or dwellings) will be permitted to commence within the areas of Flood Zone 2 or 3 until the flood alleviation scheme has been completed to an extent that the site can be safely occupied and its development will not cause or exacerbate flooding elsewhere;
- 4) The site forms part of the Lancashire Ecological Network for Grassland. An ecological survey will be required to accompany any planning application which addresses this issue in accordance with Policy NE1;
- 5) The southern part of the site adjoining the River Calder should be retained/developed as multi-functional green infrastructure as part of the Ecological Network with public access retained;
- 6) Whilst an access road could be accommodated within this area, alternative access must also be provided from one or more of the other available access points i.e. Grove Lane, Wyre Street and Lune Street; and
- 7) The site has local archaeological significance and suitable provision will need to be made for archaeological desk based assessment and field evaluation consistent with Policy HE4; and any

further investigation or recording works that may be necessary as a consequence of development.

Supporting Information

- 1) The site is within an area of low, medium and high risk of flooding, the majority of it lying within Flood Zone 3 with a small area (1% being within Flood Zone 3b – the functional flood plain). A Stage 2 SFRA has been prepared which confirms that the site can pass the Exception Test.
- 2) A site specific flood risk assessment will be required to support any planning application in line with Policy CC4 through which the development should be demonstrated to pass the Exception Test as set out in the NPPF and satisfy all other requirements of Policy CC4 and CC5.
- 3) United Utilities have advised that surface water is currently pumped to a local river and that no wastewater issues are expected as long as this arrangement is maintained.
- 4) The Lancashire Ecological Network for Grassland identifies part of the site as a stepping stone habitat.
- 5) There is a Tree Preservation Order in force adjacent the north eastern boundary of the site. These trees must be protected during the development's construction.
- 6) A culvert runs along the northern edge of the site.

HS1/6 – Lambert Howarth

Housing Delivery

The site is acceptable for around 100 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types including 2, 3 and 4 bed dwellings will be expected;
- 2) Vehicular access should be taken from Marlborough Street and Finsley Gate. The bridge that connects the two sites should be brought back into use, enabling pedestrians and cyclists to easily cross the site. A new pedestrian crossing should be provided on Finsley Gate. Contributions will be sought to facilitate this and the provision of improved pedestrian and cycle routes to Burnley town centre;
- 3) Development will be expected to positively address its waterfront location; create a positive and appropriate relationship with surrounding buildings and spaces by respecting the form, scale and materials of the surrounding historic townscape; and be of high design integrity consistent with Policy SP5. Design and layout should contribute to an improved public realm consistent with the Weavers' Triangle Public Realm Strategy SPD;
- 4) The site includes Finsley Gate Mill, a non-designated heritage asset. The significance of heritage assets, including their settings, within and adjacent to this site should be conserved and, where possible, enhanced consistent with Policy HE2 and HE3. Particular consideration should be given to the potential impact on the setting of the Canalside Conservation Area; and
- 5) The site is located on a Key Gateway into Burnley Town Centre. Development will be expected to reinforce the site's Key Gateway role consistent with Policy SP5.

Supporting Information

- 1) Planning Permission has been granted for the redevelopment of the site.
- 2) Part of the site lies at a Key Gateway. The existing layout has a poor relationship to the townscape and proposals should seek to address this. Proposals should also consider how the

canal setting is best utilised.
3) Screening should be considered along Marlborough Street and Healey Wood Road due to adjacent industrial usages. Due to prior industrial usage, contamination surveys and remediation strategies should be completed for the whole site.
4) There is a Tree Preservation Order in force adjacent to the eastern boundary of the site. These trees must be protected during the development's construction.
5) Lancashire County Council Highways raised no objections to a previous planning application, subject to the following requirements being met: • pedestrian/cycle link between southern and northern parts of the site across existing bridge • pedestrian crossing on Finsley Gate • parking space is provided at relevant standard • lay-by parking at northern side of Marlborough Street • full travel plan • off-site improvement to pedestrian routes to town centre (S106 agreement); • traffic calming measures on Marlborough Street • measures relating to lighting, construction routing/access, wheel cleaning and provision of roadside structures

HS1/7 – Ridge Wood	
Housing Delivery	The site is acceptable for around 18 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected, of which at least 50% should be detached; 2) A scheme of the highest quality is expected which clearly and demonstrably contributes to increasing housing quality and choice across the borough; 3) A contaminated land survey and appropriate remediation strategy should be submitted to accompany any planning application in accordance with Policy NE5; 4) A majority of the trees on and adjoining the site should be retained in accordance with Policy NE4. Supplementary planting will be expected, including between this site and the adjacent site on HS1/21 – Land adjacent 2 Queen's Park Road; 5) The site forms part of the Lancashire Ecological Networks for Woodland and Grassland. An ecological survey will be required to accompany any planning application which addresses this issue in accordance with Policy NE1; and 6) The site has local archaeological significance and suitable provision will need to be made for archaeological desk based assessment to establish the potential for surviving remains of Ridge End. Should there be significant probability of buried remains existing then field evaluation will be required consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.	
Supporting Information 1) This site is in Council ownership and is at the edge of a former quarry which is understood to have been used for tipping. It is understood that the quarry has been capped with 3m of clay soil. Preliminary site investigations have revealed that parts of the allocated site have been 'made up'. Prior to any planning application being submitted, an appropriate Phase 1 Desktop	

- Study and Phase 2 Remediation Strategy must be prepared.
- 2) The site forms part of the Lancashire Ecological Network for Woodland and Grassland and is identified as a stepping stone habitat and is currently accessible as open space forming part of a network in this area with a Biological Heritage Site to the north.
 - 3) The site lies to the west of Queen's Park Registered Park and Garden and development proposals will need to satisfy the requirements of Policy HE2.

HS1/8 – Red Lees Road, Cliviger

Housing Delivery

The site is acceptable for around 125 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types, including a minimum of 40% 4+ bedroomed detached and 30% 3+ bedroomed detached or semi-detached houses will be expected;
- 2) Protected Species have been recorded on the site. An ecological survey (including a breeding bird survey and survey of any South Pennines SPA qualifying species present) will be required to accompany any planning application which identifies and addresses these issues in accordance with the recommendation of the Council's Protected Species Survey and Policy NE1;
- 3) Appropriate landscaping and boundary treatment should include screening to the southern boundary to reduce the impact on the wider landscape. New planting on the site should be in accordance with Policy NE3;
- 4) Vehicular access should be from a single point onto Red Lees Road; and
- 5) The presence of reported prehistoric finds and earthworks within close proximity of the site would suggest the site has significant potential for buried remains of local-regional significance to exist. Suitable provision will need to be made for archaeological assessment and evaluation of the site; and any further investigation or recording works that may be necessary as a consequence of development consistent with Policy HE4.

Supporting Information

- 1) This is a prominent greenfield site in the open countryside. A scheme of high quality is expected in line with Policy SP5 and lower density detached housing is preferred not only to provide/increase quality and choice, but the lower density offered would provide greater opportunity for landscaping, planting and minimising impact.
- 2) The site is close to a Key Gateway and development will need to address this in accordance with Policy SP5.
- 3) United Utilities has advised that surface water should be removed to a local watercourse if possible as there are no local surface water sewers to connect this development to.
- 4) United Utilities has advised that the foul sewer on Dyneley Avenue is already over hydraulic capacity and that future investment will be required to accommodate this development.
- 5) The south eastern part of the site lies within 250m of the Grade II Listed Higher Red Lees Farmhouse.

HS1/9 – Higher Saxifield	
Housing Delivery	The site is acceptable for around 120 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types including a minimum of 55% 3+ bedroomed detached and semi-detached houses will be expected; 2) The existing access from Standen Hall Drive is not considered suitable to serve the development and a new vehicular access will be required; 3) Contributions may be sought towards highway improvements in the locality in accordance with Policy IC4; 4) Protected Species have been recorded on the site which also includes Priority Habitat (neutral grassland). An ecological survey will be required to accompany any planning application which identifies and addresses these issues in accordance with Policy NE1; 5) Appropriate landscaping and boundary treatment should include screening to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3; and 6) A desk based archaeological assessment will be required to support any planning application to indicate the potential for archaeology to be present on site. Depending on the result there may be a requirement for further archaeological investigation work in accordance with Policy HE4.	
Supporting Information 1) The existing access from Standen Hall Drive is not considered suitable to serve the development and a new vehicular access will be required. It is understood that a property on Standen Hall Drive further to the west from the existing access is within the control of the landowner and could be demolished to accommodate a satisfactory new access to the site. 2) There is a Tree Preservation Order in force adjacent the southern boundary of the site. These trees must be protected during the development's construction. 3) The Grade II listed Saxifield Farmhouse lies immediately to the south of the site and development proposals must satisfy the requirements of Policy HE2.	

HS1/10 – Land at Burnley General Hospital	
Housing Delivery	The site is acceptable for around 64 dwellings including C3 extra care or sheltered housing.
Additional and Site Specific Policy Requirements and Design Principles 1) Protected Species have been recorded on the site. An ecological survey will be required to accompany any planning application which identifies and addresses this issue in accordance with Policy NE1; 2) Contributions may be sought for off-site highway improvements in accordance with Policy IC4; 3) Any planning application must be accompanied by a comprehensive parking strategy/plan for the hospital site which demonstrate that the development would create or exacerbate parking problems in the vicinity; and 4) The site of the former Burnley Union Workhouse has local archaeological significance and	

suitable provision will need to be made for a programme of building assessment and appropriate recording as a consequence of redevelopment.

Supporting Information

- 1) Lancashire County Council Highways Engineers have advised that there may be possible cumulative impacts on the capacity of Briercliffe Road junctions with Casterton Avenue and Duke Bar. They also highlight the potential to generate conflict with hospital traffic and affect the on-site parking provision for the hospital. Any loss of parking would increase offsite parking demand. Any internal estate roads would be targeted by hospital staff / visitors.

HS1/11 – Former AIT Site

Housing Delivery

The site is acceptable for around 54 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types will be expected;
- 2) The proposed scheme should respect the character of the area whilst also providing an opportunity to lower local densities and provide greater levels of private amenity space and off street parking;
- 3) The scheme should incorporate two storey dwellings and harmonising 'feature plots' enhanced with natural local stonework laid in a manner to match the existing housing in the area. Natural local stone should be used for principal elevations and/or boundary walls together with a limited pallet of other suitable harmonising materials; and
- 4) The site of the former mill, used for jet engine manufacture in WWII, has local archaeological significance and suitable provision will need to be made for archaeological desk based assessment to establish the potential for buried remains of the mills power systems or jet engine related features. Should there be significant probability of surviving buried remains then field evaluation will be required consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.

Supporting Information

- 1) Planning Permission has been granted for the redevelopment of the site.
- 2) The site requires remediation due to previous industrial usage, and updated contamination reports, ground gas assessments and remediation strategies are required. Specifically, the Phase II investigation report (dated June 2007 by Environ, submitted as part of APP/2010/0086) needs updating in line with current guidance (APP/2014/0145 officer report).
- 3) A culvert runs along the eastern part of the site which contains an ordinary watercourse.

HS1/12 – Former Heckenhurst Reservoir

Housing Delivery

The site is acceptable for around 35 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected;

- 2) Appropriate landscaping and boundary treatment should include screening to the northern and western boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3;
- 3) Contributions towards off-site highways improvements may be required in line with Policy IC4;
- 4) Land contamination investigation and the relevant remediation will be required in accordance with Policy NE5;
- 5) Development proposals should retain the existing wall around the former reservoir; and
- 6) Protected Species have been recorded on the site. An ecological survey will be required to accompany any planning application which identifies any Protected Species and South Pennines SPA qualifying species present and addresses these issues in accordance with Policy NE1.

Supporting Information

- 1) This is greenfield site in the open countryside. A high quality scheme is expected in line with Policies SP5 and lower density housing is preferred not only to provide quality and choice, but to provide a greater opportunity for landscaping, planting and minimising impacts.
- 2) Lancashire County Council Highways Engineers have advised that access to nearby Worsthorne is restricted to three routes, two of which are single track in places with 60mph (derestricted) speed limit. The third route is via Brownside Road which has a length over which traffic is restricted to one way working at two locations due to parked cars where residents have no alternative parking facilities. During the Plan Period improvements to the roundabout at the Junction of Brownside Road and Brunshaw Road will be necessary to mitigate against the increase in traffic flows. Contributions may be sought for these improvements.
- 3) The site is partly located on a historic landfill site.

HS1/13 – Tay Street

Housing Delivery

The site is acceptable for around 35 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of 2 and 3 bed dwellings will be expected;
- 2) Access should be taken from Tay Street and Accrington Road. No vehicular access will be permitted onto Hameldon Approach. Improvements will be needed to the junction of Accrington Road and Nairne Street towards which contributions may be sought in line with Policy IC4;
- 3) Screening and noise mitigation measures should be incorporated to the north of the site, which lies adjacent to a busy road and a railway. Screening should also be considered between the site and the existing Sure Start centre; and
- 4) The existing play area at the east end of the site should be retained and a wider landscaping scheme submitted showing the retention and enhancement of further open space in this area.

Supporting Information

- 1) Planning Permission has been granted for residential development.
- 2) Lancashire County Council Highways has advised that no vehicular access onto Hameldon Approach would be permitted. There are some concerns about parking along Tay Street, especially as the school and Sure Start centre are located here, and the impact of the site on

this should be considered. Improvements will be needed to the junction at Accrington Road and Nairne Street.

- 3) Land contamination investigation and the relevant remediation will be required in accordance with Policy NE5.

HS1/14 – Former Gardner Site

Housing Delivery

The site is acceptable for around 43 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types will be expected;
- 2) Access should be taken from Hargher Street and not the current site access at Bruce Street;
- 3) A significant area of the site is at risk of surface water flooding. The layout and design of the development should take account of the recommendations of the Council's Strategic Flood Risk Assessment;
- 4) A bat survey will be required as recommended by the Council's Protected Species Survey; and
- 5) The site of the former mill, used for jet engine manufacture in WWII, has local archaeological significance and suitable provision will need to be made for archaeological desk based assessment to establish the potential for buried remains of the mills power systems or jet engine related features. Should there be significant probability of surviving buried remains then field evaluation will be required consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.

Supporting Information

- 1) Culverts run through the east of the site which contains an ordinary watercourse.
- 2) The site is thought to be heavily contaminated, and investigations and relevant remediation measures will be required in accordance with Policy NE5.
- 3) Consideration should be given to how development impacts on and can integrate with existing housing and bungalows to the south of the site. There is an opportunity to open the site up, and include through routes for pedestrians and cyclists and other green infrastructure.

HS1/15 – Coronation Avenue, Thompson Street

Housing Delivery

The site is acceptable for around 41 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types will be expected;
- 2) Access should be taken from the existing cul-de-sac, Coronation Avenue; and
- 3) The site forms part of the Lancashire Ecological Network for Grassland. An ecological survey will be required to accompany any planning application which identifies and addresses this issue in accordance with Policy NE1. This should include a bat survey as a bat roost has been recorded on site.

Supporting Information

- 1) An electricity pylon and substation lie immediately to the south of the site.

HS1/16 – Gordon Street Mill

Housing Delivery

The site is acceptable for around 39 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) Conversion of the existing mill building for residential use is supported. Should the mill building be demolished, a mix of dwelling types including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected. If the mill is retained, a flexible approach to the mix of dwelling types will be taken in line with Policy HS3;
- 2) The site includes a pond (Priority Habitat) and is considered to have the potential to house bats. An ecological survey (including breeding bird survey and survey of any South Pennines SPA qualifying species present) will be required to accompany any planning application which identifies and addresses these issues in accordance with Policy NE1;
- 3) Land contamination investigation and the relevant remediation will be required in accordance with Policy NE5;
- 4) Appropriate landscaping and boundary treatment should include screening to the northern boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3;
- 5) Contributions towards off-site highways improvements may be required in line with Policy IC4; and
- 6) The site has local archaeological significance and suitable provision will need to be made for a programme of building assessment and appropriate recording as a consequence of redevelopment.

Supporting Information

- 1) This is partly a greenfield site in the open countryside to the north of Worsthorne Conservation Area and development will have an impact on the local landscape and on the setting of the Conservation Area. A scheme of high quality is expected in line with Policy SP5 and Policy HE2.
- 2) Any potential impacts on the South Pennines Moors SAC/SPA/SSSI would need to be considered in accordance with Policy NE1.
- 3) Lancashire County Council Highways Engineers have advised that access to Worsthorne is restricted to three routes, two of which are single track in places with 60mph (derestricted) speed limit. The third route is via Brownsie Road which has a length over which traffic is restricted to one way working at two locations due to parked cars where residents have no alternative parking facilities. During the Plan Period improvements to the roundabout at the Junction of Brownsie Road and Brunshaw Road will be necessary to mitigate against the increase in traffic flows. Contributions may be sought for these improvements.

HS1/17 – Livingstone Mill	
Housing Delivery	The site is acceptable for around 38 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types including larger detached and semi-detached homes will be expected; 2) Land contamination investigation and the relevant remediation will be required in accordance with Policy NE5; and 3) Proposals for the site should address its waterfront setting in accordance with Policy SP5.	
Supporting Information 1) Full planning permission was granted under APP/2012/0089 for 12 dwellings on the southern part of the site and Reserved Matters consent under 2012/0089 for a further 26 dwellings on the site, which included 5 & 6 bed dwellings. The site is constrained by a slightly unusual shape, and is bounded by the canal to the west. Proposals should seek to utilise and enhance its canal setting. Street frontages should also respect the existing character of the surrounding area. 2) The planning permission proposed that access be taken from the corner of Elm Street and Cameron Street, to form a crossroad junction.	

HS1/18 – Perseverance Mill, Padiham	
Housing Delivery	The site is acceptable for around 56 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types including will be expected.	
Supporting Information 1) The mill on the site has been demolished in preparation for redevelopment. However, progress has stalled, and the site has been left in a derelict state, with large piles of rubble remaining. A planning application has been submitted for the development of 56 dwellings (APP/2016/0510). 2) Currently an informal one way system exists underneath the railway bridge on Dryden Street, which functions as a through route. LCC Highway engineers have advised that this may need to be formalised with traffic signals to deal with increased traffic flows; and that a culvert runs under the western portion of the site which may restrict the siting of suitable access. 3) The site lies largely in Flood Zone 2, with a smaller area within Flood Zone 1 and a small percentage on the north western boundary lying in Flood Zone 3. Extensive areas of the site are at significant risk of surface water flooding. A site specific flood risk assessment will be required to support any planning application in line with Policy CC4 through which the development should be demonstrated to pass the Exception Test as set out in the NPPF and satisfy all other requirements of Policy CC4 and CC5. 4) As a former industrial site, contamination investigations and the appropriate remediation will be required in accordance with Policy NE5. 5) The site is well located in relation to Padiham town centre, and there is a good pedestrian and cycle link via the nearby Padiham Greenway.	

HS1/19 – Land NE of Sycamore Avenue	
Housing Delivery	The site is acceptable for around 34 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling sizes will be expected; and 2) A bat survey will be required as recommended by the Council's Protected Species survey 2017.	
Supporting Information 1) Planning permission on this site had been granted and the area to the east developed but has now lapsed for this remaining part of the site. 2) Access is anticipated to be taken from Sycamore Avenue and could provide a link to recent development to the north of the site, as was originally intended. 3) The site was formerly a textile and dye works and contamination investigations and remediation should be carried out in accordance with Policy NE5. 4) Extensive areas of the site are at significant risk of surface water flooding. The layout and design of the development should take account of the recommendations of the Council's Strategic Flood Risk Assessment.	

HS1/20 – Ridge Avenue	
Housing Delivery	The site is acceptable for around 24 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types will be expected; 2) Vehicular access should be from Ridge Avenue; 3) The site forms part of the Lancashire Ecological Network for Woodland and forms part of a stepping stone habitat within the Woodland Network. It is also adjacent to a Stepping Stone habitat within the Grassland Network. An ecological survey will required to accompany any planning application which addresses this issue in accordance with Policy NE1; 4) Off-site replacement tree planting together with compensatory open space improvement will be required for which contributions may be sought under Policy IC4 and 5; 5) An area of the existing tree planting on the northwest edge of the site should be retained as a buffer possibly within the gardens of the new dwellings; and a larger area at the south eastern edge of around 50 metres should be retained as woodland with public access to allow a future link to Brun Valley Park; and 6) The trees along Ridge Avenue should be retained and protected during the development's construction.	
Supporting Information 1) This is a greenfield site and a scheme of high quality is expected in line with Policy SP5. 2) Lancashire County Council Highways engineers have advised that any parking on Ridge Avenue resulting from the development would restrict the movement of through traffic and that the site should have rear servicing for the frontage properties or a localised carriageway widening (lay-by) to accommodate any parked vehicles out of the running lanes. (Widening of the	

- carriageway is not supported if this includes a loss of avenue trees - see 7 above)
- 3) The Environment Agency has advised that contamination could be present due to proximity to a former landfill site. Investigation and appropriate remediation may be required in accordance with Policy NE5.
 - 4) The site lies close to Brun Valley Forest Park.
 - 5) The site was planted with trees as part of a Forest of Burnley project for the millennium and is an accessible woodland and the loss of the greater part of this community facility should be compensated for by improved access to nature elsewhere in the locality.

HS1/21 – Land adjacent to 2 Queens Park Road

Housing Delivery

The site is acceptable for around 29 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types will be expected;
- 2) Vehicular access should be from Ridge Avenue;
- 3) The trees on Ridge Avenue should be retained and protected during the development's construction;
- 4) Land contamination investigation and the relevant remediation will be required in accordance with Policy NE5; and
- 5) Protected Species have been recorded on the site. An ecological survey will be required to accompany any planning application which identifies and addresses this issue in accordance with Policy NE1.

Supporting Information

- 1) This is a greenfield site and a scheme of the high quality is expected in line with Policy SP5.
- 2) The site is 60 metres east of a Registered Park and Garden and lies adjacent to Brun Valley Forest Park. Development is unlikely to impact on setting but needs to be considered. The site is visually prominent and consideration should be given as to how best to integrate it into the existing townscape.
- 3) To its northern edge, the site is adjacent to Stepping Stone Habitats for the Woodland and Grassland Ecological Networks.
- 4) The site can be accessed from Ridge Avenue.
- 5) The Environment Agency has advised that contamination could be present due to proximity to a former landfill site. Investigation and appropriate remediation will be required in accordance with Policy NE5.

HS1/22 – Former Dexter Paints

Housing Delivery

The site is acceptable for around 27 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) Vehicular access should be taken from Saltburn Street only, with the existing site access from Gannow Lane permanently closed;

- 2) Screening and noise mitigation measures are required in order to lessen the impact of noise from adjacent industrial uses to the east of the site; and
- 3) Proposals should address the site's waterfront location in accordance with Policy SP5.

Supporting Information

- 1) Planning Permission has been granted for the redevelopment of this site.
- 2) Screening and noise mitigation measures to lessen the impact of noise from the adjacent industrial uses is required. Distance should be maintained between existing industrial uses to the east of the site.
- 3) Access should be taken from Saltburn Street.
- 4) The site will require contamination investigation and remediation due to previous industrial usage in accordance with Policy NE5.
- 5) The following conditions were attached to the current planning permission: The existing access to the site shall be physically and permanently closed and the existing verge/footway and kerbing of the vehicular crossing shall be reinstated in accordance with the Lancashire County Council Specification for Construction of Estate Roads, concurrent with the formation of the new access; The new estate roads including the access into the site from Saltburn Street shall be constructed in accordance with the Lancashire County Council Specification for Construction of Estate Roads to at least base-course level before any construction works take place within the site.

HS1/23 – Land to rear of Bull and Butcher

Housing Delivery

The site is acceptable for around 24 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types including a minimum of 60% 3+bedroomed detached or semi-detached will be expected;
- 2) Vehicular access should be from a single point onto Manchester Road;
- 3) Protected species have been recorded on the site. An ecological survey will be required to accompany any planning application which identifies and addresses this issue in accordance with Policy NE1; and
- 4) Appropriate landscaping and boundary treatment should include screening to the southern boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3.

Supporting Information

- 1) There is potential to explore a combined access strategy in conjunction with Site HS1/4 – Land at Rossendale Road.
- 2) The site is close to a Key Gateway and development will need to address this in accordance with Policy SP5.
- 3) Contributions may be sought for off-site highway improvement work in the vicinity as development could have cumulative impacts on Manchester Road and Rosegrove signal junctions.

HS1/24 – Land at Oswald Street	
Housing Delivery	The site is acceptable for around 20 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwelling types will be expected; 2) Access should be taken from Oswald Street; 3) The site lies adjacent to a Biological Heritage Site. Any development would need to comply with the requirements of Policy NE1; 4) The site forms part of the Lancashire Ecological Network for Woodland and Grassland and protected species have been recorded on the site. An ecological survey will required to accompany any planning application which identifies and addresses these issues in accordance with Policy NE1; and 5) Contributions for off-site highway and junction improvements in accordance with Policy IC4 may be sought to address any adverse impact on existing traffic flows onto Brougham Street.	
Supporting Information 1) Lancashire County Council highways engineers have commented that there are limited access opportunities due to the existing road layout. All access is via Brougham Street and Daneshouse Road. Any large scale development of the sites in this area will impact on the safety of users of these two roads which already has a poor accident record and reports of anti-social activities. 2) The site lies immediately adjacent to the Locally Listed Old Hall Farm. Any development would need to assess the requirements of Policy HE3. 3) There has also been recent housing development to the south, and how these two sites relate to each other and integrate will need to be considered. 4) This is the site of a former coal yard, and land contamination levels will need investigating and remediating. The railway passes to the east, and consideration should be given to visual and acoustic screening in accordance with Policy NE5.	

HS1/25 – Brampton House, 500 Colne Road	
Housing Delivery	The site is acceptable for around 18 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) The development should utilise the existing access from Colne Road; 2) The existing trees should be retained in accordance with Policy NE4. 3) The site is located on a Key Gateway. Development will be expected to reinforce the sites Key Gateway role consistent with Policy SP5; and. 4) Extensive areas of the site are at risk from surface water flooding. Although the site is located within Flood Zone 1 and is less than 1 hectare in size, any future planning applications (reserved matters or outline) should be supported aby a site specific Flood Risk Assessment to demonstrate how this issues will be addressed in line with Policy CC5.	

Supporting Information

- 1) This is partially a greenfield site at a Key Gateway and a scheme of the high quality is expected in line with Policy SP5.
- 2) Outline permission (APP/2014/0410) has been granted for the erection of 18 dwellings, comprising two 8-bedroom houses, two 4-bedroom maisonettes, four 3-bedroom maisonettes, four 2-bedroom apartments and six detached mews houses.
- 3) A number of trees towards the southern boundary of the site are protected by Tree Preservation Orders and must be retained and protected during the development's construction.

HS1/26 – Land adjacent 250 Brownside Road

Housing Delivery

The site is acceptable for around 18 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types will be expected;
- 2) Protected Species have been recorded on the site. An ecological survey (including breeding bird survey and survey of any South Pennines SPA qualifying species present) will be required to accompany any planning application in accordance with the recommendation of the Council's Protected Species surveys which identifies and addresses these issues in accordance with Policy NE1;
- 3) Appropriate landscaping and boundary treatment should include screening to the northern and western boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3;
- 4) Vehicular access should be from a single point onto Brownside Road, taking into account the need to ensure sightlines are not compromised; and
- 5) Contributions towards off-site highways improvements may be required in line with Policy IC4.

Supporting Information

- 1) The site is within the setting of Worsthorne Conservation Area and development proposals must satisfy the requirements of Policy HE2.
- 2) Contamination: The site is partly within Source Protection Zone 2 which is designated to protect groundwater supplies and as such any foul drainage will require connection to the main sewer.
- 3) Lancashire County Council Highways Engineers have advised that there are possible sightline issues onto Brownside Road due to the horizontal alignment of the highway. The site is close to the village centre and the possibility of improving pedestrian links by utilising and improving the local public rights of way network should be explored. They have also advised that access to Worsthorne is restricted to three routes, two of which are single track in places with 60mph (derestricted) speed limit. The third route is via Brownside Road which has a length over which traffic is restricted to one way working at two locations due to parked cars where residents have no alternative parking facilities. During the Plan Period improvements to the roundabout at the Junction of Brownside Road and Brunshaw Road will be necessary to mitigate against the increase in traffic flows. Contributions may be sought for these improvements.
- 4) Any potential impacts on the South Pennines Moors SAC/SPA/SSSI would need to be considered in accordance with Policy NE1.

HS1/27 – Clevelands Road (South)	
Housing Delivery	The site is acceptable for around 13 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of 2 and 3 bedroomed dwellings will be expected; 2) In accordance with Policy NE4, an arboricultural survey will be required and a detailed landscaping scheme prepared showing a majority of the trees on and adjoining the site including to the road frontage retained and protected during the site's construction and any trees accepted to be lost will need to be compensated for by new planting within or adjoining the site; 3) Land contamination investigation and the relevant remediation will be required in accordance with Policy NE5; 4) The site includes Priority Habitat (deciduous woodland) and an ecological survey will be required to accompany any planning application which identifies and addresses this issue in accordance with Policy NE1; and 5) Development proposals should include improvements to footpath links to Healey Heights.	
Supporting Information - None	

HS1/28 George Street Mill (Mixed Use) – See EMP1/11	
Housing Delivery	The estimated number of houses for this site, as part of a mixed use development, is up to 143. ⁴⁰

HS1/29 – Former Lodge Mill, Barden Lane	
Housing Delivery	The site is acceptable for around 35 dwellings.
Additional and Site Specific Policy Requirements and Design Principles 1) A mix of dwellings types will be expected; 2) Contributions towards off-site highways improvements may be required in line with Policy IC4 to mitigate road safety concerns on Barden Lane between the railway bridge and the canal bridge or to bring Heald Road up to a suitable standard; 3) The site is adjacent to a Biological Heritage Site (Leeds Liverpool Canal) The southern part of the site is wooded and forms part of the Lancashire Ecological Network for Woodland (Stepping Stone habitat). An ecological survey will required to accompany any planning application which addresses these issues in accordance with Policy NE1; and 4) Archaeological evaluation is required to assess the survival and significance of any remains from past industrial use. Should there be significant probability of surviving buried remains then field evaluation will be required consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.	

⁴⁰ This site is suitable for a range of uses and is not specifically included in the calculations of housing land or employment land supply or the housing trajectory – see also EMP1/11

Supporting Information

- 1) In responding to planning application APP/2014/0031 on the adjacent Barden Mill site, Lancashire County Council Highway Engineers raised road safety concerns on this part of Barden Lane between the railway bridge and the canal bridge.
- 2) Alternative and/or secondary access may be possible from Heald Road.

HS1/30 – Land West of Smithyfield Avenue

Housing Delivery

The site is acceptable for around 30 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected;
- 2) An ecological survey will be required to accompany any planning application which identifies any Protected Species and South Pennines SPA qualifying species present and addresses this issue in accordance with Policy NE1;
- 3) Appropriate landscaping and boundary treatment should include screening to the northern and western boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3; and
- 4) Contributions towards off-site highways improvements may be required in line with Policy IC4.

Supporting Information

- 1) This is a greenfield site in the open countryside. A scheme of high quality is expected in line with Policy SP5 and lower density housing is preferred not only to provide quality and choice, but to provide a greater opportunity for landscaping, planting and minimising impacts.
- 2) Lancashire County Council Highways Engineers have advised that access to nearby Worsthorne is restricted to three routes, two of which are single track in places with 60mph (derestricted) speed limit. The third route is via Brownsie Road which has a length over which traffic is restricted to one way working at two locations due to parked cars where residents have no alternative parking facilities. During the Plan Period improvements to the roundabout at the Junction of Brownsie Road and Brunshaw Road will be necessary to mitigate against the increase in traffic flows. Contributions may be sought for these improvements.

HS1/31 – Barden Mill, Barden Lane

Housing Delivery

The site is acceptable for around 37 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwellings will be expected; and
- 2) Contributions towards off-site highways improvements will be required in line with Policy IC4 to mitigate road safety concerns on Barden Lane between the railway bridge and the canal bridge.

Supporting Information

- 1) Planning permission has been granted for 37 dwellings (APP/2014/0031).
- 2) In responding to the above planning application, Lancashire County Council Highway Engineers raised road safety concerns on this part of Barden Lane between the railway bridge and the canal bridge. Contributions towards off-site highways improvements will be required in line with Policy IC4 to mitigate road safety concerns on Barden Lane between the railway bridge and the canal bridge.
- 3) Development needs to address the site's canalside location in accordance with Policy SP5 2) c).
- 4) The site is adjacent to a Biological Heritage Site (Leeds Liverpool Canal) and the development scheme should address this issue in accordance with Policy NE1.

HS1/32 – Butchers Farm**Housing Delivery**

The site is acceptable for up to 24 dwellings.

Additional and Site Specific Policy Requirements and Design Principles

- 1) A mix of dwelling types, including a minimum of 60% 3+ bedroomed detached and semi-detached houses will be expected;
- 2) Protected Species have been recorded on the site. An ecological survey (including breeding bird survey and survey of South Pennines SPA qualifying species present) will be required to accompany any future outline or full planning application which identifies and addresses these issues in accordance with Policy NE1;
- 4) Appropriate landscaping and boundary treatment should include screening to the southern and western boundary to reduce the impact on the wider landscape. New planting on the site will need to accord with Policy NE3;
- 5) Contributions towards off-site highways improvements may be required in line with Policy IC4; and
- 6) Archaeological evaluation will be required to accompany any future outline or full planning application in order to establish the presence of any archaeological remains relating to the early farm and barn sites. If intact early buildings are found these should preferably be preserved in situ, but buried remains of this date may be managed by further excavation and recording.

Supporting Information

- 1) Outline Planning Permission has been granted for residential development for up to 24 dwellings (APP/2016/0417).
- 2) Lancashire County Council Highways Engineers have advised that access to Worsthorne is restricted to three routes, two of which are single track in places with 60mph (derestricted) speed limit. The third route is via Brownsie Road which has a length over which traffic is restricted to one way working at two locations due to parked cars where residents have no alternative parking facilities. During the Plan Period improvements to the roundabout at the Junction of Brownsie Road and Brunshaw Road will be necessary to mitigate against the increase in traffic flows. Contributions may be required towards these improvements.

Affordable Housing

Affordable Housing Need

5.1.9 The NPPF requires Local Plans to meet their full, objectively assessed needs for affordable housing where this is consistent with the other policies set out. Affordable housing in this context is specifically defined in the NPPF (see glossary) and differs from low cost housing that may or may not be affordable to individual households.

5.1.10 The 2016 SHMA assesses the overall need for affordable housing and the specific tenure (social rent, affordable rent and intermediate housing). The SHMA concludes that need for affordable housing amounts to **52** dwellings per annum over the Plan period.

5.1.11 Even for those who can apparently afford to meet their own needs and do not in theory require affordable housing, and for whom there is a plentiful supply of cheap market housing to buy or rent in the borough; the quality of some of the older private sector stock at the lower end of the market (both to rent and buy) is poor and can present challenges for those on low or modest incomes e.g. in respect of fuel bills and repair costs. Post-recession restrictions on mortgage lending to those on low or modest incomes and to the self-employed means that many households who could afford to buy are actually unable to do.

Affordable Housing Provision

5.1.12 The Council is committed to the replacement, and where possible, the addition to the affordable housing stock and there are a number of ways this can be achieved.

5.1.13 The NPPF states that Local Plan policies should be set to meet affordable housing need on sites that are being developed for market housing, unless off-site provision or a financial contribution of broadly equivalent value can be justified and the agreed approach contributes to the objective of creating mixed and balanced communities. The NPPF assumes a need for affordable housing has been demonstrated and that sites are generally viable and sufficiently profitable to enable developers to provide affordable housing in addition to market housing. This is not necessarily the case in Burnley.

5.1.14 This NPPF approach of requiring private sector developers to provide a proportion of affordable housing on site, normally through a partnership with a registered provider, has been successful in Burnley in a number of cases in the inner urban areas, but has generally required public sector subsidy.

5.1.15 An alternative successful approach for the delivery of affordable housing in Burnley has been to work directly with Registered Providers to build houses on sites made available by the Council from its landholdings, or through compulsory purchase.

5.1.16 Due principally to viability considerations, the approach of requiring developers to contribute monies through a section 106 agreement for off-site provision by a registered provider has rarely been successful.

5.1.17 Affordable housing can also be acquired by Registered Providers to be upgraded or adapted e.g. to create larger family units, and this method of provision has made a significant contribution to affordable housing delivery in the borough in recent years.

5.1.18 The 2016 SHMA suggests an affordable housing split by tenure of: 80% Affordable Rent or Social Rent and 20% Intermediate tenure. The recommendation on split by type and size are discussed in HS3.



Photo – Housing, Burnley Wood

Starter Homes

5.1.19 Starter Homes are not currently defined as Affordable Housing. The Government's new 'Starter Homes' were introduced in the Housing and Planning Act of May 2016, although the relevant provisions of the act are not yet in force. The Government also consulted on proposals for the implementation of the Act's draft provisions in March 2016. The intention was for a statutory minimum requirement of 20% of units on sites of 10 units or more (subject to some exceptions) and these would be on site or off site through commuted sums in lieu where developers preferred. Starter Homes are homes for first time buyers to buy at a 20% discounted rate.

5.1.20 In December 2015 the Government also consulted on changes to national planning policy to amend the current definition of affordable housing to include Starter Homes. This intention was confirmed in the Housing White Paper of February 2017. The White Paper also set out some other changes to the definitions of affordable housing for consultation. The White Paper stated that the Government would not pursue the previously proposed statutory requirement for starter homes at the present time.

5.1.21 The Government subsequently consulted on proposals to change national policy so that regardless of viability consideration 10% of homes on housing schemes of 10 dwellings or more should be affordable (as per the new definition) (either on or off-site through commuted sums in lieu of on-site provision where 'robustly justified').⁴¹ Whilst the Council's Local Plan Viability Study concluded that starter home provision in lieu of more traditional types of affordable housing would generally aid viability, this could still be an issue on brownfield sites. A rigid approach to the provision of affordable housing would be of great concern and could be at odds both with efforts to prioritise the development of brownfield sites and efforts to ensure the delivery of modern

⁴¹ Draft Revised NPPF consultation which ended 10 May 2018. Certain types of housing e.g. custom and self-build, extra care etc. would be exempt from the requirement.

adaptable affordable homes to rent. Whilst the new approach most recently consulted upon by the Government would not specify the type of affordable housing that makes up the 10%, in Burnley, in most cases, starter home provision would preclude the delivery of affordable housing to rent or part rent/part buy.

5.1.22 Policy HS2 clauses 1) and 2) are sufficiently flexible to apply with or without the currently planned change in the definition of affordable housing. Clause 3) would however need to be read alongside any confirmed changes to national policy or legislation.

5.1.23 Policy HS2 allows for the affordable and starter home provision to be waived/varied and this is consistent with current national policy, and the Government's intention for a minimum of 10% is not yet confirmed through a revised NPPF. It is considered that Burnley's circumstances are such that greater flexibility is required in term of requirements, percentages and types.

Policy HS2: Affordable Housing Provision

- 1) The Council will work with public and private sector partners to seek to ensure that there is a sufficient supply of good quality affordable housing, particularly in the areas of highest need by:**
 - a) Supporting and facilitating the acquisition and adaptation of existing housing by registered providers;**
 - b) Working proactively with registered providers to identify sites and deliver schemes to provide affordable housing; and**
 - c) Requiring the provision of affordable housing through all housing developments of over 10 units, unless the applicant can demonstrate that a site, which would otherwise be supported by the policies in the Plan and meets the requirements of Policies SP4 and SP5, would not be viable with affordable housing provision on-site or off-site by way of a contribution.**
- 2) The exact amount of financial contribution/number and tenure of affordable units will be determined by economic viability having regard to individual site and market conditions.**
- 3) Any affordable housing required should be provided:**
 - i) on-site where this can be achieved without compromising other important policy considerations⁴² or viability; or**
 - ii) off-site where on-site provision has been satisfactorily demonstrated not to be justified under i) and where it can be demonstrated that the contribution would facilitate the delivery of affordable housing of an appropriate type at a suitable policy-compliant site.**
- 4) All new affordable housing should be designed to minimise indications of its tenure in order to facilitate inclusive communities.**
- 5) Where affordable housing is being delivered, the Council will seek to ensure an appropriate tenure mix using the following percentages as a guide (and sizes and types as set out in Policy HS3).**
 - Affordable Rent or Social Rent: 80%**
 - Intermediate tenure: 20%**

⁴² Such policy considerations will only be those which could be impacted on by the provision of smaller/affordable housing units and could include for example the required mix or quality requirements set out in the site specific additional policy requirements or in Policies HS3, SP4 3), SP5 or the Historic Environment Policies.

Housing Density and Mix

5.1.24 As set out in Section 2, Burnley has a high proportion of high density terraced housing stock, reflecting its industrial past.

5.1.25 If the Local Plan's vision and objectives are to be achieved, increasing the quality and choice of the housing stock to meet both needs and the aspirations and to attract people to live and work in the borough, as well as to retain existing residents, is essential.

Housing Density

5.1.26 Paragraph 47 of the NPPF indicates that local planning authorities should set out their own approach to housing density to reflect local circumstances.

5.1.27 Burnley has an oversupply of high density housing, with some inner urban areas having concentrations of dwellings at a density of 100 dwellings per hectare. These are predominantly low rise 'street' terraces. Whilst high density development makes efficient use of land and can, therefore, limit encroachment both into the countryside and onto greenfield sites, as well as contributing to good quality and varied urban design, they do not always provide appropriate environments to suit all residents, especially those who wish to have a garden or convenient access and parking.

5.1.28 Past clearance of selected areas of high density 2-bedroom terraced properties has created an opportunity to provide lower density housing with gardens, off street parking, carefully designed bin storage, and improved green infrastructure in inner urban locations, whilst still retaining the character of the borough. Elsewhere, the Council wishes to maximise opportunities to provide lower density housing to improve quality and choice, subject to meeting other design and policy considerations. For allocated sites, indicative housing numbers have been set out which reflect the densities the Council considers appropriate. For other 'windfall' sites, the density policy set out in Policy HS3 will apply.

Housing Mix

5.1.29 Paragraph 50 of the NPPF clearly demonstrates the importance of delivering high quality homes and creating sustainable, inclusive and mixed communities by planning for a mix of housing based on current and future demographic trends, market trends and the needs of different groups in the community.

5.1.30 The 2016 SHMA identifies the need to diversify the current stock away from terraced properties towards larger, more aspirational detached and semi-detached dwellings; and that in order to compete against wealthier housing markets nearby and stem the tide of out migration of more affluent residents, development of higher quality 3-4 bed detached properties is required. It also recognizes, however, that a balance must be struck between the need to provide more aspirational property types, and the ability of residents to afford larger housing.

5.1.31 The SHMA provides a suggested housing mix by type and size as follows:

Table 3: Suggested Property Size and Type - 2016 SHMA

Size	All Tenures	Affordable Housing
1 bed flat	40%	70%
2 bed flat / house / bungalow		
3 bed house / bungalow	60%	30%
4 bed house		

Type	All Tenures	Affordable Housing
Semi-detached house	35%	35%
Detached house	20%	10%
Terraced house	15%	15%
Flat / Maisonette	10%	15%
Bedsit/Studio/Room Only	0%	0%
Bungalow/Elderly Housing	20%	25%
Caravan or temporary structure	0%	0%

Burnley SHMA 2016

5.1.32 Providing a mix of new housing types across the borough is essential. Whilst each site will be assessed on its merits, taking into account its size, characteristics (including shape/landform) and context and townscape setting, as well as evidence of demand for the mix and type of dwellings it will be assessed against the proportions set out in Policy HS3 below as informed by the recommendation of the SHMA so that each site contributes as appropriate to meeting the overall borough-wide mix.

Policy HS3: Housing Density and Mix

Housing Density

- 1) New housing should make efficient use of land and be built at a density appropriate to its location and setting.**
- 2) As a minimum, developments should seek to achieve 25 dph (dwellings per hectare gross⁴³).**
- 3) Higher densities of at least 40 dph (dwellings per hectare gross) will be expected within or close to the Town and District Centres, or where urban design and townscape considerations are considered to require a higher density approach. The density should be informed by the following site specific considerations:**
 - Its size;
 - Its characteristics;
 - Its context and townscape setting; and
 - The likely marketability of the dwellings.

Housing Mix

- 4) All housing schemes on sites of 0.4 Hectares or for 10 units or more should consider a mix of housing types using the indicative proportions set out in the below. The precise mix should be informed by the following site specific considerations and the need to increase the quality and choice across the Borough:**
 - Its size;
 - Its characteristics;
 - Its context and townscape setting, and;
 - The likely marketability of the dwellings.

⁴³ See Glossary for definition

Property Type:	Proportion:	Size (bedrooms)
Detached	20%	3 to 4+
Semi-detached	35%	2, 3, 4
Terraced	15%	2 to 3
Bungalow / accessible flat	20%	1, 2, 3
Other flats / maisonette	10%	1, 2

Housing Developments

5.1.33 Our home and the places we live are important to the quality of life we all enjoy. Houses are often our biggest investment and are the places we spend more time than anywhere else. The design of new homes and streets has a fundamental impact not only on our daily lives, but also on the quality of our built environment and the sustainability or otherwise of our communities.

5.1.34 New residential development has an important role to play in the success of the borough in the future. Providing high quality housing is recognised as a key factor in promoting the growth of the borough's economy.

5.1.35 The Plan's overarching design policy is set out in strategic Policy SP5. Housing development should comply with the requirements of Policy SP5 in addition to the criteria set out in Policy HS4.

5.1.36 The Council's Green Spaces Strategy and Play Strategy emphasise the importance of developing and maintaining sustainable quality open spaces and play spaces that integrate with the natural and built environment.

5.1.37 These strategies identify specific needs and quantitative or qualitative deficits or surpluses of publicly accessible open space, sports and recreational facilities. Policy IC5 protects the overall provision of public open space and play spaces. Policy NE2 seeks to protect those open spaces (be they publicly accessible or not) which are special. These may be supplemented by Local Green Space designations through Neighbourhood Plans.

5.1.38 Policy IC3 and Appendix 9 set out the parking standards for all types of new development including, housing schemes. Appropriate car parking should be provided in accordance with Policy IC3.

5.1.39 Adequate distances should be retained between buildings and particularly between habitable rooms of dwellings, to safeguard the privacy of occupiers of existing and proposed dwellings, to allow the admission of daylight and sunlight and to prevent cramped forms of development.

Custom and Self-build Housing

5.1.40 The Government is keen to enable more people to build their own homes. From April 2016, Councils have been required to keep a register of people who are interested in self or custom build housing, and plan accordingly to meet this demand. Applications for self-build and custom housing development will be judged against the relevant policies in the Plan and the nature of this type of housing will be a material consideration which weighs in its favour, particularly in the context of it increasing choice.⁴⁴

⁴⁴ For more information on Custom and Self-build housing in Burnley, please visit <http://www.burnley.gov.uk/node/2467>

Development of Residential Gardens

5.1.41 The NPPF indicates that local planning authorities should consider the case for setting out policies to resist inappropriate development in residential gardens. The NPPF defines residential gardens within built up areas as 'greenfield' land.

5.1.42 Private residential gardens make an important contribution to a settlement's green infrastructure and to the character and quality of its residential areas. Concentrating development in sustainable locations, such as within urban areas, can increase pressure to develop on gardens and other 'backland' sites. Whilst such development can be acceptable, it can also adversely affect the character of an area, create overlooking and have an adverse impact on the local area e.g. through increased pressure for on-street parking and the loss of trees. Applications for new dwellings within residential gardens will be considered against Policy HS4 and other relevant policies of the Plan.

Adaptable Homes

5.1.43 As set out in Section 2, Burnley has an oversupply of high density terraced housing which can be difficult to adapt to suit the needs of some older residents and those with a disability, as there can be little scope for creating ground floor indoor bathrooms/toilets, ground floor bedrooms and introducing other adaptations. The modest increases to the overall housing stock planned means there are limited opportunities to provide new adaptable stock both in the market and affordable housing sectors. As indicated at paragraph 4.5.9 the Council considers there is sufficient justification to require a proportion of housing on major schemes to meet the optional technical standards of Part M4(2) of the Building Regulations 2010, and that schemes of more than 10 dwellings should provide at least 20% of dwellings designed to be adaptable to support the changing needs of occupiers over their lifetime, including people with disabilities.

Policy HS4: Housing Developments

- 1) New housing developments should be high quality in their construction and design in accordance with Policy SP5.**
- 2) For schemes of more than 50 dwellings, planning applications should include a phasing plan which should include details of the proposed phasing, temporary works and security measures which should demonstrate an acceptable standard of development and amenity for early residents and existing adjacent residents.**
- 3) In addition, the Council will require new housing developments to:**
 - a) Provide private and functional outdoor space for occupants. For flats and mews/courtyard developments, outdoor space may be shared;**
 - b) Be well laid out to ensure habitable rooms⁴⁵ receive adequate levels of daylight; and**
 - c) Provide appropriate levels of privacy and outlook for occupants and for existing adjacent residents. Unless an alternative approach is justified to the Council's satisfaction, the following privacy distances will apply:**

Type	Situation	Minimum distance
Single storey and two storey dwellings:	Between facing windows of habitable rooms	No less than 20 metres

⁴⁵ Habitable rooms are those in a dwelling house other than landing bathrooms toilets and utility rooms

Single storey and two storey dwellings:	Where windows of habitable rooms face: ⁴⁶ • a blank gable; or • other windows serving non-habitable rooms.	No less than 15 metres
Three storey dwellings/apartments or where levels creates a significant difference in heights	For each additional storey above 2 storeys or where levels creates a significant difference in heights	As above plus an additional set back of 3 metres

Adaptable Homes

4) For schemes over 10 dwellings, 20% of dwellings should be designed to be adaptable to support the changing needs of occupiers over their lifetime, including people with disabilities complying with the optional technical standards of Part M4(2) of the Building Regulations 2010.

Open Space provision in new housing development

5) New housing developments will be required to provide or contribute to public open space provision as follows.

- a) **Proposals for 50 dwellings or more will be expected to incorporate recreational public open space to a minimum standard of 0.3 Ha per 50 dwellings or a proportion thereof, in accordance with the Fields in Trust Standard of 2.4 hectares per 1,000 population; or exceptionally, provide or pay a contribution in lieu of part or all of the open space provision for the creation or benefit of existing public open space nearby.**
 - b) **Proposals for new housing developments of between 10 and 49 dwellings will be expected to provide public open space in line with the above standard. Where such a public open space is impracticable or unusable the Council will negotiate with the developer the payment of a commuted sum for the benefit of existing Public open space nearby.**
 - c) **Proposals for new housing development of between 5 and 9 dwellings will be expected to provide the payment of a commuted sum in accordance with the Council's published schedule of fees for the benefit of existing or proposed public open space nearby.**
- 6) As part of the overall recreational space requirement referred to in 5) above, developers of housing sites comprising predominantly family housing, will be required to provide 0.09 Ha (0.23 acres) of equipped children's play space per 50 dwellings, or proportion thereof.**

7) Where public open space is provided in new housing development, it must normally be a single plot with a minimum functional size of 1,200m² and be overlooked by adjoining properties. It should be landscaped to a high standard of design and the space must be usable, and easily accessible by all residents, including those with disabilities, and provide a safe place to play and relax whilst not causing a nuisance to nearby residents. The type of open space should have regard to the local needs and standards for all types of open space set out in the Council's Green Spaces Strategy.

8) Landscaping works and the provision of play equipment and its future maintenance is the responsibility of the developer; where public open space is provided on-site, the developer will be expected to fund its maintenance for a period of at least 20 years, or put in place a sustainable scheme of management;

⁴⁶ Windows within a 45° angle of each other

- 9) Open space provision should be designed to deliver multifunctional benefits in particular by:**
 - a) Providing and contributing to a wider network of green infrastructure as set out in Policy SP6;**
 - b) Working with and retaining important existing landscape character, features, trees and habitats in accordance Policy NE1, 3 and 4;**
 - c) Contributing to the provision of Sustainable Drainage Systems in accordance Policy CC5.**
- 10) Public open spaces provided under this policy will subsequently be protected as Open Space under Policy NE2.**

House Extensions and Alterations

5.1.44 Whilst many alterations and extensions to houses do not require planning consent, it is important that where they do they: respect the character and integrity of the original building and the streetscene in terms of their height, width, depth, building line, footprint, materials; retain useable amenity space; and do not have an detrimental impact on the amenity reasonably expected to be enjoyed by adjoining residents or other users.

5.1.45 Whilst some alterations and extensions can cause harm, they also offer the potential to improve the quality and character of the property and the streetscape. High quality matching or complementary materials should be used for extensions, appropriately and sensitively in relation to the context. This approach would not preclude proposals that are innovative or contemporary where these are of exceptional design quality and where these are fully justified where necessary through the design and access statement which should address the treatment of the existing property and effect on the streetscape.

Policy HS5: House Extensions and Alterations

- 1) Alterations and extensions, including roof extensions and the erection of buildings and structures within the curtilage of dwellings, should be high quality in their construction and design in accordance with Policy SP5. The Council will permit extensions and modifications to existing residential properties where:**
 - a) The extension is subordinate to the existing building, to allow the form of the original building to be clearly understood;**
 - b) The design respects the architectural characteristics, scale and detailing of the host building and its setting. High quality matching or complementary materials should be used, appropriately and sensitively in relation to the context. This would not preclude proposals that are innovative or contemporary where these are of an exceptional design quality;**
 - c) The proposal will not have an detrimental impact on the amenity reasonably expected to be enjoyed by the occupants of neighbouring properties through overlooking, lack of privacy or reduction of outlook or daylight, using the distances set out in Policy HS4 3)c);**
 - d) The proposal does not lead to an unacceptable loss of parking, both in curtilage or on street and does not create a danger to pedestrians, cyclist or vehicles; and**
 - e) The proposal does not lead to an unacceptable loss of useable private amenity space.**

Agricultural and Rural Workers' Dwellings

5.1.46 In order to support farm and other businesses appropriate to rural areas, the Council will permit new dwellings for rural workers where this is necessary. The Council will need to clearly establish whether the requirement for a new dwelling is genuine, whether it can be met by an existing dwelling on the holding or through the conversion of a building. Where a need for a new dwelling is successfully demonstrated, consent will be conditional on the dwelling remaining for occupation by a rural worker in perpetuity.

5.1.47 The Council has previously successfully used the now revoked national policy set out in Annex A of Planning Policy Statement 7: Sustainable Development in Rural Areas to determine the criteria for assessing housing development for use by rural enterprise workers. In the absence of new guidance from the Government following the publication of the NPPF, the Council will continue to use similar criteria.

5.1.48 In the context of this policy, the need relates to traditional rural activities such as agriculture, horticulture, forestry, fisheries, rural estate management, conservation etc.

Policy HS6: Agricultural Workers' Dwellings

- 1) In the open countryside outside of the Development Boundaries, the erection of new dwellings in connection with a farm or other rural business will only be allowed where it satisfies other relevant policies of the Plan and meets all of the following criteria:**
 - a) Evidence has been submitted to the satisfaction of the Council that there is an existing functional need for a permanent dwelling in the particular location;**
 - b) The need relates to a full-time worker or one who is primarily employed in agriculture or another rural-based enterprise considered acceptable by the Council;**
 - c) The size of, and the accommodation to be included within the proposed dwelling, is commensurate with the needs of the enterprise rather than those of the owner or occupier and is well designed and well-related to existing agricultural buildings or other dwellings;**
 - d) The unit and the agricultural/rural activity concerned has been established for at least three years, has been profitable for at least one of them, is currently financially sound, and has a clear prospect of remaining so;**
 - e) The need could not be fulfilled by another existing dwelling or accommodation on the unit, or any other existing accommodation in the locality which is suitable and available for occupation, or through the conversion of an existing building; or through another suitable dwelling within the control of the applicant/enterprise which has been sold or let so as to prevent its occupation by the essential worker; and**
 - f) The development is in all other respects acceptable against other relevant policies in the Plan.**
- 2) Conditions will be attached to any permission removing permitted development rights and limiting the occupancy to that required for the holding concerned or another agricultural/rural use nearby.**

Gypsy, Traveller and Travelling Showpeople's Provision

Establishing the Requirement

5.1.49 Research has shown that a lack of suitable sites, accommodation, and inadequate living conditions for the Gypsy and Traveller community are linked to poor health and educational attainment, as well as being at the root of ill-feeling between the settled and Traveller communities. By providing pitch provision for those who require them, these inequalities can be addressed. By ensuring an adequate pitch provision for Gypsies and Travellers, the likelihood of unauthorised encampments and associated costs to the Council can be reduced.

5.1.50 The Housing Act 2004 placed a duty upon local authorities to produce assessments of accommodation needs for Gypsies and Travellers. This requirement was revoked by the 2016 Housing and Planning Act. The requirement to periodically review housing needs remains and this will include the needs of people residing in or resorting to their district "with respect to the provision of sites on which caravans can be stationed."

5.1.51 Gypsy and Traveller needs for plan-making planning purposes can in future be assessed in the Council's SHMA or in a separate assessment.

5.1.52 Current Government planning policy for Gypsies and Travellers is found in 'Planning Policy for Traveller Sites' (DCLG, 2015). This highlights that the traditional and nomadic way of life of Gypsies, Travellers and Travelling Showpeople should be facilitated while respecting the interests of the settled community. It indicates that planning authorities should use a robust evidence base to establish the likely permanent and transit accommodation needs of Traveller communities to inform the preparation of Local Plans. In order to achieve this, they should work with Travellers, their representative bodies, local support groups and other local authorities.

5.1.53 Based on any need identified, Gypsy and Traveller pitch targets and Travelling Showpeople plot targets should be set, and a supply of specific deliverable sites sufficient to provide five years' worth of provision detailed. Additionally, a supply of specific, developable sites or broad locations for growth for years 6 – 10 and, where possible, years 11 – 15 should be identified.

5.1.54 In May 2012, Burnley and Pendle Borough Councils commissioned the Housing and Urban Studies Unit at the University of Salford to produce a Gypsy, Traveller and Travelling Showpeople Accommodation Assessment (GTAA). The main purpose of this assessment was to provide up to date information about the needs and requirements of travelling communities within the two boroughs in accordance with the definitions of these communities as set out in national policy at the time. The results of this research are shown in column A of Table 4.

5.1.55 In 2015, following the updated Planning Policy for Traveller Sites, the definition of Gypsies and Travellers for planning purposes changed to: *"Persons of nomadic habit of life whatever their race or origin, including such persons who on grounds only of their own or their family's or dependents' educational or health needs or old age have ceased to travel temporarily, but excluding members of an organised group of travelling showpeople or circus people travelling together as such"*. In light of this change, only those members of the Gypsy and Traveller community who still travel, or can be reasonably said to intend to live a nomadic lifestyle in the future, require their needs to be specifically and separately addressed in the Local Plan. For those who don't, their needs, requirements and demands, including for caravan living would be addressed along with those of the non-traveller community through the SHMA.

5.1.56 The survey results from the 2012 GTAA have been revisited⁴⁷ to reassess the need on the basis of the new definition, and the revised figures are shown in column B, below. This table shows the actual known need based on the survey results.

Table 4: Requirement for Gypsy and Traveller Pitches 2012 - 2026

Time Period	A: 2012 GTAA	B: 2016 GTAA Addendum
	Need/Pitches	Need/Pitches
2012 - 2016	22	4
2017 - 2021	3	1
2022 - 2026	3	0
2012 - 2026	28	5

Identifying Sites

5.1.57 In accordance with national policy, Local Plans have to identify land for allocation to meet any identified need for Gypsy and Traveller pitches. This matter is proposed to be addressed in a separate Gypsy and Traveller Sites Allocations DPD. Policy HS8 sets out criteria for responding to planning applications for Gypsy and Traveller Sites by establishing criteria's against which applications can be judged. These provisions would apply to proposals to meet both the identified needs or demands of people who satisfy the current definition of Gypsies and Travellers.⁴⁸ For those who don't but wish to live in residential caravans, such proposals would be judged against the other policies relevant to housing development.

5.1.58 The 2012 GTAA made no specific recommendation regarding the provision of transit pitches in the borough. Transit pitches are generally designed for short stays only for those who were actively nomadic with no base or with a base elsewhere. They tend not to have the facilities of permanent pitches. The revised definition of 'Gypsy and Traveller' means that all five proposed permanent pitches will be required by those who still travel or intend to resume travelling in the future. However, these pitches could also be designed to be used for longer term accommodation as the definition allows.

5.1.59 The selection of sites for Gypsies and Travellers pitches should follow similar locational criteria to the selection of housing sites for the settled community. However, there are specific aspects of Gypsies and Travellers cultural traditions and preferences which need specific consideration, such as the preference for living in a caravan or working from home and the need to provide space suitable for both sustained periods of settled living whilst also facilitating a nomadic lifestyle. These factors need to be borne in mind when selecting sites.

5.1.60 Sites should be well designed and sympathetic to the local landscape/townscape. The use of soft landscaping on the edge of sites is encouraged even where security fences or walls may be required. Sites must be of a sufficient size to allow for this.

Assessing Further Need and Sites

Site Criteria

5.1.61 In assessing any future planning applications for 'windfall' caravan pitches for Gypsy and Traveller occupation to meet identified or newly arising need or demand, the suitability of the site

⁴⁷ Burnley & Pendle GTAA. Burnley Addendum June 2016

⁴⁸ Those who satisfy the definition set out in Appendix 1 of Planning Policy for Traveller Sites, August 2015

and its impacts on the landscape or townscape need to be considered. Sites should be located close to local services and facilities.

5.1.62 It is important that site activity and usage does not have an adverse impact on existing residents e.g. from issues such as noise, fumes, or vehicular movements. Sites and proposals should to meet highway safety standards, especially in relation to the manoeuvring of large vehicles and trailers.

5.1.63 Caravan sites can be difficult to successfully integrate into the townscape, particularly in residential areas; and whilst the location of new caravan sites should be within the Development Boundaries set out in Policy SP4, where unmet need or demand exists, the Council would consider sites close to, but not necessarily within, existing settlements/Development Boundaries where these remain close to essential services.

5.1.64 Careful consideration should be given to how a site can deliver adequate living standards to residents. This includes provisions for power, water, drainage, sewage and waste disposal facilities.

5.1.65 Proposals will be favourably considered where they satisfy other relevant policies of the Plan e.g. those protecting heritage assets of nature conservation sites and meet the criteria set out in Policy HS7 below.

Policy HS7: Gypsy and Traveller Site Criteria

- 1) Where there is an identified need or a demand for the provision of transit and permanent pitches for Gypsy or Traveller use or plots for Travelling Showpeople⁴⁹; proposals will be favourably considered where they satisfy other relevant policies of the Plan and meet the following criteria:**
- a) The site is within or closely related to the Development Boundaries identified under Policy SP4;**
 - b) The proposed site is suitable for use as a Gypsy, Traveller or Travelling Showperson's site and can provide an acceptable living environment for future occupiers;**
 - c) The site is not subject to physical constraints or other environmental issues that cannot be mitigated to an acceptable level, or that would impact upon the health, safety or general wellbeing of residents on the site;**
 - d) The site is or can be well integrated within the local townscape in a manner in-keeping with the local character, using boundary treatments and screening materials which are sympathetic to the existing urban/rural form;**
 - e) Good levels of acoustic and visual privacy can be achieved for both residents and adjacent occupiers. Proposals should include appropriate landscape measures to minimise adverse visual impact and to ensure adequate levels of privacy and residential amenity for occupiers and adjacent occupiers that avoid the use of high walls and fences;**
 - f) The site does not accommodate non-residential uses that would cause, by virtue of smell, noise or vibration; a significant adverse impact on neighbouring business or residents;**
 - g) The proposal does not cause demonstrable harm to the quality and character of the landscape or townscape in accordance with the requirement of Policies NE3 and SP5;**
 - h) The proposal does not have an adverse impact on a locally important nature conservation site in accordance with Policy NE1;⁵⁰**

⁴⁹ Those who satisfy the definitions set out in Appendix 1 of Planning Policy for Traveller Sites, August 2015

⁵⁰ BHS

- i) The proposed site is or can be made accessible to key local services such as primary schools, GPs, shops and other community facilities;
 - j) The site has good access to the highway network and satisfactory provision is made for access, parking, manoeuvring and storage of cars, vans and trailers; and
 - k) The site has, or could readily be provided with, electricity, mains water, drainage, sewage and waste disposal facilities.
- 2) The development of new Gypsy or Traveller sites will not be permitted in the following locations:
- a) Within the Green Belt;
 - b) On the best and most versatile agricultural land;
 - c) Within or adversely affecting an SSSI/SAC/SPA, Protected Open Space; or
 - d) Within Flood Zones 3a & 3b or 2.

Local Gypsy and Traveller Occupancy

5.1.66 Planning applications for allocated or 'windfall' sites for Gypsy and Traveller usage will normally be subject to a condition restricting occupancy to those Gypsies and Travellers with a local connection. This will safeguard pitches for those leading, or intending to resume a nomadic lifestyle as identified within the GTAA, rather than allocations being used to accommodate unmet need from other areas, or demand from non-traveller households. These occupancy restrictions will only apply to sites which have been granted planning permission specifically to meet Gypsy and Traveller needs. For other residential caravan sites that have been judged acceptable against other policies, occupancy restrictions of this type would not be appropriate.

5.1.67 Local connection means:

- someone currently residing in Burnley borough who has done so for three of the past five years; or
- someone with close family (defined as mother, father, sister, brother, adult children and corresponding step relatives) who have resided in the borough for the last five years; or
- someone currently in permanent paid employment of at least 16 hours per week in the area or who has a confirmed offer of employment; or
- military personnel as defined in the Allocation of Housing (Qualification Criteria for Armed Forces) (England) Regulations 2012.

Policy HS8: Gypsy and Traveller Site Occupancy Condition

- 1) Planning permissions for allocated or appropriate 'windfall' sites, where these are granted specifically for Gypsy and Traveller use, will be subject to conditions restricting occupancy to:
- a) Gypsies and Travellers who practice a travelling lifestyle⁵¹; and
 - b) Gypsies and Travellers who can demonstrate a local connection.

⁵¹ i.e. those who meet the definition of Gypsies and Travellers for planning purposes as set out in Annex 1 of 'Planning policy for traveller sites' DCLG 2015

Policies in this Section:

EMP1: Employment Allocations	EMP5: Rural Business & Diversification
EMP2: Protected Employment Sites	EMP6: Conversion of Rural Buildings
EMP3: Supporting Employment Development	EMP7: Equestrian Development
EMP4: Office Development	

5.2 Economy and Employment

National Planning Policy Background

5.2.1 A core principle of the NPPF⁵² is to proactively drive and support sustainable economic development to deliver the homes, business and industrial units, infrastructure and thriving local places that the country needs and respond positively to wider opportunities for growth.

5.2.2 The NPPF (para 21) states that Local Plans should:

- set out a clear economic vision and strategy which positively and proactively encourages sustainable economic growth
- Set criteria, or identify strategic sites, for local and inward investment to match the strategy and to meet anticipated needs over the plan period;
- Support existing business sectors, taking into account of whether they are expanding or contracting and, where possible, identify and plan for new or emerging sectors likely to locate in the area. Policies should be flexible enough to accommodate needs not anticipated in the plan and to allow a rapid response to changes in economic circumstances;
- Plan positively for the location, promotion and expansion of clusters or networks of knowledge driven, creative or high technology industries;
- Identify priority areas for economic regeneration, infrastructure provision and environmental enhancement; and
- Facilitate flexible working practices such as the integration of residential and commercial uses within the same unit.

5.2.3 The NPPF (para 157) states that Local Plans should allocate sites to promote development and the flexible use of land, bringing forward new land where necessary, and provide detail on form, scale, access and quantum of development where appropriate.

5.2.4 However, the NPPF (para 22) also states that planning policies should avoid the long term protection of sites allocated for employment use where there is no reasonable prospect of a site being used for that purpose.

The Requirement

5.2.5 Section 4 and Policy SP3 set out the target for employment land provision over the Plan period 2012-2032 of at least 66 Ha. Taking account of existing completions and commitments to 31 March 2017, it identifies a need to allocate at least 27.87 hectares of land.

⁵² Para 17

Identifying the supply

Housing and Economic Land Availability Assessment 'SHLAA'

5.2.6 The NPPF (paragraph 159) requires local planning authorities to prepare a Strategic Housing Land Availability Assessment (SHLAA) to establish realistic assumptions about the availability, suitability and likely economic viability of land to meet the identified need for housing over the plan period. Paragraph 161 encourages authorities to undertake assessments of land available for economic development at the same time as, or combined with the housing SHLAA.

5.2.7 The Burnley Strategic Housing and Economic Land Availability Assessment Update 2017 (SHLAA) is a combined assessment which assesses the amount of land available within the borough that is potentially available to meet the identified need and demand for new employment and housing development.

5.2.8 It indicates that over the plan period there is sufficient 'developable' land to provide approximately 40.87 hectares of employment development on a range of sites outwith the current Green Belt.⁵³

5.2.9 Informed by the SHLAA, the employment land requirement is provided for in line with the Spatial Strategy identified in Policy SP4 through the allocation of existing vacant or underused previously-developed employment sites within the existing Tier 1 and 2 settlements (Burnley and Padiham) and through the allocation of new sites beyond but closely related to their current urban boundaries and the factors listed at paragraph 4.3.5.

Site Allocations

5.2.10 The sites identified in Policy EMP1 will provide sufficient land to meet the identified residual requirement identified in Policy SP3.

5.2.11 The acceptable uses have been identified on the basis of the development strategy set out in Policy SP4 and the individual characteristics of the sites and their locations, including the following:

- The NPPF states that main town centre uses, such as offices (B1 (a)) should be located in town centres, then in edge of centre locations and only if suitable sites are not available, should out of centre sites be considered. In such instances, a sequential test should be applied.
- The likely traffic impacts of the specific uses proposed e.g. sites for B8 uses would need very good road access to accommodate larger vehicles.
- B8 uses are likely to require large buildings which can be more difficult to assimilate into the landscape/townscape.

5.2.12 The 2016 Burnley Employment Land Demand Study in calculating its land demand assumed a plot ratio of 40% (i.e. 40% of each site is expected to be occupied by buildings) which reflects the ODPM Employment Land Review Guidance Note (2004). Policy SP3 requires that development makes efficient use of land. Applications will therefore be assessed using this ratio as a starting point, but operated flexibly to ensure an appropriate quality of development is achieved.

5.2.13 Applications for suitable uses on the allocated sites would need to address the specific policy requirements set out in Policy EMP1 and the requirements of all other relevant policies of the Plan.

⁵³ This figure includes sites that are below the allocation threshold of 0.4 hectares and sites completed during 2016/17

5.2.14 The Council's SFRA (Level 1) assessed all the Council's SHLAA sites against risks from all sources of flooding. A small number of sites including Vision Park and a small section of the Land South of Network 65 which lie partly within Flood Zones 2 and 3 are identified for allocation. These, along with sites including the Thompson Centre Car Park identified as being at significant risk of surface water flooding, have been subject to a Level 2 SFRA. This provides advice as to how flood risk at these sites can be avoided or effectively mitigated over their lifetime through design, layout and sustainable drainage. Where flood risk is identified, a site specific Flood Risk Assessment (FRA) will be required to accompany any planning application. A number of other sites, being over 1 hectare in size, will also require an FRA in accordance with Policy CC4.⁵⁴

Policy EMP1: Employment Allocations

- 1) Over the 20 year period from 2012 to 2032, provision will be made to deliver at least 66 hectares (Ha) of employment land across the borough in line with Policy SP3.**
- 2) The sites listed below, as identified on the Policies Map, are allocated for employment use* and are protected for the employment uses specified. (*Site EMP1/8 is allocated for a mixed use development and the policy requirements set out in this policy include both uses.)**
- 3) Development on these sites will be acceptable for the specified use classes and will be required to be delivered in accordance with the specific requirements set out, together with the requirements of other policies set out elsewhere in this Plan.**
- 4) The Council will consider withdrawing permitted development rights to protect the sites for the employment uses proposed.**

Site Ref & Name	Greenfield/ Brownfield	Gross Site Area (Ha)	Acceptable Uses (Use Classes)
EMP1/1 – Rossendale Road (North)	Greenfield	4.65	B1 (b & c) & B2
EMP1/2 – Burnley Bridge	Brownfield	3.14	B1 (b & c), B2 & B8
EMP1/3 – Vision Park	Greenfield	5.05	B1 (b & c), B2, D1 and limited B1(a)
EMP1/4 – Stoneyholme Gas Works	Brownfield	0.50	B1 (b and c) & B2
EMP1/5 – Land South of Network 65	Greenfield	13.32	B1 (b & c), B2 & B8
EMP1/6 – Balderstone Lane	Greenfield	2.12	B1 (b & c), B2 & B8
EMP1/7 – Westgate	Brownfield	1.80	B1, B2 & small scale B8 and Sui-Generis uses which are similar in character and compatible in terms of use with the surrounding area
EMP1/8 and TC4/2– Thompson Centre (Mixed Use)	Brownfield	0.65	B1 (a), A2 & A3
EMP1/9 – Innovation Drive	Brownfield	0.97	B2 & B8
EMP1/10 – Widow Hill Road South	Greenfield	0.63	B2 & B8
EMP1/11 (and HS1/28) – George Street Mill (Mixed Use) ⁵⁵	Brownfield	0.00	C1, C2, C3 and D1
Total		32.83	

⁵⁴ See supporting text to Policy CC4 for further explanation

⁵⁵ This site is suitable for a range of uses and is not specifically included in the calculations of housing land or employment land supply or the housing trajectory – see also HS1/28

EMP1/1 – Rossendale Road (North)	Site Area: 4.65 hectares
	
This site is located close to the existing Rossendale Road Industrial Estate and is acceptable for B1 (b & c) and B2 uses.	
Additional and Site Specific Policy Requirements and Design Principles	
1) The majority of development should be located to the west of the stream, leaving an 8 metre easement around the stream itself (indicated in blue on the above site plan). No built form should be located within the area indicated in green on the above site plan; this should be landscaped as open space forming part of a network of green infrastructure utilising the stream that runs across the eastern section of the site. Facilities to encourage employee usage of the site during breaks should be incorporated into any design. 2) Development on this site will be expected to consist of low rise units with a maximum ridge height of 7 metres which takes into account and integrates with the contours of the natural landscape. The development will be expected to incorporate natural materials such as local stone to ensure a quality design which will lessen the development's impact on the surrounding landscape and streetscape. 3) Appropriate landscaping and boundary treatment should include screening to the western boundary along with roadside trees and shrubs adjacent to Rossendale Road. New planting on the site should accord with Policy NE3. 4) Vehicular access should be from a single point on the northern part of the site onto Rossendale Road. Appropriate traffic management systems may be required to both ingress and egress the site. 5) Pedestrian and cycle routes should be provided on site and contributions may be sought for off-site provision or improved cycle links. 6) An ecological survey should accompany any planning application which addresses any impacts on Protected Species and/or Priority Habitats in accordance with Policy NE1.	
Supporting Information 1) Lancashire County Council highway engineers have advised that vehicular access onto the site onto Rossendale Road should be at the northern edge of the site with appropriate sight lines and traffic management infrastructure and have highlighted that the development could adversely impact on the local road network with increased congestion at the Rosegrove and the Manchester Road signal junctions. The Burnley-Pendle Growth Corridor programme has identified fully funded improvements to the Rosegrove junction to be undertaken by Lancashire County Council but further improvement may be required for which contributions may be	

sought under Policy IC4.

- 2) The Burnley Green Infrastructure Strategy identifies Rossendale Road as an area which would benefit from enhanced GI in terms of improving the aesthetics of the road and its surroundings. New tree planting would assist whilst also providing other beneficial actions including the trapping of air pollutants, the absorption of noise, providing shade from the sun and evaporative cooling opportunities.
- 3) The Burnley Green Infrastructure Strategy identifies the stream running across the east of the site as an area of GI to enhance for supporting wildlife. Any development will need to address its potential ecological impact and/or mitigation measures in accordance with Policy NE1 and ensure network linkages remain on the site.
- 4) The site may house Protected Species and priority habitat (neutral grassland).
- 5) The Grade II Listed Habergham Hall Farmhouse lies around 180m west of the site. The detailed design of any scheme will need to address the potential impact on the setting of the listed building in accordance with Policy HE2.

EMP1/2 – Burnley Bridge

Site Area: 3.14 hectares



The site forms part of the larger Burnley Bridge Business Park which is located to the west of the borough with direct access onto the M65 at Junction 9.

The Business Park Site has outline planning permission. B1 b and c, B2 and B8 uses would be acceptable.

Additional and Site Specific Policy Requirements and Design Principles

- 1) The scale and massing of any development on the northern section of the site should be single-storey units with a maximum ridge height of 7 metres in order to limit the impact of development on the surrounding residential properties.
- 2) Vehicular access should be from the south of the site across the bridge over the Leeds & Liverpool Canal.
- 3) A landscaping scheme should be submitted which retains the existing bund on the northern boundary of the site and includes screen planting on the eastern boundary to restrict/reduce the impact of any development on the surrounding residential properties and wider landscape. New planting should accord with Policy NE3.
- 4) A new or updated ecological survey should accompany any planning application which

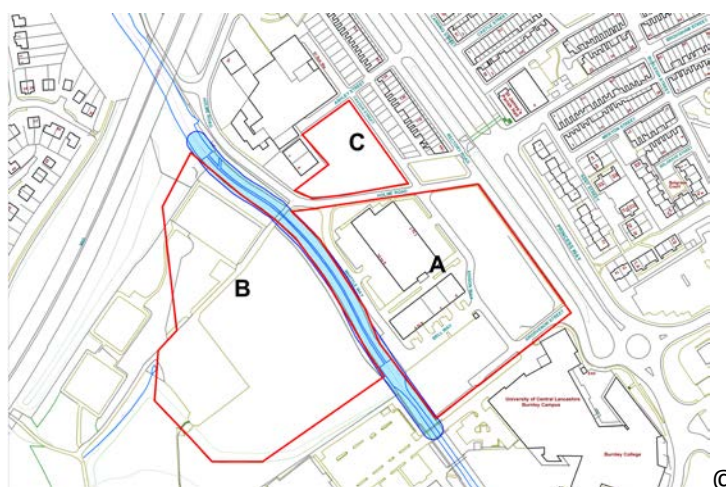
addresses any impacts on Protected Species or other Lancashire Biodiversity Action Plan species and the Lancashire Ecological Networks for Woodland and Grassland in accordance with Policy NE1.

Supporting Information

- 1) Outline planning permission was granted in 2010 for B1, B2 and B8 uses on the majority of the Business Park site. (APP/2008/0805).
- 2) A contaminated land survey should be prepared to accompany any planning application in accordance with Policy NE5.
- 3) Pylons and powerlines are located on the site. Developers will need to liaise with National Grid to determine appropriate building heights and siting.
- 4) Lancashire County Council highway engineers have indicated that there should be no access to motor vehicles from the residential area to the north from Cambridge Drive or to Hapton via Pollard Moor.
- 5) The Leeds & Liverpool Canal runs adjacent to the Burnley Bridge southern boundary and is identified as a green infrastructure asset and a corridor for wildlife in the Burnley Green Infrastructure Strategy.
- 6) The northern and eastern boundary of the site is identified as a stepping stone for grassland and woodland in the Lancashire Ecological Network. The Pollard Moor Biological Heritage Site (BHS) is also to the west of Business Park. Lancashire Biodiversity Action Plan species are known to be present on the site. Development will need to address the potential ecological impacts in accordance with Policy NE1.
- 7) Burnley Green Infrastructure Strategy also identifies the whole Burnley Bridge site as an area of potential to create GI in relation to managing water resources and reducing flood risk by increasing water infiltration opportunities. It also identifies an opportunity on the southern boundary of the south site for aesthetic improvements, the trapping of air pollutants, heritage and cultural needs in association with the canal.

EMP1/3 – Vision Park

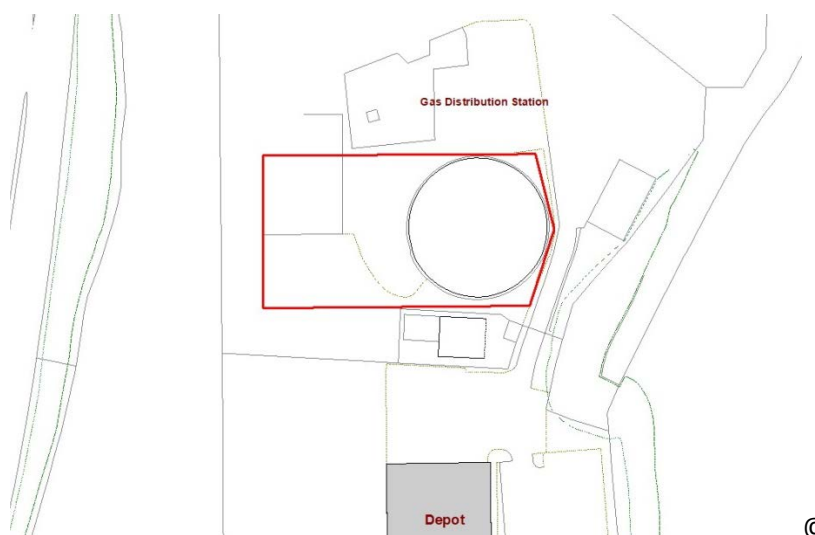
Site Area: 5.05 hectares



This site is located close to Burnley Town Centre with convenient access onto the M65 (east-bound) at Junction 11. Site A currently has planning permission for employment use and is suitable for B1 (b and c) and B2 uses. Sites B and C are also suitable for B1 (b and c) and B2 uses and limited B1a uses are also acceptable. Site B is also suitable for D1 uses.

Additional and Site Specific Policy Requirements and Design Principles
1) An 8 metre easement around the River Calder is required (indicated in blue on the above site plan). Any development within this easement may require an environmental permit for flood risk activities. Developers are encouraged to seek early engagement with the Environment Agency regarding design. 2) A maximum of 4,000m² of B1a floorspace will be permitted. 3) Vehicular ingress should be from Princess Way or Holme Road via the roundabout at Junction 11, with egress directly onto the roundabout at Junction 11 of the M65. Holme Road may require upgrading to take the additional traffic. A new access bridge will need to be developed across the River Calder to site B. 4) New on-site walking and cycling facilities and routes will need to be provided, connecting the new development to the existing route network at Rectory Road. A public right of way crosses across part of the site (dashed line on site plan above). This should be retained/re-routed within the site and improved as part of any future development. 5) Replacement provision for the loss of the existing playing pitch at Stoneyholme will need to be identified before any planning permission in respect of site B is granted and will need to be delivered before work begins on site. A potential site for this re-provision is at Prairie Sports Village. 6) The established trees and shrubs, in particular those adjacent to the River Calder and along the site boundaries should be retained as part of a wider landscaping scheme to reduce the impact of development on nearby residential properties, the bowling club and the wider landscape and to support wildlife. Potential ecological impacts will need to be considered as the site is known to house Protected Species and a pond (Priority Habitat) An ecological survey will be required to accompany any planning application which addresses Protected Species and Priority Habitats in accordance with Policy NE1. 7) Site B is identified within Flood Zone 2. The layout and design of any development should take account of the recommendations of the Council's Strategic Flood Risk Assessment. Any development will need to be accompanied by a Flood Risk Assessment in accordance with Policy CC4 and seek opportunities to reduce the overall level of flood risk in the area through the layout and form of the development and through the provision of an appropriate sustainable drainage scheme. 8) Archaeological evaluation is required to assess the survival and significance of any remains from past industrial use. Should there be significant probability of surviving buried remains then field evaluation will be required consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.
Supporting Information
1) B8 is not deemed an appropriate use in this location due to the limitations of Holme Road, the new bridge requirement and the associated vehicles and trips associated with a B8 use. A limited amount of B1(a) development will be permitted on the site as an exception to the town centre first approach of Policy TC2 for such uses, in order to address potential safety concerns in relation to the pedestrian flows from the adjacent college. 2) Lancashire County Council highway engineers have advised that the preferred egress for all site parcels would be via the roundabout at junction 11 of the M65 with no egress onto Rectory Road. 3) Replacement provision for the loss of the existing playing pitch at Stoneyholme will need to be identified. The current proposal is for a new 3G pitch at the Prairie Sports Village. The delivery of this replacement facility should be carried out in consultation with Sport England.

- 4) The Burnley Green Infrastructure Strategy identifies the River Calder corridor as an area to potentially create GI that would support wildlife. Existing and new vegetation would provide further opportunities for improved shading from the sun and evaporative cooling. The GI Strategy also identifies the site as being within an area of need for food production.
- 5) The site is known to house Protected Species and other Lancashire Biodiversity Action Plan species and includes Priority Habitat. Mitigation measures should accord with Policy NE1.
- 6) The site is bisected by the River Calder, a main river and much of it, particularly site B is within Flood Zone 2.
- 7) A site investigation survey may be required on the site due to the proximity of Clifton Colliery.

EMP1/4 – Stoneyholme Gas Works**Site Area: 0.5 hectares**

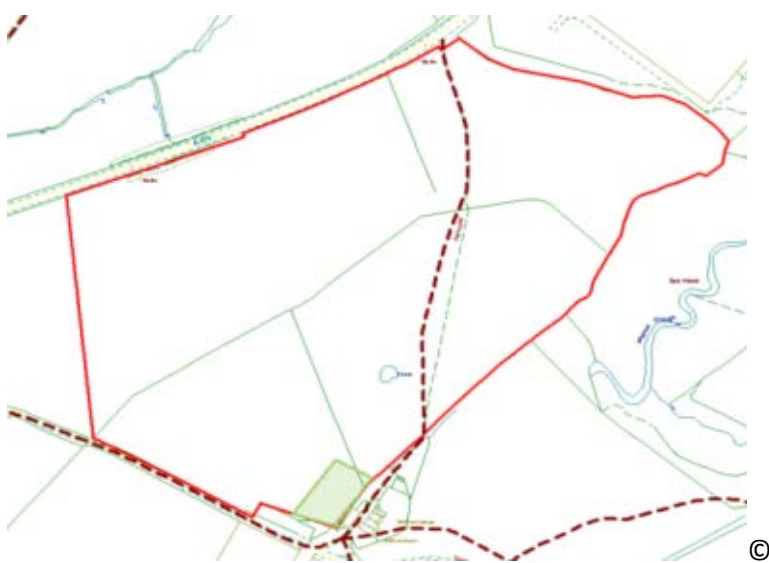
This site is located on Oswald Street and would be suitable for B1 (b & c) and B2 uses.

Additional and Site Specific Policy Requirements and Design Principles

- 1) Potential ecological impacts will need to be considered as the site may house Protected Species. An ecological survey will be required to accompany any planning application identifying and addressing any Protected Species present in accordance with Policy NE1.
- 2) An appropriate hard and soft landscaping scheme should be submitted which provides for adequate screening and appropriate boundary treatment.
- 3) Contributions for off-site highway and junction improvements in accordance with Policy IC4 may be sought to address any adverse impact on existing traffic flows onto Brougham Street.

Supporting information

- 1) The site is within 50m of a Biological Heritage Site (BHS) and adjacent to the Lancashire Ecological Network for grassland and woodland. Development will need to address any impacts on the BHS and ensure links are maintained as part of any development. This could be incorporated into the landscaping of the site.
- 2) As a former industrial site, contamination investigations and the appropriate remediation will be required in accordance with Policy NE5.

EMP1/5 – Land South of Network 65	Site Area: 13.32 hectares
	
This site is located adjacent to the existing Network 65 Business Park at junction 9 of the M65. It would be suitable for B1 (b & c), B2 and B8 uses (excluding outdoor storage).	
Additional and Site Specific Policy Requirements and Design Principles	
1) This is a prominent site located on a key gateway into Burnley. The development in its density, layout and design of buildings must take into account the topography of the site and the surrounding landscape in accordance with Policy NE3, its landscape setting and the site's ecological importance to minimise impacts. Any development proposals should be accompanied by a visual impact assessment to determine the appropriate location and design of units on the site. The development is expected to utilise natural materials in both the building and boundary features, such as local stone, particularly along the Accrington Road frontage. The existing dry stone walls should be retained, allowing for any set back at the new road junction. 2) No built form should be developed within the green hatched area on the above site plan; this should be landscaped as open space to lessen the development impact on the nearby residential properties. 3) Screen planting should be introduced as part of a wider landscaping scheme at the south western, south eastern and northern boundaries of the site to restrict/reduce the impact of any development on the adjacent residential properties and surrounding landscape. 4) A small section of the site is identified within Flood Zone 2 and 3. The layout and design of any development should take account of the recommendations of the Council's Strategic Flood Risk Assessment. Any development will need to be accompanied by a Flood Risk Assessment in accordance with Policy CC4 and seek opportunities to reduce the overall level of flood risk in the area through the layout and form of the development and through the provision of an appropriate sustainable drainage scheme. 5) Walking and cycling facilities will need to be provided on the site and a new appropriately lit walking and cycling route connecting the site to the existing Network 65 business park should be provided, enabling the new development to be connected to the existing route network on the Leeds & Liverpool Canal and Padiham Greenway. There is a public right of way which crosses the site which will need to be retained/re-routed within the site and improved as part of any development (dashed line on site plan above).	

- 6) Contributions for off-site highway and junction improvements in accordance with Policy IC4 may be sought if the development has an adverse impact on existing traffic flows.
- 7) The site is known to house Protected Species, Priority Habitat and forms part of the Lancashire Ecological Network for grassland. An ecological survey (to include a breeding bird survey) will be required to accompany any planning application which identifies and addresses these issues in accordance with Policy NE1.
- 8) The presence of the Medieval Hapton Deer Park within close proximity of the site would suggest that there is potential for unknown archaeology of local to regional significance relating to the Deer Park Pale (boundary). Suitable provision will need to be made for archaeological desk based assessment and field evaluation consistent with Policy HE4 ; and any further investigation or recording works that may be necessary as a consequence of development.

Supporting information

- 1) The Burnley Green Infrastructure (GI) Strategy identifies the site as being within an area of potential to create green travel routes.
- 2) Lancashire County Council highway engineers have indicated that unless the site is developed as an extension to the existing site, the only suitable access is via a new junction on Accrington Road which will require localised widening and traffic management arrangement to ensure safe ingress and access.
- 3) The Burnley Highways Impact Assessment (2017) indicates that without mitigation the southern roundabout at Junction 9 of the M65 will be incapable of supporting additional development beyond the completion of the current Burley Bridge Business Park site.
- 4) The Lancashire Ecological Network identifies part of the site as being a corridor for grassland and the site is known to house Protected Species and other Lancashire Biodiversity Action Plan species. It includes Priority Habitat (grassland and pond).

EMP1/6 – Balderstone Lane

Site Area: 2.12 hectares



This site is located on the existing Heasandford Industrial Estate and would be suitable for B1 (b & c), B2 and B8 uses.

Additional and Site Specific Policy Requirements and Design Principles

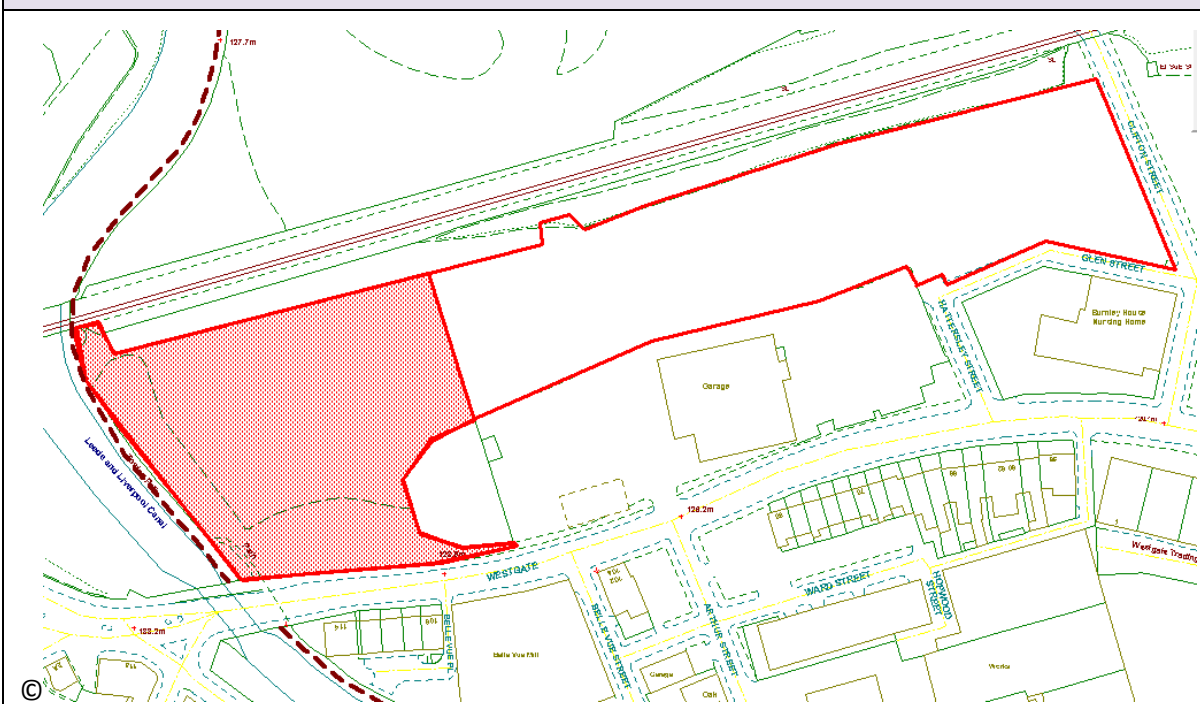
- 1) An 8 metre easement around the two streams is required (approximate position indicated in blue on the above site plan).
- 2) New walking and cycling facilities and routes will need to be provided on the site, connecting the new development to the existing route network. There is a public right of way which runs along the western boundary of the site which will need to be retained/re-routed within the site and improved as part of any development (dashed line on site plan above). Contributions will be sought for the provision of a defined on-road cycling route connecting to the existing network in accordance with Policy IC4.
- 3) Screen planting will be required on the northern and eastern boundary of the site as part of a wider landscaping scheme to reduce the impact of any development on the adjacent residential properties and surrounding landscape.
- 4) Potential ecological impacts should be considered as Protected Species have been recorded and the site is identified within a stepping stone within the Lancashire Ecological Networks for woodland and grassland. An ecological survey will be required to accompany any application which addresses the Protected Species and maintains the Ecological Network in accordance with Policy NE1.

Supporting information

- 1) A ground condition survey may be necessary due to the past mine workings within the area.

EMP1/7 – Westgate

Site Area: 1.80 hectares



This site is located close to Burnley Town Centre and would be suitable for B1, B2, small scale B8 and Sui-Generis uses which are similar in character and compatible in terms of use with the surrounding area.

Additional and Site Specific Policy Requirements and Design Principles

- 1) The site is located on a Key Gateway into Burnley Town Centre. Development will be expected to reinforce the site's 'Key Gateway' role and waterfront location; create a positive and appropriate relationship with surrounding buildings and spaces by respecting the form, scale and materials of the surrounding townscape; and be of high design integrity consistent with Policy SP5.
- 2) A building of landmark quality is envisaged to the west of the site as marked red on the plan above. This building and any boundary treatment should use a palette of materials which includes high quality locally distinctive materials in accordance with Policy SP5. High quality suitable and complementary contemporary materials and design may also be acceptable.
- 3) The setting of the heritage assets adjacent the site should be conserved and where possible enhanced consistent with Policy HE2.
- 4) Proposals should contribute to an improved public realm consistent with the Burnley Town Centre Public Realm Strategy SPD.
- 5) Vehicular egress would need to be via Clifton Street or Hattersley Street with the necessary traffic management infrastructure put in place.
- 6) The Leeds & Liverpool Canal runs adjacent to the site; to encourage sustainable travel, a walking and cycling link should connect the site to the canal towpath which is part of the national cycle network (National Route 604).

Supporting information

- 1) The Leeds & Liverpool Canal is a national cycle route. To take advantage of this and to encourage more sustainable travel; a route should be provided linking the development site to the canal towpath.
- 2) The site is located in a prominent position, immediately adjacent the Canalside Conservation Area and the Grade II Listed Belle Vue Terrace and Belle Vue Mill and is considered to make a contribution to their setting.

EMP1/8 and TC4/2 – Thompson Centre**Site Area: 0.65 hectares**

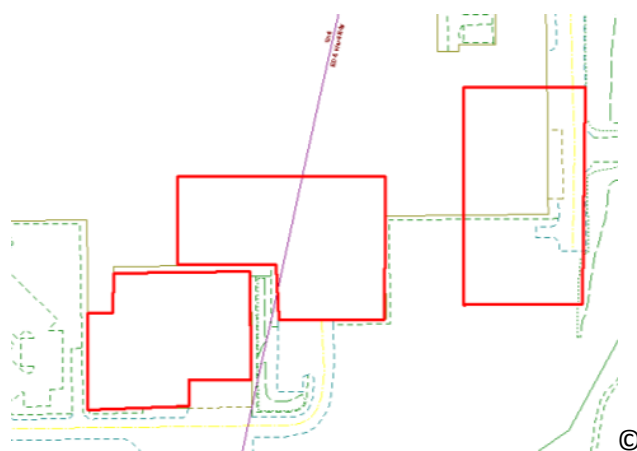
This site is located within Burnley Town Centre and would be suitable for all B1 (a), A2 and A3 uses.

Additional and Site Specific Policy Requirements and Design Principles

- 1) The site should be developed for a building(s) of multiple storeys, providing accommodation for B1 (a), A2 and A3 uses. A2 and A3 uses should be limited to the ground floor only.
- 2) The site is prominently located on a Key Gateway into Burnley town centre and will form part of the civic square of Burnley. It is expected that any development will accord with the Burnley Town Centre Public Realm Strategy SPD and be of the highest quality of architecture and design using a palette of materials which respects the character and appearance of the surrounding listed and locally listed buildings and conservation area. The use of more contemporary materials and design features of a complementary nature will also be acceptable. The principal elevation facing the square should extensively use ashlar stone. A design competition approach would be supported on this site.
- 3) The layout of the site should be permeable to pedestrians and enable views of the civic buildings such as the library, court and offices from Centenary Way. Active frontages are encouraged onto Place de Vitry and Centenary Way.
- 4) Vehicular access to the development would need to be directly off Parker Lane or Red Lion Street.
- 5) The established trees along Centenary Way and Red Lion Street should remain where possible.
- 6) Much of the site is at risk from surface water flooding. The layout and design of the development should take account of the recommendations of the Council's Strategic Flood Risk Assessment. Any development will need to be accompanied by a Flood Risk Assessment in accordance with Policy CC4 and seek opportunities to reduce the overall level of flood risk in the area through the layout and form of the development and through the provision of an appropriate sustainable drainage scheme.
- 7) Archaeological evaluation is required to assess the survival and significance of any remains from past industrial use. Should there be significant probability of surviving buried remains then field evaluation will be required consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.

Supporting information

- 1) There are a number of listed buildings and locally listed buildings close to the site and the Town Centre Conservation Area is situated to the west of the site. The detailed design of any scheme will need to address the potential impact on the setting of the listed buildings and the Conservation Area in accordance with Policy HE2.
- 2) A land contamination investigation and any relevant remediation will be required in accordance with Policy NE5.
- 3) A culverted section of the River Calder crosses the southern boundary of the site and it is likely an Environmental Permit for flood risk activities would be required. Developer liaison with the Environment Agency is recommended.
- 4) There is a bat roost close to the site. A bat survey will be required in order to address any impacts on bat populations.

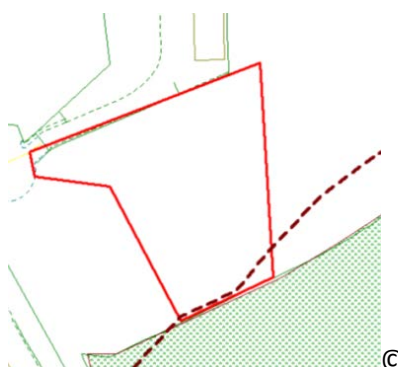
EMP1/9 – Innovation Drive	Site Area: 0.97 hectares
	
This site is located on Innovation Drive, adjacent to Heasandford Industrial Estate and would be suitable for B1(b and c) and B2 uses, with limited B1(a) or B8 uses (excluding open storage)	
Additional and Site Specific Policy Requirements and Design Principles	
1) Development that complies with the conditions contained within the Aerospace Supplier Park Local Development Order (LDO) will be supported. 2) The Local Development Order authorises development within Class B (as set out in para. 2.11 and 2.12) of the Town and Country Planning (Use Classes) Order 1987 as amended in so far as it relates to advanced engineering and manufacturing. Advanced engineering and manufacturing typical uses may include: • Aerospace (30.3, 28.4, 33.16) • General Aviation Services (52.23) • High-end automotive including motorsport, electric/alternative energy vehicles, (29.1, 29.3) • Computing, systems engineering and autonomous systems (62.01, 72.1) • Advanced flexible materials (13.96, 20.6) • Manufacture of fabricated metal products, except machinery and equipment (25.4, 25.5 and 25.6) • Manufacture of computer, electronic and optical products (26.1) • Renewable energy (27.1, 28.11) 3) Development for purposes falling within the above Standard Industrial Classification (SIC) Codes is automatically within the scope of the LDO. However, advanced engineering or manufacturing purposes which fall outside of the above SIC Codes, or for complementary or supporting or ancillary uses, would potentially also be acceptable, and where such purposes are proposed the Local Planning Authority, will make an assessment of each such proposed development to ensure that they are within the permitted uses under the LDO. 4) Development outside the scope of the LDO will require the submission of a planning application. No development will be permitted within the boundary of the Biological Heritage Site. 5) A minimum of 40% of the site area will need to be developed as floor space (3,900sqm).	
Supporting information 1) A Local Development Order (LDO) has been adopted for Innovation Drive; any developments,	

whether progressed under the terms of the LDO or through any a planning application will need to adhere to the requirements as set out in the LDO.

- 2) A section of the eastern site is located within a Biological Heritage Site (BHS) and Protected Species are recorded on site, (including 4 amphibian species). The site is adjacent to deciduous woodland (priority habitat). Condition 11 of the LDO states no development is permitted within the boundary of the Biological Heritage Site and condition 12 of the LDO states all proposals shall be in accordance with the recommendations set out in the Ecology Study.
- 3) The Lancashire Ecological Network identifies part of the eastern site as within a stepping stone habitat for woodland.

EMP1/10 – Widow Hill Road South

Site Area: 0.63 hectares

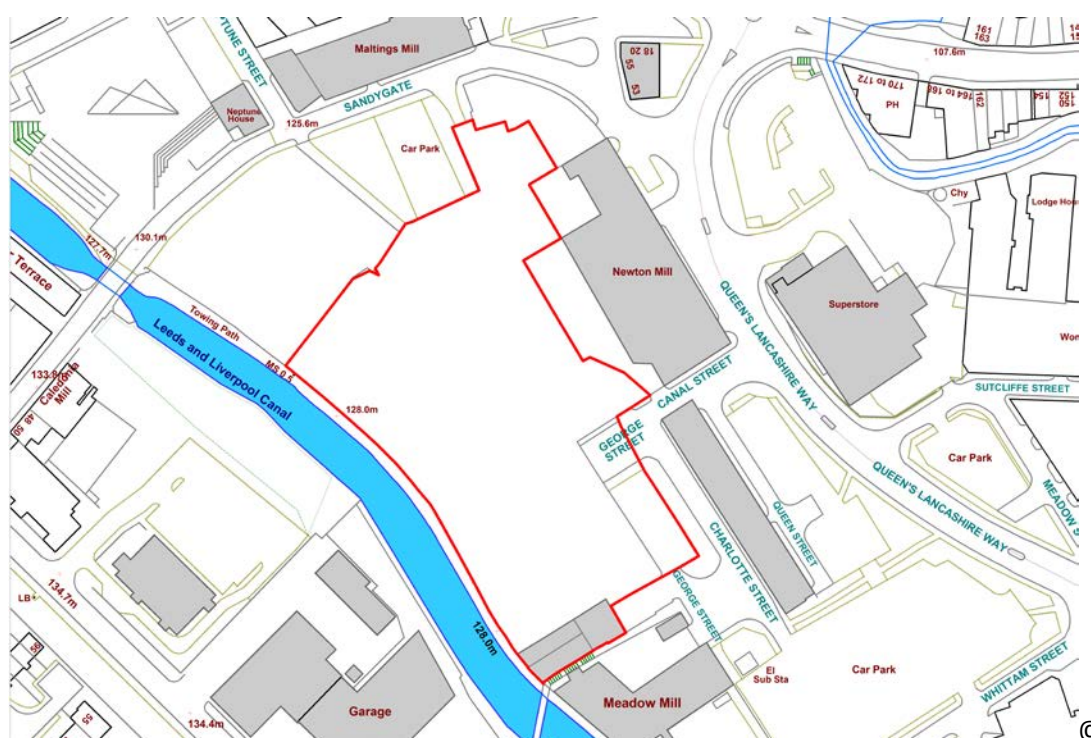


This site is located on the existing Heasandford Industrial Estate and would be suitable for B2 and B8 uses.

Additional and Site Specific Policy Requirements and Design Principles

- 1) Vehicular access should be directly off Widow Hill Road.
- 2) New walking and cycling facilities and routes will need to be provided on the site, connecting the new development to the existing route network. A public right of way is located to the south of the site which will need to be retained/re-routed within the site and improved as part of any development (dashed line on site plan above).
- 3) The existing established vegetative screening to the south and east of the site should be incorporated into a new landscaping scheme, reducing the impact of any development on the adjacent River Don-Brun Valley Biological Heritage Site and residential properties.
- 4) Potential ecological impacts should be considered on the site as it is adjacent to the River Don-Brun Valley Biological Heritage Site (green area on site plan above). Protected species including Great Crested Newt are recorded on site. The site itself is identified as a stepping stone habitat for grassland and woodland in the Lancashire Ecological Network and an ecology survey should be submitted to accompany any planning application which should indicate how the development will address impacts on protected species and priority habitats and maintain habitat connectivity in accordance with Policy NE1.
- 5) Contributions will be sought for the provision of a defined cycling route to the site in accordance with Policy IC4.

Supporting information - None

EMP1/11 and HS1/28– George Street Mill (Mixed Use)**Site Area: 0.98 hectares⁵⁶**

This site would be suitable for B1, C2, C3 and D1 uses.

Additional and Site Specific Policy Requirements and Design Principles

- 1) Development will be expected to positively address its waterfront location; create a positive and appropriate relationship with surrounding buildings and spaces by respecting the form, scale and materials of the surrounding historic townscape; and be of high design integrity consistent with Policy SP5. Design and layout should positively address the level differences on the site and should contribute to an improved public realm consistent with the Weavers' Triangle Public Realm Strategy SPD.
- 2) The site includes Charlotte Street Mill, a non-designated heritage asset. The significance of heritage assets, including their settings, within and adjacent to this site should be conserved and, where possible, enhanced consistent with Policy HE2. Particular consideration should be given to the potential impact on the Canalside Conservation Area, the setting of the Grade II Trafalgar Mill and key views to landmark heritage assets that are visible from the site.
- 3) New walking and cycling facilities and routes will need to be provided on the site, connecting the new development to the existing route network along the Leeds & Liverpool Canal.
- 4) Archaeological evaluation is required to assess the survival and significance of any remains from past industrial use. Should there be significant probability of surviving remains then field evaluation will be required consistent with Policy HE4; and any further investigation or recording works that may be necessary as a consequence of development.

⁵⁶ This site is suitable for a range of uses and is not specifically included in the calculations of housing land or employment land supply or the housing trajectory – see also HS1/28

Supporting information

- 1) The site lies within the Canalside Conservation area. The design and layout should address the potential impact on the setting and thus significance of the adjacent listed buildings, and on the Conservation Area in accordance with Policy HE2 and the adopted Weavers' Triangle and Burnley Town Centre Public Realm Strategy SPDs.
- 2) George Street Mill is the site of a previous textile works, therefore, potential ground contamination issues will need to be considered in accordance with Policy NE5.
- 3) Due to the nature of the buildings, a bat survey is recommended.
- 4) The site previously had outline planning permission for a mixed use development of residential and commercial uses (APP/2013/0194) including 3,700sqm of B1 b and c floorspace.

Improving and Making Best Use of Existing Employment Land

National Planning Policy Background

5.2.15 The NPPF indicates that local planning authorities should support existing business sectors, taking into account whether they are expanding or contracting, and that they should identify priority areas for economic regeneration, infrastructure provision and environmental enhancement.

5.2.16 The NPPF indicates that where there is no prospect of a site being used for employment use, applications for alternative uses should be treated on their merits having regard to market signals and the relative need for different land uses to support sustainable local communities.

Issues

5.2.17 It is important to ensure that there are sufficient employment sites to meet future needs and to enable existing businesses to grow. Whilst the provision of new sites will make a very important contribution to the supply of employment sites, it is existing provision that will provide most of the supply. It is therefore vital that best use is made of existing employment premises where these still meet or can be upgraded to meet modern business requirements.

5.2.18 Employment sites can come under pressure for alternative and/or higher value development uses e.g. housing or retail use and whilst this may be acceptable or welcomed in some locations e.g. in town centres or residential areas, the cumulative loss of employment sites will have an adverse effect on business and jobs wishing to establish, expand or relocate.

5.2.19 The borough's employment sites are home to a wide variety of businesses from large scale factories and distribution warehouses to small scale local garages or business start-up units. Whilst these are all important, the wide variety and nature of these sites means that it is not practical to seek to protect them all for future employment use. Some older industrial floorspace in the borough is vacant, in poor condition or has poor vehicular access and some existing premises can be incompatible with adjoining uses. However, this is not always the case and small sites and traditional or older buildings of this type can be successfully reused without causing a nuisance and can provide lower cost premises for some businesses.

5.2.20 The borough has a number of larger established industrial and business estates which provide the most flexible supply of land and premises and have good vehicular access to accommodate larger industrial vehicles. It is essential for the borough's economic prosperity that these areas are protected.

Policy EMP2: Protected Employment Sites

1) The following employment sites as defined on the Policies Map will be protected for B1 b and c, B2 and B8 uses (Use Classes).

EMP2/1 Shuttleworth Mead

EMP2/2 Network 65

EMP2/3 Rossendale Road

EMP2/4 Heasandford & Innovation Drive

EMP2/5 Burnley Bridge

EMP2/6 Liverpool Road (also to include Futaba-Tenneco)

EMP2/7 Smallshaw Industrial Estate

EMP2/8 Healey Wood

Supporting New and Existing Businesses

National Planning Policy Background

5.2.21 Alongside the protected employment sites there are a wide range of other existing employment sites and premises which provide employment opportunities for local people and which meet the different industrial, business and commercial requirements of the borough including premises for small scale local uses. As discussed above, some of these premises do not meet modern business needs.

5.2.22 Whilst the Council would wish to support the retention and improvement of many of these sites and premises and will support their upgrading or expansion in suitable locations, it is recognised that such premises can come under pressure for alternative and/or higher values uses. In accordance with paragraph 22 of the NPPF, the Council will not insist on the retention of employment uses on sites and premises outwith the Protected Employment sites identified above, except where the loss would prejudice the operating conditions of other remaining employment uses e.g. by proposing a new use which is likely to cause conflicts with existing business operations.

Policy EMP3: Supporting Employment Development

New and Improved Sites and Premises

1) The expansion and upgrading or establishment of new business premises within the Development Boundaries will be supported where they comply with other relevant policies in the Plan and where:

- a) They do not by reason of the nature of their operation or vehicle access arrangements, have an unacceptably negative impact on surrounding uses, residential amenity or the environment; and**
- b) They do not (either individually or cumulatively) through their form and design have an unacceptable impact on the landscape or townscape.**

Loss of Sites and Premises

2) The loss of existing employment sites and premises (not protected under Policy EMP1 or EMP2) to alternative uses will be permitted where:

- a) **Redevelopment does not prejudice the lawful operating conditions or viability of adjacent land uses, and:**
 - i) **The floorspace to be lost is less than 1,000m²; or**
 - ii) **Where the floorspace is greater than 1,000m² it is demonstrated through comprehensive marketing of the premises/land for at least 12 months that the continued use of the premises/land for employment use is not viable.**

Office Development

5.2.23 The NPPF defines offices as a main town centre use. Town centre offices bring activity during the day, creating employment opportunities in sustainable locations and benefiting town centre shops and services by providing daytime customers. Office development, both the retention of existing and development of new offices should therefore be considered as part of a proactive planning approach towards town centres.

5.2.24 Office uses fall into two main types: B1 a) generally those 'back' offices without extensive visitor facilities and A2 'financial and professional' services generally those offices which provide services directly to the visiting public e.g. banks, estate agents.

5.2.25 The locational focus for commercial offices within the borough is within Burnley Town Centre which is the borough's administrative centre and contains a range of purpose built and converted premises. Generally B1a office uses demand larger premises and have less need to be located in the Primary Shopping Area than retail based town centre uses. (See Section 5.3)

5.2.26 Padiham Town Centre offers a wide range of A2 offices premises which form an essential part of its vitality and viability.

5.2.27 Whilst there has been some development of purpose-built offices outside Burnley and Padiham town centres, such as at Empire Business Park; and some new build office developments within Burnley town centre, most office accommodation continues to be provided through existing building stock and its conversion or upgrading.

5.2.28 The 2013 Retail, Leisure and Office Assessment indicated a net requirement for additional office floorspace across the borough of between 5,936 sq.m to 28,310 sq.m.

5.2.29 New office development will be directed to the Town Centres of Burnley and Padiham in line with Policy TC2 with local facilities (A2 use class) also supported within District Centres and elsewhere within the Development Boundaries of Burnley, Padiham, Hapton and Worsthorne where these serve a local demand. (For offices outside of the areas see Policy EMP5).

Policy EMP4: Office Development

New Offices

- 1) **The focus for new office development (B1a and A2 use classes) will be within Burnley and Padiham Town Centres as identified on the Policies Map.**
- 2) **New office development (B1a and A2 use classes) outside of the town centres will only be permitted where:**
 - a) **For A2 uses, they serve a clear local need/demand or are located within a defined District Centre;**
 - b) **For B1a uses they meet the sequential test and impact assessment requirements set out in Policy TC2; and**

- c) They will not have a detrimental impact on adjacent residential or other uses.

Loss of Offices

3) Changes of use from offices uses (B1a and or A2) in Town Centres to a non-town centre use will only be permitted where evidence has been provided to demonstrate that no demand has been forthcoming in the light of:

- a) The premises/site having been marketed to the Council's satisfaction for at least 12 months unless otherwise agreed with the Council, including using both traditional and web based marketing;
 - b) The premises/site having been marketed at a price which is commensurate with market values (based on evidence from recent and similar transactions); and
 - c) All opportunities to re-let having been fully explored, both in terms of altering the existing layout of the building and use as small/more flexible office units.
- 4) Changes of use from of the upper floors of offices (B1a and or A2) in Town Centres to residential use will be supported subject to meeting the criteria set out in Policy TC2.

The Rural Economy

Rural Businesses

National Planning Policy Background

5.2.30 The NPPF states that planning policies should support economic growth in rural areas in order to create jobs and prosperity by taking a positive approach to sustainable new development. To promote a strong rural economy, local and neighbourhood plans should:

- support the sustainable growth and expansion of all types of business and enterprise in rural areas, both through conversion of existing buildings and well-designed new buildings;
- promote the development and diversification of agricultural and other land-based rural businesses;
- support sustainable rural tourism and leisure developments that benefit businesses in rural areas, communities and visitors, and which respect the character of the countryside. This should include supporting the provision and expansion of tourist and visitor facilities in appropriate locations where identified needs are not met by existing facilities in rural service centres; and
- promote the retention and development of local services and community facilities in villages, such as local shops, meeting places, sports venues, cultural buildings, public houses and places of worship.

5.2.31 Policy SP4 sets out the overall development strategy for the borough and a hierarchy of settlements. It identifies the open countryside for the purpose of the policies in the Plan as being land outside of the Development Boundaries of these identified settlements. This open countryside includes small villages or parts thereof, hamlets and groups of buildings, as well as isolated dwellings, farm and businesses.

5.2.32 The Council acknowledges the needs of rural businesses, the employment opportunities they create and the services, rural leisure and tourism facilities they can provide, and will be supportive of those enterprises that have genuine requirements to be located in the countryside.

Policy EMP5: Rural Business & Diversification

- 1) Proposals to expand existing or establish new businesses, including local retail uses and tourist facilities in the open countryside or within the main and small villages (Tier 3 and 4) will be supported where these meet the other relevant policy requirements of the Plan and where these:**
 - a) Support the retention or growth of an existing business or the establishment of a new enterprise and are at a scale that is appropriate to and in keeping with the area in which they are located;**
 - b) Comprise uses and services appropriate to a rural area;**
 - c) Represent appropriate home working enterprises at an existing dwelling;**
 - d) Are located within or immediately adjacent to the Development Boundaries or are well related to an existing group of buildings;**
 - e) In the design of any buildings, access and car parking arrangements are in keeping in terms of their scale and character with the surrounding landscape and would not lead to an increase in traffic levels beyond the capacity of the surrounding local highway network; and**
 - f) Do not have an unacceptably negative impact on residential amenity.**
- 2) In addition to the above requirements, the Council may also consider favourably new tourist facilities in the wider open countryside where:**
 - a) The proposed facility by virtue of its specialist nature has a clear need to be located close to an existing tourism asset; or**
 - b) It can be demonstrated through a supporting statement that the facilities will add to the borough's tourism offer and there are no suitable sites within the Development Boundaries.**
- 3) In appropriate cases, permitted development rights will be withdrawn in order that subsequent changes of use or alterations and extensions can be properly considered.**

Conversion of Rural Buildings

National Planning Policy Background

5.2.33 The NPPF in paragraph 55 states that local planning authorities should avoid new isolated homes in the countryside unless there are special circumstances. These include where the development would re-use redundant or disused buildings and lead to an enhancement to the immediate setting.

5.2.34 The re-use of buildings in the countryside, particularly those that are disused and of traditional construction, can make a valuable and attractive contribution to providing housing, employment space, farm diversification opportunities or leisure or tourism opportunities and can protect historic and landscape features.

5.2.35 The Council will support the re-use of buildings in the countryside provided they are of permanent construction, can be converted without major rebuilding and the proposed use and extent/design of any alterations works is appropriate in terms of its location and the impact on the building in question. The conversion of isolated buildings, particularly where these require new

access roads/tracks, extensive ancillary buildings or engineering works, will not normally be supported in view of the landscape impact.

Policy EMP6: Conversion of Rural Buildings

- 1) The re-use and conversion of existing buildings outside of the Development Boundaries to new uses will be supported where they meet other relevant policy requirements and:**
 - a) The building is of a permanent and substantial construction, is structurally sound and capable of conversion and any important architectural and historical features are retained;**
 - b) The conversion can be carried out without major extensions to the existing building or the construction of ancillary buildings;**
 - c) The conversion does not adversely affect the character, rural setting and appearance of the surrounding landscape;**
 - d) Suitable services can be made available and vehicular access can be created without the need for substantial engineering works or works which would significantly adversely affect the character and landscape setting and/or the locality;**
 - e) The proposal safeguards the roosting or nesting habitat of any Protected Species present; and**
 - f) The type of use proposed is of a scale and type that is appropriate to a rural area and the specific location.**
- 2) In appropriate cases, permitted development rights will be withdrawn to ensure future alterations, extensions and minor works which could have and significant adverse impact on the landscape can be properly considered.**

Equestrian Development

National Planning Policy Background

5.2.36 The NPPF in para 28 states that planning policies should “promote the development and diversification of agricultural and other land based industries....and support leisure developments which respect the character of the Countryside”.

5.2.37 Equestrian Enterprises, including equestrian centres, stables, studs and livery yards, can provide valuable rural employment and diversification opportunities for existing farms. However, many equestrian and stable developments are not directly related to agriculture or businesses. Equestrian developments and horse related activities have landscape impacts that require careful consideration, particularly ensuring that the cumulative effect of fencing, access roads, stables, ménages and ancillary buildings does not lead to over-development in the countryside.

5.2.38 Preference will be given to locating such uses within existing settlements, farmsteads, and reusing existing buildings where possible to reduce the impact on the landscape. Locations which are close to existing settlements or groups of buildings may also be supported. Sites should be accessible to both the highways and bridleway network.

Policy EMP7: Equestrian Development

1) Proposals for the development of stables and equestrian facilities in rural areas will be supported subject to the following criteria:

Access

a) The site must have a vehicular access which is satisfactory in highway terms or it must be capable of being achieved without adversely affecting the character of the rural landscape;

Siting and Scale

b) New, freestanding stables and equestrian facilities will only be permitted where they are closely related to existing farm buildings or other groups of buildings, are well screened and do not cause harm to the visual amenity, openness or rural character of the area;

c) Equine Developments should be sited at an adequate distance from neighbouring residential properties. The separation distance will be dependent on the scale and impact of the development proposed;

d) Ancillary development including ménages, storage facilities, hard standing, access tracks and exercise pens should be a minimum size necessary and should not encroach unduly into open countryside. Provision should be made for storing equipment to minimise the impact on the visual amenity of its surroundings;

Design and Materials

e) Where stables are permitted they should be designed and constructed to be fit for purpose, but also in materials appropriate to the rural area;

f) The conversion of existing buildings to equestrian centres or stables will be acceptable subject to other planning requirements being met.

General

g) Applications for the floodlighting of existing riding arenas or for developments including the provision of floodlighting will not be approved where there will be an unacceptable visual or landscape impact or an unacceptable impact on highway safety. Floodlights will not be permitted where neighbouring properties will be subject to unacceptable levels of attendance glare; and

h) Applications should be submitted with a pasture management plan.

Policies in this Section:

TC1: Retail Hierarchy	TC5: Uses within the Weavers' Triangle
TC2: Development within Burnley and Padiham Town Centres	TC6: District Centres
TC3: Burnley Town Centre - Primary and Secondary Frontages	TC7: Hot Food Takeaways
TC4: Development Opportunities in Burnley Town Centre	TC8: Shopfront & Advertisement Design

5.3 Town Centres, Retail and Leisure**Introduction**

5.3.1 National planning policy as set out in the National Planning Policy Framework (NPPF) states that local plans should set out policies for the management and growth of town centres over the plan period, recognising them as the heart of their communities and pursuing policies to support their viability and vitality.

5.3.2 The NPPF defines retail and leisure uses as main town centre uses which should be located in town centres as they play a crucial role in supporting their vitality and viability.

5.3.3 Burnley is the main centre within the borough providing shopping, services and public administration. Padiham town centre is smaller in size reflecting its role as a market town with a local retailing function that serves a wide rural area. The borough has eight other centres which the Plan defines as district centres.

5.3.4 This chapter sets out the retail hierarchy for the borough, defines the town centre boundaries and sets out specific policies for retail, office and leisure development, hot food takeaways, advertisements and shopfront design.

Retail Capacity

5.3.5 The 2013 Retail, Office and Leisure Assessment of Burnley and Padiham Centres (ROL) completed by Nathaniel Lichfield and Partners assessed the future need and capacity for retail and leisure floorspace over the period to 2026. It concluded that:

- In terms of convenience floorspace, existing stores in the borough have the capacity to absorb growth over the period 2013 to 2026.
- By 2018, there would be capacity for 607 sq.m. net of additional comparison goods floorspace in Burnley town centre. This rises to 2,104 sq.m. by 2023 and 3,390 sq.m. by 2026. Since 2013 a reconfiguration of units in the Charter Walk shopping centre and the reoccupation of larger vacant units such as the JJB store on St James' Street have accounted for 863 sq.m of additional floorspace. The ROL states that the opportunity to re-occupy further vacant units (particularly larger floorplates) and further improvements to Charter Walk should be explored before less central sites are allowed to come forward for development as main town centre uses.
- In Padiham, there is only limited capacity for additional comparison goods floorspace (up to 147 sq.m. by 2026).

- Existing commercial leisure facilities are sufficient to support the catchment population although qualitative improvements to cinema provision may attract more users.
- There is scope for new restaurants, cafés and takeaways in Burnley town centre as there is currently a lower than average proportion of these uses.

5.3.6 An update was carried out in 2014⁵⁷ for Padiham which looked at the changes in shopping patterns and composition of use since the previous study, following the opening of a Tesco supermarket. The study concluded that the health of the town centre had improved since 2012.

Hierarchy of Centres

5.3.7 The NPPF⁵⁸ states that Local Plans should define a network and hierarchy of centres. The retail hierarchy aims to promote sustainable development by focusing retail and service provision in the areas that are most accessible to the largest proportion of the population, ensuring that people do not travel further than they need to access everyday goods.

5.3.8 New retail development will therefore be focused in the two town centres of Burnley and Padiham. The NPPF indicates that a network and hierarchy of centres that is resilient to anticipated future economic changes should be identified.

Burnley Town Centre

5.3.9 Burnley town centre is the principal retail destination in the borough and performs a sub-regional role for shopping, services, leisure and public administration. The ROL Assessment 2013 found that Burnley town centre provides a broad retail offer which includes high street multiples and a large indoor market.

5.3.10 The centre is easily accessible and provides a safe and pleasant environment for visitors, although some of the more peripheral shopping areas have higher levels of vacancies and a poorer quality physical environment. There is a good range of public services in the town, e.g. St Peter's health and leisure centre and the Mechanics - an established theatre and music venue, but the lack of entertainment and café/restaurant uses means that there is a relatively narrow night time economy offer.

Burnley Town Centre Boundary (see Inset Map)

5.3.11 The NPPF⁵⁹ indicates that Local Plans should define the extent of town centres and primary shopping areas, based on a clear definition of primary and secondary frontages, and set policies that make clear which uses will be permitted in such locations (see later or glossary for definitions).

5.3.12 The 2013 ROL Assessment noted that the 2006 Local Plan showed a widely drawn Town Centre boundary that included the Weavers' Triangle and the Anchor and Yorkshire Street Retail Parks as well as a number of employment land allocations. The study recommended that the Council should consider reducing the Town Centre boundary to focus on the areas where town centre uses exist, namely, the area contained by Queen's Lancashire Way, Church Street, Centenary Way and Active Way. A new Town Centre boundary has been drawn to reflect this recommendation.

⁵⁷ Padiham Retail Update, March 2014 – Nathaniel Lichfield & Partners

⁵⁸ Paragraph 23

⁵⁹ Paragraph 23

Padiham Town Centre

5.3.13 Padiham town centre performs a supporting role to Burnley in the retail hierarchy. It comprises a range of independent and specialist shops, banks and professional services and a Tesco store which opened in 2012, located on the edge of the town centre. The town centre has a distinct architectural identity with traditional shopfronts creating an attractive market town environment. Building on this, and the range of specialist shops, the town is being promoted as a niche shopping destination.

5.3.14 The Retail, Office and Leisure Assessment highlighted issues including the town centre's limited comparison retail offer, poor pedestrian accessibility along narrow streets and the use of Burnley Road as a through route.

Padiham Town Centre Boundary (see Inset Map)

5.3.15 Padiham is a small compact centre. The 2006 Local Plan town centre boundary related well to the concentration of town centre uses and the boundary has been extended as the Retail, Leisure and Office Assessment suggested to include the Tesco store on Lune Street.

District Centres

5.3.16 District Centres perform an important role in providing a range of facilities within walking and cycling distance of where people live and work. It is recognised, however, that district centres, along with town centres and local shops will continue to face considerable competition as people choose to do more of their shopping in large superstores and retail warehouses, or order goods and services online. It will be important for District Centres to provide and retain a range of shops and a quality of environment that will enable them to compete more effectively.

5.3.17 Policy TC1 sets out a clear retail hierarchy which explains the policy choices and allocations set out in the Plan.

Policy TC1: Retail Hierarchy

1) New retail development should be of an appropriate scale according to its location within the retail hierarchy:

Town Centres:

Burnley

Padiham

District Centres:

Briercliffe Road

Colne Road

Accrington Road

Coal Clough Lane

Harle Syke

Pike Hill

Rosegrove

Lyndhurst Road

Town Centres

5.3.18 The NPPF indicates that planning policies should promote competitive town centre environments and set out policies for their management and growth; and recognise the important role of centres as the heart of their communities for which policies to support their viability and vitality should be pursued

5.3.19 Town centres provide a range of functions, infrastructure and services that attract users and investors. While town centres continue to play a vital role in providing a focus for economic activity, transport and civic functions, it is important to recognise that their traditional role is changing, particularly in relation to retailing. If Burnley and Padiham centres are to remain vibrant, it is important to establish a clear direction for each centre.

5.3.20 The NPPF states that planning policies should require applications for main town centre uses⁶⁰ to be located in town centres, then in edge of centre locations and only if suitable sites are not available should out of centre sites be considered. When considering edge of centre and out of centre proposals, preference should be given to accessible sites that are well connected to the town centre. Applicants and local planning authorities should demonstrate flexibility on issues such as format and scale.

5.3.21 The NPPF also states that this sequential approach should not be applied to small scale rural offices or other small scale rural development (see Policies EMP4 and 5). The Local Plan also proposes specific exceptions e.g. in District Centres (Policy TC6), local and rural offices and facilities (Policies EMP4 and EMP5), and for uses in the Weavers' Triangle (Policy TC5).

Impact Assessment Thresholds

5.3.22 The NPPF states that when assessing applications for retail, leisure and office development outside of town centres, which are not in accordance with an up-to-date Local Plan, local planning authorities should require an impact assessment if the development is over a proportionate, locally set floorspace threshold (if there is no locally set threshold, the default threshold is 2,500 sq.m).

5.3.23 The assessment should consider the impact of the proposal on existing, committed and planned public and private investment in a centre or centres in the catchment area of the proposal; and the impact of the proposal on town centre vitality and viability, including local consumer choice and trade in the town centre and wider area, up to five years from the time the application is made. For major schemes where the full impact will not be realised in five years, the impact should also be assessed up to ten years from the time the application is made.

5.3.24 Individual thresholds⁶¹ for retail development have therefore been set for Burnley and Padiham:

- Burnley – 1,000 sq.m gross and above
- Padiham – 500 sq.m gross and above

5.3.25 The NPPF states that where an application fails to satisfy the sequential test or is likely to have significant adverse impact on one or more of the above factors, it should be refused.

⁶⁰ See NPPF Glossary: These are Retail development (including warehouse clubs and factory outlet centres); leisure, entertainment facilities, the more intensive sport and recreation uses (including cinemas, restaurants, drive-through restaurants, bars and pubs, night-clubs, casinos, health and fitness centres, indoor bowling centres, and bingo halls); offices; and arts, culture and tourism development (including theatres, museums, galleries and concert halls, hotels and conference facilities).

⁶¹ Thresholds were recommended as part of the Retail, Leisure and Office Assessment 2013 (NLP)

Policy TC2: Development within Burnley and Padiham Town Centres

- 1) The Council will seek to maintain and enhance the retail and service function of Burnley and Padiham Town Centres, the boundaries of which are defined on the Policies Map. Main Town Centre Uses which accord with other relevant policies elsewhere in the Plan will be supported in the following locations:**
 - a) Proposals for retail development (A1 Use Class) will be supported within the Primary Shopping Area for Burnley or within the Town Centre of Padiham.**
 - b) Proposals for comparison retailing (A1 Use Class) should normally be located within the Primary Shopping Area of Burnley or within the Town Centre of Padiham.**
 - c) Proposals for convenience retailing (A1 Use Class) will be supported within the Town Centres of Burnley and Padiham.**
 - d) Subject to the limits set out in Policy TC3, proposals for other retail uses (A2-A5) and other main town centre uses will be supported within the Town Centres of Burnley and Padiham.**

Sequential Test⁶²

- 2) Proposals for comparison retailing (A1 Use Class) that do not comply with 1) b) due to a lack of suitable sites are required to be located in accordance with the following sequential test:**
 - Burnley:**
 - a) Edge of Centre locations (300m of the Primary Shopping Area); other Town Centre locations; edge of centre locations (300m of the Town Centre Boundary); out of Centre.**
 - Padiham:**
 - b) Edge of Centre locations (300m of the Town Centre Boundary); out of Centre.**
- 3) Proposals for convenience and other retailing (A1 to A5 Use class) and other main town centre uses are required to be located in Town Centres. Where suitable sites are not available, these are required to be located in accordance with the following sequential test: Edge of Centre locations (300m of the Town Centre boundary); out of Centre.**
- 4) When considering the sequential tests above, preference will be given to accessible sites that are well connected to the Primary Shopping Area /Town Centres. Applicants will be expected to demonstrate flexibility on issues such as format and scale.**

Impact Assessment

- 5) Proposals for main town centre uses which do not comply with 1) a) to d) above, or are not specifically allocated for town centre uses, should be supported by an Impact Assessment addressing the following:**
 - a) The impact of the proposal on existing, committed and planned public and private investment in a centre or centres in the catchment area of the proposal; and**

⁶² This requirement does not apply to small scale rural or local uses (Policies EMP4 and EMP5). Separate policy provisions also apply in District Centres - Policy TC6 and for uses in the Weavers' Triangle - Policy TC5

b) The impact of the proposal on town centre vitality and viability, including local consumer choice and trade in the town centre and wider area, up to five years from the time the application is made. For major schemes where the full impact will not be realised in five years, the impact should also be assessed up to ten years from the time the application is made.

6) The requirement for an Impact Assessment will apply to proposals of the following size/type:

Retail:

- i) Burnley – 1,000 sq.m gross and above
- ii) Padiham – 500 sq.m gross and above

Other Main Town Centre Uses:

- iii) 2,500 sq.m and above

7) Where an application fails to satisfy the sequential test or is likely to have significant adverse impact on one or more of the above factors set out in 5 a) and b), it will be refused.

Residential

8) Proposals for residential development, including new build, conversion or change of use on appropriate sites within the Town Centres will be considered favourably subject to meeting the other policy requirements of the Plan where:

- a) Within Burnley Primary Shopping Area and within Padiham Town Centre these are located on upper floors;
- b) In Burnley Town Centre outwith the Primary Shopping Area, they do not lead to a concentration of residential uses which undermines the overall mix of main town centres uses.
- c) The development does not prejudice the lawful operating conditions or viability of adjacent land uses.

Primary Shopping Areas

5.3.26 To promote vibrant and attractive town centres it is important that a critical mass of retailing uses is maintained within their core shopping areas. In line with paragraph 23 of the NPPF this is achieved through identifying Primary Shopping Areas in town centres i.e. defined areas where retail development is concentrated. The NPPF states that these should generally comprise Primary Frontages which are likely to include a high proportion of retail uses which may include food, drinks, clothing and household goods and Secondary Frontages which provide greater opportunities for a diversity of uses such as restaurants, cinemas and businesses; and set policies that make clear which uses will be permitted in each.

5.3.27 Padiham is a small compact centre and it is not considered necessary or appropriate to identify separate Town Centre and Primary Shopping Area boundaries. For the purposes of retail and town centre planning the Primary Shopping Area in Padiham is one and the same as the Town Centre and no Primary or Secondary Frontages are identified.

5.3.28 The Primary Shopping Area for Burnley is shown on the Town Centre Inset Map.

Primary and Secondary Frontages

5.3.29 Primary Frontages contain the greatest concentration of shops (A1 retail use), attract the greatest number of customers and underpin the vitality and viability of the town centre. Retail should remain the principal and dominant land use within these areas. The Council will not support uses that do not complement or support their predominantly retail character and will seek to retain retail uses (Use Class A1) and maintain a continuous ground floor retail frontage with a limited range of associated and complimentary uses such as cafes, banks, and pubs (A2 A3 and A4 use classes).

5.3.30 Secondary Frontages support the retail function of the primary frontage of the centre. Generally these provide a reasonable proportion (around 50% or more) of retail uses, which are complemented by a wide range of other services such as cafés, pubs and estate agents. Whilst the Council will not support uses that undermine their predominantly retail character a greater proportion of non-retail will be permitted compared to Primary Frontages in recognition that Town Centres need to perform a function beyond retail uses to ensure their vitality and viability. Suitable non-retail uses may include banks, building societies, employment centres, small service offices, advice centres, clinics and other health and welfare services, theatres, restaurants and community uses.

5.3.31 Burnley's Primary and Secondary Retail Frontages generate active street frontages during normal daytime trading hours. In order to protect and strengthen the retail offer in the Town Centre the Council will seek to control the use of ground floor premises in shopping streets through the exercise of its planning powers to safeguard and enhance the vitality and viability of the Town Centre.

5.3.32 There have been recent changes to permitted development rights extending the existing changes of use that do not require planning permission. Whilst some such proposals still have to go through a 'prior approval process', the Council currently has limited control over some of these changes of use e.g. from A2 office and A1 to residential use.⁶³

Policy TC3: Burnley Town Centre - Primary and Secondary Frontages

1) The Primary and Secondary Frontages within Burnley Town Centre are defined on the Policies Map.

Primary Frontages

2) Proposals for changes of use, including through redevelopment, from retail (Class A1) to other uses at ground floor level will only be permitted where the proposal would not result in a concentration of non-A1 uses which would cumulatively (including any unimplemented planning permissions) amount to more than 20% of the length of the Primary Frontage within any one of the defined sections.

Secondary Frontages

3) Proposals for changes of use, including through redevelopment, from retail [Class A1] to other uses at ground floor level will only be permitted where the proposal would not result in a concentration of non-A1 uses which would cumulatively (including any unimplemented planning permissions) amount to more than 40% of the length of the Secondary Frontage within any one of the defined sections.

⁶³ The Town and Country Planning (General Permitted Development) (England) Order 2015, as amended

Burnley Town Centre Development Opportunities

5.3.33 The NPPF states that in drawing up Local Plans, local planning authorities should allocate a range of suitable sites to meet the scale and type of retail, leisure, commercial, office, tourism, cultural, community and residential development in town centres. It is important that the needs for these main town centre uses are met in full and are not compromised by limited site availability.

5.3.34 The 2013 ROL Assessment concluded that there is no capacity i.e. need, for additional convenience floor space in Burnley Town Centre. The study identifies capacity i.e. need for 3,390 sq.m of comparison floor space over the period to 2026. The Assessment does not quantify a requirement for other town centre uses including leisure, restaurants and cafes. The study does however conclude that some of these uses are underrepresented in the town centre and an increased representation would contribute to the vitality and viability of the town centre.

5.3.35 The assessment recommended that the opportunity to re-occupy large vacant units and the potential for further improvements to the Charter Walk shopping centre should be explored before less central sites are considered. The study also included an assessment of the suitability of a number of sites within and adjacent to the Town Centre to accommodate the identified capacity. The former Pioneer, Curzon Street site within the Town Centre boundary was considered to be the most appropriate location to provide a comprehensive comparison retail and leisure development and this suggestion is proposed to be taken forward in the Local Plan.

5.3.36 Since the ROL Assessment was completed, a part of Charter Walk has been redeveloped creating larger floorplates by extending and utilising upper floors, and the large JJB store on St. James' Street has been re-occupied, creating an additional 863 sq.m of retail space. There is capacity within Charter Walk to accommodate at least a further 1,800 sq.m of additional comparison floor space. This, together with the allocation of the Curzon Street site for a minimum of 1,500 sq.m of retail floorspace, will ensure that the needs for town centre comparison shopping uses are met in full.

5.3.37 Development proposals within Burnley Town Centre will need to take into account the impact on the provision of car parking spaces within the Town Centre in line with Plan's Parking Standards and the Council's Car Parking Strategy.

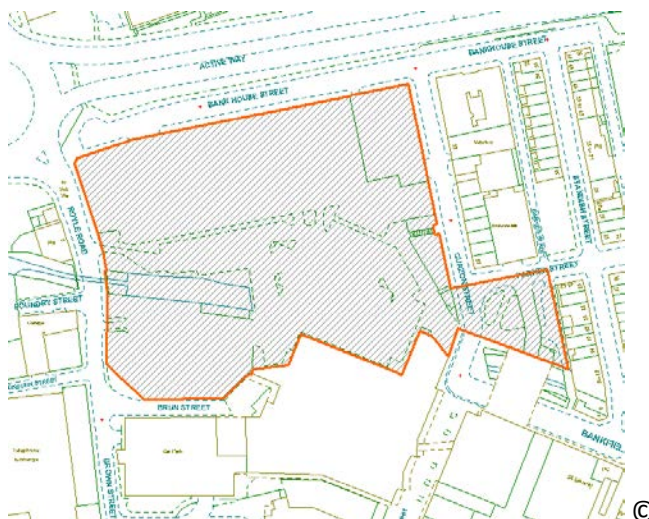
5.3.38 The 2013 ROL Assessment also identified a net requirement for additional office floorspace across the borough ranging from 5,936 sq.m to 28,310 sq.m. It concluded that it was difficult to assess what proportion of this should be distributed to Burnley and Padiham town centres, but that due regard should be given to the sequential approach set out in the NPPF and the requirement for such uses to be located within town centres. It recommended that the Council focuses upon improving the current Burnley town centre office provision.

Policy TC4: Development Opportunities in Burnley Town Centre

1) Development opportunities within Burnley Town Centre have been identified. These are shown on the Policies Map. Within these sites planning permission will be granted for a range of town centre uses, either as stand-alone uses or as a mix of uses, as indicated below:

Site Ref.	Site Name	Area (ha)	Acceptable Uses
TC4/1	Former Pioneer, Curzon Street	1.65	Mixed use development comprising or including A1 uses together with other A2, A3, A4, B1a, C1 or D2 uses. C3 and A5 uses would only be acceptable as an ancillary part of a mixed use scheme.

TC4/2 & EMP1/8	Thompson Centre	0.68	This site is located within Burnley Town Centre and would be suitable for a mix of B1(a), A2 and A3 uses. The site will be protected for B1(a), A2 and A3 uses (at ground floor) under Policy EMP2. See EMP1 for policy requirements.
----------------	-----------------	------	---

TC4/1 – Former Pioneer, Curzon Street**Site Area 1.65 hectares**

The site is located within the Town Centre on the edge of the Primary Shopping Area and is suitable for a mix of retail, office and leisure uses comprising or including A1 uses together with other A2, A3, A4, B1a, C1 or D2 uses. C3 and A5 uses would only be acceptable as an ancillary part of a mixed use scheme.

Additional and Site Specific Policy Requirements and Design Principles**Uses**

- 1) A minimum of 1,500 sq.m (net) of A1 comparison floorspace must be included within the mix of uses.

Quality and Design

- 2) The site is located on a Key Gateway into Burnley Town Centre. Development will be expected to reinforce the site's Key Gateway role. An opportunity exists to create a new townscape and a positive and appropriate relationship with surrounding buildings and spaces. A substantial building of high quality is envisaged to the north west corner of the site (a minimum of 3 storeys) addressing Active Way, with specific attention also given to the frontages to Active Way and Curzon Street to ensure an attractive and permeable edge to the town centre.
- 3) Key buildings should use a palette of materials which includes high quality locally distinctive materials in accordance with Policy SP5. High quality suitable and complementary contemporary materials and designs may also be acceptable.
- 4) The site is within an area at risk of flooding, the majority of it lying within Flood Zone 2. The layout and design of any development should take account of the recommendations of the Council's Strategic Flood Risk Assessment. Any development will need to be accompanied by a site specific Flood Risk Assessment in accordance with Policy CC4 and seek opportunities to reduce the overall level of flood risk in the area through the layout and form of the development and through the provision of an appropriate sustainable drainage scheme.

- 5) The site has local archaeological significance. A formal programme of archaeological investigation is required including trial trenching and recording of surviving elements on site. Further investigation or recording works may be necessary dependent upon the results of the trial works.

Public Realm

- 6) Proposals should contribute to an improved public realm consistent with the Burnley Town Centre Public Realm Strategy SPD with clear, safe and convenient pedestrian linkages to the existing Primary Shopping Area. Bank House Street is setted and this surface could be incorporated into the new public realm scheme and the scheme should incorporate the River Brun as a feature. To reduce flood risk, improve the quality of the River Brun and enhance the amenity value it brings to the town centre public realm, the opening up of the culverted section of the river within the site should be explored, taking account of the Council's Strategic Flood Risk Assessment.

Supporting Information

- 1) The River Brun crosses the site both as an open watercourse and in culvert. Proposals will need to take account of the easement requirements of the Environment Agency to provide unobstructed access to the open water course for inspection and maintenance.

The Weavers' Triangle

5.3.39 The central section of the Canalside Conservation Area is known as the Weavers' Triangle. This is an area with an immense sense of place, industrial scale and distinctive canal engineering covering 22 hectares and including 35 listed buildings, 35 locally listed buildings and 1 Scheduled Monument.⁶⁴

5.3.40 Occupying a position above and to the south-west of the town centre, the Weavers' Triangle represents the core section of the industrial canal length in Burnley where an impressive sequence of mills, weaving sheds and canal-related features enclose the 1.38 kilometre stretch of the Leeds & Liverpool Canal. This area is widely recognised as being one of the most important Victorian industrial districts in the North West. However this fine historic townscape has suffered greatly from economic decline which has resulted in neglect, low property values and lack of investment in the built fabric of the area.

5.3.41 The Weavers' Triangle is a focus for heritage led regeneration, a long term process of change utilising the canal, historic buildings and location close to Burnley Town Centre to create a quality environment for new business investment, employment and leisure, living and learning opportunities that will have a lasting and significant impact on the economic future of the borough. A Public Realm Strategy SPD⁶⁵ was adopted in 2011 and this establishes the key principles for the design of the public realm with an overriding purpose of ensuring a sensitive, coherent, high quality design future that stimulates the economic, social and cultural potential of the area. A Townscape Heritage Initiative (THI)⁶⁶ supported by the Heritage Lottery Fund has been instrumental in

⁶⁴ The Canalside Conservation Area Appraisal and Management Plan provides a detailed assessment of the elements that define the special interest, character and appearance of the Conservation Area and sets out a Management Plan for its preservation and enhancement

⁶⁵ Public Realm Strategy for Weavers' Triangle SPD Adopted by Burnley Council 20th September 2011

⁶⁶ Completed by November 2015

unlocking the potential of the area as a unique and vibrant historic quarter, and has worked with private sector partners to:

- Bring vacant and underused heritage assets back into economically viable uses.
- Provide quality repairs; reinstatement of architectural features; and enveloping works to heritage assets in advance of their rehabilitation.
- Enhance the settings of key historic buildings through land reclamation, the restoration and upgrading of the canalside environment, public art, historic street surfaces and other features in the public domain in which new building and further private restoration can continue.

5.3.42 Regeneration within the Weavers' Triangle will continue to evolve as remaining undeveloped sites and heritage assets are brought forward. New development will be expected to positively address its waterfront location; create a positive and appropriate relationship with surrounding buildings and spaces by respecting the form, scale and materials of the surrounding historic townscape; and be of high design integrity consistent with Policy SP5.

5.3.43 Development should positively address the significance of heritage assets, including their settings, within and adjacent to this site which should be conserved and, where possible, enhanced consistent with Policy HE2 and HE3.

Appropriate uses within the Weaver's Triangle

5.3.44 The area currently includes a wide range of uses; education, residential, employment, leisure, food and drink and retail.

5.3.45 The area falls outside the Burnley Town Centre boundary where town centre uses such as retail, office and leisure should be focussed in accordance with Policy TC2. However, given the unique setting, scale and importance of the Weavers' Triangle for the regeneration of the town and the need to ensure viable uses for the area's historic buildings, a flexible approach to an overall mix of uses will be adopted in accordance with Policy TC5. This policy only addresses uses, development proposals will need to address all other policy requirements including SP5, HE2 and HE3.

Policy TC5: Uses within the Weavers' Triangle

- 1) The Council will work to secure a vibrant and sustainable mix of uses within the Weavers' Triangle as defined on the Policies Map.**
- 2) A mix of uses including residential and town centre uses (as defined in the NPPF) will be supported subject to applications for main town centre uses being accompanied by a planning statement setting out why the proposals should be seen as an exception to the sequential approach set out in Policy TC2 by virtue of :**
 - a) Their close association with the heritage of the Weavers' Triangle; or**
 - b) Their contribution to securing the viable future of a heritage asset.**
- 3) Development must be of a type and scale that would not undermine the overall town centre first approach and in particular, the Primary Shopping Area. Proposals for retail development above the thresholds set out in Policy TC2 (6) will require an Impact Assessment as set out in Policy TC2 (5).**
- 4) In all cases proposals will be expected to be consistent with relevant design and heritage policies.**

District Centres

5.3.46 The NPPF in Section 8: Promoting Healthy Communities, requires local authorities to plan positively for shared space and community facilities such as local shops, meeting places, sports venues, cultural facilities, public houses and places of worship and other local services to enhance the sustainability of communities and residential environments. They should also guard against the unnecessary loss of valued facilities and services, particularly where this would reduce the community's ability to meet its day-to-day needs; ensure that established shops, facilities and services are able to develop and modernise in a way that is sustainable, and retained for the benefit of the community; and ensure an integrated approach to considering the location of housing, economic uses and community facilities and services.

5.3.47 Policy TC6 together with Policies EMP4 and 5 and Policy IC5 reflect these aspirations.

5.3.48 The 2006 Local Plan identified three District Centres and nine Local Centres. These suburban retail facilities are an important part of the shopping provision in Burnley and complement the retail, leisure and service provision in the town centres. However, they vary considerably in scale, role and function and have over recent years faced particular challenges in adapting to changing retail patterns. To inform the preparation of the new Local Plan the Council has reassessed the role, scale and function of the twelve centres and identified those which it considers fulfil the role of multi-functional district centres which are and should remain the focus for local services and retailing.

Policy TC6: District Centres

- 1) **Within and adjacent to the District Centres as defined on the Policies Map, development for appropriate commercial and community uses will be considered acceptable in principle providing that it satisfies other policies elsewhere in the Plan, and:**
 - a) **It is of an appropriate scale in relation to the centre; and**
 - c) **It does not unreasonably harm the amenities of local or adjoining residents or users.**
- 2) **Development which involves the loss of existing commercial and community uses in District Centres will only be supported where:**
 - a) **Redevelopment does not prejudice the lawful operating conditions or viability of adjacent land uses; and**
either:
 - i) **It would resolve an existing conflict with adjoining residents or users; or**
 - ii) **It is demonstrated through comprehensive marketing of the premises/land for at least 12 months that the continued use of the premises/land for commercial use is not viable.**

Hot Food Takeaways

5.3.49 Hot food takeaways represent a popular service for local communities and an important complementary use in Town and District Centres. They can also offer important economic development and employment opportunities. Nevertheless, it is recognised that hot food takeaways have a greater potential than retail uses to create disturbance and detract from

residential amenity and environmental quality.⁶⁷ The degree of impact depends on a number of factors including the size of the proposed outlet, its target market and opening hours; premises may be closed during the day which results in inactive frontages or cause disturbance by opening late at night.

5.3.50 Hot food takeaways are often associated within unhealthy lifestyles. They do not directly cause obesity, but the majority of premises offer food which is energy dense and nutritionally poor, which can contribute to causing obesity.

Policy TC7: Hot Food Takeaways

Location

- 1) Proposals for hot food takeaways will only be permitted in the following areas:**
 - a) Within the areas of Secondary Frontage of Burnley Primary Shopping Area;**
 - b) Within Padiham Town Centre; or**
 - c) Within in a defined District Centre.**
- 2) Outside of these areas hot food takeaways will normally only be permitted where the property does not physically adjoin residential properties or other sensitive uses outside of the applicant's control.**
- 3) Proposals for hot food takeaways will only be permitted in the locations set out above where they satisfy other relevant policies of the Plan and the following criteria:**

Clustering

- a) The proposal will not create an unacceptable concentration of similar uses in Burnley Secondary Frontage or Padiham Town Centre;**

Amenity

- b) The proposal will not cause detriment to the free flow of traffic or residential amenity;**

Accessibility and Parking

- c) The location of the proposal is accessible by walking, cycling and public transport;**
- d) They provide or are served by adequate parking spaces;**

Extraction of Odours

- e) They provide for appropriate extraction systems to effectively disperse odours.⁶⁸ Such systems must:**
 - i) have minimal impact on visual amenity, including location and external finish;**
 - ii) be acoustically attenuated; and**
 - iii) not have an unacceptable impact on the amenity of neighbouring occupiers;**

Waste

- f) Their waste provision is appropriate to the scale and type of premises; and**
- g) They provide appropriately sited bins for customers to use.**

⁶⁷ There are currently 39 licensed hot food takeaways within the borough (as of May 2016)

⁶⁸ Extraction equipment must at least meet the minimum standards set out in the guidance on control of odours and noise produced by the Department of Environment, Food and Rural Affairs (DEFRA) or other superseding standards

Hours of opening

- h) When determining the appropriate hours of opening, regard will be had to:**
 - i) the likely impacts on residential amenity;**
 - ii) the existence of an established late night economy in the area; and**
 - iii) the character and function of the immediate area, including existing levels of background activity and noise.**
- 4) Where appropriate, restrictions will be placed on opening hours through the use of planning conditions.**

Shopfront & Advertisement Design

Shopfronts

5.3.51 The character, appearance and image of the borough's towns is a fundamental part of their attractiveness as destinations for shopping and leisure.

5.3.52 The character and appearance of towns is derived from their layout, the appearance of the buildings and spaces and the quality and design of shopfronts and advertisements. The relatively small size of the borough's towns renders them vulnerable to insensitive alteration and poor quality new development.

5.3.53 The purpose of a shopfront is to display goods for sale and to entice customers into the shop. An attractive and well-designed shopfront will create a good impression to potential customers. The shopfronts we value today did not come about by accident. Their design was deliberate to entice shoppers in, whilst following the politics and stylistic fashions of the day and also the technological limitations. Poorly designed new shopfronts and the widespread use of inappropriate materials and standardised designs has led to a loss of local distinctiveness. The facades of other commercial buildings such as banks, solicitor's offices, pubs and hotels, generally survive much better and are more immune to changes in fashion.

5.3.54 Shopfronts should be designed to respect the building within which they sit and the character of the area/streetscene. This is particularly important in historic buildings and areas, where traditional shopfronts should normally be retained or reinstated as would be insisted upon for listed buildings and traditional buildings in Conservation Areas in accordance with Policy HE2.

5.3.55 Shopfront security measures such as or grilles or shutters should normally be positioned behind the glazing, minimising any restriction of views into the shop. These are readily available as roller shutters or a variety of open lattice type grilles or 'transparent curtains' in the form of roller shutters or retractable gates.

5.3.56 The use of solid or solid looking metal shutters is unacceptable as they convey the image that the area is in decline. They can attract graffiti and prevent window-shopping. Where allowed, external grilles and shutters should be of the latticed grille type or with vision panels.

5.3.57 Consideration must be given to ensuring shops are accessible to all users wherever practicable. A licence will be required from the highways authority for any object which projects over the public highway.

Advertisements

5.3.58 The term 'advertisement' covers a wide range of advertisements and signs including, but not limited to; posters and notices, placards and boards, fascia signs and protecting signs, pole, canopy, directional and flag advertisements.

5.3.59 The provision of high quality outdoor advertising is an essential for businesses and has a practical purpose of providing information about, goods, events and premises. Attractive signage can also add interest and vitality to the street scene in town centres. However, by their very nature advertisements are designed to attract attention and are frequently displayed in prominent positions, and the over-use of advertisements, or their inappropriate location, design and/or illumination can have significant detrimental impacts on visual amenity, highway safety and can defeat its function.

5.3.60 The Council's level of control for over adverts is limited to their effect on amenity and public safety and not all adverts need consent.⁶⁹ Amenity is defined as both the visual and aural amenities of advertisements. Public safety principally relates to the dangers to road users, such as obstructions to sight lines or illuminated signs causing glare. Where consent is required, the Council will carefully consider proposals for advertisements and illumination, particularly in areas largely residential in character where advertisements are not part of the established scene and also within the historic built environment

5.3.61 Shop signs should normally be positioned within the fascia. Wall-mounted or projecting signs above fascia level are only acceptable if they are of high quality, are not overbearing and can be satisfactorily accommodated without obscuring key architectural features.

5.3.62 Where illumination of signs is considered acceptable, appropriate external illumination such as halo lighting, carefully designed trough lighting or correctly spaced and designed spot lights is normally required. Large spotlights and 'swan necks' and internally illuminated box signs should be avoided.

5.3.63 The Council will develop a Shopfront and Advertisement Design Guide Supplementary Planning Document (SPD) which will set out further guidance to help owners understand how to achieve high quality shopfront and advertisement designs and the required standards set out in Policy TC8 below. This SPD will be a material consideration in the determination of relevant applications and will replace the existing Shopfront Security Shutters SPG.

Policy TC8: Shopfront & Advertisement Design

- 1) The design of new or alterations to existing shopfronts and advertisements should satisfy the following criteria:**
 - a) The design is appropriate to the character of the existing building and streetscene in terms of its size, detailing and use of materials;**
 - b) Traditional materials such as timber or cast metal will be favoured. uPVC or other plastics will not be permitted on listed buildings or traditional building within conservation areas in accordance with Policy HE2;**
 - c) Blinds and canopies, where acceptable in principle, must be appropriate to the character of the shopfront and its setting. Only fully retractable canvas or wooden blinds will be**

⁶⁹ advertisement controls are set out in The Town and Country Planning (Control of Advertisements) (England) Regulations, 2007

supported on listed buildings and traditional building within conservation areas in accordance with Policy HE2;

- d) Wherever practicable, shopfronts must be designed to ensure equal access for all users;**
- e) Inset entrances should be glazed and well-lit to contribute to the attractiveness, safety and vitality of the area and avoid blank frontages to the street;**
- f) Security matters should be considered from the earliest design stages. Security shutters and grilles should be internal where possible and external solid security shutters will not normally be permitted; and**
- g) The size, design, positioning, materials and degree of illumination of advertisements does not have an unacceptable adverse impact on the amenity of the areas in which they are displayed and there is no adverse effect on public safety; in particular:**
 - i. Fascias should not cut across or obscure first floor windows and advertisements and on shopfronts should normally be positioned within the fascia. Additional or alternative wall-mounted or hanging signs at or above fascia level are only acceptable if they are of high quality, are not overbearing and can be satisfactorily accommodated without obscuring key architectural features. Imaginative and craft signwork will be supported and encouraged; and**
 - ii. Any illumination of shopfront or advertisements where agreed to be acceptable must be sited and designed so as not to cause excessive light pollution or visual intrusion into adjoining or nearby residential properties. Flashing internal or external signs will not be permitted.**

Policies in this Section

HE1: Identifying and Protecting Burnley's Historic Environment	HE3: Non-Designated Heritage Assets
HE2: Designated Heritage Assets: Listed Buildings; Conservation Areas; and Registered Parks and Gardens	HE4: Scheduled Monuments and Archaeological Assets

5.4 Historic Environment

Introduction

5.4.1 The historic environment embraces all aspects of the environment that result from the interaction between people and places through time and comprises a variety of elements of heritage significance, including historic townscapes, buried archaeological remains, above ground ruins, designed landscapes, engineering features, buildings and structures that combine to create a unique environment which provides a tangible link with the past and a positive sense of place.

5.4.2 Burnley's rich heritage is a major strength central to the character and identity of the borough and contributes significantly to the quality of life that underpins the borough's economy and attracts investment. It acts as a stimulus to and as a reference point for high quality and locally distinctive design as well as an inspiration to contemporary architecture and regeneration initiatives which are a major catalyst for the future prosperity of the borough.

Legislative and Policy Background

5.4.3 The NPPF refers to historic physical remains collectively as 'heritage assets' and includes those that are designated through legislation as **Designated Heritage Assets** e.g. listed buildings; scheduled monuments, registered parks and gardens, and conservation areas and those that are identified by the local planning authority for their local interest as **Non-Designated Heritage Assets**. Each type of Designated Heritage Asset has its own legal framework.

5.4.4 The appropriate conservation of heritage assets and their setting forms one of the 'Core Planning Principles' of the NPPF that should underpin both plan-making and decision-taking which should seek to "conserve heritage assets in a manner appropriate to their significance, so that they can be enjoyed for their contribution to the quality of life of this and future generations."⁷⁰ Heritage assets are an irreplaceable resource and effective conservation of these can deliver wider social, cultural, economic and environmental benefits.⁷¹ The NPPF indicates that a positive strategy for the conservation and enjoyment of the historic environment should be set out in the Local Plan.⁷²

Identifying and Protecting Burnley's Historic Environment

5.4.5 The Council takes a proactive approach to the conservation of the historic environment. Through its planning decisions and in fulfilling its wider functions, it proactively manages and works with partners to protect, enhance and promote the significance of the borough's heritage assets and their settings.

5.4.6 The Local Plan recognises the relationship between the quality of the environment, confidence and growth and the role that the historic environment has to play in helping areas to

⁷⁰ NPPF Paragraph 17

⁷¹ NPPG (Conserving and Enhancing the Historic Environment) Paragraph 003

⁷² NPPF Paragraph 126

transform economically. A well-managed historic environment creates places where people positively choose to live, work, invest and spend recreation time. Burnley has seen some excellent regeneration schemes involving heritage assets, notably at the Weavers' Triangle where industrial buildings at risk have been restored and rehabilitated through working in partnership with public, private and community partners.

5.4.7 Buildings at risk are monitored and action taken to secure their repair and encourage sustaining uses. The Council takes a positive approach to designated heritage assets identified as being most at risk (as a result of neglect, decay or inappropriate development) considering the benefit of proposals which would otherwise conflict with planning policies where these would preserve and enhance the heritage asset and where this benefit would clearly outweigh the harm of departing from other policies. In considering such 'enabling development', the Council will have regard to the Historic England's policy and guidance on Enabling Development.⁷³

5.4.8 Policy HE1 sets out aspects of Burnley's historic environment that are of special importance to the distinct identity of the borough and advocates the proactive and informed management of the historic environment in a way that fully realises its contribution to regeneration and sustainable economic development. The implementation of Policy HE1 will play a fundamental role in achieving the positive strategy for the conservation and enhancement of the historic environment which meets both statutory obligations and national policy requirements.⁷⁴ In addition to its development management function, the Council will continue to seek not only to protect, but to enhance and promote the historic environment, raising awareness and understanding so it can be enjoyed by residents and visitors now and in the future.

5.4.9 Policy HE1 is complemented by more detailed policies (HE2, HE3 and HE4) setting out how development affecting Heritage Assets, including their settings will be assessed.

Policy HE1: Identifying and Protecting Burnley's Historic Environment

- 1) The Council will proactively manage and work with property owners and other stakeholders to ensure positive, well-informed and collaborative conservation that recognises and reinforces the historic environment's contribution to local identity and distinctiveness and its potential as a driver for economic growth, attracting investment and tourism and providing a focus for successful regeneration.**
- 2) Key elements that contribute to the distinct identity of the borough that will therefore be a priority to protect, enhance and promote, include:**
 - a) The industrial heritage related to the textile industry, in particular, mills, weaving sheds, chimneys and associated housing; public buildings and the legacy of public parks and gardens;**
 - b) The heritage assets associated with and that contribute to the character of the Leeds & Liverpool Canal, including canal-related infrastructure such as bridges, wharfs and warehouses;**
 - c) Pre-industrial townscape including barns, farmhouses, cottages and higher status buildings of 16th and 17th Century origins; and**
 - d) Historic town centres.**

⁷³ Enabling Development and the Conservation of Significant Places, Historic England, 2008

⁷⁴ NPPF, Paragraph 126

3) In addition to its role in sustaining and enhancing the significance of heritage assets in response to development proposals, the Council will maximise the benefits of the borough's historic environment through the following actions:

- a) Identifying grants and funding opportunities for heritage-led regeneration initiatives, especially in those areas where the historic environment has been identified as being most at risk;**
 - b) Maintaining a record of Heritage Assets at Risk through neglect, decay or other threats and addressing such assets in a positive manner, proactively seeking solutions for assets at risk through discussions with owners and a willingness to consider positively development schemes that would ensure the repair and maintenance of the asset and, as a last resort, using statutory powers;**
 - c) Introducing Article 4 Directions where there is clear justification to introduce stricter controls;**
 - d) Maintaining a Local List as a principal means of identifying non-designated heritage assets that make a positive contribution to local character and sense of place because of their heritage value;**
 - e) Maintaining and developing effective control and taking enforcement action in respect of unauthorised works to designated heritage assets or within their settings where it is expedient to do so; and**
 - f) Engaging local people in discovering, presenting and conserving the borough's heritage and offering help, advice and information as appropriate.**
- 4) The Council will encourage, wherever possible, opportunities to enhance or better reveal the significance of heritage assets or their setting for example through repairs, reinstatement of lost architectural features, reversal of previous inappropriate changes and measures to secure their long term maintenance. This will normally be a requirement where grant assistance is being offered or enabling development considered.**

Conserving and Enhancing Heritage Assets and their Settings

5.4.10 Legislation⁷⁵ and national policy set a strong presumption in favour of protecting, conserving and where possible enhancing the significance of heritage assets. The weight to be attached to that presumption, when assessed against meeting other needs, will be dependent on:

- The significance of the heritage asset; whether it is designated or non-designated and its grade;
- The contribution of that part of the asset to be affected by the proposed development to the significance of the asset, including its setting;
- The scale of any harm or loss that will be caused to significance; and
- The degree of public benefit that will result from the development.

⁷⁵ Planning (Listed Buildings and Conservation Areas) Act 1990 Sections 16, 66(1) and 72

Significance

5.4.11 The NPPF states that historic assets should be conserved in a manner appropriate to their significance⁷⁶. Significance is defined as the value of the heritage asset to this and future generations because of its heritage interest. That interest may be archaeological, architectural, artistic or historic. Significance derives not only from the asset itself e.g. a listed building, but also from its setting. The significance of a heritage asset should be taken into account from the outset of any proposal.

5.4.12 Developers will be expected to describe the significance of known heritage assets that may be affected by their proposals including any contribution made by their setting⁷⁷ and this should be set out in the form of a written Heritage Statement.⁷⁸ Significance should be described in terms of the heritage asset's archaeological, architectural, artistic or historic interest both as a whole and the specific parts affected by the proposal. The level of detail should be proportionate to the importance of the heritage asset (or assets) that may be affected and no more than is sufficient to understand the potential impact of the proposal on their significance. Much information about the interest of heritage assets is contained in Lancashire's Historic Environment Record and other sources such as conservation area appraisals, historic town reports, local libraries and archives.

5.4.13 The Council will validate the information provided to ensure that all heritage assets that may be affected by the proposal have been identified and that their significance has been adequately and properly described. The Council will use this information to assess the impact of proposals on the significance of heritage assets.

Setting

5.4.14 The NPPF makes it clear that the setting of a heritage asset, i.e. the surroundings in which it is experienced, can be an important element of significance.⁷⁹ The extent of an asset's setting is not fixed and may change as the asset and its surroundings evolve. Elements of a setting may make a positive or negative contribution to the significance of an asset or may be neutral. Setting is not the same as curtilage (see glossary).

5.4.15 The contribution of setting to the significance of a heritage asset is normally expressed by reference to views. However setting can also be influenced by other environmental factors such as noise, vibration and lighting from other nearby land uses. When assessing development proposals within the setting of a heritage asset, careful consideration must be given to the implications of cumulative change.⁸⁰

5.4.16 Setting contributes to significance and as such must be considered fully in the Heritage Statement. There may be instances where the setting of a heritage asset has been compromised through inappropriate development, in which case a proposal may respond to the opportunity to enhance setting.⁸¹

⁷⁶ NPPF Paragraph 126

⁷⁷ In accordance with NPPF, Paragraph 128

⁷⁸ This may be included as part of the Design and Access Statement if one is to be submitted, NPPG Para 012

⁷⁹ As defined in Annex 2, Glossary, NPPF

⁸⁰ Guidance on the Setting of Heritage Assets can be found in the Historic Environment Good Practice Advice in Planning Note 3: The Setting of Heritage Assets, Historic England, December 2017

⁸¹ Historic England Good Practice Advice in Planning Note 3 sets out guidance on managing change within the setting of heritage assets

Harm to or Loss of Significance

5.4.17 Development proposals can affect the significance of heritage assets in a range of different ways. Physical impacts can result from alterations to the fabric e.g. replacing windows through to demolition. Other impacts may not physically alter the asset but may affect its setting. In line with national policy the Council will seek to establish the scale of harm associated with proposals affecting heritage assets in terms of the categories of harm identified in the NPPF:

- No harm to significance
- Less than substantial harm to significance⁸²
- Substantial harm to significance
- (Total) Loss of significance

5.4.18 As heritage assets are irreplaceable, any harm or loss will require clear and convincing justification⁸³. Substantial harm to or loss of a grade II listed building, park or garden should be exceptional. Substantial harm to or loss of designated heritage assets of the highest significance, notably scheduled monuments, protected wreck sites, battlefields, grade I and II* listed buildings, grade I and II* registered parks and gardens, and World Heritage Sites, should be wholly exceptional. Substantial harm to and total loss of significance is a high test, so it may not arise in many cases. Substantial harm relates to the impact of proposals that wholly or partially destroys the significance of the heritage asset or impinges upon its setting to an extent which undermines its essential appreciation.

5.4.19 While the impacts of total destruction are obvious, partial destruction is likely to have a considerable impact but, depending on the circumstances, may be less than substantial harm or not harmful at all, for example, when removing later inappropriate additions.

5.4.20 The necessity for any harm will be rigorously tested with the onus being on the applicant to demonstrate sufficiently powerful material considerations exist to set aside the considerable weight applied to the relevant statutory duties⁸⁴ including showing that alternative options have been explored and ruled out and that mitigation has been maximised in order to reduce the harmful effects as far as it is practically possible.

Public Benefits

5.4.21 In line with national policy the Council will seek to establish the nature of the benefits directly associated with a proposal that causes harm to or the total loss of the significance of a designated heritage asset.⁸⁵ In order to be taken into account in weighing the decision, benefits should be public benefits and could be anything that delivers economic, social or environmental progress.⁸⁶ The Council will seek to establish whether the public benefits are substantial or not.⁸⁷

5.4.22 In circumstances where some degree of harm to the significance of a designated heritage asset is considered justified when balanced against public benefits, the benefits must be compelling, realistic and capable of assured delivery. In cases where the impact of a proposal would lead to substantial harm or total loss of significance, but is justified by considerations of public benefits; mitigation by recording will be required as a condition of consent.

⁸² This is not to say that the harm would be insignificant or unimportant

⁸³ NPPF Paragraph 132

⁸⁴ Planning (Listed Buildings and Conservation Areas) Act 1990 Sections 16, 66(1) and 72

⁸⁵ NPPF Paragraphs 133 and 134

⁸⁶ As described in NPPF Paragraph 7

⁸⁷ NPPF Paragraph 133

Designated Heritage Assets

5.4.23 Designated Heritage Assets within Burnley include Listed Buildings; Conservation Areas; Registered Parks and Gardens; and Scheduled Monuments.

5.4.24 For Designated Heritage Assets, all levels of harm should be avoided. Substantial harm to or total loss of significance would only be approved in exceptional circumstances where it can be demonstrated that the harm or loss is necessary to achieve substantial public benefits; or all four of the following tests as set out in Paragraph 133 of the NPPF can be met.

- The nature of the heritage asset is preventing all reasonable uses of the site; and
- No viable use of the heritage asset that can be found in the medium term through appropriate marketing that will enable its conservation; and
- Conservation by grant funding or charitable or public ownership of the asset is demonstrably not possible; and
- The harm or loss is outweighed by the benefits of bringing the site back into use.

Listed Buildings

5.4.25 The Department for Digital, Culture, Media and Sport (DCMS), taking advice from Historic England, is responsible for listing buildings. Listing marks and celebrates the special architectural and historic interest of a building, structure or object, and also brings it under the consideration of the planning system, so that its special interest can be preserved for future generations.

5.4.26 Burnley has over 300 listed building entries, details of which are accessible through the National Heritage List for England.⁸⁸

5.4.27 In considering whether to grant listed building consent for any works to a listed building or planning permission for development which affects a listed building or its setting, the Council has a duty under the Planning (Listed Buildings and Conservation Areas) Act 1990 to “have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses.”⁸⁹

5.4.28 Appropriate repair and re-use of listed buildings will be encouraged, particularly for those listed buildings identified as being most at risk. In order to avoid harm to significance, alterations or extensions to listed buildings must be designed to respect their special architectural or historic interest, including their:

- Form, scale, height, massing and proportion
- Style, appearance, materials, internal and external architectural features
- Method of construction
- Internal layout

5.4.29 Developments affecting the setting of a listed building must consider:

- Materials
- Roofscape
- Important views and sightlines
- Relationships and building hierarchy;

⁸⁸ Historic England maintains a list of all designated heritage assets - the National Heritage List for England
<http://historicengland.org.uk/listing/the-list/>

⁸⁹ Sections 16 and 66 of the Act

- Streetscape, pattern, layout and, character of the area.

Conservation Areas

5.4.30 Section 69 of the Act defines conservation areas as “areas of special architectural or historic interest the character or appearance of which it is desirable to preserve or enhance”. The Council has designated 10 conservation areas which are shown on the Policies Map and listed in Appendix 4.

5.4.31 Whilst conservation areas may contain concentrations of listed buildings, it is the sense of place created by different components such as; historic settlement or street pattern, groups of traditional buildings, open spaces, trees and boundary walls which combine to provide their special character. It is this character, rather than individual buildings that designation seeks to preserve or enhance.

5.4.32 In exercising its planning functions with respect to any buildings or other land in a conservation area, the Council has a duty under the Act to “pay special attention to the desirability of preserving or enhancing the character or appearance of that area.”⁹⁰

5.4.33 In order to avoid harm to significance, development within or affecting the setting of a conservation area should be of a high quality contextual design and will be expected to preserve, or where appropriate enhance, those elements which contribute to its special character or appearance, including:

- Positioning and grouping of buildings, form, scale, enclosure, detailing (including windows and doors) and traditional materials;
- Townscape, roofscape and skyline;
- Hard and soft landscape features including open space, trees, walls and surfacing;
- Traditional plot boundaries and frontage widths; and
- Views, both in and out.

5.4.34 In determining applications, there will be a presumption in favour of retaining the integrity and form of buildings and features that make a positive contribution to the significance of a conservation area. The appropriate repair and re-use of such buildings will be encouraged. The loss of a building, or other element, that makes a positive contribution to the significance of a conservation area will be treated either as substantial harm or less than substantial harm, as appropriate, taking into account the relative significance of the element affected and its contribution to the significance of the conservation area as a whole.⁹¹

Registered Parks and Gardens

5.4.35 The Historic Buildings and Ancient Monuments Act 1953⁹² authorises Historic England to compile a register of “gardens and other land” in England that appear to be of special historic interest. Although the inclusion of an historic park or garden on the register brings no additional statutory controls, as Designated Heritage Assets they enjoy a level of national policy protection.

5.4.36 There are five registered parks and gardens in Burnley. Towneley Park, Thompson Park, Scott Park, Queen's Park and the gardens associated with Gawthorpe Hall, all of which are open to the public forming a significant resource for local residents and visitors. As such they bring their

⁹⁰ Planning (Listed Buildings and Conservation Areas) Act 1990, Section 72 (1) (2)

⁹¹ NPPF, Paragraph 138

⁹² Section 8C, inserted by section 33 of, and paragraph 10 of Schedule 4 to the National Heritage Act 1983

own development pressures which need to be carefully managed to ensure that the gardens are not comprised either by facilities for visitors or by new development.

5.4.37 Proposals affecting a registered park and garden or its setting should ensure that the development does not detract from the enjoyment, layout, design, principal components, character or appearance of the asset; or cause harm to important views; or prejudice its future restoration.

5.4.38 Features that contribute to the significance of a registered park or garden should be retained and their sensitive restoration is encouraged. Features that may be considered significant include:

- Historic layouts, buildings, structures and landscape features including water features.
- Historic relationships between features.
- Topography, geology and landforms.
- Soft landscaping including trees, lawns and planting beds.
- Features which relate to historic functions and activities.
- Aspects of setting including views within, into and out of the gardens.
- The general relationship between the park or garden and the character of the surrounding landscape or townscape.

Policy Approach

5.4.39 Policy HE2 applies only to listed buildings, conservation areas and registered parks and gardens.⁹³ For scheduled monuments see Policy HE4.

Policy HE2: Designated Heritage Assets: Listed Buildings; Conservation Areas; and Registered Parks and Gardens

1) Proposals affecting designated heritage assets and/or their settings will be assessed having regard to the desirability of sustaining and enhancing the significance of the asset and, where appropriate, securing a viable use most consistent with its conservation. All levels of harm should be avoided.

Less than Substantial Harm (i.e. Harm)

2) Where proposals would lead to less than substantial harm to the significance of a designated heritage asset, the harm will be weighed against the public benefit of the proposal, including securing its optimum viable use.

3) In order to avoid harm to significance, proposals for works of alterations and extensions to a listed building or within a conservation area or historic park and garden will be expected to:

- a) Conserve, and where appropriate repair or reinstate, those elements that contribute to the significance of the heritage asset including its design, character, architectural features of interest, appearance, structure and principal components;**
- b) Use traditional, local materials and respect local building techniques and details;**
- c) Respect existing hard and soft landscape features including open space, trees, boundary treatments (railings and gates) and surfacing;**
- d) Respect layout and historic patterns of development including street patterns, characteristics of grain,⁹⁴ plot boundaries and frontage widths.**

⁹³ There are presently no registered battlefields, protected wreck sites or world heritage sites in the borough.

- 4) In order to avoid harm to significance, development affecting the setting of a designated heritage asset will be expected to:
- a) Maintain the aspects of the setting which contribute to its significance, including views into and out of it and the general relationship between the asset and the character of the surrounding landscape or townscape; and
 - b) Respect the character of existing architecture by having due regard to positioning and grouping of buildings, roofscapes and skylines, form, scale, enclosure, architectural styles, detailing, and use traditional or complimentary materials.

Substantial Harm or Loss

- 5) Consent will not be granted for proposals that lead to substantial harm to or the total loss of the significance of a designated heritage asset, unless robust evidence can demonstrate that the substantial harm or loss is necessary to achieve substantial public benefits that outweigh that harm or loss, or all of the following apply:
- a) The nature of the heritage asset is preventing all reasonable uses of the site;
 - b) No viable use of the heritage asset that can be found in the medium term through appropriate marketing that will enable its conservation;
 - c) Conservation by grant funding or charitable or public ownership of the asset is demonstrably not possible; and
 - d) The harm or loss is outweighed by the benefits of bringing the site back into use.

Recording

- 6) Where the loss of the whole or a significant part of a designated heritage asset, including a building or element that makes a positive contribution to the significance of a conservation area is determined to be acceptable, conditions or agreements will be put in place to ensure that :
- a) Assets are recorded, analysed and reported where appropriate; and
 - b) No loss takes place without all reasonable steps being taken to ensure that any new development will proceed after the loss has occurred.

Conservation and Enhancement of Non-Designated Heritage Assets

5.4.40 Non-designated heritage assets are buildings, monuments, sites, places, areas or landscapes identified as having a degree of significance meriting consideration in planning decisions but which are not designated at a national level. These heritage assets are an important element of the rich history of the borough and reinforce local distinctiveness and sense of place by reason of their cultural, architectural and historical contribution.

5.4.41 Non-designated heritage assets include the 300-plus locally listed buildings identified by the Council. There are also 18 designed landscapes which are known to be historically important and are included in the Local List of Lancashire's Unregistered Historic Designed Landscapes.⁹⁵ The

⁹⁴ The degree to which an area's pattern of blocks and plot subdivisions is respectively small and frequent (fine grain) or large and infrequent (coarse grain).

⁹⁵ Compiled and maintained by a partnership comprised of Lancashire County Council, Lancashire Gardens Trust and Manchester Metropolitan University

Council will consider including these sites (and any other potential candidates) on a future review of the borough's Local List of heritage assets.

5.4.42 The Council will review and update the Local List and set out criteria for inclusion on it. Whilst this will be the principal means of identifying non-designated heritage assets, others may be identified at any stage of the planning process.

5.4.43 Applications for planning permission for works affecting non-designated heritage assets will be required to show how the significance of the asset has been taken into consideration in the design of the proposed works. If a planning application is submitted which affects a site that is then found to qualify as a non-designated heritage asset, the developer will be informed and will be required to produce a written Heritage Statement.

5.4.44 Where planning permission is required for works affecting (directly or indirectly) a non-designated heritage asset, the NPPF states that the effect on its significance should be taken into account in determining the application and that the scale of any harm or loss and the significance of the heritage asset should be included in this balanced decision.⁹⁶

5.4.45 Proposals for the loss of non-designated heritage assets that make a positive contribution to the significance of a conservation area will also be assessed under Policy HE2.

Policy HE3: Non-Designated Heritage Assets

- 1) The Council will maintain a local list and will seek to help ensure the retention, good maintenance and continued use of non-designated heritage assets.**
- 2) Where a non-designated heritage asset or its setting, including where identified through the planning process, is affected by development proposals (directly or indirectly) there will be a presumption in favour of its retention.**
- 3) Proposals affecting non-designated heritage assets should relate appropriately in terms of siting, style, scale, massing, height and materials.**
- 4) Development proposals affecting the setting of a non-designated heritage asset will be required to give due consideration to its significance and ensure that this is protected or enhanced where possible.**
- 5) Where the loss of the whole or significant part of a non-designated heritage asset is determined to be acceptable, the applicant will be expected to secure recording to the appropriate level, the results of which should be deposited with the Council.**

Scheduled Monuments and Archaeology

5.4.46 Burnley's archaeological sites and remains hold physical evidence of the area's social history and agriculture spanning thousands of years and are recognised as a fragile and finite part of our local and national heritage and culture. These include:

- Scheduled Monuments (Designated Heritage Assets).
- Non-designated Heritage Assets of archaeological interest that are demonstrably of equal significance to Scheduled Monuments.
- Other Non-Designated Heritage Assets of archaeological interest.

⁹⁶ NPPF Paragraph 135

Scheduled Monuments

5.4.47 The Ancient Monuments and Archaeological Areas Act (1979) makes provision for scheduling of monuments. Monuments are normally unoccupied buildings or structures of national archaeological significance, many of which lie hidden beneath the ground in the form of highly sensitive and non-renewable archaeological deposits which are vulnerable to damage or destruction, either from specific works or from gradual degradation over time. The NPPF considers Scheduled Monuments to be of the highest significance and that substantial harm to or loss should be wholly exceptional.⁹⁷

5.4.48 In addition to any planning approval that may be required for proposals affecting scheduled monuments, they also have their own separate statutory consent regime in the form of Scheduled Monument Consent (which must be obtained from the Secretary of State for Digital, Culture, Media and Sport). Development affecting only the setting of a scheduled monument is dealt with wholly under the planning system and Scheduled Monument Consent would not be required.

5.4.49 There are 22 Scheduled Monuments in the borough (see Appendix 4).

Non-Designated Heritage Assets of Archaeological Interest that are demonstrably of equal significance to Scheduled Monuments

5.4.50 There are many other assets of archaeological interest that are not scheduled but that may be considered to be of equal significance. Sites falling into this category include those that have been assessed as being nationally important but which have not been designated usually because they are given appropriate level of protection through national planning policy or other forms of heritage designation; and those that are incapable of being designated because their physical nature is outside the scope of the legal definition of a Monument⁹⁸. The NPPF states that non-designated heritage assets of archaeological interest that are demonstrably of equal significance to Scheduled Monuments should be considered subject to the policies for designated heritage assets⁹⁹.

5.4.51 In line with national policy, the Council will resist planning proposals¹⁰⁰ which would unjustifiably harm the significance of scheduled monuments or non-designated assets of archaeological interest that are demonstrably of equal significance to scheduled monuments and their preservation in situ and undisturbed will normally be required. Where the harm to the site is too great to ensure its continued conservation, but the harm to the significance is outweighed by the public benefits of the proposals, preservation by record (i.e. full excavation, recording and post excavation analysis) may be the appropriate response.

5.4.52 In cases where it is proven that the site and its artefacts are sufficiently robust and are capable of continued burial (or reburial) within the context of the proposed development without harm occurring, a mitigation strategy should be drawn up and agreed by the local authority. This should identify the significance of the site, and what design measures are being taken to ensure that the significance is not harmed by the development. Where a site is of particular archaeological interest, provision for public engagement during site investigations may also be sought.

⁹⁷ NPPF, Paragraph 132

⁹⁸ Identified in Appendix 4 and on the National Heritage List for England <http://historicengland.org.uk/listing/the-list/>

⁹⁹ NPPF, Paragraph 139

¹⁰⁰ See para 4.4.51. The Council is only responsible for determining planning applications affecting scheduled monuments; works of alteration require separate scheduled monument consent from the Secretary of State

Other Non-Designated Heritage Assets of Archaeological Interest.

5.4.53 There are many other archaeological sites of lesser importance but which, nevertheless, form a valuable part of the borough's cultural heritage and merit conservation. These may be identified for inclusion on the local list as non-designated heritage assets (see Policy HE3). On occasion, the understanding of a site may change following assessment and evaluation prior to a planning decision such that it enhances its status as a site of archaeological interest.

5.4.54 Archaeological recording and publication ensures the historic legacy of the borough is documented for research, educational purposes and understanding. Archaeological research should be undertaken at the outset of the development process to enable the identification and understanding of any archaeological remains and inform the level of protection to be assigned and the level of archaeological work that is required. An archaeological assessment should be included with a planning application affecting areas of known or suspected archaeological importance to ensure that appropriate provision is made for their preservation. The Lancashire Historic Environment Record (HER) is the definitive record of all known archaeology in the borough and should be consulted at the outset. Development will need to demonstrate the likely impact upon the significance of the remains and the proposed mitigation to reduce that impact. Where development proposals could affect a Scheduled Monument or its immediate setting, applicants are advised to contact Historic England at an early stage in the planning process.

Policy HE4: Scheduled Monuments and Archaeological Assets

- 1) Development proposals that will lead to substantial harm to, or the total loss of the significance of Scheduled Monuments or other archaeological assets that are of demonstrably equal significance, will only be permitted in wholly exceptional circumstances. Proposals that will lead to less than substantial harm to significance will be permitted only where the harm is clearly and convincingly justified and is outweighed by the public benefits of the proposal.**
- 2) Where development would or is likely to affect the significance of Scheduled Monuments or other archaeological assets that are of demonstrably equal significance, proposals should be accompanied by an assessment of significance and impact. The assessment should describe the likely impacts of the proposal on the significance of the archaeological asset and set out appropriate measures for its preservation, protection, management; together with any mitigation measures, excavations and recording proposals. The level of information required will be appropriate to the assets significance and the scale of likely impact of the proposal, and may require a desk-based archaeological assessment and/or field evaluation. Proposals should also give adequate consideration of how the public understanding and appreciation of such sites could be improved.**
- 3) Where it is accepted that in-situ preservation is not possible or not desirable, adequate provision must be made for excavation, recording and analysis in accordance with a Written Scheme of Investigation approved by the planning authority including where appropriate arrangements for the storage/relocation of assets. Research and recording must be appropriately archived in a way agreed with the Council.**
- 4) Proposals that affect other non-designated archaeological assets will be judged on the significance of the asset and the scale of likely harm to establish whether the development is acceptable in principle. Whilst the preferred approach will be to seek to avoid damage to such remains through their preservation in situ, when in-situ preservation is not judged to be necessary, the developer will be required to make adequate provision for excavation, recording and analysis and where appropriate the storage/relocation of assets. Research and recording must be appropriately archived in a way agreed with the Council.**

Policies in this Section:

NE1: Biodiversity and Ecological Networks	NE4: Trees, Hedgerows and Woodland
NE2: Protected Open Space	NE5: Environmental Protection
NE3: Landscape Character	

5.5 Natural Environment**Protecting Biodiversity**

5.5.1 Section 40 of the Natural Environment and Rural Communities Act 2006 places a duty on all public authorities in England and Wales to have regard, in the exercise of their functions, to the purpose of conserving biodiversity. Local planning authorities should take a pragmatic approach, the aim should be to fulfil statutory obligations in a way that minimises delays and burdens.

5.5.2 The NPPF in paragraph 9 states that pursuing sustainable development involves seeking positive improvements in the quality of the built, natural and historic environment, as well as in people's quality of life, including (but not limited to):

- making it easier for jobs to be created in cities, towns and villages;
- moving from a net loss of bio-diversity to achieving net gains for nature;
- replacing poor design with better design;
- improving the conditions in which people live, work, travel and take leisure; and
- widening the choice of high quality homes.

5.5.3 The NPPF states at para 109 that the planning system should contribute to and enhance the natural and local environment by:

- protecting and enhancing valued landscapes, geological conservation interests and soils;
- recognising the wider benefits of ecosystem services;
- minimising impacts on biodiversity and providing net gains in biodiversity where possible, contributing to the Government's commitment to halt the overall decline in biodiversity, including by establishing coherent ecological networks that are more resilient to current and future pressures.
- preventing both new and existing development from contributing to or being put at unacceptable risk from, or being adversely affected by unacceptable levels of soil, air, water or noise pollution or land instability; and
- remediating and mitigating despoiled, degraded, derelict, contaminated and unstable land, where appropriate.

Sites of International and National Importance

5.5.4 As set out in Section 2, the borough includes parts of designated sites of international importance for nature conservation in the form of the South Pennines Special Protection Area (SPA) and Special Area of Conservation (SAC). The South Pennine Moors is also nationally protected as a UK Site of Special Scientific Interest (SSSI), the only such site in the borough.

5.5.5 Where a plan or project is likely to have a significant effect on a European Site (SAC/SPA) (either individually or in combination with other plans and projects) and is not directly connected with or necessary to the management of the site, the Habitats Regulations require an Appropriate Assessment of the implications for the site. In light of the conclusions of the Assessment, the

competent authority shall agree to the plan or project only after ascertaining that it will not adversely affect the integrity of the site concerned, taking into account any mitigation measures proposed. In considering new development the Council will ensure that the requirements of the Habitats Regulations are met. These requirements do not only apply to development within the International Sites themselves. Development on sites outwith the designated sites can have significant effects on them and the qualifying species present. The Council's Habitats Regulation Assessment (March 2018) explains this and has identified six proposed housing allocations in and around Worsthorne and Brownside where sites may be used for foraging by qualifying bird species. The requirement for ecological surveys at the time of any planning application to establish the presence of qualifying species has been included in the site specific requirements set out in Policy HS1. These surveys will inform whether a Habitats Regulations Assessment is needed and address any mitigation required. This may include the retention of particularly suitable land within the sites or the creation or long term maintenance of alternative suitable habitat.

Regional and Local Sites

5.5.6 Burnley has 43 Local Wildlife Sites, known in Lancashire as Biological Heritage Sites (BHS). These are the most important non-statutory wildlife sites in Lancashire and cover a wide variety of habitats such as ancient woodland, grassland, and wetlands. The quality and interconnectivity of these sites is vital to sustain wildlife in the context of pressures arising from urbanisation, agricultural intensification and climate change.

5.5.7 Burnley also has five Local Geodiversity Sites (LGS) (formerly Regionally Important Geological and Geomorphological Sites) identified by GeoLancashire as the most important places for geology and geomorphology outside statutorily protected sites such as SSSIs. They are important as an educational, historical and recreational resource.

5.5.8 No allocations are proposed on nationally or internationally designated sites or on BHS or LGS, and policies in the plan will seek to protect these sites from development. These sites are shown on the Policies Map.

5.5.9 The Burnley Wildlife and Habitat Survey 2007¹⁰¹ surveyed all the BHS and other sites of known potential wildlife value in the borough and identified a small number of sites considered worthy of BHS status or which could extend existing BHS and others that could be downgraded from BHS status to local wildlife sites of borough rather than county significance. It is understood that these recommendations have not to date been accepted by the County BHS Review Panel.

Local Nature Reserves

5.5.10 Local Nature Reserves (LNRs) are a statutory designation made under Section 21 of the National Parks and Access to the Countryside Act 1949. There are two Local Nature Reserves (LNR) in Burnley - the Deer Pond in Towneley Park and Lowerhouse Lodges. Both are also BHSs. The land area of these two nature reserves totals 11.47 hectares. LNRs are for both people and wildlife offering convenient access to nature and providing special opportunities to study or learn about nature or simply to enjoy it. All district and county councils have powers to acquire, declare and manage LNRs. To qualify for LNR status, a site must be locally important for wildlife, geology, education or public enjoyment.

5.5.11 The Burnley Green Infrastructure (GI) Strategy 2013 highlights the under-provision of LNRs in Burnley. Natural England recommends 1 hectare of LNR per 1,000 population. On that basis

¹⁰¹ Golder Associates for Burnley Borough Council December 2007

Burnley should have 87 hectares of designated LNR, which would mean that the borough has a shortfall of 75.53 hectares. The establishment of further LNRs over the Plan period would significantly enhance biodiversity and increase access to nature for residents.

5.5.12 The GI strategy identified a number of 'areas of search' for additional LNRs and the Council's Green Spaces Strategy 2015 recommended that these be progressed towards LNR designation in partnership with Burnley Wildlife Forum and Lancashire Wildlife Trust (recommendation NSN2). Possible areas of search were included in the Issues and Options Local Plan of 2014. Whilst the precise boundaries of these potential new LNRs have not been drawn up or declarations pursued they are likely to be within the areas identified as Protected Open Space under Policy NE2 and/or sites identified as BHS or outwith the Development Boundaries.

Protected Species

5.5.13 A number of species of plants, birds and animals are specifically protected by European or national legislation due to their significance or vulnerability. The level of protection will vary according to the species and the particular legislation that protects it, but in general they will be protected from taking, killing or injuring or from the damage or destruction of a breeding site or resting place. Where development would affect such species, the developer needs to put in place measures to protect the species in question. This may involve providing alternative habitat for the species or actually moving (translocating) the species temporarily or permanently. Where development requires planning permission and is likely to result in harm to a protected species or its habitat, the Council will expect a developer to provide an ecological survey and/or details of measures to safeguard the species in order that the Council can properly address the issue, taking advice, including from Natural England, as necessary.

5.5.14 The aim of protected species legislation is to protect the populations of the species, not necessarily to protect them or their habitats in situ.

Priority Habitats and Species

5.5.15 England's Biodiversity List published under Section 40 of the Natural Environment and Rural Communities Act 2006 (NERC Act) by the Secretary of State lists species of flora and fauna and habitats considered to be of principal importance for the purpose of conserving biodiversity. These are known as Priority Habitats and Species and some of these may be protected under other designations e.g. SSSIs or protected species legislation. The list of habitat types is extensive and not all are mapped. The aim of the list is to protect the populations of the species and extent of habitats that support them, not necessarily protect the species or habitats in situ.

Ecological Networks

5.5.16 Ecological networks are habitat patches suitable for particular types of species connected by movement corridors through the intervening habitat matrix which are important for maintaining biodiversity. Lancashire County Council has identified three key ecological networks across Lancashire; grassland, woodland and heath/wetland,¹⁰² collectively known as the 'Lancashire Ecological Network.' To date, specific ecological networks have been identified and mapped for grassland and woodland habitats. These are identified on the Policies Map. Work on a wetland and heath network is at a draft stage.

¹⁰² Lancashire Ecological Network and Framework report 2013

5.5.17 These networks are made up of 'core sites' and 'corridors'. Statutorily protected sites and BHSs are core sites, whilst the corridors fall into three types: 'linear' features such as rivers or woodland; 'stepping stones' - small patches of intact habitat that may be Priority Habitats; and 'landscape' corridors - mixed habitat types that allow species to move between habitat patches.

5.5.18 These networks also form important Green Infrastructure links which Policy SP6 seeks to protect, enhance and extend. Collectively, they form a network of corridors and stepping stones, allowing the survival and dispersal of species of biodiversity priority.

Policy

5.5.19 Whilst legislation and national policy affords the highest protection to the international designations, European protected species and nationally protected species, the Council is aware of the importance of its wider duty to conserving biodiversity. The Local Plan seeks to ensure that these important issues are effectively integrated into its spatial approach.

5.5.20 In developing the Local Plan, a desk top study of potential site allocations and their known ecological assets was carried out for the Council by the Lancashire Environment Record Network (LERN) (June 2015 and December 2016 supplement). This incorporated the results of the site walkover survey work carried out for a majority of the sites. Further site survey work was carried out in 2017 for the remaining sites.

5.5.21 No allocations are proposed on designated sites and policies in the Plan will seek to protect these sites from development.

5.5.22 A number of the sites considered for allocation are known or likely to house Protected or Priority Species or comprise or include Priority Habitats.

5.5.23 Where appropriate and in particular where Protected Species and/or Priority Habitats or Species are known or likely to be present, developers will be expected to undertake appropriate ecological surveys prior to the submission of planning applications, and where appropriate, to take advice from suitably qualified and experienced persons who hold any necessary survey licences for protected species. Development should avoid harm to Protected Species and/or implement appropriate mitigation measures and/or provide compensatory habitat as necessary.

5.5.24 Scoping surveys (often called extended phase 1 surveys) are useful for assessing whether a species-specific survey is needed. Ecological surveys and assessments should be proportionate to the nature and scale of development proposed and the likely impact on biodiversity. All surveys should be carried out at the right time of year, using methods that are appropriate for the range of habitats present and the flora and fauna species likely to be found.

5.5.25 Lists of ecological consultants and further guidance on conducting ecological surveys may be available from relevant professional institutes, for example, the Chartered Institute of Ecology and Environmental Management (CIEEM).¹⁰³ Developers should take advice from Natural England where European Protected Species are known or likely to be present as a mitigation licence may be required.¹⁰⁴ Free or paid advice on certain developments is available from Natural England.¹⁰⁵

¹⁰³ <http://www.lancashire.gov.uk/council/planning/planning-application-process/ecology/ecology-advice-for-developers/ecological-impact-assessment-mitigation-and-compensation.aspx>

¹⁰⁴ Licences may be required for proposals that would affect protected European protected species including for works to capture rescue or translocation. Planning consent does not over-ride the need to obtain such licences.

¹⁰⁵ <https://www.gov.uk/guidance/developers-get-environmental-advice-on-your-planning-proposals#get-free-advice>

Policy NE1: Biodiversity and Ecological Networks

- 1) All development proposals should, as appropriate to their nature and scale, seek opportunities to maintain and actively enhance biodiversity in order to provide net gains where possible.

Development affecting Sites of National and International Importance

- 2) Development proposals which are likely to have a significant effect on a European Site (SAC/SPA)¹⁰⁶ (either individually or in combination with other plans and projects) should be subject to an Appropriate Assessment. Development that is considered to adversely affect the integrity of a European Site will not be permitted.

- 3) Development proposals will not be permitted where there is likely to be an adverse effect on sites of national importance for biodiversity and/or geology.¹⁰⁷ In exceptional circumstances, development proposals may be considered acceptable where the benefits of the development clearly outweigh both the impacts that the development is likely to have on the defining features of the site and the broader impacts on the national network of that designation. Where adverse effects are unavoidable, these should be minimised and mitigated against, and where this cannot be achieved, compensated for.

Development affecting local and regional sites

- 4) Development proposals will not normally be permitted where there is likely to be an adverse effect on sites identified as being of local or regional importance for biodiversity and/or geology¹⁰⁸ unless the benefits of the development clearly outweigh the impacts that the development is likely to have on the key ecological features of the site and the wider Ecological Network. Where an adverse effect is likely, applications should be accompanied by a detailed ecological assessment from suitably qualified or experienced persons. Where adverse effects are unavoidable these should be minimised and mitigated against, and where this cannot be achieved, compensated for.

Development affecting Protected and/or Priority Species and Priority Habitats

- 5) Where sites are known or likely to house Protected Species, Priority Species and Priority Habitats, surveys should be carried out by suitably qualified or experienced persons to establish the presence, extent and density of these species and habitats before planning applications are determined and appropriate measures should be taken to safeguard these habitats and species before any development commences.
- 6) For Protected and Priority Species, the first preference is to avoid disturbance, the second to provide suitable inter-connecting new habitats for these species within the development site. If this is not feasible, suitable alternative habitats should be provided such that there is no net loss of biodiversity.
- 7) For Priority Habitats, where practicable, areas of Priority Habitat should be retained, enhanced or created within the development site, or, suitable alternative habitat created elsewhere. If this is not feasible, contributions towards the cost of habitat creation or

¹⁰⁶ In the borough these currently comprise the SAC/SPA (see paras 2.7.11 and 5.5.4) but could in future include the sites types listed in para 118 of the NPPF - if identified

¹⁰⁷ Sites of Special Scientific Interest (SSSI)

¹⁰⁸ Biological Heritage Sites, Local Geodiversity Sites, Local Nature Reserves

improvement elsewhere may be required. Where for reasons of viability none of the above solutions are possible, the benefits of the development should clearly outweigh the loss of the habitat concerned.

Maintaining Ecological Networks

8) Where development may adversely affect the effective functioning or connectivity of Ecological Networks defined on the Policies Map, in addition to meeting any of the above listed policy requirements, schemes should:

- a) Where practicable, retain and enhance existing landscape and natural features (e.g. trees, hedges, river banks, watercourses, water bodies and important habitats) in accordance with Policies SP6 and NE2; and**
- b) Ensure an alternative corridor can be provided to ensure equivalent connectivity is maintained.**

Open Spaces

5.5.26 Parks and green spaces are good for people's health, the local economy and the environment. There is unequivocal evidence that living in proximity to green spaces increases well-being and reduces mortality rates regardless of income. Living near to green spaces is proven to encourage physical activity and reduce obesity and stress, which are two of the most significant health issues facing the UK.

5.5.27 Green spaces also help to create attractive environments in which people will choose to live and in which business will invest.

5.5.28 The NPPF identifies that: "Access to high quality open spaces and opportunities for sport and recreation can make an important contribution to the health and well-being of communities" and paragraph 73 states that planning policies should be based on robust and up-to-date assessments of the needs for open space, sports and recreation facilities and opportunities for new provision.

5.5.29 The Council's Green Spaces Strategy 2015-2025 provides a comprehensive audit of all types of green space in terms of quality, quantity and accessibility. It identifies local quantity, quality and accessibility standards for each type of open space and uses these local standards to identify surpluses or deficiencies with recommendations for resolving any key issues. The Strategy divides open space into a number of typologies. It also informs the open space requirements for new housing developments set out in Policy HS4.

5.5.30 The provision of playing pitches is considered in the separate Playing Pitch Strategy that the Council has jointly prepared with Pendle and Rossendale Borough Councils (see paragraph 5.7.24). Some playing pitches will be within open spaces protected under Policy NE2 or protected as wider green infrastructure under Policy SP6; but their function in terms of meeting identified sporting need and any development proposals affecting their provision as such would be assessed under Policy IC5.

5.5.31 In meeting the development requirements identified in Policies SP3 and SP4, and the NPPF's approach to housing development which seeks to boost significantly the supply of housing including by meeting in full the demand for affordable and market housing, open spaces within settlements can come under pressure from development as well as the open countryside.

5.5.32 The Plan therefore proposes to identify and protect the most important of these remaining open spaces. These are identified on the Policies Map and listed in Appendix 7. Whilst the policy protection set out in NE2 applies to all these protected open spaces, their typology will inform what development if any could be supported within them e.g. development to enhance their recreational, community and nature conservation value may be acceptable.

5.5.33 The sites to be protected were identified using a bespoke appraisal of all the Council's greenspaces scored against criteria relating to their scarcity, quality, visual amenity and GI functions. This work will be published as an addendum to the Council's Green Spaces Strategy. It could be used by communities to help identify Local Green Space e.g. on non-Council owned land in Neighbourhood Plans.¹⁰⁹

5.5.34 In addition to the open spaces protected under Policy NE2, certain other types of open space will be protected either in situ e.g. as SSSIs and BHSs (NE1), Registered Parks and Gardens (HE2); or in terms of requiring alternative provision where these are to be lost to development e.g. playing fields and pitches (Policy IC5). Where development which is otherwise acceptable affects other open spaces not identified for specific protection under Policy NE2, their location for example as within an Ecological Network corridor (NE1) and their importance as green infrastructure (SP6) will be assessed including against the Council's Green Spaces Strategy to determine whether part of the site should be retained or enhanced as open space or alternative provision made in areas where there is or would be a deficit of open space.

Policy NE2: Protected Open Space

- 1) Development will not be permitted within the Protected Open Spaces shown on the Policies Map except where the proposals are for appropriate recreational, community and nature conservation uses and where any building and structures would not undermine the fundamental purpose and nature of the site as open space.**
- 2) Protected Open Spaces should be maintained and enhanced for the recreational, amenity, biodiversity or other benefits they provide and as an important component of Burnley's green infrastructure network.**

Landscape Character

5.5.35 One of the core principles in the NPPF is that planning should recognise the intrinsic character and beauty of the countryside. It states that the planning system should contribute to and enhance the natural and local environment by, amongst other things, protecting and enhancing valued landscapes. It further states that local plans should include strategic policies for the conservation and enhancement of the natural and historic environment, including landscape.¹¹⁰

5.5.36 An estimated 80% of the borough is open land and the borough's open landscapes are one of its greatest assets. They provide a visually striking setting for the urban area, a recreational resource and a 'green lung' in close proximity to the built-up area. Burnley's identity and its distinctive sense of place and history is derived from the quality of its natural landscape and from its industrial heritage, in particular its textile heritage.

¹⁰⁹ Local Green Space is defined in the NPPF paras 76, 77 and 78

¹¹⁰ NPPF paras 17, 109 and 156

5.5.37 The borough falls across two National Character Areas; No. 35 Lancashire Valleys (2013) and No. 36 Southern Pennines (2012).¹¹¹

5.5.38 The Landscape Strategy for Lancashire¹¹² included a Landscape Character Assessment that identified 21 landscape character types and three urban landscape types across the County. Six of these are found in Burnley:

- Moorland Plateaux of the South Pennine Moors
- Moorland Fringe of the Trawden Fringe
- Industrial Foothills and Valleys of the Calder Valley
- Industrial Foothills and Valleys of the Cliviger Gorge
- Enclosed Uplands of the Rossendale Hills
- Settled Valleys of the Irwell

5.5.39 The Landscape Strategy makes specific, detailed recommendations for the planning and management of these landscape types.

5.5.40 The 'South Pennines Wind Energy Landscape Study' (October 2014) and 'Landscape Guidance for Wind Turbines up to 60m high in the South and West Pennines' (January 2013) also includes a detailed analysis of local landscape characteristics.

Protecting and Responding to Landscape Character

5.5.41 Natural features combine with man-made features and human activity (past and present) to create landscape character which contributes to local distinctiveness and reflects the long-term interaction between human activity and natural processes. The individual or cumulative impact of development or land-use change can detrimentally affect landscape character.

5.5.42 Where development is judged to be acceptable in principle e.g. on allocated sites, suitable sites within the Development Boundaries or development in the open countryside that accords with Policy SP4; development may inevitably change the character of the existing landscape. Such development in its design and layout can still respect the existing landscape character, for example by respecting existing contours, retaining key field boundaries such as dry stone walls or hedgerows, following historic and traditional development patterns e.g. addressing village road/green or verge frontages, retaining and incorporating existing mature trees and avoiding overly urbanized forms of development in rural areas e.g. standard pavement and street-lighting schemes and highly engineered cul-de-sacs.

5.5.43 Development should be sensitively designed to contribute positively to the character of the local landscape in terms of its location, siting and design wherever possible. The Lancashire Landscape Character Assessment and National Character Area Profiles 35 and 36 are important tools to inform design decisions on the impact of development on the local landscape.

5.5.44 Good design can often avoid the need for screening which itself can appear incongruous in the landscape. Where landscape screening is appropriate and for landscape schemes in general, this should utilise native species to maintain or where possible enhance biodiversity.

5.5.45 As appropriate to their nature and scale, planning applications should be supported by a landscaping scheme that responds to the above matters and includes new landscaping measures

¹¹¹ NCA's are areas that share similar landscape characteristics compiled by Natural England, full details of each of the NCA's can be viewed at <http://publications.naturalengland.org.uk/publication/12237027>

¹¹² Lancashire County Council 2000 available at <http://www.lancashire.gov.uk/council/strategies-policies-plans/environmental/landscape-strategy.aspx>

that positively integrate the development into the landscape character of the area. In some cases they should also be supported by a landscape analysis which should take account of, as a minimum, the Lancashire Landscape Strategy and information obtained from the Lancashire Historic Environment Record.

Policy NE3: Landscape Character

- 1) The Council will expect development proposals to respect and where possible, enhance and restore landscape character, as appropriate to their nature and scale. Development proposals should ensure that:**
 - a) They relate well to local topography and built form and are of an appropriate scale, siting, layout, design, density and use of materials to minimise the impact on the landscape character of the site and its surroundings;**
 - b) They are designed and located to ensure that the health and future retention of important landscape features is not likely to be prejudiced and include provisions for the long term management and maintenance of any existing and proposed landscaping, woodlands and trees;**
 - c) They avoid detrimental effects on or loss of features that make a significant contribution to the particular landscape character type, and where possible proposals should aim to conserve, enhance or restore important natural and historic landscape features such as farmsteads and barns, mills, ponds, lodges and bridges and protect historic field boundaries, including individual trees, stone walls and hedgerows that make a positive contribution to the character of the landscape type;**
 - d) They maintain and extend tree cover, where practicable, through the retention of important trees, appropriate replacement of trees to be lost and new planting to support green infrastructure;**
 - e) They incorporate native screen planting as a buffer to soften the edge of the building line in valley side locations; and**
 - f) They do not have an unacceptable visual impact on skylines, key views and roofscapes and undertake measures, such as landscaping, to reduce those impacts where appropriate.**
- 2) Planning applications should be supported by a landscaping scheme that responds to the above matters and includes new landscaping measures that positively integrate the development into the landscape character of the area.**
- 3) Planning applications should be supported by a landscape analysis and management plan in appropriate cases. This should take account of, as a minimum, the Lancashire Landscape Strategy and information obtained from the Lancashire Historic Environment Record.**

Trees, Hedgerows and Woodland

5.5.46 The importance of trees in delivering high quality places to live, work and spend leisure time is widely recognised. Trees add significant value to development in terms of social (health and well-being), economic (improving the image and desirability of an area) and environmental (shading from the sun, reducing flooding and improving air quality) benefits. Integrating trees and associated green spaces into developments early in the design process can minimise costs and maximise the benefits they can provide.

5.5.47 The NPPF at paragraph 118 states that “planning permission should be refused for development resulting in the loss or deterioration of irreplaceable habitats, including ancient woodland and the loss of aged or veteran trees found outside ancient woodland, unless the need for, and benefits of, the development in that location clearly outweigh the loss.”

5.5.48 Local planning authorities have a wider statutory duty when determining planning applications to include appropriate and adequate provision for the preservation and planting of trees. They also have a duty to consider the making of tree preservation orders for individual trees, groups of trees or woodlands.¹¹³

5.5.49 The Council will consider the making of Tree Preservation Orders (TPOs) in respect of trees of moderate and high quality which have life expectancy of at least 10 years and are of visual amenity value. TPOs could be made in response to perceived threats e.g. development proposals, notifications of proposed works to trees in Conservation Areas; or following work or studies which have identified trees of exceptional landscape value, e.g. areas where tree cover is particularly low, trees that contribute to the setting of a listed building, trees which are part of a deliberate composition e.g. a focal point or an avenue, trees which aid screening and buffering (visual/noise) and trees with historical or botanical interest or of particular importance as wildlife habitat. Threats will include felling or poor quality or unnecessary pruning such as lopping and topping.

5.5.50 Hedgerows provide important habitat for a range of flora and fauna. Under the Hedgerows Regulations 1997 it is unlawful to remove or destroy certain hedgerows without permission from the local planning authority. Permission is normally required to remove hedgerows that are at least 20 metres in length, more than 30 years old and contain certain plant species. The Council will assess the importance of the hedgerow using criteria set out in the regulations before deciding whether to grant permission.

5.5.51 Development proposals which involve the loss of protected, aged, veteran trees or areas of mature or ancient woodland will not be supported unless the public benefits of the proposal clearly and demonstrably outweigh the loss. For other trees and hedgerows, development proposals should also seek to retain these, or where this is not practicable or desirable taking into account their species, condition or location, replacement trees and planting may be required, either directly or through a planning contribution. Development will be expected to retain prominent mature healthy trees.

5.5.52 In order to properly assess potential impacts, where there are trees that could affect, or be affected by a planning application, the Council may require a tree survey to be submitted in support of the application indicating which trees are to be retained and how these will be protected during construction works. This requirement will normally apply to trees which:

- have a stem diameter of 75mm or more, measured at 1.5m above highest adjacent ground level; and are:
- within the development site, or
- overhang it or are located beyond the site boundaries but within a distance of up to 12 times their estimated stem diameter of the proposed building works;¹¹⁴

¹¹³ Sections 197 and 198 of the Town and Country Planning Act 1990

¹¹⁴ BS 5837 2012 Trees in relation to design, demolition and construction - Recommendations:

Policy NE4: Trees, Hedgerows and Woodland

Protected trees, hedgerows and woodland

- 1) Development proposals that lead to a loss of protected trees, important¹¹⁵ hedgerows, prominent mature or aged or veteran trees or areas of mature or ancient woodland will not normally be permitted.
- 2) The Council will consider the making of Tree Preservation Orders where trees of moderate and high quality which have a life expectancy of at least 10 years and are of visual amenity value may be affected by future development or have been recognised as having public value.
- 3) Works to protected trees will only be granted consent where these:
 - a) Would not adversely affect the appearance of the tree and the contribution it makes to the visual amenity of the locality; or
 - b) Would improve the health and/or amenity value of the tree.
- 4) The felling of protected trees will only be allowed where:
 - a) The tree is demonstrated to the Council's satisfaction to be in poor health and/or to have lost its intrinsic visual amenity value; or
 - b) The tree is causing demonstrable harm/damage to the structural integrity of a building or structure, (evidenced by a structural and arboricultural report prepared by appropriately qualified consultant(s)), and the harm cannot be remedied by other reasonable means.
- 5) Where the felling of protected trees is allowed, replacement planting will normally be required.

Trees and hedgerows within development sites

- 6) Development proposals should provide for the protection and integration of other existing trees and hedgerows for their wildlife, landscape and/or amenity value. Where trees or hedgerows will be lost due to new development and this is considered acceptable on balance, the Council may require developers to replant trees of appropriate species on site where it is practicable to do so; or off site where it is not. The extent of replanting will not necessarily be a 1:1 ratio but will reflect the age, number and size of trees or length of hedgerows to be lost and the environment and likely survival rate for replacement trees. Where development proposals would affect or be affected by trees or established woodland on or adjacent to the development site, the Council may expect planning applications to be accompanied by:
 - a) An arboricultural survey prepared by a suitably qualified and experienced person in accordance with BS: 5837 (2012) 'Trees in Relation to Design, Demolition and Construction' and any subsequent revisions.
 - b) A landscaping scheme which clearly shows adequate spacing between trees and buildings, taking into account the existing and future size of trees, both above and below ground.

¹¹⁵ 'Important' is defined in the Hedgerow Regulations 1997 <http://www.legislation.gov.uk/uksi/1997/1160/contents>

Environmental Protection

5.5.53 Excessive levels of air, land, noise, energy, vibration, light and water pollution have the potential to have an adverse impact on environmental quality, ecology, health and wellbeing. It is therefore essential to ensure that, wherever possible, all forms of pollution are considered, controlled and mitigated against as part of the development process.

5.5.54 The NPPF at paragraph 110 states that in preparing plans to meet development needs, the aim should be to minimise pollution and other adverse effects on the local and natural environment and at paragraph 109 that the planning system should contribute to:

- preventing both new and existing development from contributing to or being put at unacceptable risk from, or being adversely affected by unacceptable levels of soil, air, water or noise pollution or land instability; and
- remediating and mitigating despoiled, degraded, derelict, contaminated and unstable land, where appropriate.

5.5.55 The NPPF at paragraph 14 also requires the Local Plan to meet objectively assessed needs unless: any adverse impacts of doing so would significantly and demonstrably outweigh the benefits, when assessed against the policies in the NPPF taken as a whole; or specific policies in the NPPF indicate development should be restricted.

5.5.56 These imperatives can sometimes pull in different directions. Housing, employment, retail and leisure developments will have impacts on the environment. Many of these impacts can be avoided by location and design, whilst others cannot e.g. many developments will generate additional vehicle journeys both during their construction and operation. In such cases, where development is required to meet identified requirements, including on sites specifically allocated for development in the Plan, and in circumstances where short or longer term adverse impacts cannot be entirely avoided, the Council will expect appropriate mitigation measures to be explored.

5.5.57 In failing to meet legislative air quality limits for nitrogen dioxide emissions, the Government has made a commitment to improve air quality in the UK. Implementing measures to reduce air pollution at a local level is therefore extremely important. Although there are no formal Air Quality Management Areas (AQMAs) in the borough,¹¹⁶ there are several areas of the borough where traffic emissions are impacting on air quality.¹¹⁷ Paragraph 124 of the NPPF states: "Planning policies should sustain compliance with and contribute towards EU limit values or national objectives for pollutants, taking into account the presence of Air Quality Management Areas and the cumulative impacts on air quality from individual sites in local areas. Planning decisions should ensure that any new development in Air Quality Management Areas is consistent with the local air quality action plan."

5.5.58 Policy SP4 sets out the Plan's overall development strategy and seeks to focus development on Burnley and Padiham and in other in areas accessible by public transport. Policies SP4 and SP5 set out the requirements for addressing energy efficiency through design. Policies IC1 and IC2 set

¹¹⁶ The Council monitors for the pollutant nitrogen dioxide (NO₂) at 25 sites throughout the borough. At March 2018 there had been no annual exceedances in relation to those sites with the annual maximum mean for NO₂ being 40 micrograms per metre cubed. <https://www.burnley.gov.uk/business/environmental-health/environmental-protection/air-quality-burnley>

¹¹⁷ Local Air Quality Management Policy Guidance (PG16) <http://laqm.defra.gov.uk/documents/LAQM-PG16-April-16-v1.pdf> DERFA

out policies to encourage the use of more sustainable forms of transport and Policy IC3 includes provision for charging points for ultra-low emission vehicles (e.g. electric cars).

5.5.59 Where a specific development proposal has the potential to result in adverse environmental effects, the Council will adopt the 'polluter pays' principle whereby the developer should meet the costs of mitigation or contribute towards environmental improvements elsewhere through planning contributions. The cumulative effects of various sources of pollution will be taken into account and detailed assessments to evaluate the level of risk and to identify appropriate measures to satisfactorily mitigate the risk of pollution may be required.

5.5.60 Development that is sensitive to pollution that is within legal limits will not be appropriate where existing sources of pollution cannot be satisfactorily mitigated or where it would prejudice the viability of other important land uses by reasons of its sensitivity to pollution.

5.5.61 Policy NE5 deals with the light pollution aspect of external lighting schemes. Other policies address the impact and design of lighting units e.g. SP4, SP5, NE3 TC8 and any relevant historic environment policies.

5.5.62 The Borough has a legacy of sites which are unstable or potentially unstable due to past mining, quarrying and landfilling activity. The Coal Authority has identified locations of potential instability arising from historic coal mining activity, which may contain one or more of such legacy issues, as 'Development High Risk Areas'.¹¹⁸ These High Risk Areas cover some 23% of the borough and whilst most sites are likely to be unaffected, there is a potential for direct risks associated with subsidence and the potential collapse of workings and shafts in these areas. Instability may also arise from factors such as natural underground cavities, natural or artificial slopes, subsidence, or ground compression. The Council will require surveys of land that is potentially unstable to demonstrate that land is or can be made safe for occupiers and neighbours.

5.5.63 Where development may affect protected nature conservation sites or species e.g. through light pollution, or groundwater or watercourses, early engagement should be made by the applicant with Natural England, the Environment Agency and United Utilities, as appropriate.

Policy NE5: Environmental Protection

1) Development proposals, as appropriate to their nature and scale, should demonstrate that environmental risks have been evaluated and appropriate measures have been taken to minimise the risks of adverse impacts to air, land and water quality, whilst assessing vibration, heat, energy, light and noise pollution both during their construction and in their operation.

Air Quality

2) The Council will seek to ensure that proposals for new development will not have an unacceptable negative impact on air quality and will not further exacerbate air quality in AQMAs or contribute to air pollution in areas which may result in an AQMA. Applicants should consult with the Council's environmental health service to establish if the proposed development is located within an AQMA.

3) An air quality assessment will be required where a development may result in a significant increase in air pollution, or lead to a significant deterioration in local air quality resulting in unacceptable effects on human health, local amenity and/or the environment. Assessments shall address the following:

¹¹⁸ Development High Risk Areas are shown on a plan entitled "Coal Mining Referral Area" available on The Coal Authority website

- a) The existing background levels of air pollution;
- b) Existing developments and sources of air pollution throughout the borough and the cumulative effect of planned developments; and
- c) The feasibility of any mitigation measures that would reduce the impact of the development on local air quality.
- 4) The Council will support and promote the provision of charging points for ultra-low emission vehicles.¹¹⁹

Light Pollution

- 5) New lighting schemes should be appropriate to the type of development and its location. Proposals for outdoor lighting should not have an unacceptable adverse impact by reason of light spillage or glare on neighbouring building/uses, the countryside, highway safety or biodiversity in line with Policy NE4. Where appropriate, a light impact assessment will be required as part of the application submission.

Noise Pollution

- 6) Developments generating noise which is likely to create significant adverse impacts on health and quality of life and cannot be mitigated and controlled through the use of conditions or through pre-existing effective legislative regimes, will not be permitted.

Contaminated Land¹²⁰

- 7) On sites that are known to be or potentially contaminated,¹²¹ applicants will be expected to carry out an appropriate survey by a suitably qualified and experienced person.
 - a) A Phase 1 Desk Study will be required for any application which results in a sensitive end use on a site where such a site is or may be contaminated by virtue of previous users.
 - b) A Phase 2 Study will be required if the site is known or identified as having high levels of contamination. A Remediation Strategy shall be provided by the developer to bring the site to an acceptable level of condition which is relevant to the proposed use.

Unstable Land

- 8) On sites that are known to be or where there is reason to suspect them to be unstable and the risk of instability has the potential to materially affect either the proposed development or neighbouring uses/ occupiers, applicants will be expected to carry out an appropriate assessment by a suitably qualified and experienced person to demonstrate that the proposed development is safe and stable or can be made so. This should:
 - a) Include a preliminary assessment including a desk based survey of the previous uses of the site and their potential for instability in relation to the proposed development; and
 - b) Where the preliminary assessment establishes that instability is likely but does not provide sufficient information to establish its precise extent or nature, site investigation and risk assessment must be carried out to determine the standard of remediation required to make the site suitable for its intended use.

¹¹⁹ Specific minimum provision standards are set out in Policy IC3 – Appendix 9

¹²⁰ Refer to definition in the Environmental Protection Act 1990: Part 2A Contaminated Land Statutory Guidance, DEFRA

¹²¹ The Council maintains a contaminated land register

9) Where remediation, treatment or mitigation works are considered necessary to make the site safe and stable and/or to protect wider public safety, conditions or obligations will be imposed to ensure appropriate works are completed prior to the commencement of development or in accordance with an alternative programme agreed.

Water Quality

10) Development will not be permitted where it would have an adverse effect on the quality or quantity of groundwater resources or watercourses and water bodies.

Policies in this Section

CC1: Renewable and Low Carbon Energy (not including wind)	CC4: Development and Flood Risk
CC2: Suitable Areas for Wind Energy Development	CC5: Surface Water Management and Sustainable Drainage Systems (SuDS)
CC3: Wind Energy Development	

5.6 Climate Change

Renewable Energy

National Planning Policy Background

5.6.1 The Government has taken a number of steps to limit the UK's emissions of greenhouse gases through legally binding targets, both now and in the future. As part of an international effort the UK has been signed up to the Kyoto Protocol since 1995 and in 2016 ratified the Paris Agreement. The 2008 Climate Change Act commits the Government to reducing targeted UK greenhouse gas emissions by at least 80% in 2050 from 1990 levels.

5.6.2 Section 19 (1A) of the Planning and Compulsory Purchase Act 2004 requires local planning authorities to include in their Local Plans "policies designed to secure that the development and use of land in the local planning authority's area contribute to the mitigation of, and adaptation to, climate change".

5.6.3 Paragraph 94 of the NPPF states that local planning authorities should adopt proactive strategies to mitigate and adapt to climate change, taking full account of flood risk, coastal change and water supply and demand considerations in line with the objectives and provisions of the Climate Change Act 2008. One of the NPPF's core planning principles is to support the transition to a low carbon future in a changing climate, taking full account of flood risk and coastal change, by amongst other things, encouraging the use of renewable resources. In Paragraph 93 it identifies the key role planning plays in shaping places to:

- Secure radical reductions in greenhouse gas emissions
- Minimise vulnerability and provide resilience to the impacts of climate change; and
- Support the delivery of renewable and low carbon energy and associated infrastructure

5.6.4 Examples of actions which could impact on climate change by reducing emissions include:

- Reducing the need to travel and providing for sustainable transport
- Providing opportunities for renewable and low carbon energy generation
- Providing opportunities for decentralised energy and heating
- Promoting low carbon design approaches to reduce energy consumption in buildings

5.6.5 Examples of actions which could help adaptation to a changing climate include:

- Considering future climate risks when allocating development sites to ensure risks are understood over the development's lifetime
- Considering the impact of, and promoting design responses to, flood risk and coastal change for the lifetime of the development
- Considering availability of water and water infrastructure for the lifetime of the development and design responses to promote water efficiency and protect water quality
- Promoting adaptation approaches in design policies for developments and the public realm

5.6.6 The Lancashire Climate Change Strategy sets out a framework for how the sub-region will work together towards meeting its target that “Lancashire is low carbon and well adapted by 2020” and identifies the carbon savings that can be achieved through four key sectors: domestic, transport, business and public sector and land use.

Renewable Energy Generation in Burnley

5.6.7 In addition to helping reduce greenhouse gas emissions, minimising the use of finite resources and improving the UK's energy security, renewable energy generation can stimulate investment and provide jobs.

5.6.8 The UK Renewable Energy Strategy 2009 indicated that 15% of the UK's energy demand would be met by renewable energy in 2020. In 2014 14.44% of Burnley and Pendle's electricity consumption was met by renewable energy and the area ranks 6th among English urban areas.

5.6.9 The NPPF states that to help increase the use and supply of renewable and low carbon energy, local planning authorities should recognise the responsibility on all communities to contribute to energy generation from renewable or low carbon sources, and they should:

- have a positive strategy to promote energy from renewable and low carbon sources;
- design their policies to maximise renewable and low carbon energy development while ensuring that adverse impacts are addressed satisfactorily, including cumulative landscape and visual impacts;
- consider identifying suitable areas for renewable and low carbon energy sources, and supporting infrastructure, where this would help secure the development of such sources;
- support community-led initiatives for renewable and low carbon energy, including developments outside such areas being taken forward through neighbourhood planning; and
- identify opportunities where development can draw its energy supply from decentralised, renewable or low carbon energy supply systems and for co-locating potential heat customers and suppliers.

5.6.10 The NPPF at paragraph 98 clearly states that when determining planning applications, local planning authorities **should not** require applicants for energy development to demonstrate the overall need for renewable or low carbon energy and also recognise that even small-scale projects provide a valuable contribution to cutting greenhouse gas emissions; and approve the application if its impacts are (or can be made) acceptable.

5.6.11 The main types of renewable energy currently in use are:

Wind (Electricity):	Small scale – turbines up to 100kW which can provide energy for several buildings with excess surplus sold to the grid or domestic turbines between 1KW- 6KW which can power single properties Commercial – turbines with a power output of 100kw or above. Energy generated would not normally be used on site and would be sold to the national grid
Biomass (Electricity/Heat):	The term biomass describes biological materials from living, or recently living, organisms, whereas the output is referred to as bioenergy or biofuels. Biofuels can be derived from plants, animal waste or human activity and three main processes are employed to generate electricity or heat from these products: - Direct combustion of solid biomass. - Gasification of solid biomass. - Anaerobic digestion of solid, or liquid, biomass.

	Biofuels are typically used to heat buildings by the use of a stand-alone stove, to provide space heating for a room, or a boiler connected to the central heating and hot water systems. They are also suitable for use in combined heat and power (CHP) plants, but as yet have not been exploited to their full potential in the UK.
Solar (PV) (Electricity):	Solar photovoltaic cells capture energy from the sun and convert it into electricity. The benefits of these panels are that they only require daylight rather than direct sunlight to operate efficiently and can be designed to be highly unobtrusive
Solar thermal (Heat):	Solar heating systems employ solar panels, or collectors, that are usually fixed to the south facing roof of a property. They collect heat from the sun and use it to warm water used within the property.
Heat pumps (Heat):	Heat pumps are used to extract thermal energy from an outside source (i.e. from the ground, air or water) and transfer it into a distribution system to heat a confined space (e.g. a building).
Hydropower (Electricity):	Hydropower harnesses the power of water flowing, or falling, through a turbine to generate electricity. Critical to the suitability of sites are the combination of flow (i.e. the volume of water passing through the turbine) and head (i.e. the vertical distance between the water source and the turbine). The greater the flow or head, the more electricity can be generated. Water can also be stored to help generate electricity when it is most needed.
Low Carbon Schemes (Electricity/Heat):	Combined heat and power (CHP) and district heating/cooling schemes are examples of decentralised energy. Whilst not directly fulfilling commitments under the UK Renewable Energy Strategy, they are an important part of the mix of technologies that can be employed to reduce carbon emissions. CHP schemes typically capture the (residual) heat released when generating heat or electricity and redeploy this close by. In contrast district heating schemes use this residual heat to warm water to temperatures of between 80°C and 130°C and distribute this via a local network to residential and commercial properties for space and/or water heating. District heating schemes can also be fuelled by a wide range of fuel sources (e.g. biomass, solar pv etc.) with the choice of fuels influencing the overall carbon savings. Energy from Waste developments are 'County Matters' considered under the Lancashire Minerals and Waste Local Plan. Policy DM4 Energy from Waste requires all developments that include processes of recovering energy from waste to include measures to capture any heat or electricity produced directly or as a by-product of the waste treatment process and either use it on site or export it to the national grid or a local energy or heat consumer.

5.6.12 A number of local studies have examined the potential of Lancashire and/or Pennine Lancashire to facilitate/accommodate renewable energy provision.

The Lancashire Sustainable Energy Study: SQW and Maslen Environmental (2011/12):

5.6.13 This study was in three parts: the first part involved providing Lancashire's local authorities with resource assessments of the *technical renewable energy capacity* at 2020 using nationally endorsed DECC and DCLG methodology. The second focused on translating this potential technical capacity to a more realisable deployable capacity. The final part of the study provided updated data on deployable capacity and considered the merits of local authorities setting targets for future renewable energy generation in their local plans.

5.6.14 The study identified a deployable potential in the borough of 81MW by 2030 taking account of current generating capacity and identified constraints. A summary of this breakdown is given in Table 5.

Table 5: Burnley renewable energy deployment projections, 2020 and 2030

Technology	Existing deployment at 2011	Anticipated deployment 2020	Anticipated deployment 2030
Commercial wind	21.6	46.8	62.0
Small scale wind	0.9	0.9	0.9
Plant biomass	0.0	0.1	0.1
Animal biomass	0.0	0.0	0.1
Energy from waste	7.7	6.0	2.0
Small scale hydro	0.1	0.2	0.2
Microgeneration	0.1	6.5	15.4
Total	30	60	81

Source SQW All figures in Mega-watts MW.

5.6.15 In 2016 renewable energy generation in Burnley accounted for 23% of average electricity consumption and the borough was estimated to have a renewable energy capacity of 34.4 MW¹²².

5.6.16 The borough has the potential to make further contributions to the transition to a low carbon future, including by virtue of its topography and natural assets. Opportunities exist for increased deployment across a range of renewable and low energy technologies.

5.6.17 This must, however, be balanced with the need to protect the borough's high quality landscape, townscape and the biodiversity value of its designated nature conservation sites (see Policy NE1) and great care should be taken to ensure heritage assets are conserved in a manner appropriate to their significance. Where proposals would lead to harm to the significance of a heritage asset or those elements of its setting that contribute to significance, then alternative (less harmful) options should be explored and mitigation maximised in order to reduce the harmful effects as far as it is practically possible. Where conflict between climate change objectives and the conservation of heritage assets is unavoidable, then the public benefit of mitigating the effects of climate change will be weighed against the harm to the significance of the heritage assets (see Policies HE2 to HE4).

5.6.18 Renewable energy developments should be acceptable for their proposed location and there may be particular considerations for certain technologies. There are permitted development rights to install some technologies without the need for planning permission. Wind energy, because of its particular impacts and specific national policy approach, is dealt with separately from Policy CC1 below.

Policy CC1: Renewable and Low Carbon Energy (not including Wind Energy)

1) Proposals for renewable and low carbon energy development will be supported where they satisfy the requirements of other relevant Plan policies and can demonstrate, after identifying and thoroughly appraising any potential individual and cumulative effects, that any associated impacts are or can be made acceptable. This presumption will apply where proposals:

- a) Do not have a significant adverse impact, including by reason of visual impact, on the character of the immediate and wider landscape or townscape;**
- b) Do not have an unacceptable impact on local amenity, including public rights of way and bridleways; and can successfully mitigate against visual (including glint/glare), noise, smell, pollution or other impacts likely to affect nearby occupiers and/or neighbouring land uses;**

¹²² Green Alliance <https://renewablelocator.green-alliance.org.uk/>

- c) Do not have an unacceptable impact on ecology, geology, water resources or flood risk, and where possible enhance these functions;
 - d) Ensure that any waste arising as a result of the development is minimised and dealt with using a suitable means of disposal; and
 - e) Avoid the loss of, or loss of productive use of, the best and most versatile agricultural land and, for large scale developments, prefer previously developed and non-agricultural land, provided that it is not of high environmental value.
- 2) Where development proposals would have a wider landscape and/or visual impact than their immediate locality, planning applications should be accompanied by an appropriately detailed Landscape and Visual Impact Assessment (LVIA) undertaken by suitably qualified and experienced persons which includes any mitigation measures identified.
- 3) Where mitigation is required to make any identified impacts acceptable, these will be secured through condition, agreement and if necessary a planning contribution.
- 4) In assessing renewable energy proposals, the Council will give positive weight to initiatives which are community-led or where there are direct benefits to community through their involvement.

Wind Energy

5.6.19 The borough has a number of operational wind energy sites, the two largest being:

- Coal Clough - 8 turbines (16MW capacity)
- Hameldon Hill - 6 turbines (with further 3 turbines (capacity 7.05MW) consented in August 2017)

5.6.20 There is a growing concentration of 'very small' and 'small' turbines in the rural area to the north-east of the borough. These turbines are often seen in different landscape contexts to larger scale, commercial turbines which are commonly sited on sparsely settled moorland plateaux and hills. This means that smaller scale turbines tend to raise different siting and design issues.

5.6.21 Cumulative effects are increasingly relevant in the South Pennines given the pace and scale of wind energy development that has occurred in recent years; and will influence the location and amount of additional wind energy development that can be accommodated in a specific Landscape Character Type (LCT). Throughout the borough, but especially in the North West, a key consideration in planning for new wind energy development would be the effect on views to and from Pendle Hill and the wider Forest of Bowland AONB, which lies just to the north of the borough.

National Policy for Wind Energy

5.6.22 The NPPF states that to help increase the use and supply of renewable and low carbon energy local planning authorities should amongst other things "consider identifying suitable areas for renewable and low carbon energy sources, and supporting infrastructure, where this would help secure the development of such sources. This includes wind turbines."

5.6.23 A subsequent Written Ministerial Statement (WMS) on local planning in June 2015 set out revised national policy on wind energy development stating that when determining applications for one or more wind turbines planning permission should only be granted if:

- "the development site is in an area identified as suitable for wind energy development in a Local or Neighbourhood Development Plan; and

- following consultation, it can be demonstrated that the planning impacts identified by local communities have been fully addressed and therefore the proposal has their backing."

5.6.24 The WMS also stated that "whether a proposal has the backing of the affected community is a planning judgment for the local planning authority".

5.6.25 In addition to addressing the planning impacts identified by local communities proposals would need to satisfy other national and local policy considerations.

Areas Suitable for Wind Turbines

5.6.26 Planning Practice Guidance states that there are no hard and fast rules about how suitable areas for renewable energy should be identified but indicates that landscape character areas could form the basis for considering which technologies at which scale may be appropriate in different types of location. Guidance also makes clear that assessment carried out at a county or district level may provide an appropriate scale for assessing the likely landscape and visual impacts of individual proposals.

5.6.27 The National Policy Statement (NPS) for Renewable Energy Infrastructure (read with the relevant sections of the Overarching National Policy Statement for Energy Infrastructure, including that on aviation impacts) states that where plans identify areas as suitable for renewable and low-carbon energy development, they should make clear what criteria have determined their selection, including for what size of development the areas are considered suitable. The NPS provides details of relevant factors that can influence onshore wind site selection and could therefore inform the identification of suitable areas for wind energy in Local Plans. These include predicted wind speed, the proximity of sites to dwellings, capacity of a site (how many turbines can be accommodated), electricity grid connection and access. It is not considered feasible to undertake an assessment of all factors outlined in the NPS as many are clearly focused on individual site selection rather than the identification of broad areas. These would be more appropriately considered by applicants in determining specific sites.

5.6.28 The Council's approach to defining suitable areas is based on detailed assessment of landscape and visual impacts of wind turbines impacts on landscape character contained in the following evidence:

Landscape Guidance for Wind Turbines up to 60m high in the South and West Pennines, Julie Martin Associates January 2013:

5.6.29 This study aimed to facilitate a rigorous, structured approach to consideration of landscape and visual issues associated with single turbines and groups of turbines up to 60m in height to blade tip. The guidance within the study is intended to help developers understand (and respond effectively to) the specific landscape and visual issues associated with smaller classes of turbine.

South Pennines Wind Energy Landscape Study, Julie Martin Associates/LUC October 2014:

5.6.30 This study focused primarily on larger scale commercial turbines and updated and expanded an earlier 2010 Julie Martin Associates study, which responded to a growing number of planning applications for wind energy development which raised concern about impacts, especially cumulative impacts, on the character and quality of South Pennine landscapes. The study indicates areas that may be more or less sensitive, in landscape and visual terms, for wind energy development of different scales.

5.6.31 These studies were jointly commissioned by the South Pennines Wind Energy Group authorities (Kirklees, Calderdale, Barnsley, Rossendale, and Burnley) to assess and understand the sensitivity of different landscapes to varying scales of wind turbine development. They are based on

National Landscape Character Areas and define local character areas and types using best practice and national landscape assessment guidance. Cross-border and cumulative impacts are also considered, and this is monitored as part of an ongoing process.

5.6.32 Drawing on the study information, it is considered that the landscape Character Type areas listed in Policy CC2 are suitable for some scale of wind turbine development subject to the consideration of the aforementioned evidence, other Plan policies and any other relevant planning considerations. This is consistent with the NPPF's indication that Local Plans should plan positively to deliver renewable and low carbon technology developments.

Table 6: Sensitivity of Burnley Landscape Character Types to Wind Energy Development

Landscape Character Type (LCT) Reference	LCT Name	LCT Sensitivity to wind energy development
LCT A	High Moorland Plateaux	Highly sensitive to very large (>130m) turbines; Highly sensitive to large (90-129m) and medium sized (60-89m) turbines. Moderate to high sensitivity to small turbines (25-59m). Moderate to high sensitivity to very small (<24m) turbines.
LCT C	Enclosed Uplands	Highly sensitive to very large (>130m) turbines; Moderate to high sensitivity to large (90-129m) and medium sized (60-89m) turbines. Moderate sensitivity to small turbines (25-59m). Low sensitivity to very small (<24m) turbines.
LCT D	Moorland Fringes/ Upland Pastures	Highly sensitive to very large (>130m), large (90-129m) and medium (60-89m) turbines; Moderate to high sensitivity to small (25-59m) sized turbines. Moderate sensitivity to very small (<24m) turbines.
LCT E	Rural Fringes	Highly sensitive to very large (>130m), and large turbines (90-129m). Moderate to high sensitivity to medium (60-89m) and small (25-59m) sized turbines. Moderate sensitivity to very small turbines (<24m)
LCT F	Settled Valleys	Highly sensitive to very large (>130m), large (90-129m), medium (60-89m) and small (25-59m) turbines Moderate to high sensitivity to very small turbines (<24m)
LCT G	Wooded Rural Valleys	Highly sensitive to very large (>130m), large (90-129m), medium (60-89m) and small (25-59m) turbines Moderate to high sensitivity to very small (<24m) turbines
LCT O	Industrial/ Business Parks	Highly sensitive to very large (>130m), and large (90-129m), turbines Moderate to high sensitivity to medium (60-89m) sized turbines Low to moderate sensitivity to small turbines (25-59m) Low sensitivity to very small turbines (<24m).
n/a	Urban Area	The South Pennines (2014) study did not assess this character area for its sensitivity to wind turbines, nor indicate particular opportunities. However, it is considered that given the broad extent of the urban area its varying topography, and the fact that a number of 'very small' turbines already exist within it e.g. associated with new schools development; there may be opportunities for very small/small turbines subject to detailed consideration of Policy CC3 Wind Turbines and other Plan policies as appropriate.

5.6.33 The table below indicates the power generated by various turbine sizes:

Table 7: Turbine sizes and Outputs

Turbine Size	Turbine height	Approx. average power rating	Approx. number of homes powered per annum (based on DECC figures)
Very small	25m or less to blade tip	12kW	7
Small	25-60m to blade tip	0.5MW	290
Medium	60-90m to blade tip	1MW	580
Large	90-130m to blade tip	2.5MW	1450

5.6.34 Policy CC2 excludes the nationally and internationally important South Pennine Moors SAC/SPA/SSSI from the identified suitable areas. Whilst national policy does not rule out wind energy development within such protected nature conservation sites, paragraph 119 of the NPPF states that the 'presumption in favour of sustainable development' (set out in paragraph 14 of the NPPF) does not apply to development affecting international sites which would require an appropriate assessment. In practice it is considered unlikely that wind energy development could be accommodated without adversely affecting the integrity of the South Pennine Moors SAC/SPA. This area lies within the High Moorland Plateaux Landscape Character Type where sensitivities are moderate to high for very small and small turbines and high for large and very large turbines. This area has therefore been excluded from the suitable areas. In Landscape Character Types which adjoin the designated sites, proposals will need to consider impacts on functional land associated with the SAC/SPA/SSSI, for instance land which birds depend on for feeding. Natural England provides advice on assessing these potential impacts.

5.6.35 Suitable areas for wind energy development in Burnley as set out in Policy CC2 include all the borough's Green Belt land. Policy SP7 reflects the NPPF para 91 which states that when located in the Green Belt, elements of many renewable energy projects will comprise inappropriate development. In such cases, developers will need to demonstrate very special circumstances if projects are to proceed and that such very special circumstances may include the wider environmental benefits associated with increased production of energy from renewable sources.

5.6.36 Landscape Character Assessment is recognised as a method of establishing suitable areas for wind turbines. Policy CC2 adopts this approach and sets out the type, scale and general locational requirements for each of the Landscape Character Types which make up the Suitable Areas. If these requirements are satisfactorily addressed, development in these areas would be suitable in principle. However, there are other important issues which require further consideration before a specific proposal could be supported including hydrogeology; the historic environment; ecology and ornithology; noise and shadow flicker impacts and effects on aircraft radar. Wind energy developments that satisfy the requirement of Policy CC2 will need to be assessed on their own merits against the criteria set out in Policy CC3 Wind Energy Development, with detailed consideration of specific landscape and visual (including cumulative) impacts and siting, layout and design.

Policy CC2: Suitable Areas for Wind Energy Development

- 1) Subject to detailed consideration of landscape, visual, ecological, heritage, cumulative and other environmental impacts in line with Policy CC3 and other relevant policies in the Plan, wind energy development of the scale and type described will be supported within the areas of the borough set out in in 3) below and as shown on the Policies Map.¹²³ These areas correspond to Landscape Character Types (LCTs) defined in the South Pennines Wind Energy Landscape Study (Julie Martin Associates and LUC 2014):
- 2) In all areas wind turbine proposals should:
 - a) When locating 'very small ' and 'small' turbines, choose sites that are well away from medium or large turbines (in the same or adjoining LCTs), so that the different size classes are not seen together and avoid strong concentrations of turbines in a given area;
 - b) Avoid close juxtaposition of different small turbine designs and heights, aiming instead for a consistent height and design in a given area;
 - c) Identify and take account of possible cross-boundary cumulative impacts associated with small turbines in adjoining local authorities; and
 - d) When locating turbines in LCTs, sites should be chosen away from views to existing turbines in adjoining LCTs, so as not to blur the distinctions between LCTs.
- 3)

LCT A: High Moorland Plateaux
(excluding the South Pennine Moors SAC, SPA, SSSI)

 - Within this LCT, new wind energy development should not extend a wind energy influence over a wider area than at present or visually 'connect' existing wind energy developments in the same or adjoining LCTs.
 - Wind energy development at new locations in this landscape will be limited to very occasional 'very small' or 'small' single turbines of consistent height and design.
 - In this LCT, particular care will need to be taken to ensure that:
 - o In repowering existing wind energy sites, the surrounding landscape does not become a 'windfarm landscape' i.e. a landscape in which the influence of wind energy development dominates landscape character, effectively creating a new character.
 - o Wind energy development presents a clear and coherent image that does not visually dominate or overwhelm a specific landform feature, skyline or settlement, especially in the Calder Valley /Cliviger Gorge.

LCT C: Enclosed Uplands

 - Small scale development visually associated with settlements or farms, sited away from sensitive skylines or settings e.g. on gentle upland side slopes will be most suited to this landscape type.
 - Locally, where the landscape is somewhat larger in scale (more expansive, with large enclosures or open moorland and sparser settlements) there may be some limited scope for larger turbines or turbine clusters.

¹²³ The main Policies Map shows the area not identified as Suitable Areas for Wind Energy Development – the Suitable Areas by landscape character type are shown on the Supplementary Map

- Wind energy developments in this LCT should avoid visually 'connecting' existing wind energy developments (in the same or adjoining LCTs) or dominating the landscape character of the LCT to the extent that its overall character changes.

LCT D: Moorland Fringes/Upland Pastures and

LCT E: Rural Fringes

- Small scale wind energy development that is visually associated with settlements or farms, and evenly spread across the landscape rather than concentrated in one particular area, will be most suited to this landscape type.
- In LCT D adjacent to SAC/SPA/SSSI, wind energy developments should demonstrate a clear association of 'very small' turbines with the regular clusters of farm buildings that occur in this LCT.
- In LCT E, locations close to industry, business parks, major transport corridors and quarried or other brownfield sites may be less sensitive.

LCT F: Settled Valleys and

LCT G: Wooded Rural Valleys

- Opportunities are likely to be very limited, but a single turbine that shows clear visual and functional relationships with the building, business or farm that it serves may fit best within the landscape and townscape of these LCTs.
- In LCT F, the upper valley reaches, which are slightly larger scale and more open, may be somewhat less sensitive than the lower parts of the valleys.
- In LCT G, adjacent to SAC/SPA/SSSI, siting close to locally existing woodland may screen and help to accommodate turbines.

LCT O: Industrial/Business Parks and

LCT U: Urban Area

- Areas that are heavily influenced by major transport corridors or industrial or business activity may have lower sensitivity to wind energy development. Turbines that show a clear visual and/or functional relationship with such land uses may be more easily accommodated in the landscape.
- In LCT O, siting turbines so that they show a close association with major industrial and/or infrastructure elements may fit best within the landscape.
- In the wider urban area very small or small turbines which show a clear visual or functional relationship with large public or private land uses, e.g. educational establishments or leisure facilities, may be more easily accommodated in the landscape.

Wind Energy Development

5.6.37 The Council will support proposals for wind energy development within a suitable area as set out in Policy CC2 that satisfy the requirements of the LCT within which they are located as set out in Policy CC2, subject to the criteria set out in Policy CC3 being met and the proposals complying with other relevant policies of the Plan, including policies relating to developments affecting internationally and nationally designated nature conservation sites (Policy NE1) or heritage assets (see Policies HE2 to HE4). (See also paras 5.6.36 and 5.6.17)

Policy CC3: Wind Energy Development

- 1) The Council will support proposals for wind energy development providing:**
 - a) The development is located in a suitable area as set out in Policy CC2;**
 - b) The development would not have an unacceptable impact on landscape character as set out in Policy CC2, including cumulative impacts in combination with other existing or approved developments;**
 - c) The development would not result in unacceptable noise or shadow/reflective flicker impacts on local residents and sensitive users of the site or its surroundings e.g. those using public rights of way/bridleways, and would not result in the loss of, or significantly detract from, key views of scenic landmarks or landscape features;**
 - d) Measures are taken to avoid and where appropriate mitigate any negative effect of the development in terms of ecology, geology or hydrology, including; impacts of the development on deep peat areas, nature conservation features, biodiversity and geodiversity including habitats and species;**
 - e) Measures are taken to avoid, and where appropriate mitigate, unacceptable adverse impacts on local amenity resulting from development, its construction and operation.**
 - f) The development would not have an unacceptable impact on the operation of radar systems required for commercial or military aircraft or the Met Office Safeguarded Meteorological Site at Hameldon Hill;**
 - g) The development would not have an unacceptable impact on television and broadband reception or other telecommunications;**
 - h) They avoid the loss of, or loss of productive use of, the best and most versatile agricultural land;**
 - i) Grid connections are kept underground and any site sub-station/control buildings are appropriately sited and small in scale; and**
 - j) Supporting infrastructure (including access tracks through the site, associated cables and operational equipment) do not have a significant adverse impact on the site and its surroundings, including any Public Rights of Way.**
- 2) Proposals for wind energy development should be accompanied by:**
 - a) An appropriately detailed Landscape and Visual Impact Assessment (LVIA) undertaken by an appropriately qualified and experienced person that assesses the impact of the proposed development on landscape. This should include assessment of cumulative landscape and visual impacts including photomontages illustrating the proposed development in context of existing or consented turbine development and other landscape features, and plans illustrating the extent of visual impact; and**
 - b) A Construction Environmental Management Plan and proposals for managing the decommissioning and removal of the turbines and the restoration of the site.**
- 3) In assessing wind energy proposals, the Council will give positive weight to community-led initiatives or where there are direct benefits to community through their involvement.**
- 4) Where mitigation is required to make any identified impacts acceptable these will be secured through condition and/or legal agreement including, where necessary, through planning contributions.**

Flood Risk

5.6.38 Flooding from rivers is a natural process that plays an important role in shaping the natural environment. However, flooding can threaten life, disrupt the local economy and cause substantial damage to property in both urban and rural communities. Although flooding cannot be wholly prevented, risk of flooding can be reduced and its impacts can be mitigated through good planning and management, including through a 'managed adaptive approach', for example setting a development away from a river so it is easier to improve flood defences which, whilst they may not be necessary at the present time, may be necessary in the future.

5.6.39 Flood Zones refer to the probability of river and sea flooding. In respect of river flooding, Flood Zone 1 is low probability (less than 1 in 1,000 annual probability of river flooding); Flood Zone 2 is medium probability (between 1 in 100 and 1 in 1,000 annual probability of river flooding); Flood Zone 3a is high probability (1 in 100 or greater annual probability of river flooding) and Flood Zone 3b is the Functional Floodplain where water has to flow to be stored in times of flood. Flood Zones are defined nationally on the Environment Agency's Flood Map for Planning (Rivers and Sea), except for Flood Zone 3b which local authorities are normally expected to identify in their Strategic Flood Risk Assessments. Flood Zones ignore the presence of defences and they do not take account of the possible impacts of climate change which affect the future probability of flooding.

The Sequential Test

5.6.40 The NPPF and the accompanying NPPG 'Planning Guidance on Flood Risk and Coastal Change' indicate that development should be directed to areas at the lowest risk of flooding. This sequential approach to the location of development aims to avoid, where possible, flood risk to people and property and to manage any residual risk, taking account of the impacts of climate change. To inform this approach, the Council prepares a Strategic Flood Risk Assessment (SFRA) to support its Local Plan, drawing on information on all potential sources of flooding from the Environment Agency, the County Council as Lead Local Flood Authority for Lancashire, and United Utilities.

5.6.41 Flood zoning and sequential testing are designed to minimize development in areas at risk. The level of risk will be dependent on the type of development proposed in a particular Flood Zone and its vulnerability. Whilst all development is considered compatible with Flood Zone 1 (low risk), many types of development are not considered compatible with Flood Zones 3a and 3b. For some types of development in Flood Zones 2 and 3 to be considered acceptable, it must first be demonstrated that it is not possible, consistent with wider sustainability objectives, for the development to be located in zones with a lower probability of flooding. Such developments then also have to satisfy an 'Exception Test'.

The Exception Test

5.6.42 For the 'Exception Test' to be passed it must be demonstrated that the development provides wider sustainability benefits to the community that outweigh flood risk and that the development will be safe for its lifetime taking account of the vulnerability of its users, without increasing flood risk elsewhere, and, where possible will reduce flood risk overall.

Flood Risk in Burnley & the Strategic Flood Risk Assessment (SFRA)

5.6.43 In terms of river flooding, the Burnley, Nelson and Colne Flood Risk Management Strategy 2011 identified seven principal flood risk reaches within the borough. In Padiham, flood risk reaches follow the River Calder and Green Brook to their confluence in the town centre and a further reach is identified on Green Brook Upper to the south of Padiham. In Burnley, the main areas at risk of

fluvial flooding are Burnley town centre, the adjacent Burnley Wood and Fulfilled neighbourhoods, and Thompson Park/ former Burnley College site.

5.6.44 The Council's Strategic Flood Risk Assessment (SFRA) 2017, updating work carried out in 2009, draws on Environment Agency Flood Zone and Surface Water mapping data and data on local sources of flood risk supplied by the Council's Streetscene unit, Lancashire County Council and United Utilities. This data was used in the SHLAA and site selection process to inform a sequential approach to the selection of housing and employment sites.

5.6.45 The Level 1 SFRA assessed all the SHLAA sites (and non-housing and employment allocations and their reasonable alternatives) against risks from all sources of flooding. A small number of sites that lie partly within Flood Zones 2 and 3 are identified for allocation. These, and a small number of sites identified as being at a significant risk of surface water flooding in the Level 1 SFRA, have been subject to a Level 2 SFRA. This provides advice as to how flood risk can be mitigated through design, layout and sustainable drainage and informs the overall assessment of the Sequential Test and where necessary the Exception Test.

5.6.46 National guidance states that the Environment Agency's most recent climate change allowances for peak river flow in the North West should be applied in Strategic and site specific Flood Risk Assessments.¹²⁴ They are expressed as a range of percentage increases depending on the particular Flood Zone, development type and vulnerability, and future lifespan of proposed development or local plan allocation.

Site Specific Flood Risk Assessments

5.6.47 Applicants are required to undertake site specific Flood Risk Assessments for proposals on sites of 1 hectare or greater in Flood Zone 1; all proposals for new development (including minor development and change of use) in Flood Zones 2 and 3 or in an area within Flood Zone 1 which has critical drainage problems (as notified to the local planning authority by the Environment Agency); and where proposed development or a change of use to a more vulnerable class may be subject to other sources of flooding. These FRAs should, if necessary, apply the Sequential and Exception Tests. For minor development and for sites allocated in a Local Plan however, applicants do not need to apply the Sequential Test as, in effect, the Council has done this through their SFRA to support the allocation.¹²⁵

Policy CC4: Development and Flood Risk

- 1) The Council will seek to ensure that new development does not result in increased flood risk from any source or other drainage problems, either on the development site or elsewhere.**
- 2) No development should take place within 8m of the top of the bank of a watercourse either culverted or open, unless this approach is supported by the Environment Agency or Lead Local Flood Authority. Proposals involving the creation of new culverts (unless essential to the provision of access) will not be permitted.**
- 3) Culverts should be opened up where possible to improve drainage and flood flows.**

Sequential Test

- 4) New development on sites not allocated for the use proposed in this Plan, or which do**

¹²⁴ www.gov.uk/guidance/flood-risk-assessments-climate-change-allowances

¹²⁵ NPPF para 103 footnote 20

not comprise minor development or changes or use, should be located within Flood Zone 1 unless the Sequential Test as set out in the NPPF and NPPG has been satisfied.

Exception Test

5) Development in Flood Zones 2, 3a or 3b on allocated or unallocated sites will only be acceptable where it is of a compatible type as set out in the NPPG (Tables 2 and 3), satisfies the Exception Test set out in the NPPF and NPPG and meets criteria 6b ii) to vi) below.

Site Specific Flood Risk Assessments

6) Development proposals on allocated or unallocated sites:

- a) of 1 hectare or greater in Flood Zone 1, or in an area within Flood Zone 1 which has critical drainage problems or includes an ordinary watercourse; or
- b) in Flood Zones 2, 3a or 3b;

should be supported by a site specific Flood Risk Assessment taking account of the Council's Strategic Flood Risk Assessment (or the most up to date flood risk information available) along with any evidence from the Lead Local Flood Authority (Lancashire County Council), and the Environment Agency to establish whether the proposed development:

- i) is likely to be affected by current or future flooding from any source, taking into account the increased risk associated with climate change;
- ii) will increase flood risk elsewhere or interfere with flood flows;
- iii) can provide appropriate mitigation measures to deal with potential risks and effects;
- iv) would be likely to preclude the future implementation of necessary flood risk measures, including the improvement of flood defences;
- v) can reasonably maintain access and egress at times of flood; and
- vi) can be accommodated within the capacity of the water supply, drainage and sewerage networks.

7) Where flood defences exist that protect development sites, any site specific Flood Risk Assessment required should also assess the risk overtopping of defences in extreme events and possible breach analysis evidence.

8) Where mitigation is required to make any identified impacts acceptable, these will be secured through conditions and/or legal agreement, including where necessary through planning contributions.

Surface Water Management and Sustainable Drainage Systems

5.6.48 Through the Flood and Water Management Act 2010, Lancashire County Council was designated as a Lead Local Flood Authority. The County Council is responsible for managing flood risk from all local sources; surface water, groundwater and ordinary watercourses. As part of its role, Lancashire County Council has worked in partnership with Blackpool Council to develop a joint Lancashire and Blackpool Local Flood Risk Management Strategy 2014-2017.

5.6.49 The strategy outlines the duties and responsibilities of flood risk agencies including emergency planning functions; assesses existing and future local flood risk in the county and sets out a Local Flood Risk Management Plan with short and medium term strategic objectives. In order

to understand local flood risk in more detail, a number of studies were undertaken to support the Local Strategy including a sub-regional Preliminary Flood Risk Assessment, followed by lower level Surface Water Management Plans and Ordinary Watercourse Studies. These studies are aimed at achieving a greater level of understanding around the main areas of risk across the region so that risk monitoring, further studies and works to reduce flood risk can be prioritised.

5.6.50 The NPPG advises that local planning authorities should work with lead local flood authorities to secure Local Plan policies which are compatible with the local flood risk management strategy. Whilst the current Flood Zone based sequential approach to flood risk sets out clear methodology with regard to flood risk from main rivers or the sea, this does not deal with all flood risk for example from surface water runoff or smaller watercourses. The Council's SFRA assesses flood risk from all sources.

Sustainable Drainage Systems (SuDS)

5.6.51 Areas with a high percentage of sealed surfaces are vulnerable to excessive run-off and can create problems of flood damage in high rainfall events and overloading of water treatment facilities and resultant potential for diffuse pollution to enter the water cycle.

5.6.52 Sustainable Drainage Systems (SuDS) are a natural approach to managing drainage in and around properties and other developments by slowing or holding back water that runs off. SuDS can improve water quality and also improve local amenity, environmental quality and biodiversity and form part of green infrastructure networks.

5.6.53 In March 2015 DEFRA published national non-statutory technical standards for the design, maintenance and operation of sustainable drainage systems. These include systems to drain surface water from housing, non-residential or mixed use developments for the lifetime of the developments.

5.6.54 The SuDS Manual C753 published by Construction Industry Research and Information Association (CIRIA) in December 2015 covers the planning, design, construction and maintenance of SuDS to assist with their effective implementation within both new and existing developments.¹²⁶

5.6.55 In December 2014 a Written Ministerial Statement on SuDS made changes to national policy making clear the Government's expectation that SuDS should be provided in major residential or commercial developments. These changes came into effect in April 2015. The NPPG continues to state that priority should be given to the use of SuDS as part of satisfying the Exception Test (see Policy CC4).

5.6.56 From 15 April 2015 Lancashire County Council, in its role as Lead Local Flood Authority, was made a statutory consultee in the planning process for major development proposals which have surface water implications. The County Council produced draft Local Specifications, Standards and Policies on Sustainable Drainage Systems in May 2015.

5.6.57 The Council will expect SuDS to be provided on major developments in line with Policy CC5 below and SuDS will be encouraged and supported on all developments.

¹²⁶ BS 8582 Code of practice for surface water management for development sites gives recommendations on the planning, design, construction and maintenance of surface water management systems for new developments and redevelopment sites.

Policy CC5: Surface Water Management and Sustainable Drainage Systems (SuDS)

- 1) In order to assist in minimising surface water run-off from sites:
 - a) Existing green infrastructure should be retained and integrated and where possible enhanced in line with Policy SP6; and
 - b) The use of permeable materials should be maximised.
- 2) Surface water should be managed at source and not transferred and discharged. The following order of priority for any water discharge should be adopted:
 - a) A permeable soakaway or some other form of infiltration system
 - b) An attenuated discharge to a watercourse
 - c) An attenuated discharge to surface water sewer
 - d) An attenuated discharge to combined sewer (this should be considered the last resort)
- 3) In respect of major developments, SuDS will be required and surface water discharges from developed sites should be restricted to QBar rates (mean annual greenfield peak flow).¹²⁷ A drainage strategy should be submitted detailing the following:
 - a) The types of SuDS and/or measures;
 - b) Hydraulic design details/calculations;
 - c) Pollution prevention and water quality treatment measures together with details of pollutant removal capacity as set out in the current CIRIA SuDS Manual C753 or equivalent and updated local or national design guidance; and
 - d) The proposed management and maintenance regime for the lifetime of the development.

¹²⁷ <https://www.gov.uk/government/publications/rainfall-runoff-management-for-developments>

A simplified free web-based tool, www.uksuds.com, is available and is approved by the Environment Agency for use in planning applications. http://www.uksuds.com/greenfieldrunoff_js.htm

Policies in this chapter:

IC1: Sustainable Travel	IC5: Protection and Provision of Social and Community Infrastructure
IC2: Managing Transport and Travel Impacts	IC6: Telecommunications
IC3: Car Parking Standards	IC7: Taxis and Taxi Booking Offices
IC4: Infrastructure and Planning Contributions	

5.7 Infrastructure and Connectivity

5.7.1 The timely provision of new and improved infrastructure is vital to secure growth within Burnley. The Local Plan needs to ensure that the infrastructure, community facilities and services that are required to support the development set out can be delivered and done so in a manner that ensures the quality of the environment is protected.

5.7.2 A core principle of the NPPF is to proactively drive and support sustainable economic development to deliver the homes, business and industrial units, infrastructure and thriving local places that the country needs and respond positively to wider opportunities for growth.

Travel and Transport

5.7.3 Transport provision and infrastructure across the borough is currently coordinated by Lancashire County Council as the local transport and highway authority. The County Council developed the Local Transport Plan (LTP)¹²⁸ which the Local Plan must have regard to. As part of the LTP, the East Lancashire Highways and Transport Masterplan was adopted by the County Council in February 2014. The Masterplan sets out how the area's roads, rail and cycle networks could be transformed in the future, by improving connections to neighbouring areas and travel opportunities within East Lancashire and its communities.

5.7.4 The East Lancashire Highways and Transport Masterplan identified a number of opportunities to enable East Lancashire as a whole to improve transport infrastructure and connectivity to the rest of Lancashire and adjoining city regions of Leeds and Manchester. The main opportunity identified in the Masterplan which directly relates to the borough is the development of the Hyndburn-Burnley-Pendle Growth Corridor strategy. This strategy has identified a number of proposals to provide additional capacity on the highway network and reduce congestion.

5.7.5 The following schemes identified in the Hyndburn-Burnley-Pendle Growth Corridor strategy and funded through the Lancashire Enterprise Partnership's Growth Deal, Lancashire County Council and Burnley Borough Council are programmed for delivery by March 2018 and March 2021:

- Improvements to the Rose Grove signal-controlled junction at Rossendale Road and Accrington Road consisting of the alteration of junction layout and signal technology upgrade to allow MOVA¹²⁹ operated control.
- Signalisation of the Westgate/Queens Lancashire Way roundabout;
- Signalisation of the Princess Way/Active Way roundabout;

¹²⁸ A plan which set out the objectives and plans for developing transport in an area.

¹²⁹ Microprocessor Optimised Vehicle Actuation (MOVA)

- Improvements to Active Way/Bank Top including signal technology upgrade to allow MOVA operated control.
- Improvements to Active Way/Church Street including the alteration of junction layout and signal technology upgrade to allow MOVA operated control.
- Improvements to Accrington Road/Bentley Wood Way roundabout including the alteration of the junction layout and maintaining existing roundabout
- Signalisation of the Junction 8, M65 roundabout;
- Extension to the existing Manchester Road railway station car park, providing 78 spaces in addition to the 60 currently available;
- Passenger facilities improvements at Rose Grove railway station in line with Rail North's Station Quality Standard (SQS).

Sustainable Travel and Development

5.7.6 The transport requirements and impacts of new development are key planning issues which need to be fully assessed in order to ensure that development proposals are deliverable, safe, well connected and respect environmental quality and residential amenity. The NPPF supports the need to avoid adverse impacts through development and to mitigate them where they may occur. The Council has a duty to have regard to the objectives of preventing major accidents.

5.7.7 The planning and design process should ensure vehicular and pedestrian access to developments is safe and convenient, and that the needs of all users are taken into account. This should include provision of safe routes for walking, safe routes and facilities for cycling (including secure cycle parking), and where appropriate public transport links or measures such as sustainable travel vouchers in order to encourage sustainable forms of movement as an alternative to the private car.

Policy IC1: Sustainable Travel

1) Development schemes should, as appropriate to their nature and scale:

Promoting Sustainable Travel

- a) Be located in areas well-served by walking, cycling and public transport. Where this is not achievable and where schemes are otherwise acceptable, they will be expected to provide or contribute to providing such linkages before occupation of the site, or at an appropriate trigger point to be agreed, by assessing existing and predicted flows to and from the site and providing improvements that will encourage sustainable travel trips;
- b) Maximise opportunities for the use of sustainable modes of travel by adopting the following user hierarchy:
 - i) pedestrians
 - ii) cyclists
 - iii) public transport
 - iv) private vehicles;

Safe and Convenient Access

- c) Provide for safe pedestrian, cycle and vehicular access to, from and within the development, including adequate visibility splays;

- d) Ensure convenient and inclusive accessibility to all sections of the community to, from and within developments for pedestrians, cyclists and public transport users;
- e) Ensure adequate access for emergency, service and refuse collection vehicles;
- f) For non-residential developments, secure adequate delivery, servicing and drop off facilities;
- g) Maintain the safe and efficient flow of traffic on the surrounding highway network;
- h) Ensure existing public rights of way are retained and where appropriate improved or rerouted; and

Infrastructure

- i) Provide or contribute towards the provision or improvement of on or off-site infrastructure to ensure the development will not materially add to highway safety concerns or reduce the efficiency of the highway network.

Transport Assessments and Travel Plans

5.7.8 All development introduces a level of change to the surrounding environment and new development will need to be integrated into the local transport network so that the borough will be able to satisfactorily accommodate growth. In line with the development strategy set out in Policy SP4 and the requirements of Policy IC1, proposals which would generate a high number of trips or visits, or generate significant traffic movements on the local highway network should be located in sustainable locations which can be accessed through a variety of transport modes.

5.7.9 Paragraphs 32 and 36 of the NPPF state that all developments that generate significant amounts of transport movement should be supported by a Transport Assessment or Transport Statement and a Travel Plan. The requirements for these will be dependent on the size, nature, scale, location and potential impact of the development in question.

Transport Assessment: A comprehensive process which sets out transport issues relating to a proposed development.

Transport Statement: A simplified version of a Transport Assessment

Travel Plan: A long term management strategy for a site/organisation which seeks to deliver sustainable transport through action such as promoting walking and cycling.

5.7.10 The thresholds for the requirements for Transport Assessments/Statements and Travel Plans are set out in Appendix 8.

Policy IC2: Managing Transport and Travel Impacts

Transport Assessments and Transport Statements

- 1) Development proposals above the thresholds in Appendix 8 should be accompanied by a Transport Assessment or Statement indicating:
 - a) The impact of the development on highway safety, air quality and noise;
 - b) How this impact will be satisfactorily mitigated; and
 - c) How the hierarchy of users (as set out in Policy IC1) have been taken into account and how links have been utilised to encourage connectivity within, from and to the site.

Travel Plans

- 2) Development proposals above the thresholds set out in Appendix 8 should also be accompanied by either a Framework Travel Plan¹³⁰ or a Full Travel Plan which encourages the use of public transport, cycling and walking.
- 3) The Council may also require a Transport Assessment and a Full Travel Plan for new developments that do not meet the thresholds set out in Appendix 8, where the Council considers that a development is likely to have a significant negative impact on the operation of transport infrastructure; or a cumulative impact from a number of developments in the vicinity, is expected.

Car Parking

5.7.11 National policy makes clear that parking standards should be determined at the local level in response to local circumstances. The Council has established parking standards for the borough to ensure adequate parking is provided to serve developments, increase housing quality and choice whilst still encouraging more sustainable forms of transport and the efficient use of land. Specific standards are proposed for commercial and other developments, whilst minimums and maximums are proposed for residential developments.

5.7.12 The Council will support and promote the provision of charging points for ultra-low emission vehicles in accordance with Policy NE5: Environmental Protection and the requirements of Policy IC3 below as set out in Appendix 9.

Policy IC3: Car Parking Standards

- 1) Adequate car parking should be provided for developments as appropriate to their nature and scale. When applying parking standards, the Council will consider the overall merits of the proposal and the following matters/objectives:
 - a) The need to encourage the use of alternative means of travel to the private car;
 - b) The availability of existing public parking provision or on-street parking nearby;
 - c) Whether any under-provision might cause or exacerbate congestion, highway safety issues or on-street parking problems; and
 - d) The need to provide increased housing quality and choice.

Residential Development Standards

- 2) For residential schemes, development will be expected to provide a minimum number of parking spaces per new dwelling depending on their type and location. These minimum standards are set out in Appendix 9. Parking provision should not normally exceed the maximums set out.
- 3) Adequate provision for cycle parking will also be expected.

Non-residential Standards

- 4) For commercial and other developments, car parking provision should be adequate to serve the needs of the development but should normally be in accordance with the standards set out in Appendix 9. In areas suffering from significant on-street parking problems, greater provision will be sought, or alternative measures to address potential issues will be required.

¹³⁰ A Framework Travel Plan is submitted when the end occupiers of the development are unknown and is prepared in anticipation of a Full Travel Plan

- 5) A minimum number of mobility parking spaces will also be expected as out in Appendix 9.
- 6) Provision for convenient and secure cycle and motorcycle parking will also be required in line with standards set out in Appendix 9.

Design

- 7) In operating these parking standards, the following considerations will also apply:
 - a) Off and on-street parking provision should be carefully designed, safe and appropriate for the streetscene. Car parking provision that would have a significant adverse impact upon the character of an area will be resisted;
 - b) The Council will expect developers to have regard to the Manual for Streets¹³¹ when considering parking design; and all parking spaces, including garages, should be of an adequate size; and
 - c) Layouts and designs should wherever practicable accommodate the need of disabled road users.

ULEV Charging Points

- 8) Charging points for ultra-low emission vehicles should be provided in accordance with the standards set out in Appendix 9 where practical.

Infrastructure and Planning Contributions

5.7.13 New development can place a strain on existing infrastructure, but it also has the potential to provide or help provide new infrastructure, or to improve existing infrastructure and services.

5.7.14 Infrastructure can be provided directly by developers; or planning contributions can be used to deliver on or off-site infrastructure to address or mitigate the impacts of developments. Where appropriate i.e. where it is necessary to make the development acceptable in planning terms, developers will be required to provide the necessary infrastructure or contribute to its provision through Section 106 contributions and/or the Community Infrastructure Levy (CIL) should the Council introduce it.

5.7.15 The known infrastructure requirements to support the specific allocations in the Plan are identified within the individual site allocation policies. Revised infrastructure requirements may result as the detail of schemes is developed and/or over time; and for windfall development proposals, the infrastructure requirements and any contributions required will need to be assessed as schemes are drawn up.

5.7.16 An Infrastructure Delivery Plan (IDP) has been prepared to support the Local Plan. The IDP reviews and evaluates the social, environmental and economic infrastructure that will be required to support the development and growth set out in the plan. This IDP is a 'living document' which will be updated from time to time.

5.7.17 A Development Contributions Supplementary Planning Document (SPD) will be prepared to explain how contributions from developments will be calculated.

¹³¹ <https://www.gov.uk/government/publications/manual-for-streets>
<https://www.gov.uk/government/publications/manual-for-streets-2>

Policy IC4: Infrastructure and Planning Contributions

- 1) Development will be required to provide or contribute towards the provision of the infrastructure needed to support it.
- 2) The Council will seek planning contributions where development creates a requirement for additional or improved services and infrastructure and/or to address the off-site impact of development so as to satisfy other policy requirements. Planning contributions may be sought to fund a single item of infrastructure or to fund part of an infrastructure item or service.¹³²
- 3) Where new infrastructure is needed to support development, the infrastructure must be operational no later than the appropriate phase of development for which it is needed.
- 4) Contributions may be sought for the initial provision and/or ongoing running and maintenance costs of services and facilities.
- 5) Contributions will be negotiated on a site-by-site basis and will only be sought where these are:
 - a) necessary to make the development acceptable in planning terms;
 - b) directly related to the development; and
 - c) fairly and reasonably related in scale and kind to the development.
- 6) Appropriate matters to be funded by planning contributions include, but are not limited to:
 - Affordable housing
 - Public realm improvements and creation, including public art
 - Improvements to Heritage Assets
 - Flood defence and alleviation schemes, including SuDS
 - Biodiversity enhancements
 - Open space, including green infrastructure and allotments
 - Transport improvements, including walking and cycling facilities
 - Police infrastructure
 - Education provision
 - Utilities
 - Waste management
 - Health infrastructure
 - Sport, leisure, recreational, cultural and other social and community facilities
- 7) Where contributions are requested or unilaterally proposed and the viability of development proposals is in question, applicants should provide viability evidence through an 'open book' approach to allow for the proper review of evidence submitted and for reasons of transparency.

¹³² Under current legislation there are restrictions on the number of Section 106 contributions that can be pooled towards the cost of a piece of infrastructure

Social and Community Infrastructure

5.7.18 The NPPF (paragraph 70) requires local planning authorities to ensure an integrated approach to considering the location of community facilities and services. Local planning authorities are required to work with other authorities and providers to assess the quality and capacity of infrastructure for health, social care and education and its ability to meet forecast demands.

5.7.19 Some social and community facilities are essential, whilst others play an important role in stimulating a sense of community and improving quality of life. For the purposes of the Local Plan, social and community uses are defined as public, private or community facilities including: community/meeting halls and rooms; health facilities; libraries; places of worship; bespoke premises for the voluntary sector; schools and other educational establishments; theatres, art galleries, museums, sport and leisure facilities; parks and other publicly accessible open spaces, public houses, cemeteries and youth facilities.

5.7.20 Where new social and community infrastructure is known to be required and there is sufficient certainty that it can be delivered over the Plan period, sites will be allocated so as to safeguard them for its provision. This is the case with an extension to Burnley and Padiham Cemeteries.

5.7.21 The Council also acknowledges that there are social and community uses which are considered valuable, such as post offices and pharmacies, where change to another use in the same 'Use Class' such as a shop does not require planning consent. The Council cannot therefore control these uses through its planning powers.

5.7.22 There are other cases where, despite a facility being important to the community, it can cease operating due to it being unprofitable or through a loss of public or charitable funding. Whilst the Council can require the re-provision of some lost facilities through development schemes, it can only prevent their permanent loss through changes of use where planning consent is required and in limited circumstances. Communities can seek to have such facilities listed as Assets of Community Value outside of the planning process.¹³³

5.7.23 Where important social or community infrastructure for which there is a continued or likely future need would otherwise be lost through a development scheme, the Council will normally require an alternative comparable or improved provision on site or in the local area.

5.7.24 Specific national policy requirements exist in respect of the loss of playing fields and sports pitches.¹³⁴ The Council jointly produced a Playing Pitch Strategy with Pendle and Rossendale Borough Councils to provide a strategic framework for the provision, management and development of playing pitches and ancillary facilities between 2016 and 2026.¹³⁵ This strategy, will inform any specific requirements for improved or replacement provision. Similarly the Council's Green Spaces Strategy 2015 will inform decisions on requirements for the retention, improvement or replacement of publicly accessible green space. (Certain open spaces are protected in situ from incompatible development under Policy NE2.)

5.7.25 Where new or improved social or community infrastructure is deemed necessary to support a development, and where this by reason of its nature or scale cannot be provided for on site or on other land controlled by the developer (e.g. it is a larger facility which serves a wider

¹³³ www.burnley.gov.uk/residents/planning/community-right-bid-assets-community-value

¹³⁴ Planning Policy Statement – A Sporting Future for the Playing Fields of England. Sport England 2016 now replaced with 'Playing Fields and Guidance' March 2018

¹³⁵ www.burnley.gov.uk/residents/parks-open-spaces/playing-pitch-strategy-2016-2026

population), the Council will expect contributions to secure the provision or improvement of a facility off-site. Where the necessary infrastructure cannot be provided, planning applications will be refused.

Policy IC5: Protection and Provision of Social and Community Infrastructure

- 1) The Council will, where possible and appropriate:**
 - a) Safeguard existing social and community infrastructure, subject to a continued need or likely future need or demand for the facility in question; and require alternative comparable or improved provision where a development scheme would result in the loss of important social and community infrastructure;**
 - b) Require the provision of new social and community infrastructure where a development would increase demand for it beyond its current capacity or generate a newly arising need;**
 - c) In circumstances where new social or community infrastructure is required, ensure that this is provided close to the need arising, or where it is a larger facility which serves a wider population, in locations with good accessibility by walking, cycling and public transport;**
 - d) Require high quality and inclusive design of social or community infrastructure; and**
 - e) Promote the co-location and multi-functionality of social or community infrastructure.**

Cemetery Extension Provision

- 2) The sites identified on the Policies Map are allocated and safeguarded for the extension of Burnley and Padiham cemeteries and their ancillary uses.**

Telecommunications

5.7.26 The NPPF states that advanced, high quality communications infrastructure is essential for sustainable economic growth and that development of high speed broadband technology and other communications networks also plays a vital role in enhancing the provision of local community facilities and services. It states that in preparing Local Plans, local planning authorities should support the expansion of electronic communications networks, including telecommunications and high speed broadband.

5.7.27 It goes on to state that the aim should be to keep the numbers of radio and telecommunications masts and the sites for such installations to a minimum consistent with the efficient operation of the network. Existing masts, buildings and other structures should be used, unless the need for a new site has been justified. Where new sites are required, equipment should be sympathetically designed and camouflaged where appropriate.

5.7.28 The Council supports the provision of efficient and reliable telecommunication networks across the borough, including advanced fourth generation (4G) services. However, the provision of new infrastructure, including masts and road side cabinets and domestic apparatus such as satellite dishes, has the potential to contribute to street clutter and impact on visual amenity. New equipment should only be considered after exploring all opportunities for the use of existing infrastructure and where this is not possible, suitably siting apparatus and associated structures on existing sites, buildings, masts or other structures. All new or modified equipment should minimise size and scale and take opportunities for camouflage and should address other policies elsewhere in the Plan e.g. policies for the natural, built and historical environment.

5.7.29 Many small scale telecommunication developments do not require planning permission. Others, including smaller masts, are also permitted subject to 'prior approval' of their siting and appearance. In accordance with paragraph 45 of the NPPF, applications for telecommunications development (including for prior approval under Part 24 of the General Permitted Development Order) should be supported by the necessary evidence to justify the proposed development.

5.7.30 The NPPF states Local planning authorities must determine applications on planning grounds. They should not seek to prevent competition between different operators, question the need for the telecommunications system, or determine health safeguards if the proposal meets International Commission guidelines for public exposure.

Policy IC6: Telecommunications

- 1) Proposals for telecommunications apparatus and equipment which either requires planning permission or prior approval, including masts, boxes, satellite dishes and underground cables and services, will only be permitted where they meet the other relevant policies of the plan, and in the case of overground equipment:**
 - a) They are located on an existing site, building, mast or other structure; or**
 - b) Where a new site is required, evidence is submitted which demonstrates that the applicant has explored the possibility of erecting apparatus and associated structures on existing sites, buildings, masts or other structures.**
- 2) Where justified under 1 a) or b) above, the siting and appearance of the proposed apparatus and associated structures should minimise its impact on the visual amenity, character or appearance of the landscape/townscape and apparatus and equipment should be camouflaged where appropriate; and**
- 3) All masts and additions must demonstrate through self-certification the meeting of International Commission on Non-Ionising Radiation Protection (ICNIRP) standards.**

Taxi Booking Offices

5.7.31 Taxis and private hire vehicles have an important role to play, for example, for the completion of train journeys, late night travel and the transport of bulky purchases for those without access to a car. However, they can give rise to problems such as the over-concentration of taxi booking offices in some locations. Whilst taxi booking offices in central locations benefit from passing trade, particularly at night, they may attract little usage during the day and create dead frontages. In addition, they may give rise to parking problems.

5.7.32 Whilst there has been demand for a small number of new booking offices within the town centre, there has also been a new demand for edge and out of centre locations. Out of centre booking offices may have more space for parking and so may have a lesser impact on amenity, but if they are located on industrial estates they can take up valuable and limited space for key employment uses. They would not normally be suitable in residential areas.

5.7.33 New taxi booking offices should normally be located within Burnley Town Centre within its Secondary Shopping Frontage as defined on the Policies Map. If no appropriate sites can be found within the Secondary Shopping Frontage, other sites can be considered e.g. in the wider Town Centre of Burnley outwith the Primary Shopping Area or within Padiham Town Centre. Where this is the case, the applicant will be required to show why the site being proposed is suitable and how the development accords with other policies in the Plan.

5.7.34 The Council's planning service works closely with its licensing service to ensure that suitable planning conditions are attached to planning permissions and monitoring of enforcement issues is tackled across departments.

5.7.35 Policy IC7 applies only to taxi booking offices of a Sui-Generis Use Class and not taxi booking call centres (B1a Use Class).

Policy IC7: Taxis and Taxi Booking Offices

Location

1) Proposals for taxi booking offices will only be permitted in the following areas as defined on the Policies Map:

- a) Within Burnley Town Centre outside of the Primary Shopping Frontages;**
- b) Within Padiham Town Centre; or**
- c) Within a defined District Centre.**

2) If no appropriate sites can be found within these locations, other sites can be considered. Where this is the case the applicant will be required to demonstrate through a supporting statement why the site being proposed is suitable and how the development accords with other policies in the Plan and criteria 3) to 7) below.

Clustering

3) The proposal should not create an unacceptable concentration of similar uses.

Parking

4) On-site parking should be provided. Where this cannot be achieved, spaces should be located no more 100 metres from the booking office.

5) One parking space should be provided for each taxi licenced. Where less than one space for each taxi licenced is proposed, the applicant must demonstrate how the number of parking spaces would meet operational needs.

6) Applications for new booking offices or alterations to extend existing premises will be required to submit a clear parking layout indicating the precise number of spaces. These parking spaces should be dedicated and be available 24 hours a day.

Amenity

7) Developments should not have a detrimental impact on the character and amenity of surrounding uses, particularly residential uses, by reason of increased traffic movement, noise, vehicle fumes or other nuisance.

Section 6 - Implementation and Monitoring

6 Implementation and Monitoring

6.1 Implementation

6.1.1 The Local Plan is primarily a tool for assessing planning and related applications, but it is also key corporate document which will have a wider reference in guiding the relevant activities and priorities of the Council, including its town centre management, heritage management, estates and economic development activities. It complements and is in turn complemented by a number of other strategies.

6.1.2 It also relevant to a number of other public sector bodies and agencies who use the Plan to help plan their own service provision and who it is hoped, having been consulted on and involved in the Plan's preparation through the duty to cooperate, will support the it through their activities.

6.1.3 The Infrastructure Delivery Plan (IDP) which has been produced alongside the Local Plan reviews and evaluates the social, environmental and economic infrastructure that will be required to support the development and growth set out in the Plan. The IDP is a living document that identifies the infrastructure required to support the proposals and development sites in the Plan, the likely delivery partners e.g. developers, the borough and county councils, government agencies, and the likely funding sources. It is a living document in the sense that infrastructure requirements will change over time as new or improved infrastructure is provided or facilities are lost and technological advances or social and national policy changes require new forms of infrastructure or alternative methods of provision.

6.1.4 The infrastructure requirements to support the specific allocations in the Plan are identified within the individual site allocation policies. Where there are current known requirements for off-site infrastructure, these are identified in the IDP. Further infrastructure may be required over time or as the detail of schemes is developed; and for windfall development proposals, the infrastructure requirements and any contributions required will need to be assessed as schemes are drawn up. Infrastructure can be provided directly by infrastructure providers or developers; or planning contributions can be used to deliver or contribute to on or off-site new or improved infrastructure through Section 106 contributions and/or the Community Infrastructure Levy (CIL) should the Council introduce it.

6.1.5 The Council believes there to be no major infrastructure barriers to the delivery of the Plan as a whole or the individual sites and policies set out.

6.1.6 The Council commissioned a plan-wide viability assessment to assess the viability of the individual and cumulative policy requirements of the emerging Plan to ensure that the Plan as a whole could be delivered. Not all of these then emerging requirements were ultimately included in the adopted Plan.

6.1.7 The Council has committed to producing a separate Gypsy and Traveller Sites Allocations DPD to address the specific need for pitches for Gypsy and Traveller use.

6.2 Monitoring and Review

6.2.1 It is important to monitor Plan performance to see that policies are performing as intended towards delivering the Vision and Objectives set out.

6.2.2 A monitoring framework has been established to assess the performance of the policies in the Plan and to trigger any need for intervention or a Plan update. Some monitoring indicators are a statutory or national policy requirement e.g. monitoring housing delivery. The monitoring

framework as set out in Table 8 will be used in the Council's Annual Monitoring Reports (AMR) following the Plan's adoption.

Table 8: Monitoring Framework

Policy Number	Policy Name	Associated Targets	Phasing	Relevant objectives	Proposed Indicators & frequency	Data Source	Monitoring
	Vision & Objectives	None Specified	To 2032	All	Population estimates and age structure	ONS Census & mid-year estimates	Authority Monitoring Report (AMR)
					Rateable values (non-domestic) (updated every 5 years)	VOA.gov.uk	
					GVA per head (Burnley)	ONS Regional Accounts	
					Visitor numbers and estimated income	STEAM/Visit Lancashire/Global Tourism Solutions	
					Average (Mean) house prices	Land Registry & CLG Live Table 581	
					Average Earnings: Gross annual pay – all and full time workers	Annual Survey of Hours and Earnings ONS via Nomis	
					Economic activity and unemployment rate	Annual Population Survey ONS via Nomis	
					Out of work benefits claimants	NOMIS (ONS)	
					Qualifications of working age residents	Annual Population Survey ONS via Nomis	
					Life expectancy at birth and at age 65	ONS	
					Crime – notifiable offences by category recorded by the Police (District Level)	Home Office	
					Crime rate Burnley and Lancashire	Home Office/ONS	
					Indices of Multiple Deprivation	DCLG	
		Associated Plans/Strategies		Sustainable Community Strategy, Lancashire LEP Business Plan Nov 2012, Burnley Economic Strategy 2007-17			

Strategy								
SP1	Achieving Sustainable Development	None Specified	To 2032	All	No. and % of planning applications approved per annum	BBC	AMR	
					No. and % of planning applications refused per annum	BBC		
					% of planning appeals dismissed per annum	BBC		
					Number of formal pre-application enquiries responded to	BBC		
					Mid Year Population Estimate	ONS		
					Earnings by residence– Full time workers Gross weekly pay	Annual Survey of Hours an Earnings ONS via Nomis		
					GVA Per Head	ONS Regional Accounts		
					Method of Travel To Work (Census)	ONS		
					Planning contributions received and spent	BBC	S106 Monitoring & AMR	
Associated Plans/Strategies		Sustainable Community Strategy, Lancashire LEP Business Plan Nov 2012, Burnley Economic Strategy 2007-17			Lead Organisation(s)		BBC, LCC, Lancashire LEP, Burnley Action Partnership	
SP2	Housing Requirement 2012-2032	3,880 dwellings provided or brought back into use 2012-2032	To 2032	2, 3, 10	Net additional dwellings: • per annum • over the plan period • by location/settlement category • On allocated sites • On windfall sites	BBC Council Tax Register	AMR	
		Maintain a 5 year supply of land for housing	Annual Update		No. of dwellings in supply and target: trajectory (of sites and categories of supply):	BBC	AMR & Housing Land Supply	

							Assessment
		228 empty homes brought back into use	To 2032		No. of empty homes brought back into use: • per annum • over the plan period	BBC Council Tax Records	AMR
Associated Plans/Strategies		SHMA, BBC Empty Homes Programme			Lead Organisation(s)	BBC, LCC, Lancashire LEP, Burnley Action Partnership, HCA, Registered Providers, Private Sector	
SP3	Employment Land Requirement 2012-2032	Provide 66 hectares between 2012 and 2032	To 2032	3, 4, 9, 10	Ha. employment land allocated on adoption and approved thereafter • per annum • on allocated sites • on windfall sites	BBC	AMR/ Employment Land Monitoring (ELM)
			To 2032		Amount and % of B1, B2 and non B1/B2 floor space (gross internal) Hectares of allocated employment land lost to C3 housing (by grant of permission and by exercise of PD rights)		
Associated Plans/Strategies		ELDS			Lead Organisation(s)	BBC, LCC, Lancashire LEP, Burnley Action Partnership	
SP4	Development Strategy	No specific target identified	To 2032	1, 2, 3, 4	% of residential development completions on previously developed and greenfield land per annum	BBC	AMR
					Amount of new residential development within 1200m of key local services	BBC	AMR
					Amount of new residential development within 30 minutes public transport time of key borough services	BBC	AMR
Associated Plans/Strategies		Sustainable Community Strategy, Lancashire LEP Business Plan Nov 2012, Burnley Economic Strategy 2007-17			Lead Organisation(s)	BBC, LCC, Lancashire LEP, Burnley Action Partnership	

SP5	Development Quality and Sustainability	No specific target identified	To 2032	1, 2, 3, 4, 5, 6, 7, 11	Number of Secured by Design awards /endorsements	BBC, Secured by Design (Association of Chief Police Officers)	AMR
		No. of schemes achieving Building for Life 12 ‘Diamond’ status			CABE	AMR	
		All commercial development to satisfy BREEAM ‘very good’			No and % of relevant schemes meeting criteria	BBC	AMR
					No of toilets built to Changing Places Standard	BBC, Retail and Leisure operators	AMR
Associated Plans/Strategies		ELDS, Water Framework Directive, Lancashire Sustainable Energy Study, Lancashire Climate Change Strategy			Lead Organisation(s)	BBC, LCC, Lancashire LEP, Burnley Action Partnership, United Utilities	
SP6	Green Infrastructure	No specific target identified	To 2032	1, 2, 3, 5, 6	Review of Council’s Green Spaces Strategy	BBC, Natural England	
Associated Plans/Strategies		Burnley GI Strategy, Burnley Green Spaces Strategy			Lead Organisation(s)	BBC, LCC, Lancashire LEP, Burnley Action Partnership	
SP7	Protecting the Green Belt	No specific target identified	To 2032	1, 5, 6	Ha. of greenbelt lost to inappropriate development per annum	BBC	AMR
Associated Plans/Strategies		None			Lead Organisation(s)	BBC, LCC	
Housing							
HS1	Housing Allocations	1,798 net additional dwellings completed	To 2032	2, 3, 9 10	Net additional dwellings: • per annum • over the plan period • per site	Local Authorities	AMR HLA
Associated Plans/Strategies		SHMA, SHLAA			Lead Organisation(s)	BBC, HCA, LEP,	
HS2	Affordable Housing Provision	Sites delivering over 10 units to provide affordable housing, guided by a tenure mix of 80% affordable rent /	To 2032	2	Affordability Ratios: • Mean Income: Mean House Price • Median Income: Median House Price • Lower Quartile Income: Lower Quartile House Price	BBC, RP, HCA, Land Registry	AMR

		social rent, and 20% intermediate tenure.			Number of affordable homes completed (gross and net) or acquired by type: • per annum over the plan period	BBC, RP, HCA	AMR
Associated Plans/Strategies		SHMA, SHLAA			Lead Organisation(s)	BBC, HCA, LEP	
HS3	Housing Density and Mix	New developments to achieve a minimum density of 25dph, as well as a mix of housing types and sizes.	To 2032	2, 3	Net additional dwellings approved and completed by type and no. of bedrooms: • per annum • over the plan period	BBC	AMR
					Net housing density of competed dwellings (sites of 5 and over): • Less than 25 dph • 25-30 dph • 30-40 dph • 40-74 dph • Over 75 dph	BBC	AMR
Associated Plans/Strategies		SHMA, SHLAA			Lead Organisation(s)	BBC, HCA, LEP	
HS4	Housing Developments	20% of dwellings designed to be adaptable in schemes of over 10 dwellings. New housing to contribute towards public open space provision.	To 2032	2, 3, 6	Number of Extra Care C3 dwelling houses approved and completed per annum Number of Accessible Homes (PART M(2) of the Building Regulations) completed per annum Number and proportion of dwelling types approved and completed by type: houses, flats, single storey bungalows	BBC, Registered Providers, NHBC	AMR
Associated Plans/Strategies		SHMA, SHLAA, Extra Care and Specialist Housing Strategy for Lancashire			Lead Organisation(s)	BBC, HCA, LCC, LEP	
HS5	House Extensions and Alterations	No specific target identified	To 2032	2	% of householder planning appeals dismissed per annum	BBC	
Associated Plans/Strategies		None			Lead Organisation(s)	BBC	

HS6	Agricultural Workers' Dwellings	No specific target identified	To 2032	2, 3, 5	Number of dwellings approved per annum	BBC	
Associated Plans/Strategies		SHMA			Lead Organisation(s)	BBC	
HS7	Gypsy and Traveller Site Criteria	maintain a 5 year supply of pitches	To 2032		Total number of pitches available New pitches and plots approved and provided per annum	BBC, DCLG Gypsy and Traveller Caravan Count	AMR
HS8	Gypsy and Traveller Site Occupancy Condition		To 2032	2, 5			
Associated Plans/Strategies		Gypsy and Traveller Site Allocations DPD, SHMA, GTAA, GTAA Addendum			Lead Organisation(s)	BBC	
Economy & Employment							
EMP1	Employment Allocations	32.83 hectares of employment land developed	To 2032	3, 4, 9, 10	Amount of B1 B2 B8 floor space (sq.m gross internal) completed: • per annum • over the plan period • per site	BBC, VOA	AMR ELM
EMP2	Protected Employment Sites	No specific target identified	To 2032	3, 9 10	Permissions granted for non B1(b and c), B2 or B8 on the protected sites.	BBC	AMR
EMP3	Supporting Employment Development	No specific target identified	To 2032	3	Amount of B1 B2 B8 floor space (sq.m gross internal) completed: • per annum • over the plan period	BBC, VOA	AMR ELM
EMP4	Office Development	No specific target identified	To 2032	3, 5	Permissions granted for offices outside Burnley or Padiham town centres	BBC	AMR
EMP5	Rural Business & Diversification	No specific target identified	To 2032	3, 5	Amount of B1 B2 B8 floor space (sq.m gross internal) completed outside Development Boundaries:	BBC	AMR

					• per annum • over the plan period		
					Visitor numbers and estimated income	STEAM/Visit Lancashire/Global Tourism Solutions	AMR
EMP6	Conversion of Rural Buildings	No specific target identified	To 2032	1, 2 3, 5, 8	No meaningful indicator identified		
EMP7	Equestrian Development	No specific target identified	To 2032	1, 3, 5, 6	No meaningful indicator identified		
Associated Plans/Strategies		Sustainable Community Strategy, Lancashire LEP Business Plan Nov 2012, Burnley Economic Strategy 2007-17			Lead Organisation(s)	BBC, LCC, Visit Lancashire, LEP	
Town Centres, Retail & Leisure							
TC1	Retail Hierarchy	No specific target identified	To 2032	1, 4, 11			
TC2	Development within Burnley & Padiham Town Centres	No specific target identified	To 2032	1, 3 4, 6, 11	Major A1/A2/B1 office use floorspace (net) completed (town centre, edge of centre, out of town)	BBC	AMR
TC3	Burnley Town Centre - Primary and Secondary Frontages	50% of Secondary Frontages to remain in A1 retail use (at ground floor level) In Primary Shopping Frontages, no change of use from A1(retail) or the extension of non-A1 uses into adjoining premises at ground floor level.	To 2032	1, 4	No and % of vacancies of commercial properties within the Primary and Secondary frontages No. of A1 premises lost to other uses in Primary Frontages No and % A1 retail units in Secondary Frontages Major D2 and Sui Generis Leisure use projects completed within and beyond town centre boundaries - floorspace (gross) where appropriate	BBC	AMR

					Periodic footfall monitoring of Primary and Secondary Frontages		
TC4	Development Opportunities in Burnley Town Centre	Approval and completion of mixed use scheme at Curzon Street and Thompson Centre		1, 3, 4	Retail/B1a office use floorspace (net) completed within and beyond town centre boundaries and at identified site	BBC	AMR
TC5	Uses within the Weavers’ Triangle	No specific target identified	To 2032	1, 2, 3, 4, 8, 10			
TC6	District Centres	No specific target identified	To 2032	4	Biennial survey of District Centres and uses	BBC	AMR
TC7	Hot Food Takeaways	No specific target identified	To 2032	4	Planning permissions for hot food takeaways outside of secondary frontages in Burnley town centre, Padiham town centre or defined district centres.		
TC8	Shop Front & Advertisement Design	Shopfront and Advertisement Design SPD produced	To 2032	1, 4, 7 8	Shopfront and Advertisement Design SPD produced	BBC	AMR
Associated Plans/Strategies		Sustainable Community Strategy, Lancashire LEP Business Plan Nov 2012, Burnley Economic Strategy 2007-17, Burnley Town Centre Strategy 2016, Padiham THI bid, SPDs			Lead Organisation(s)	BBC, Chambers of Trade, Town Centre Partnership, HLF	
Historic Environment							
HE1	Identifying and Protecting Burnley’s Historic Environment	No specific target identified	To 2032	1, 5, 7, 8	Per annum: • Number of Conservation Areas • Number of Conservation Areas with character appraisals • Number of buildings on the Heritage at Risk Register • Number of Article 4 Directions	BBC, Historic England	AMR
HE2	Designated Heritage Assets: Listed Buildings;	No specific target identified	BBC	1, 5, 7, 8	• Number of Listed Buildings (Entries) • Number of Listed Buildings demolished • % of LBC appeals dismissed per annum	BBC	AMR

	Conservations Areas; and Registered Parks and Gardens						
HE3	Non-Designated Heritage Assets	No specific target identified		1, 5, 8	• Number of buildings on the local list (Entries) • Number of buildings on the local list demolished		
HE4	Scheduled Monuments and Archaeological Assets	No specific target identified	To 2032	1, 5, 8	• Number of buildings/sites on the Heritage at Risk Register	BBC, Historic England	
Associated Plans/Strategies		Conservation Area Appraisals and Management Plans, SPDs, Padiham THI bid, Sustainable Community Strategy			Lead Organisation(s)	BBC, Historic England, HLF	
Natural Environment							
NE1	Biodiversity and Ecological Networks	No specific target identified There is Public Service Agreement (PSA) target nationally for 95% of SSSIs to be in favourable or recovering condition	To 2032	1, 3, 5, 7	• Quality of SSSIs & Condition of SSSI units • Area of SSSIs in adverse condition as a result of development • Number of planning approvals with conditions to ensure works to manage/enhance the condition of SSSI/SAC/SPA/Ramsar features of interest • Number of Biological Heritage Sites • Number of Biological Heritage Sites in Positive Management • BAP habitat - created/ managed via planning obligations	Natural England Lancashire County Council, BBC	AMR
NE2	Protected Open Space	All identified sites to be protected	To 2032	2, 5, 7,	Number of hectares of protected open space lost to development	BBC	

NE3	Landscape Character	No specific target identified	To 2032	5, 8	No. of planning appeals allowed/ dismissed on landscape character grounds	BBC	AMR
NE4	Trees, Hedgerows and Woodlands	No specific target identified	To 2032	1, 5	Number of protected trees felled and replacement trees planted	BBC	
NE5	Environmental Protection	No AQMA	To 2032	1, 7	Household waste collected per person % of household waste recycled % of household waste composted	BBC	AMR
					No of AQMAs	BBC	AMR
					No of complaints received on odour and noise pollution	BBC	AMR
					Ecological Status of Burnley’s Rivers	Environment Agency	AMR
					Greenhouse emissions per capita by Local Authority (CO2)	DECC	AMR
Associated Plans/Strategies		Lancashire BAP, Burnley GI Strategy, Sustainable Community Strategy, Green Spaces Strategy			Lead Organisation(s)	BBC, Natural England, Lancashire Wildlife Trust, Environment Agency	
Climate Change							
CC1	Renewable and Low Carbon Energy (not including Wind Energy)	No specific target identified	To 2032	1, 3, 5	% of electricity consumption met by renewable energy in the Borough Installed renewable energy capacity through the planning system	DECC BBC	AMR
CC2	Suitable Areas for Wind Energy Development	No specific target identified	To 2032	1, 5	No of turbines approved outside of and within identified suitable areas	BBC British Wind Energy Association	AMR
CC3	Wind Energy Development	No specific target identified	To 2032	1, 5	Installed wind energy capacity	BBC British Wind Energy Association	AMR
CC4	Development and Flood Risk	No specific target identified	To 2032	1	Number of planning permissions granted contrary to Environment Agency advice on flooding and water quality grounds	Environment Agency	AMR

CC5	Surface Water Management and Sustainable Drainage Systems (SuDS)	All new major developments to incorporate SUDs	To 2032	1, 5, 6	% of new major housing developments approved incorporating SUDs	BBC	AMR
Associated Plans/Strategies		Sustainable Community Strategy, SFRA			Lead Organisation(s)	BBC, LCC, EA	
Infrastructure & Connectivity							
IC1	Sustainable Travel	No specific target identified	To 2032	1, 6, 7, 9	Amount of new residential development within 1200m of key local services	BBC	AMR
					Amount of new residential development within 30 minutes public transport time of key borough services	BBC	AMR
					Road Casualties: overall Road Casualties: people killed or seriously injured Road Casualties: children killed or seriously injured	DfT Road Casualties and National Road Traffic Survey	AMR
					Motor vehicle traffic flow estimates (million vehicle km) Car flow traffic estimates (million vehicle km)	National Road Traffic Survey	AMR
IC2	Managing Transport and Travel Impacts	No specific target identified	To 2032	1, 6, 7, 9	Number of Full Travel Plans approved as part of the planning application process.	BBC	AMR
IC3	Car Parking Standards	No specific target identified	To 2032	1, 2, 3, 4, 7	No. of planning appeals allowed/dismissed on parking grounds	BBC	AMR
IC4	Infrastructure and Planning Contributions	No specific target identified	To 2032	All	Amount of S106 contributions requested via planning application Amount of S106 spent by type	BBC	AMR
IC5	Protection and Provision of	No specific target identified	To 2032	6, 7,11	New major community infrastructure projects delivered	BBC	AMR

	Social and Community Infrastructure				Review of the Playing Pitch Strategy (3 yearly) Number of playing pitches lost and or replaced	BBC, Sport England Rossendale, Pendle Borough Councils	
IC6	Telecommunications	No specific target identified	No specific target identified	9		Network Providers	
IC7	Taxis and Taxi Booking Offices			4 , 9	Number of new taxi booking offices approved outside of areas specified in Clause 1) of Policy IC7	BBC	AMR
<i>Associated Plans/Strategies</i>		<i>Sustainable Community Strategy, Lancashire LEP Business Plan Nov 2012, Burnley Economic Strategy 2007-17 , East Lancashire Highways and Transport Masterplan, Burnley Car Parking Strategy</i>			<i>Lead Organisation(s)</i>	<i>BBC, LCC, DfT</i>	

Appendices

Appendix 1: Glossary

Affordable Housing	Social rented, affordable rented and intermediate housing, provided to eligible households whose needs are not met by the market. Eligibility is determined with regard to local incomes and local house prices. Affordable housing should include provisions to remain at an affordable price for future eligible households or for the subsidy to be recycled for alternative affordable housing provision. Social rented housing is owned by local authorities and private registered providers (as defined in section 80 of the Housing and Regeneration Act 2008), for which guideline target rents are determined through the national rent regime. It may also be owned by other persons and provided under equivalent rental arrangements to the above, as agreed with the local authority or with the Homes and Communities Agency. Affordable rented housing is let by local authorities or private registered providers of social housing to households who are eligible for social rented housing. Affordable Rent is subject to rent controls that require a rent of no more than 80% of the local market rent (including service charges, where applicable). Intermediate housing is homes for sale and rent provided at a cost above social rent, but below market levels subject to the criteria in the Affordable Housing definition above. These can include shared equity (shared ownership and equity loans), other low cost homes for sale and intermediate rent, but not affordable rented housing. Homes that do not meet the above definition of affordable housing, such as “low cost market” housing, may not be considered as affordable housing for planning purposes.
Air Quality Management Areas (AQMA):	Areas designated by local authorities because they are not likely to achieve national air quality objectives by the relevant deadlines.
Ancient Woodland	An area that has been wooded continuously since at least 1600 AD.
Appropriate Assessment	Under the Habitats Directive (92/43/EEC) as transposed into UK law by the Conservation of Habitats and Species Regulations (2017) an Appropriate Assessment is required for any plan or project which either alone or in combination with other plans or projects, would be likely to have a significant effect on a European Site (see separate entry) and is not directly connected with the management of the site for nature conservation.
Article 4 Direction	A piece of legislation specific to an area which withdraws some of the automatic planning permissions granted by the General Permitted Development Order.
Authority Monitoring Report (AMR)	A document produced at least annually to report on the progress on the preparation of the Local Plan and monitor the policies.
Biodiversity	The whole variety of life on earth. It includes all species of plants and animals and the ecosystems and habitats they are part of.
Biodiversity Action Plans (BAPs)	Recognised programmes that address the protection and restoration of threatened species and habitats. These are prepared on a national and on a sub-regional basis and a BAP is in place for the Lancashire area.
Biological Heritage Site (BHS)	Biological Heritage Sites are considered the key wildlife sites in Lancashire other than designated sites of national or European importance. BHSs are identified using a set of published guidelines. Amendments to the list of sites are made by the Biological Heritage Sites review panel which comprises ecologists from the County Council, Wildlife Trust for Lancashire, Manchester and North Merseyside and Natural England.

Blue Infrastructure (BI)	The network of aquatic components that lie within and between cities, towns and villages which provide multiple social, economic and environmental benefits. The physical components of blue infrastructure include waterways such as rivers, streams, marshes and lakes.
Brownfield	See the definition of Previously Developed Land (PDL).
Climate Change	Climate change is a large-scale, long-term shift in the planet's weather patterns or average temperatures. (MET office)
Climate change adaptation	Adjustments to natural or human systems in response to actual or expected climatic factors or their effects, including from changes in rainfall and rising temperatures, which moderate harm or exploit beneficial opportunities.
Climate change mitigation	Action to reduce the impact of human activity on the climate system, primarily through reducing greenhouse gas emissions.
Comparison Goods	Goods for which the consumer generally expects to invest time and effort and visit a range of shops before making a choice including: clothing materials and garments; shoes and other footwear; materials for maintenance and repair of dwellings; furniture and furnishings; carpets and other floor coverings; household textiles; major household appliances, whether electric or not; small electric household appliances; tools and miscellaneous accessories; glassware, tableware and household utensils; medical goods and other pharmaceutical products; therapeutic appliances and equipment; bicycles; recording media; games, toys and hobbies; sport and camping equipment; musical instruments; gardens, plants and flowers; pets and related products; books and stationery; audio-visual, photographic and information processing equipment; appliances for personal care; jewellery, watches and clocks; other personal effects.
Community Infrastructure Levy (CIL)	A levy allowing local authorities to raise funds from owners or developers of land undertaking new building projects in their area.
Concealed Households	Family units, including single adults living within 'host' households.
Conservation	(For heritage policy): The process of maintaining and managing change to a heritage asset in a way that sustains and, where appropriate, enhances its significance.
Conservation Area	These are 'Areas of special architectural or historic interest, the character or appearance of which is desirable to preserve or enhance' and are designated by the local planning authority.
Convenience Retailing	Relates to the purchase of everyday essential items, including confectionary, on goods in COICOP categories: food and non-alcoholic beverages, tobacco, alcoholic beverages (off-trade), newspapers and periodicals, non-durable household goods.
Cumulative effects	The state in which a series of repeated actions have effect greater than the sum of their individual effects; noted here especially in the location of wind turbines.
Curtilage	An area of land around a building.
Density (net)	Net site density includes only those areas which will be developed e.g. for housing and directly associated uses such as access roads within the site, private garden spaces, car parking areas, incidental open spaces and landscaping and children's play areas where these are to be provided. It excludes major distributor roads; primary schools; adult/youth play spaces or other open spaces serving a wider area; and significant landscape buffer strips.
Designated Heritage Asset	A World Heritage Site, Scheduled Monument, Listed Building, Protected Wreck Site, Registered Park or Garden, Registered Battlefield or Conservation Area designated as such under the relevant legislation.
Development Management	Development management or development control is the process by which planning and similar applications are determined.

Development Plan	The statutorily adopted suite of development plan documents. In Burnley this will include the Local Plan and the Joint Lancashire Minerals and Waste Local Plan and any Neighbourhood Development Plans.
Development Plan Documents	An individual, separately adopted, part of the Local Plan.
Duty to Cooperate	The Localism Act 2011 introduced a Duty to Cooperate. Bodies subject to the Duty are required to engage constructively, actively and on an ongoing basis to maximise the effectiveness of Local and Marine Plan preparation in the context of strategic cross boundary matters. The duty to cooperate is not a duty to agree.
Ecological networks	These link sites of biodiversity importance. To date in Lancashire they have been defined for woodland and grassland species by Lancashire County Council's Lancashire Environment Record Network (LERN).
Ecosystem services	The benefits people obtain from ecosystems such as food, water, flood and disease control and recreation.
Extra Care Housing	Housing designed with the needs of older people in mind with varying levels of care and support available on-site. People who live in extra care housing have their own self-contained homes and benefit from communal facilities being available. Properties can be rented, owned or part owned/rented.
European Site	These include candidate and designated and classified Special Areas of Conservation, Sites of Community Importance and Special Protection Areas, as defined in regulation 8 of the Conservation of Habitats and Species Regulations 2010.
Flood Risk Assessments (FRA)	Site specific assessments which identify the risks to a site or premises from flooding from all sources, and any risk which may arise elsewhere as a result of development. These assessments are required for development proposals which are in areas of known flood risk (e.g. in flood zones 2 and 3) and for all proposals over 1 hectare in size.
Geodiversity	The range of rocks, minerals, fossils, soils and landforms.
Green Belt	A designated area of land around built up areas that aims to prevent urban sprawl by keeping land permanently open.
Greenfield	Land which is not been previously developed (see previously-developed land).
Gypsies and Travellers	Persons of nomadic habit of life whatever their race or origin, including such persons who on grounds only of their own or their family's or dependants' educational or health needs or old age have ceased to travel temporarily, but excluding members of an organised group of travelling showpeople or circus people travelling together as such.(This is the definition set out in Appendix 1 of national planning policy document 'Planning Policy for Traveller Sites August 2015'
Green Infrastructure	A network of multi-functional green space and areas of water, urban and rural, which is capable of delivering a wide range of environmental and quality of life benefits for local communities.
Habitats of Principal Importance in England	Fifty-six habitats identified as requiring action under the UK Biodiversity Action Plan and which continue to be regarded as conservation priorities. These habitats are included in the UK Biodiversity List published by the Secretary of State under Section 41 of the Natural Environment and Rural Communities (NERC) Act which came into force on 1st Oct 2006.
Habitats Regulations Assessment (HRA)	Habitat Regulations Assessment is the process by which it is determined whether an Appropriate Assessment is necessary in relation to a proposed plan or project. (See also Appropriate Assessment above).
Heritage Asset	Is defined within the NPPF and refers to features within the historic environment. Heritage assets can be described as 'designated heritage assets' or 'non-designated heritage assets' (which are defined separately within this glossary).

Historic Environment	All aspects of the environment that result from the interaction between people and places through time, including surviving physical remains of past human activity, whether visible, buried or submerged, and landscape and planted or managed flora.
Infrastructure	In planning terms the physical structures and facilities that are required to support development. Infrastructure typically refers to matters such as roads, water, electricity, schools, doctors, etc.
Infrastructure Delivery Plan (IDP)	A schedule which identifies any required infrastructure needed to support a Local Plan and how this can be delivered.
Kyoto Protocol	International treaty that sets obligations to reduce greenhouse gas emissions.
Landscape Character Assessment	An assessment which identifies different landscape areas which have a distinct character based on recognisable pattern of elements, including combinations of geology, landform, soils, vegetation, land-use and human settlement.
Lead Local Flood Authority (LLFA)	Local Authority (in Lancashire the County Council) responsible for developing, maintaining and applying a strategy for local flood risk management in their areas and for maintaining a register of flood risk assets. They also have lead responsibility for managing the risk of flooding from surface water, groundwater and ordinary watercourses.
Listed Building	A building of 'special architectural or historic interest' included on a statutory list compiled the Secretary of State for Digital, Culture, Media and Sport.
Local Development Framework	The term previously used to describe the suite of planning policy documents.
Local Development Scheme	The Local Planning Authority's project plan for the preparation of its Local Plan.
Local Enterprise Partnership (LEP)	A body, designated by the Secretary of State for Communities and Local Government, established for the purpose of creating or improving the conditions for economic growth in an area.
Local Nature Partnership	A body, designated by the Secretary of State for Environment, Food and Rural Affairs, established for the purpose of protecting and improving the natural environment in an area and the benefits derived from it.
Local Geodiversity Site (LGS)	A Lancashire-wide designation which identifies valuable local geological and geomorphological sites. Local Geodiversity Sites were formerly known as Regionally Important Geological Sites (RIGs).
Local Nature Reserve (LNR)	A statutory designation made under Section 21 of the National Parks and Access to the Countryside Act 1949 by principal local authorities. Parish and Town Councils can also declare local nature reserves but they must have the powers to do so delegated to them by a principal local authority. LNRs are for both people and wildlife. They are places with wildlife or geological features that are of special interest locally.
Local Transport Plan (LTP):	Prepared by the relevant highways authority for the area i.e. Lancashire County Council. The LTP sets out the objectives and plans for developing transport in an area.
Low Carbon Energy	Power produced from technologies which produce a low amount of carbon dioxide compared to fossil fuels.
Main river	Main rivers are watercourses designated as such on main river maps held by the Environment Agency and are generally the larger arterial watercourses. Any alteration or connection to a main river will require consent from the Environment Agency.

Major Development	For dwellings, a major development is one where the number of residential units to be constructed is 10 or more, or if the application does not state the number of units to be constructed, the site area is 0.5 hectares or more. For all other uses, a major development is one where the floor space to be built is 1,000 square metres or more, or where the site area is 1 hectare or more.
Market Housing	Private housing for rent or for sale, where the price and tenure is set in the open market.
Minerals Safeguarding Areas	Areas designated by the Minerals Planning Authority that cover known deposits of minerals, which are desired to be kept safeguarded from unnecessary sterilisation by non-mineral development.
Neighbourhood Development Plan	A statutory plan prepared by a Parish Council or Neighbourhood Forum for a particular neighbourhood area (made under the Planning and Compulsory Purchase Act 2004 as amended principally by the Localism Act 2011).
Objectively Assessed Needs (OAN)	An assessment of the demand e.g. for housing in a housing market area over a plan period - not taking account of the environmental capacity of an area to deliver it.
ONS	Office for National Statistics.
Optimum Viable Use	Optimum viable Use is the use which is viable, and where the changes are optimum in terms of entailing the least harm to the special interest of the heritage asset. The most profitable use may be less than optimum in terms of its impact on the heritage asset.
Ordinary Watercourse	Ordinary watercourses include drains, streams, ditches, and passages through which water flows that do not form part of main rivers. Main rivers are managed by the Environment Agency. Proposals involving alterations to a watercourse require permission from Lancashire County Council first.
Pitches and Plots for Gypsies, Travellers and Travelling Showpeople	A "pitch" means a pitch on a "gypsy and traveller" site and "plot" means a pitch on a "travelling showpeople" site (also sometimes called a "yard").
Planning Obligation	A legally enforceable agreement between a planning authority and a developer, or an undertaking offered unilaterally by a developer, entered into under section 106 of the Town and Country Planning Act 1990 with the intention of helping to mitigate the negative impacts of a development proposal.
Previously developed land (also known as brownfield land)	Land which is or was occupied by a permanent structure, including the curtilage of developed land (although it should not be assumed that the whole of the curtilage should be developed) and any associated fixed surface infrastructure. This excludes: land that is or has been occupied by agricultural or forestry buildings; land that has been developed for minerals extraction or waste disposal by landfill purposes where provision for restoration has been made through development control procedures; land in built-up areas such as private residential gardens, parks, recreation grounds and allotments; and land that was previously-developed but where the remains of the permanent structure or fixed surface structure have blended into the landscape in the process of time.
Primary Shopping Area	Defined area where retail development is concentrated (generally comprising the primary and those secondary frontages which are adjoining and closely related to the primary shopping frontage).
Public Realm	The spaces between buildings and developments that are publicly accessible, including streets, squares, parks and open spaces.
Primary Shopping Frontage	Primary frontages are likely to include a high proportion of retail uses which may include food, drinks, clothing and household goods.

Priority Habitats and Species	Species and Habitats of Principle Importance included in the England Biodiversity List published by the Secretary of State under section 41 of the Natural Environment and Rural Communities Act 2006.
Protected Species	European Protected Species are animals and plants listed in Annex IV of the European Habitats Directive and protected in the UK under The Conservation of Habitats and Species Regulations (2017). Nationally Protected Species include all European Protected Species and also a large number of species which are specially protected under the Wildlife & Countryside Act (1981) or in other legislation such as the Protection of Badgers Act 1992.
Ramsar Site	Wetlands of international importance, designated under the 1971 Ramsar Convention.
Regional (Spatial) Strategy (RSS)	The previous regional planning framework which was revoked in 2013.
Regionally Important Geological Sites (RIGS):	These are sub regionally designated sites which are of importance for their geo-diversity (geology and geomorphology).
Registered Provider	Registered providers (often known as social landlords) are the bodies that own and manage social housing. They tend to be non-commercial organisations such as local authorities or housing associations. Housing associations are independent, not-for-profit organisations that can use any profit they make to maintain existing homes and help finance new ones. It is now possible for commercial organisations to build and manage social housing, although this is not yet common practice.
Renewable and Low Carbon Energy	Includes energy for heating and cooling as well as generating electricity. Renewable energy covers those energy flows that occur naturally and repeatedly in the environment – from the wind, the fall of water, the movement of the oceans, from the sun and also from biomass and deep geothermal heat. Low carbon technologies are those that can help reduce emissions (compared to conventional use of fossil fuels).
Scheduled Monument	Nationally important monuments, usually archaeological remains that enjoy protection against inappropriate development as a result of their scheduling under the Ancient Monuments and Archaeological Areas Act 1979.
Secondary Shopping Frontage	Secondary frontages provide greater opportunities for a diversity of uses such as restaurants, cinemas and businesses.
Setting of a Heritage Asset	The surroundings in which a heritage asset is experienced. Its extent is not fixed and may change as the asset and its surroundings evolve. Elements of a setting may make a positive or negative contribution to the significance of an asset, may affect the ability to appreciate that significance or may be neutral.
Sequential Approach (flood risk)	To locate development to avoid where possible flood risk to people and property and manage any residual risk, taking account of the impacts of climate change.
Sequential Test (flood risk)	The aim of the Sequential Test is to steer new development to areas with the lowest probability of flooding. Development should not be allocated or permitted if there are reasonably available sites appropriate for the proposed development in areas with a lower probability of flooding. The Strategic Flood Risk Assessment will provide the basis for applying this test.
Site of Special Scientific Interest (SSSI)	Sites designated nationally as being of special interest by reason of their flora, fauna, geological or physiological features and have statutory protection to preserve these features, designated by Natural England under the Wildlife and Countryside Act 1981.
Special Area of Conservation (SAC)	Areas given special protection under the European Union's Habitats Directive, which is transposed into UK law by the Habitats and Conservation of Species Regulations 2017.

Special Protection Areas (SPA)	Areas which have been identified as being of international importance for the breeding, feeding, wintering or the migration of rare and vulnerable species of birds found within European Union countries. They are European designated sites, classified under the Birds Directive.
Species of Principal Importance in England	943 species identified as requiring action under the UK Biodiversity Action Plan and which continue to be regarded as conservation priorities. These species are included in the UK Biodiversity List published by the Secretary of State under Section 41 of the Natural Environment and Rural Communities (NERC) Act which came into force on 1st Oct 2006.
Strategic Environmental Assessment (SEA)	A procedure (set out in the Environmental Assessment of Plans and Programmes Regulations 2004) which requires the formal environmental assessment of certain plans and programmes which are likely to have significant effects on the environment.
Strategic Flood Risk Assessment (SFRA)	A study carried out by one or more local planning authorities to assess the risk to an area from flooding from all sources, now and in the future, taking account of the impacts of climate change, and to assess the impact that land use changes and development in the area will have on flood risk.
Strategic Housing Land Availability Assessment (SHLAA)	A study to assess the overall potential for housing development in the area. It identifies specific sites with a development potential over the next 15 years and both informs the development of and monitors the performance of the Local Plan. Can include employment land also.
Strategic Housing Market Assessment (SHMA)	Assesses the housing market within the housing market area, and considers the nature of future need and demand for market and affordable housing to inform the development of the Local Plan.
Supplementary Planning Document (SPD)	Documents which add further detail to the policies in the Local Plan. They can be used to provide further guidance for development on specific sites or on particular issues, such as design. Supplementary Planning Documents are capable of being a material consideration in planning decisions but are not part of the development plan.
Sustainability Appraisal (SA)	Sustainability Appraisal is a systematic appraisal process used to assess the social, environmental and economic effects of strategies and policies from the outset of the preparation process.
Sustainable Drainage Systems (SuDS)	SuDS are an approach to managing rainwater falling on roofs and other surfaces through a sequence of actions. The key objectives are to manage the flow rate and volume of surface runoff to reduce the risk of flooding and water pollution. SuDS also reduce pressure on the sewerage network and can improve biodiversity and local amenity.
Town Centre	Area defined on the local authority's policies map, including the primary shopping area and areas predominantly occupied by main town centre uses within or adjacent to the primary shopping area. References (in the NPPF) to town centres or centres apply to city centres, town centres, district centres and local centres but exclude small parades of shops of purely neighbourhood significance. Unless they are identified as centres in Local Plans, existing out-of-centre developments, comprising or including main town centre uses, do not constitute town centres.
Transport Assessment	A comprehensive and systematic process that sets out transport issues relating to a proposed development. It identifies what measures will be required to improve accessibility and safety for all modes of travel, particularly for alternatives to the car such as walking, cycling and public transport and what measures will need to be taken to deal with the anticipated transport impacts of the development.
Transport Statement	A simplified version of a transport assessment where it is agreed the transport issues arising out of development proposals are limited and a full transport assessment is not required.

Travel Plan	A long-term management strategy for an organisation or site that seeks to deliver sustainable transport objectives through action and is articulated in a document that is regularly reviewed.
Travelling Showpeople	Member of a group organised for the purposes of holding fairs, circuses or shows (whether or not travelling together as such). This includes such persons who, on the grounds of their own family's dependents' more localised pattern of trading, educational or health needs or old age, have ceased to travel but excludes Gypsies and Travellers defined separately within this glossary.
Use Classes	The Town and Country Planning (Use Classes) Order 1987 (as amended) puts uses of land and buildings into various categories or 'classes' e.g. C3 dwellings. Changes of use within these classes do not normally require planning permission and changes between certain classes may not either (permission may still be required for any physical conversion works).
Veteran Tree	A tree which, because of its great age, size or condition, is of exceptional value for wildlife, in the landscape or culturally.

Appendix 2: Reference List

Legislation

Available at: <http://www.legislation.gov.uk>

National Planning Policy

National Planning Policy Framework <https://www.gov.uk/guidance/national-planning-policy-framework>

Written Ministerial Statements <https://www.gov.uk/government/collections/planning-practice-guidance#other-planning-policies>

Planning Policy for Traveller Sites, 2015 <https://www.gov.uk/government/publications/planning-policy-for-traveller-sites>

National Planning Practice Guidance

<https://www.gov.uk/government/collections/planning-practice-guidance>

Other National Guidance, Policy and Information

Playing Fields Policy and Guidance (2018) Sport England <https://www.sportengland.org/media/12940/final-playing-fields-policy-and-guidance-document.pdf>

Active Design: Planning for Health and wellbeing through sport and physical activity (2015) Sport England <https://www.sportengland.org/facilities-planning/active-design/>

Access to and Use of Buildings: Approved Document M (2016) Department for Communities and Local Government: <https://www.gov.uk/government/publications/access-to-and-use-of-buildings-approved-document-m>

Contaminated Land Statutory Guidance (2012) Department for Environment, Food & Rural Affairs <https://www.gov.uk/government/publications/contaminated-land-statutory-guidance>

National Character Areas List (2016) Natural England <http://publications.naturalengland.org.uk/category/587130>

National Character Area Profile 35 Lancashire Valleys (2013) Natural England

National Character Area Profile 36 Southern Pennines (2012) Natural England

Developers: Get Planning Advice on your Planning Proposals (2015) Natural England, Environment Agency and Department for Environment, Food & Rural Affairs www.gov.uk/guidance/developers-get-environmental-advice-on-your-planning-proposals

The National Heritage List for England <https://www.historicengland.org.uk/listing/the-list>

The National Heritage at Risk Register <https://historicengland.org.uk/advice/heritage-at-risk/>

Lancashire Historic Environment Record <http://www.lancashire.gov.uk/libraries-and-archives/archives-and-record-office/historic-environment-record.aspx>

The Setting of Heritage Assets Historic Environment Good Practice Advice in Planning Note 3 (Second Edition December 2017) Historic England <https://content.historicengland.org.uk/images-books/publications/gpa3-setting-of-heritage-assets/heag180-gpa3-setting-heritage-assets.pdf/>

Enabling Development and the Conservation of Significant Places (2008), Historic England <https://historicengland.org.uk/images-books/publications/enabling-development-and-the-conservation-of-significant-places/>

Environment Agency (2016) Flood Map for Planning (Rivers and Sea) <https://data.gov.uk/dataset/bed63fc1-dd26-4685-b143-2941088923b3/flood-map-for-planning-rivers-and-sea-flood-zone-3>

Environment Agency (2016) Risk of Flooding Form Surface Water Map <http://watermaps.environment-agency.gov.uk/>

Environment Agency (2016) Guidance Flood Risk Assessments: Climate Change Allowances <http://environment-agency.gov.uk/>

Manual for Streets (2007) Department for Transport <https://www.gov.uk/government/publications/manual-for-streets>

Non-statutory Technical Standards for Sustainable Urban Drainage (2015) Department for Environment, Food & Rural Affairs: <https://www.gov.uk/government/publications/sustainable-drainage-systems-non-statutory-technical-standards>

Technical Housing Standards – Nationally Described Space Standards (2015) Department for Communities and Local Government <https://www.gov.uk/government/publications/technical-housing-standards-nationally-described-space-standard>

Regional and Sub-Regional Plans

Joint Lancashire Structure Plan (2005) Joint Advisory Committee for Strategic Planning (Revoked) www.lancashire.gov.uk/media/297246/LCC15-Joint-Lancashire-Structure-Plan-2001-2016-adopted-March-2005.pdf

The North West of England Plan Regional Spatial Strategy to 2021 (2008) Department for Communities and Local Government (Revoked) <http://webarchive.nationalarchives.gov.uk/20100529165024/http://www.gos.gov.uk/gonw/Planning/RegionalPlanning/?a=42496>

Joint Lancashire Minerals and Waste Development Framework Core Strategy DPD (2009). Lancashire County Council <http://www.lancashire.gov.uk/council/planning/local-planning-policy-for-minerals-and-waste.aspx>

Joint Lancashire Minerals and Waste Local Plan Site Allocation and Development Management Policies (2013): <http://www.lancashire.gov.uk/council/planning/local-planning-policy-for-minerals-and-waste.aspx>

Former Local Plan

Burnley Local Plan Second Review (2006) Burnley Borough Council: <http://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-adopted-local-plan-2006>

Other Local Planning Documents

Annual Monitoring Reports, Burnley Borough Council www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/burnleys-annual-monitoring-report

Local Development Scheme (LDS) (2018), Burnley Borough Council https://www.burnley.gov.uk/sites/default/files/LDS%202018%20-%202021%20FINAL_0.pdf

Draft Infrastructure Delivery Plan (July 2017 Version 2), Burnley Borough Council <https://www.burnley.gov.uk/sites/default/files/IDP%20v2%20July%202017.pdf>

Statement of Community Involvement (SCI) <https://www.burnley.gov.uk/residents/planning/planning-policies/statement-community-involvement>

Local List of Buildings, Unscheduled Ancient Monuments and Gardens of Historic Interest <http://www.burnley.gov.uk/sites/default/files/Burnley%27s%20Locally%20Listed%20Buildings%2C%20Unscheduled%20Ancient%20Monuments%20and%20Gardens%20of%20Historic%20Interest%20-%20Updated%202001.pdf>

Supplementary Planning Guidance/ Documents and Local Development Orders (LDO)

Burnley Aerospace Supplier Park (2013) LDO Burnley Borough Council <https://www.burnley.gov.uk/residents/planning/planning-policies/local-development-orders/burnley-aerospace-supplier-park>

Children's Day Nurseries SPG (1988) <http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

Design Guidance for Burnley Wood SPD (2006) Burnley Borough Council
<http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

Design Guidance for Daneshouse, Stoneyholme, Duke Bar SPD (2006) Burnley Borough Council
<http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

Design Guidance for South West Burnley SPD (2006) Burnley Borough Council
<http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

Dormer Extensions SPG (1991) <http://www.burnley.gov.uk/sites/default/files/Dormer%20Extensions.pdf>

Burnley Town Centre Public Realm Strategy (2011) Burnley Borough Council
<http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

Weavers' Triangle Public Realm Strategy SPD (2011) Burnley Borough Council
<http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

Shop Front Security Shutters SPG (1998) <http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

South West Burnley Development Brief (2010) Burnley Borough Council:
<http://www.burnley.gov.uk/residents/planning/planning-policies/supplementary-planning-documents>

Evidence Base Studies

Housing

Burnley SHMA Addendum 2014-based SNHP Update October 2017: Lichfields for Burnley Borough Council.
<https://www.burnley.gov.uk/sites/default/files/EL1.006%20Burnley%20SHMA%20Addendum%20-%202014-based%20SNHP%20Update.pdf>

Burnley Strategic Housing Market Assessment Update (2016), Nathaniel Lichfield & Partners for Burnley Borough Council
<http://www.burnley.gov.uk/sites/default/files/Burnley%20SHMA%20Update%20May%202016.PDF>

Burnley and Pendle Housing Needs Study and Strategic Housing Market Assessment (2013), Nathaniel Lichfield & Partners for Burnley Borough Council <http://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/strategic-housing-market-assessment>

Gypsy, Traveller and Travelling Showpeople Accommodation Assessment Addendum (2016), Burnley Borough Council <https://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/gypsy-traveller-and-travelling-show-people-accommodation-assessment-burnley-and-pendle>

Gypsy, Traveller and Travelling Showpeople Accommodation Assessment: Burnley and Pendle (2012), Salford Housing & Urban Studies Unit for Burnley Borough Council
<http://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/gypsy-traveller-and-travelling-show-people-accommodation-assessment-burnley-and-pendle>

Housing Land Availability (2009 – 2017) Burnley Borough Council
<http://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/housing-land-availability>

Strategic Housing and Employment Land Availability Assessment (SHLAA) (Update 1 March 2017) Burnley Borough Council <http://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/strategic-housing-land-availability-assessment>

Economy and Employment

Burnley Employment Land Demand Study Update (2016), Nathaniel Lichfield and Partners for Burnley Borough Council <https://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/employment-land-study>

Burnley Local Plan Viability Study, HDH Planning & Development for Burnley Borough Council, March 2017 <https://www.burnley.gov.uk/residents/planning/planning-policy/burnleys-emerging-local-plan/evidence-base/local-plan-viability-assessment>

Burnley-Pendle Growth Corridor (Stage 1: Data Collection and Problem Identification Report) (2014) Jacobs for Lancashire County Council <http://www.lancashire.gov.uk/media/497020/Burnley-Pendle-Growth-Corridor-Stage-1-Report.pdf>

Burnley-Pendle Growth Corridor Strategic Outline Business Case (2015) <http://www.lancashirelep.co.uk/lep-priorities/transport-and-connectivity/burnley-pendle-growth-corridor.aspx>

Retail & Town Centres

Retail, Leisure & Office Assessment (2013), Nathaniel Lichfield & Partners for Burnley Borough Council <https://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/burnley-retail-office-and-leisure-assessment>

Burnley Town Centre Strategy (January 2016): <https://www.burnley.gov.uk/sites/default/files/Burnley%20Town%20Centre%20Strategy%202015%20v4%20changes%20marked.%20cp%20140116docx%20CP.pdf>

Burnley Car Parking Strategy https://www.burnley.gov.uk/sites/default/files/car_park_strategy.pdf

Transport

East Lancashire Highways and Transport Masterplan (2014) Lancashire County Council and Blackburn with Darwen Borough Council: <http://www.lancashire.gov.uk/council/strategies-policies-plans/roads-parking-and-travel/highways-and-transport-masterplans/east-lancashire-highways-and-transport-masterplan>

Burnley Highways Impact Assessment Jacobs for Lancashire County Council and Burnley Borough Council March 2017 www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/transport-studies

South Pennines Route Based Strategy Evidence Report (2014): <http://assets.highways.gov.uk/our-road-network/route-strategies/South%20Pennines.pdf>

Open Space, Sports and GI

Burnley Green Infrastructure Strategy (2013), TEP for Burnley Borough Council: <http://www.burnley.gov.uk/sites/default/files/GI%20Strategy%20Report.pdf>

Burnley Play Strategy (2007-2011) Burnley Borough Council: <http://www.burnley.gov.uk/sites/default/files/PlayStrategyJan09.pdf>

Rossendale, Pendle and Burnley Playing Pitch Assessment Report and Strategy 2016-2026 (2016), KKP for Pennine Lancashire Authorities: www.burnley.gov.uk/residents/parks-open-spaces/playing-pitch-strategy-2016-2026

Green Spaces Strategy (2015), Burnley Borough Council: <http://www.burnley.gov.uk/node/1910>

Indoor Sports Facility Review (2015) Burnley Borough Council: <http://www.burnley.gov.uk/residents/planning/planning-policy/burnleys-emerging-local-plan/evidence-base/sports-studies>

Flood Risk

Burnley Strategic Flood Risk Assessment Level 1 (2017) Burnley Borough Council, incorporating Local Plan Potential Sites Assessment, summary report and mapping by JBA Consulting (2017)

Burnley Strategic Flood Risk Assessment Level 2 (2017) Burnley Borough Council, incorporating Interim Level 2 Strategic Flood Risk Assessment by JBA Consulting (2017)

<https://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/strategic-flood-risk-assessment>

Lancashire and Blackpool Local Flood Risk Management Strategy (2014) Lancashire County Council and Blackpool Council: <http://www.lancashire.gov.uk/council/strategies-policies-plans/environmental/lancashire-and-blackpool-flood-risk-management-strategy.aspx>

Landscape and Green Belt

Burnley Green Belt Review (2016) LUC for Burnley Borough Council:

[http://www.burnley.gov.uk/sites/default/files/Burnley Green Belt Review Final%20Report.pdf](http://www.burnley.gov.uk/sites/default/files/Burnley%20Green%20Belt%20Review%20Final%20Report.pdf)

Lancashire County Council, 2000, Landscape Strategy: <http://www.lancashire.gov.uk/council/strategies-policies-plans/environmental/landscape-strategy.aspx>

Renewable Energy

Landscape Capacity Study for Wind Energy Development in the South Pennines (2010) Julie Martin Associates for Rossendale, Burnley, Bury, Calderdale, Rochdale and Kirklees:

<http://www.burnley.gov.uk/sites/default/files/South%20Pennines%20Final%20Report%20CD%20version.pdf>

Landscape Guidance for Wind Turbines up to 60m high in the South and West Pennines (2013), Julie Martin Associates:

<https://www.burnley.gov.uk/sites/default/files/Smaller%20Turbines%20Guidance%20Final%20Guidance%20Jan%202013.pdf>

South Pennines Wind Energy Landscape Study (2014), Julie Martin Associates and LUC for Burnley Borough Council:

<http://www.burnley.gov.uk/sites/default/files/South%20Pennines%20Wind%20Energy%20Landscape%20Study%20Final.pdf>

Renewable and Low Carbon Energy Study (2010) Maslen Environmental for Burnley Borough Council:

<http://www.burnley.gov.uk/sites/default/files/Renewable%20%26%20Low%20Carbon%20Energy%20Study%20-%20Maslen%20Dec%202010.pdf>

Lancashire Sustainable Energy Study: A technical report for Lancashire County Council (2011) SQW Consultants/CLASP

Taking Forward the Deployment of Renewable Energy: A Final Report to Lancashire County Council (2011), CLASP for Lancashire County Council: <http://www.burnley.gov.uk/sites/default/files/2-%20LCC%20-Taking-forward-deployment-July-2011.pdf>

The Lancashire Climate Change Strategy 2009 – 2020 (2009) Lancashire Climate Change Partnership:

<http://www.lancashire.gov.uk/council/strategies-policies-plans/environmental/lancashire-climate-change-strategy.aspx>

Renewable Energy Target Setting & Policy Development: A Final Report to Lancashire County Council (2012)

CLASP for Lancashire County Council: <http://www.burnley.gov.uk/sites/default/files/3-%20LCC%20-%20Renewable%20Energy%20Targets%20-%20FINAL%20March%202012.pdf>

Ecology

Burnley Wildlife and Habitats Survey (2007) Golder Associates for Burnley Borough Council:

<http://www.burnley.gov.uk/sites/default/files/Burnley%20Wildlife%20and%20Habitat%20Survey%20Report.pdf>

Ecological Assessment of Local Plan (Issues and Options) Sites (2015) LERN/Lancashire County Council for or Burnley Borough Council: <http://www.burnley.gov.uk/node/2578>

Burnley Protected Species Surveys (2013, 2014 and 2017), Burnley Borough Council:
<http://www.burnley.gov.uk/node/2578>

Lancashire Ecological Networks Maps (Version 1a1) Grassland and Woodland (2016), LERN/Lancashire County Council <http://www.burnley.gov.uk/residents/planning/planning-policy/burnleys-emerging-local-plan/evidence-base/ecological-networks>

Lancashire Ecological Network Approach and Analysis (Version 1a) (2015) LERN
<http://chorley.gov.uk/Documents/Planning/Planning%20Policy/Lancashire%20Ecological%20Network%20Approach%20and%20Analysis%20Document%20v1.pdf>

Ecological Appraisal: Former Heckenhurst Reservoir, Burnley (2017). The Greater Manchester Ecology Unit
http://www.burnley.gov.uk/sites/default/files/Ecological%20Appraisal%20Former%20Heckenhurst%20Reservoir_0.pdf

Ecological Appraisal: Land West of Smithyfield Avenue, Burnley (2017) The Greater Manchester Ecology Unit
http://www.burnley.gov.uk/sites/default/files/Ecological%20Appraisal%20Land%20West%20of%20Smithyfield%20Avenue_0.pdf

Heritage

A Local List of Lancashire's Unregistered Historic Designed Landscapes (2013) Lancashire Gardens Trust with Lancashire County Council and Manchester Metropolitan University.
<http://www.burnley.gov.uk/sites/default/files/A%20Local%20List%20of%20Lancshires%20Unregsitered%20Historic%20Designed%20Landscapes%202013.pdf>

Lancashire Extensive Urban Survey Historic Town Assessment Report – Burnley (2005) Lancashire County Council and Egerton Lea Consultancy
<http://www.burnley.gov.uk/sites/default/files/Lancashire%20Extensive%20Urban%20Survey%20Historic%20Town%20Assessment%20Report%20-%20Burnley.pdf>

Lancashire Extensive Urban Survey Historic Town Assessment Report – Padiham (2005) Lancashire County Council and Egerton Lea Consultancy
<http://www.burnley.gov.uk/sites/default/files/Lancashire%20Extensive%20Urban%20Survey%20Historic%20Town%20Assessment%20Report%20-%20Padiham.pdf>

Burnley Housing Sites Rapid Heritage Assessment (2017) Lancashire Archaeological Advisory Service
<http://www.burnley.gov.uk/sites/default/files/Housing%20Sites%20Assessment.pdf>

Burnley Employment Sites Rapid Heritage Assessment (2017) Lancashire Archaeological Advisory Service
<http://www.burnley.gov.uk/sites/default/files/Employment%20Sites%20Assessment.pdf>

Burnley TC4 Rapid Heritage Assessment (2017) Lancashire Archaeological Advisory Service
<http://www.burnley.gov.uk/sites/default/files/TC4%20Assessment.pdf>

Lancashire Historic Landscape Characterisation Programme (2002) Lancashire County Council
<http://www.burnley.gov.uk/sites/default/files/Lancashire%20Historic%20Landscape%20Characterisation%20Programme%202002.pdf>

Other

Burnley's Future: The Sustainable Community Strategy for Burnley 2017-2010 Burnley Borough Council / Burnley Action Partnership: <http://www.burnley.gov.uk/about-council/our-strategies-and-policies>

Lancashire Strategic Economic Plan (2014), Lancashire Enterprise Partnership:
www.lepnetwork.net/modules/downloads/download.php?file_name=22

Rural Masterplanning Study (2011) Burnley Borough Council & CABE:
<http://www.burnley.gov.uk/residents/planning/planning-policies/burnleys-emerging-local-plan/evidence-base/rural-masterplanning>

Appendix 3: List of Superseded Policies

Existing Policy Ref:	Policy Title (2006 Local Plan Second Review)	Superseded by, Policy Ref:	Superseded by, Policy title:
GP1	Development Within the Urban Boundary	SP4	Development Strategy
GP2	Development in Rural Areas	SP4	Development Strategy
GP3	Design and Quality	SP5	Development Quality and Sustainability
GP4	Mixed Use Development	SP4 HS1 EMP1 TC2 TC4	Development Strategy Housing Allocations Employment Allocations Development Within Burnley and Padiham Town Centres Development Opportunities in Burnley Town Centre
GP5	Access For All	SP5	Development Quality and Sustainability
GP6	Landscaping and Incidental Open Space	SP5 SP6	Development Quality and Sustainability Green Infrastructure
GP7	New Development and the Control of Pollution	NE5	Environmental Protection
GP8	Energy Conservation and Efficiency	SP5	Development Quality and Sustainability
GP9	Security and Planning Out Crime	SP5	Development Quality and Sustainability
GP10	Developer Contributions	IC4	Infrastructure and Planning Contributions
EW1	Land for Business (B1), and Industrial (B2) and Warehousing (B8) Development	EMP1 EMP4	Employment Allocations Office Development
EW2	Major Retail Development Outside Burnley and Padiham Town Centre	TC2	Development Within Burnley and Padiham Town Centres
EW3	New Leisure, Tourist, Arts and Cultural Development Outside Town Centres	SP4 SP5 EMP5	Development Strategy Development Quality and Sustainability Rural Business & Diversification
EW4	Expansion and Improvement of Existing Businesses	EMP3	Supporting Employment Development
EW5	Development and Improvement of Major Industrial Estates	EMP2 EMP3	Protected Employment Sites Supporting Employment Development
EW6	Economic Improvement Areas	EMP3	Supporting Employment Development
EW7	Redevelopment of Existing Employment Land and Premises for Non-Employment Uses	EMP3 EMP4	Supporting Employment Development Office Development
EW8	Control of Hazardous Substances	NE5	Environmental Protection
EW9	Small Business, Working from Home and Community Enterprises in Residential Areas	EMP3 EMP5	Supporting Employment Development Rural Business and Diversification
EW11	Rural Diversification and Conversion	EMP5	Rural Business and Diversification

	of Rural Buildings for Employment Uses	EMP6	Conversion of Rural Buildings
H1	Land for New Housing Development	HS1	Housing Allocations
H2	The Sequential Release of Further Housing Land for Development	SP4	Development Strategy
H3	Quality and Design in New Housing Development	HS4 SP5	Housing Developments Development Quality and Sustainability
H4	Providing a Choice of Housing in New Development	HS3	Housing Density and Mix
H5	Local Housing Needs	HS2 HS4	Affordable Housing Provision Housing Developments
H6	Housing Density	HS3	Housing Density and Mix
H7	Open Space in New Housing Development	HS4 IC4	Housing Developments Infrastructure and Planning Contributions
H8	Environmental Improvements in Existing Residential Areas	SP5 HS1 NE2	Development Quality and Sustainability Housing Allocations Protected Open Space
H9	Regenerating Urban Areas and Neighbourhoods	SP4 HS1	Development Quality and Sustainability Housing Allocations
H10	Housing for Large Families	HS5	House Extensions and Alterations
H11	Living Over Shops and Other Commercial Premises and Housing and Training Projects	TC2	Development Within Burnley and Padiham Town Centres (for residential development in town centres)
H12	Non-residential Uses in Residential Areas	SP4 EMP4	Development Strategy Office Development
H13	Extensions and Conversions of Existing Single Dwellings	HS5	House Extensions and Alterations
H14	Gardens and Backland Development	HS4 HS5	Housing Developments House Extensions and Alterations
H15	Conversion and Re-use for Flats and Bedsits	HS5	House Extensions and Alterations
H16	Gypsy and Traveller Sites	HS7 HS8	Gypsy and Traveller Site Criteria Gypsy and Traveller Site Occupancy Condition
E1	Nature Conservation - Internationally and Nationally Important Sites	NE1	Biodiversity and Ecological Networks
E2	Nature Conservation – County Biological and Geological Heritage Sites and Local Nature Reserves	NE1	Biodiversity and Ecological Networks
E3	Wildlife Links and Corridors	NE1	Biodiversity and Ecological Networks
E4	Protection of Features of Ecological Value	NE3 NE4	Landscape Character Trees, Hedgerows and Woodlands
E5	Species Protection	NE1	Biodiversity and Ecological Networks
E6	Trees, Hedgerows and Woodlands	NE4	Trees, Hedgerows and Woodlands
E7	Water Bodies and Watercourses	NE5	Environmental Protection
E8	Development and Flood Risk	CC4	Development and Flood Risk

E9	Groundwater Resources	NE5	Environmental Protection
E10	Alterations, Extensions, Change of Use and Development Affecting Listed Buildings	HE2	Conservation and Enhancement of Designated Heritage Assets and Their Setting
E11	Demolition of Listed Buildings	HE2	Designated Heritage Assets
E12	Development In, or Adjacent to, Conservation Areas	HE2	Designated Heritage Assets
E13	Demolition in Conservation Areas	HE2	Designated Heritage Assets
E14	The Designation and Amendment of Conservation Areas	HE1	Identifying and Protecting Burnley's Historic Environment
E15	Locally Important Buildings, Features and Artefacts	HE1 HE3	Identifying and Protecting Burnley's Historic Environment The Conservation and Enhancement of Non-designated Heritage Assets
E16	Areas of Traditional Construction	SP5	Development Quality and Sustainability
E17	Historic Parks and Gardens	HE1 HE2	Identifying and Protecting Burnley's Historic Environment Conservation and Enhancement of Designated Heritage Assets and Their Setting
E18	Scheduled Ancient Monuments	HE4	Scheduled Monuments and Archaeological Assets
E19	Development and Archaeological Remains	HE4	Scheduled Monuments and Archaeological Assets
E20	Views	SP5 NE3	Development Quality and Sustainability Landscape Character
E21	Gateways and Throughroutes	SP5	Development Quality and Sustainability
E22	Public Art	IC4	Infrastructure and Planning Contributions
E23	Telecommunications	IC6	Telecommunications
E24	Advertisements	TC8	Shopfront and Advertisement Design
E25	Shop Fronts	TC8	Shopfront and Advertisement Design
E26	Development in the Green Belt	SP7	Protecting the Green Belt
E27	Landscape Character and Local Distinctiveness in Rural Areas and Green Belt	SP4 SP7 NE3	Development Strategy Protecting the Green Belt Landscape Character
E28	Protecting Agricultural Land and Business	SP4	Development Strategy
E29	New Agricultural Development	SP4 SP5	Development Strategy Development Quality and Sustainability
E30	Agricultural Workers Dwellings	HS6	Agricultural Workers Dwellings
E31	Wind Farms	CC2 CC3	Suitable Areas for Wind Energy Development Wind Energy Development
E32	Development of Other Renewable Energy Facilities in Rural Areas	CC1	Renewable and Low Carbon Energy
E33	Vacant and Untidy Land	NE3 NE5	Landscape Character Environmental Protection

E34	Derelict and Contaminated Land and Derelict Buildings	SP1 HS1 EMP1 NE5	Achieving Sustainable Development Housing Allocations Employment Allocations Environmental Protection
E35	Sites Generating Landfill Gas	NE5	Environmental Protection
CF1	Protection, Enhancement and Replacement of Playing Pitches	NE2 IC5	Protected Open Space Protection and Provision of Social and Community Infrastructure
CF2	Intensification of Use of Existing Sports and Recreation Provision	NE2	Protected Open Space
CF3	Protection of Existing Public Parks, Informal Recreation Areas, Major Open Areas, Play Areas and Other Areas of Open Space	NE2	Protected Open Space
CF4	Allotments and Community Gardens	IC5	Protection and Provision of Social and Community Infrastructure
CF5	Major Sports Facilities	SP5	Development Quality and Sustainability
CF6	Provision of Small Indoor Sports Facilities	SP5 IC5	Development Quality and Sustainability Protection and Provision of Social and Community Infrastructure
CF7	Outdoor Recreation and Rural Areas	SP5 EMP5	Development Quality and Sustainability Rural Business & Diversification
CF8	Equestrian Development	EMP7	Equestrian Development
CF9	Golf Related Development	SP5 SP7 NE2	Development Quality and Sustainability Protecting the Green Belt Protected Open Space
CF10	Specialist Pursuits and Noise Generating Sports	SP5 SP7 NE2	Development Quality and Sustainability Protecting the Green Belt Protected Open Space
CF11	District and Local Centres	TC6	District Centres
CF12	Local and Village Shops	SP4 EMP5	Development Strategy Rural Business and Diversification
CF13	Restaurants, Cafes, Public Houses and Hot Food Takeaways	TC7	Hot Food Takeaways
CF14	Provision, Retention, and Enhancement of Community Facilities	IC5	Protection and Provision of Social and Community Infrastructure
CF15	Burnley General Hospital	IC5	Protection and Provision of Social and Community Infrastructure
CF16	Loss of Community Health Facilities	IC5	Protection and Provision of Social and Community Infrastructure
CF17	Provision of Educational Facilities	IC5	Protection and Provision of Social and Community Infrastructure

CF18	Youth Shelters	IC5	Protection and Provision of Social and Community Infrastructure
CF19	Graveyards and Burial Places	IC5	Protection and Provision of Social and Community Infrastructure
CF20	Caravan and Camping Sites	SP5	Development Quality and Sustainability
CF21	Travelling Showpeople	HS8	Gypsy and Traveller Site Criteria
TM1	Location of Major Traffic Generating Uses	IC1 IC2	Sustainable Travel Managing Transport and Travel Impacts
TM2	Transport Assessments (TAs)	IC2	Managing Transport and Travel Impacts
TM3	Travel Plans (TPs)	IC2	Managing Transport and Travel Impacts
TM4	Transport Hierarchy Within Development Proposals	IC1	Sustainable Travel
TM5	Footpaths and Walking Within the Urban Boundary	IC1	Sustainable Travel
TM14	Taxis and Taxi Booking Offices	IC6	Taxis and Taxi Booking Offices
TM15	Car Parking Standards	IC3	Car Parking Standards
TM16	Management of Public and Private On- and Off-street Parking	IC3	Car Parking Standards
TM17	Management of Retail and Leisure Car Parking in Town Centres	IC3	Car Parking Standards
BTC1	Main Shopping Area of Burnley Town Centre	TC2 TC3 TC4	Development Within Burnley and Padiham Town Centres Burnley Town Centre – Primary and Secondary Frontages Development Opportunities in Burnley Town Centre
BTC2	Secondary Shopping Areas in Burnley Town Centre	TC2 TC3 TC4	Development Within Burnley and Padiham Town Centres Burnley Town Centre – Primary and Secondary Frontages Development Opportunities in Burnley Town Centre
BTC3	Retail Development Within Burnley Town Centre Inset Outside the Main and Secondary Shopping Areas	TC2	Development Within Burnley and Padiham Town Centres
BTC4	Office, Business, Civic and Cultural Quarter of Burnley Town Centre	TC2 TC4	Development in Burnley and Padiham Town Centres Development Opportunities in Burnley Town Centre
BTC5	Leisure and Tourism Development in Burnley Town Centre	TC2	Development Within Burnley and Padiham Town Centres
BTC6	The Weavers Triangle	TC5	The Weavers Triangle
BTC7	Kingsway / Bank Parade	EMP4 TC2	Office Development Development in Burnley and Padiham Town Centres
BTC8	Movement in Burnley Town Centre	IC1	Sustainable Travel
BTC9	Gateways and Throughroutes	SP5	Development Quality and Sustainability
BTC10	Upper Floors in Burnley Town Centres	TC2	Development Within Burnley and Padiham Town Centres

BTC11	Existing Industrial Uses in Burnley Town Centre	EMP3 TC2	Supporting Employment Development Development Within Burnley and Padiham Town Centres
BTC12	Canal and Riverside Development in Burnley Town Centre	HE3 NE3	Non-designated Heritage Assets Landscape Character
BTC13	Open Spaces in Burnley Town Centre	NE2	Protected Open Space
BTC14	Provision of Open Spaces in Major Development Proposals	IC4 NE3 SP5	Infrastructure and Planning Contributions Landscape Character Development Quality and Sustainability
PTC1	Central Area of Padiham Town Centre	TC2	Development Within Burnley and Padiham Town Centres
PTC2	Burnley Road Area of Padiham Town Centre	TC2	Development Within Burnley and Padiham Town Centres
PTC3	Church Street / Burnley Road	TC2	Development Within Burnley and Padiham Town Centres
PTC4	Movement To and Through Padiham Town Centre	IC1	Sustainable Travel
PTC6	Gateways and Throughroutes	SP5	Development Quality and Sustainability
PTC7	Riverside Development in Padiham Town Centre	NE3	Landscape Character
PTC8	Open Spaces in Padiham Town Centre	NE2	Protected Open Space

The following policies are considered too specific for, or no longer relevant to the new local plan:

Existing Policy Ref:	Policy Title (2006 Local Plan Second Review)
EW10	Development and Training Provision
TM6	Walking and Horse Riding in the Countryside
TM7	Cycling Network
TM8	Quality Bus Routes
TM9	Rail and Railway Stations
TM10	East Lancashire Rapid Transit
TM11	Traffic Management in Burnley Town Centre
TM12	Movement of Freight
TM13	Former Padiham Rail Line
PTC5	Padiham Market

Appendix 4: Designated Heritage Assets

Listed Buildings

i. Burnley has 308 listed building entries on the National Heritage List for England, administered by Historic England on behalf of the Department for Digital, Culture, Media and Sport. It should be noted that this number does not truly represent the total number of listed buildings within the borough, since one listing may cover several individual buildings. Details of the borough's Listed Buildings are accessible through the National Heritage List for England at <https://historicengland.org.uk/listing/the-list/>

ii. The listing includes the building identified on the list together with any ancillary building or structure within its curtilage and attached to it or any freestanding building or structure within its curtilage that pre-date 1 July 1948. Not all buildings have a curtilage. With those that do there will be cases where the extent of the curtilage will be clear (such as a garden boundary) but in others it may not. Further advice on curtilage can be found in the Historic England Advice Note, Listed Buildings and Curtilage.

iii. The National Heritage List includes a description of each building which may refer to some, but not all the important features of the building. Every part of a building is listed even if it is not included in the description. This includes the interior and any later alterations or additions.

Conservation Areas

iv. There are currently 10 designated Conservation Areas within the Borough. These are defined under Section 69 of the Planning (Listed Buildings and Conservation Areas) Act 1990, as "Areas of Special Architectural or Historic Interest the character or appearance of which it is desirable to preserve or enhance". Conservation areas in the Borough are listed below and the detailed boundaries are shown on the Policies Map.

Name	Area	Designated
Canalside	34.2 ha	1988 (Revisions 1990, 1993 and 1997)
Burnley Wood	24.7 ha	1985
Harle Syke	13.9 ha	1977(Revisions 1985)
Padiham	13.8 ha	1975 (Revisions 1981 and 1984)
Burnley Town Centre	11.0 ha	1992
Top O' Th' Town	8.5 ha	1992
Worsthorne	6.7 ha	1978
Jib Hill	5.1 ha	1971
Hurstwood	4.6 ha	1973
Palatine	4.5 ha	1977

Registered Parks and Gardens

v. The Historic England 'Register of Historic Parks and Gardens of special historic interest in England' established in 1983, currently identifies 5 sites in the borough assessed to be of particular significance. All are registered Grade II and include:

- Towneley Park
- Thompson Park
- Scott Park
- Queen's Park
- Gawthorpe Hall Gardens

Detailed descriptions of each entry are accessible through the National Heritage List for England at <https://historicengland.org.uk/listing/the-list/>

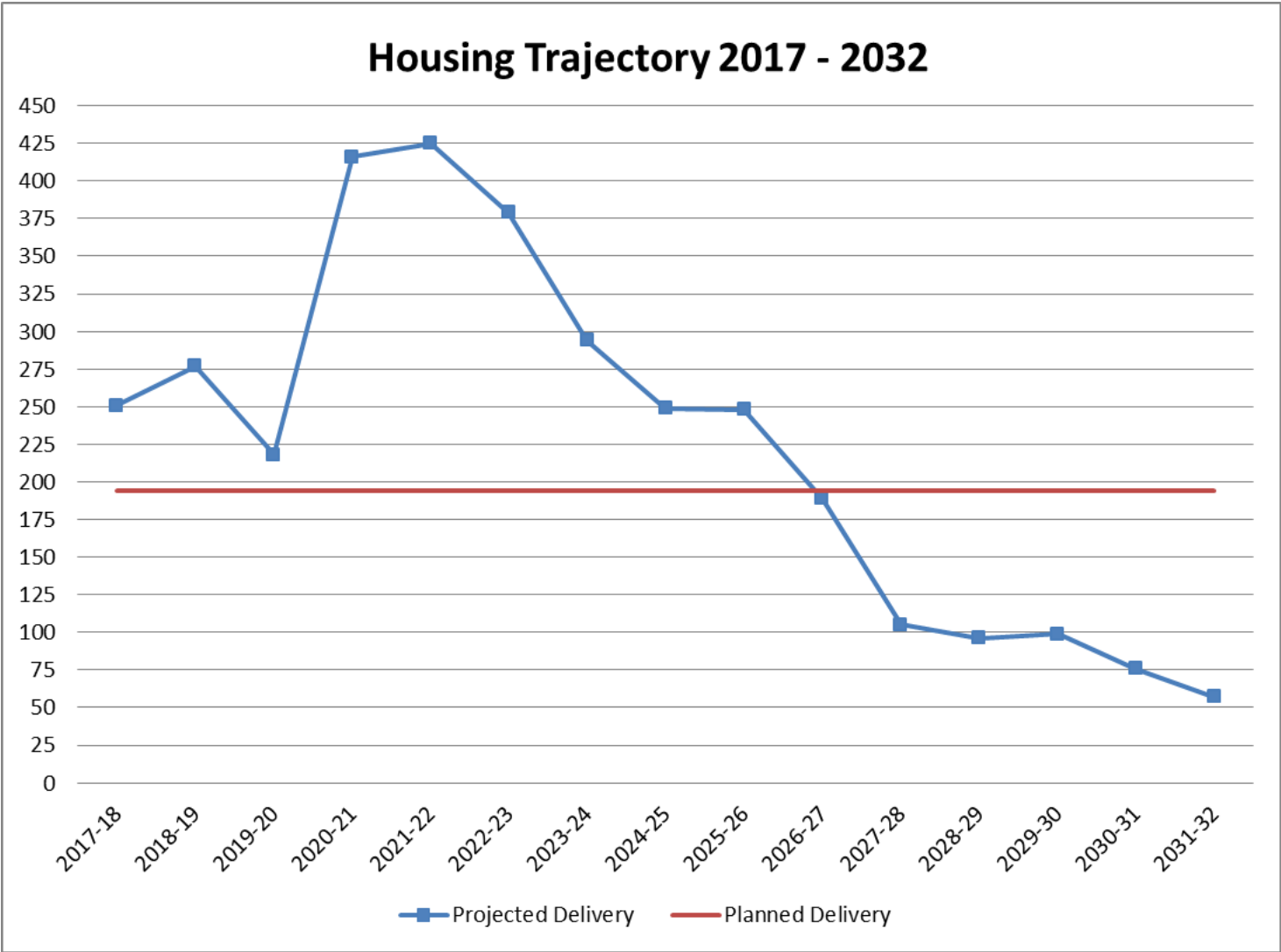
Scheduled Monuments

vi. There are currently 22 Scheduled Monuments within the Borough as follows:

Parish	List Entry Number	Title
Briercliffe	1005084	Oakmount Mill engine and engine house, Wiseman Street
	1005089	Ice House at Towneley Hall
Ightenhill	1005100	Ightenhill Manor (site of)
Briercliffe	1008916	Small stone circle on Delf Hill
Briercliffe	1008917	Pike Low bowl barrow and site of beacon, Bonfire Hill
Worsthorne-with-Hurstwood	1008918	Bowl barrow on Hameldon Pasture
Worsthorne-with-Hurstwood	1008919	Round cairn on Hameldon Pasture
Worsthorne-with-Hurstwood	1009112	Ring cairn on Slipper Hill
Briercliffe	1009113	Bowl barrow 90m east of Twist Castle
Briercliffe	1009114	Bowl barrow 155m east of Beadle Hill
Briercliffe	1009115	Bowl barrow 140m east of Beadle Hill
Briercliffe	1009116	Saucer barrow 90m east of Ell Clough
Briercliffe	1009117	Ring cairn 25m east of Ell Clough
Briercliffe	1009487	Beadle Hill Romano-British farmstead
Worsthorne-with-Hurstwood	1009488	Two Romano-British farmsteads known as Ring Stones
Briercliffe	1009497	Twist Castle Romano-British farmstead
Briercliffe	1013814	Burwains Camp prehistoric defended settlement west of Broad Bank Hill
Hapton	1013816	Hapton Castle
Cliviger	1018362	Warren at Everage Clough 450m north east of New Copy Farm
Dunnockshaw	1020666	Hameldon Hill World War II bombing decoy, 390m north of Heights Farm
Cliviger	1021252	Thieveley lead mine 330m south west and 910m WSW of Buckleys
Hapton	1432881	Spigot mortar (Blacker Bombard) position

Detailed descriptions of each entry are accessible through the National Heritage List for England at <https://historicengland.org.uk/listing/the-list/>

Appendix 5: Housing Trajectory



Burnley's Local Plan: July 2018

Site REF	SHLAA Ref	Site Name	Site Area (Ha)	Extant PP?	Anticipated Yield	2017-18	2018-19	2019-20	2020-21	2021-22	2022-23	2023-24	2024-25	2025-26	2026-27	2027-28	2028-29	2029-30	2030-31	2031-32
Net additional dwellings 2012 - 2017					673															
Re-occupation of Vacant stock 2014 -2017					148															
Sites Under Construction (Remaining units as at 31st March 2017)																				
	HEL/063	New Hall Street		Yes	133		15	15	15	15	15	15	15	15	13					
	HEL/147	Station Road		Yes	80		20	20	20	20										
	HEL/152	Waterside Mill, Langham Street		Yes	74	20	20	20	14											
	HEL/192c	Peel Mill, Gannow Lane		Yes	70	30	30	10												
	HEL/146	Smirthwaite Street		Yes	58	20	20	18												
	HEL/064	Branch Road A/B/C		Yes	58	20	20	18												
	HEL/075	Land at Melrose Avenue/Kinross Street		Yes	31	15	16													
		The Mitre, Mitre Street		Yes	30	15	15													
	HEL/063	New Hall Street/Barden lane		Yes	27	15	12													
	HEL/122	Land at Oswald Street		Yes	22	12	10													
	HEL/154	9 Grimshaw Street/12-16 Nicholas Street		Yes	18	18														
	HEL/246b	Clock Tower Mill, Sandygate		Yes	16	16														
		Land at Clifton Street		Yes	12						12									
	HEL/121	Land at Salus Street		Yes	11					11										
		Land adjacent 81 Accrington Road		Yes	10				10											
		14 Burnley Road, Padiham (Prestige Beds)		Yes	9			9												
		County Court, Bankhouse Street		Yes	8		8													
	HEL/061	Land off Lennox Street, Worsthorne		Yes	3	3														
	HEL/121	Old Hall Farm, Worsthorne		Yes	1	1														
		395 Padiham Road Burnley		Yes	1	1														
	HEL/030	Land at Double Row, Padiham		Yes	1	1														
		81-83 Brougham Street		Yes	1	1														
		59 Queensberry Road		Yes	1	1														
		129-131 Burnley Road, Padiham		Yes	1	1														
		Low Sym, Halifax Road		Yes	1	1														
	HEL/141	Land adjacent to Serpentine Road		Yes	1	1														
Small Sites with planning permission					114	19	19	19	19	19										
Windfall Allowance					338			26	26	26	26	26	26	26	26	26	26	26	26	26
Other Contributions					51								20	20	11					
Re-occupation of Vacant stock 2017-2019					80	40	40													
Pre-Submission																				
HS1/1	HEL/043	Former Hameldon Schools Sites	10.10	No	250				20	30	40	40	40	40	40					
HS1/2	HEL/071	Hollins Cross Farm	8.65	No	184				25	25	25	25	25	25	25	9				
HS1/3	HEL/034	Former William Blythe Site	6.00	Yes	151		10	20	30	35	30	26								
HS1/4	HEL/094d	Land at Rossendale Road	7.52	No	188									25	25	25	25	30	30	28
HS1/5	HEL/011	Former Baxi Site	8.23	No	244				25	25	25	25	25	25	25	25	25	19		
HS1/6	HEL/055b	Lambert Howarth	2.99	Yes	100				25	25	25	25								
HS1/7	HEL/231	Ridge Wood	0.87	No	18				18											
HS1/8	HEL/091	Red Lees Road, Cliviger	5.00	No	125				30	30	30	35								
HS1/9	HEL/074	Higher Saxifield	5.17	No	120				25	25	25	25	20							
HS1/10	HEL/066	Land at Burnley General Hospital	1.27	No	64										20	20	20	4		
HS1/11	HEL/007	Former AIT Site	1.81	Yes	54						15	15	10	14						
HS1/12	HEL/033	Former Heckenhurst Reservoir	1.38	No	35						25	10								
HS1/13	HEL/136	Tay Street	1.18	No	35				15	15	5									
HS1/14	HEL/067	Former Gardner's Site	1.43	No	43													20	20	3
HS1/15	HEL/027	Coronation Avenue, Thompson Street	0.90	No	41					20	21									
HS1/16	HEL/039	Gordon Street Mill	1.41	No	39								15	20	4					
HS1/17	HEL/109	Livingstone Mill	0.95	No	38					10	10	10	8							
HS1/18	HEL/125	Perserverance Mill, Padiham	1.18	Yes	56			16	20	20										
HS1/19	HEL/249	Land at NE of Sycamore Avenue	0.77	No	34					10	10	14								
HS1/20	HEL/133	Ridge Avenue	1.46	No	24				12	12										
HS1/21	HEL/058	Land adjacent 2 Queens Park Road	0.95	No	29								15	14						
HS1/22	HEL/250	Former Dexter Paints	0.83	Yes	27		10	10	7											
HS1/23	HEL/100	Land to rear of Bull and Butcher	0.95	No	24								10	14						
HS1/24	HEL/077	Land at Oswald Street	0.60	No	20				10	10										
HS1/25	HEL/014	Brampton House, 500 Colne Road	0.64	Yes	18				5	5	5	3								
HS1/26	HEL/059	Land adjacent 250 Brownside Road	0.73	No	18			5	5	5	3									
HS1/28	HEL/139	Cleavelands Road (South)	0.42	No	13						13									
HS1/29	HEL/256	Former Lodge Mill, Barden Lane	2.32	No	35				20	15										
HS1/30	HEL/105	Land West of Smithyfield Avenue	1.72	No	30								20	10						
HS1/31	HEL/260	Barden Mill, Barden Lane	0.85	Yes	37				20	17										
HS1/32	HEL/019	Butchers Farm	1.17	Yes	24		12	12												
Planned Delivery					4200	251	277	218	416	425	379	294	249	248	189	105	96	99	76	57
						194	194	194	194	194	194	194	194	194	194	194	194	194	194	194

Appendix 6: Main and Small Villages (Tiers 3 and 4) – Audit of Facilities - April 2016

Parish	Local Plan Hierarchy (Policy SP4)	Approx. No. of properties within the development boundary	Shop	School	Place of Worship	Community Building/ Church Hall	Pub/ Restaurant	Play Area	GP	Bus Stop	Additional Notes	2011 Rural Masterplanning Study Conclusion
Main Villages (Tier 3)												
Hapton	Hapton	784	✓	✓	✓	✓	✓	✓	✗	✓		
Worsthorne	Worsthorne	457	✓	✓	✓	✓	✓	✓	✗	✓		
Small Villages (Tier 4)												
Dunnockshaw	Dunnockshaw	N/A	✗	✗/✓ – there is a small private school	✗	✗	✗	✗	✗	✓	Employment at Oak Mill/Calder Print	Local services are scarce and there is no justification for population growth in terms of sustaining these. A large amount of development would be necessary to support new local services and, as the landscape cannot accommodate this quantum, there should be growth restraint. Small amounts of infill around existing clusters may be acceptable
Clow Bridge	Clow Bridge	24	✗	✗	✗	✗	✓	✓	✗	✓	Post box, sailing club on reservoir; employment at Balmer's Garden Machinery	
Cliviger	Mereclough	36	✗	✗	✗	✗	✓	✗	✗	✓		Growth should be concentrated in the form of infill to Holme Chapel, including the integration of Southward Bottom. Thickening of the current ribbon of development could be beneficial and help sustain local services such as the school, parish hall, pubs. There should be no extension southwards. There should be much more restraint in the other 3 settlements
	Overtown	58	✗	✗	✗	✗	✗	✓	✗	✓		
	Holme Chapel	103	✗	✓	✓	✓	✓	✗	✗	✓		
	Walk Mill	165	✓	✗	✗	✗	✗	✓	✗	✓	Phone box; Post box; Hair Studio / Boutique; Petrol Station (where local shop is); Playground includes play	

											park, small football pitch and basketball net; Electricity substation.	
	Lane Bottom	122	x	x	✓	✓	x	✓	x	x	Post box; Phone box; Electricity substation	At present, there is sufficient population to sustain local services. However, there may be a case to develop the area to the south of Halifax Road to deliver a relief road for Lane Bottom
Hurstwood	Hurstwood	23	x	x	✓	x	x	x	x	x	Post box; Phone box; Church	Hurstwood is a small and distinctive settlement and can only accommodate very small and one-off developments. A small amount of infill may be accommodated on the south eastern edge of Worsthorne in order to sustain local services

Definitions:

Local shop – Shop or facility selling basic household and grocery (convenience) goods

Play area – Equipped Play Area

Bus stop – Serviced bus stop – A bus service for this measure is one which runs at least every 30 minutes between 8am-6pm.

Appendix 7: Protected Open Spaces

Ref:	Site Name
90	Abel Street Kickabout
213	Accrington Road (Adj 211)
211	Airdrie Crescent (East)
215	Albert Street Woodland
2	Arbories Football Ground (Club)
76	Bank Hall
43	Barclay Hills & Griffin Clough
99	Barden Gardens
100	Barden Lane Athletics Track & Play Area
200	Bartle Green
16	Bedford Park (inc Dorset Ave Playground)
207	Brent Street Grass Area
110	Briercliffe Bowling Green & Playground
38	Brookford Close AGS
62	Brunshaw Avenue (Belmont Community Green)
204	Brunshaw Avenue 143-165
126	Brunshaw Road/Rear Waddington Avenue
58	Burnley Wood Park
104	Burns Street Playground
53	Buttercross Close
85	Byerden Holme
21	Byron Street AGS
86	Calder Park
24	Cemetery/Crematorium Woodland
120	Centenary Gardens, Padiham
48	Chicken Hill Wood & Allotments
82	Clifton Heights
55	Creswick Avenue Playground
94	Cromer Grove Kickabout
108	Deepdale Drive
125	Devonshire Road/Elm Street
226	Devonshire Road/Hebrew Road
96	Disraeli Street/Pratt Street
111	Douglas Way AGS
209	Eliza Street/Higgin Street
124	Elm Street/Bond Street
87	Every Street AGS & Ballcourt
13	Fennyfold Allotments
1	Fiery Wood
50	Forfar Street
27	Gannow Rec (Life Church)
113	Glebe Street AGSs
212	Green Lane Gardens
23	Greenbrook/Lowerhouse Lodges
91	Grey Street Playground
216	Guy Street/Rycliffe Street
47	Hapton Park (Recreation Ground)
203	Harefield Rise

41	Hargher Clough Park
7a	Hargrove Park (Formerly known as Quarry Street)
7b	Hargrove Park Allotments
42	Harold Avenue AGS & Playground
84	Hart Street Playground
206	Heald Road
56	Healey Wood Park
78c	Heasandford Allotments
54	Helm Close
107	Higher Saxifield
101	Highfield Avenue
31	Hordley Street Playground/Lowerhouse BC
57	Hufling Lane AGS
37	Ightenhill Park
67	Inchfield Worsthorne AGS
19	Jacky Wood
40	Jockey Street/Cog Lane
78b	Jubilee Meadow
105	Kibble Bank
28	Kiddrow Lane/Middlesex Aven
36	Lakeland Way Grass Areas
129	Lancaster Drive
201	Langfield, Worsthorne
8	Lawrence Street Allotments
228	Leeds & Liverpool Canal
63	Lindsay Park Open Space
29	Lockyer Avenue
127	Lockyer Avenue Playing Fields
102	Lower Manor Lane AGS
32	Lowerhouse Fold
17b	Lumb Quarry Allotments
114	Lydgate Meadow
227	Melrose Avenue AGS
217	Millennium Gardens, Padiham
74	Millennium Wood
78a	Netherwood & Rowley (BVFP)
33	Norfolk Avenue AGS
83	Old Accrington Road AGS
64	Old Hall Square/Hall Street
25	Owen Street
115	Padiham Greenway
5	Padiham Memorial Park
119	Padiham Riverside Walk
51	Parklands
218	Parliament Street
210	Pendle Way (Keynsham Gr/Hargrove Av)
128	Pendle Way (Longton Rd to Hutton Dr)
89	Piccadilly Gardens
75	Queens Park
97	Queensgate Bowling Green

68	RACA Park Cliviger
95	Rakehead Rec
98	Reedley Hallows Allotments
69	Richard Street Playground
10	River Drive AGS
106	Rochester Drive AGS
52	Rosehill Gardens & Playground
49	Scott Park
61	Sheddon Grove Playground
116	St Andrew's Church Yard
205	St Andrew's Cricket Ground
14	St John's Cemetery
4	St Leonard's Cemetery
9	St Leonard's Churchyard
81	St Peter's Church Yard
15	Stonemoor Bottom/Shaw Brook (inc Malvern Avenue PG)
103	Stoneyholme Gardens
82	Stoneyholme Rec
22	Sweet Clough (inc Sweetclough Drive open space)
92	Swinless Street Gardens
30	Sycamore Avenue Sports Facilities

88	Tay Street
77	Thompson Park
93	Thornber Gardens
80	Thursby/Fisher Gardens
109	Tiverton Drive AGS
202	Tiverton Drive/Delamere Road
6	Town Hill Bank
59	Towneley & Fulfilledge
123	Travis Street/Chai Centre
72	Turf Moor Estate Grass Areas
220	Turf Moor Gardens
117	Vanguard Park
17a	Victoria Rd & Printers Fold Woodland
121	Wellfield Drive
3	West Street Allotments
18a	Whitegate AGS & Playground
18b	Whitegate Allotments
39	Whittlefield Rec
208	Wilkie Avenue
65	Worsthorne Playground
66	Worsthorne Village Green
70	Wycoller Avenue

Appendix 8: Transport Assessments and Travel Plans

Transport Assessments/Transport Statements

- i. Transport Assessments are required to assess the impact of proposals on transport infrastructure, including the capacity of roads, public transport and walking and cycling infrastructure, and to detail action to manage this impact. They are required to present qualitative and quantitative information about the anticipated transport and related environmental impacts before, during and after implementation of the proposed development, including details of the accessibility of the site by all transport modes and all users, including disabled people, and the likely modal split of journeys to and from the site.
- ii. Where a full Transport Assessment is not necessary, a less detailed assessment in the form of a Transport Statement may be required. Whatever the scale of Transport Assessment/Statement undertaken, it should be used to inform the final design of the development and if applicable, the Full Travel Plan.
- iii. Developers are required to demonstrate that the Transport Assessment/Transport Statement has informed the design of the proposed development and the Full Travel Plan. Development proposals should meet the identified needs and address anticipated impacts of the development through the design of the scheme, effective management, including through a Travel Plan where appropriate, and through mitigating any impacts of the scheme, including through planning contributions where appropriate.

Travel Plans

- iv. Travel Plans are the key management tool for implementing any transport solutions highlighted by the Transport Assessment/Statement, and are one of the primary tools for mitigating negative transport impacts of development proposals. Travel Plans are required to detail the developer's response to the Transport Assessment/Statement and deliver sustainable transport objectives with a package of measures to promote sustainable transport, including measures to achieve a shift to the most sustainable forms of transport: walking and cycling.
- v. Although a Travel Plan will be unique to any given site, all should contain the following:
 - Background – explaining the site, location, numbers of staff and visitor/residents measures already in place or confirmed/committed
 - Named Travel Plan Co-ordinator
 - Baseline Data – current travel patterns to and from work, business travel undertaken during the working day, travel patterns of visitors to the site or residents trips from it
 - Objectives – stating in general terms what the Plan is trying to achieve
 - Travel and Infrastructure Audit – description of existing travel infrastructure and facilities and the accessibility of the site
 - Targets – clearly identified targets against which the effectiveness of the Plan will be measured, or targets for its delivery. Targets should be site-specific, measurable, achievable, realistic and time related (SMART)
 - Actions – detailing the proposed actions and measures for achieving the stated targets, with specific dates and named responsible person
 - Promotion – how the Plan itself and specific measures will be promoted
 - Monitoring – setting out arrangements for the review and monitoring of the Travel Plan to determine whether the objectives are being met; a monitoring period of at least 5 years from occupation will normally be appropriate

Framework Travel Plan

vi. A Framework Travel Plan is usually associated with an unoccupied or undeveloped site. It sets out the intention, timeframe and steps to be taken to develop a Full Travel Plan.

Full Travel Plan

vii. A Full Travel Plan requires a site or location to be occupied either in full or in part. It must incorporate all the components of a Travel Plan. Where a site isn't fully occupied there should be a commitment to review the Travel Plan as occupation increases or when the site becomes fully occupied. No detail or content should be presumed, estimated or proxy in nature. All measures and actions included in a Full Travel Plan are expected to be implementable within the timescales specified and should not be speculative or subject to further approval.

Timescales

viii. Where a Travel Plan is required, the documents should be submitted at the following stages in the development process:

- Submission of planning application: Framework Travel Plan
- 6 months after first occupation or other agreed milestone: Full Travel Plan

Thresholds for Transport Assessments and Travel Plans

ix. Developments above the following thresholds will be required to submit a Transport Assessment, Transport Statement and a Full Travel Plan.

Table 9: Thresholds for Transport Assessments, Statements and Travel Plans

Use Class	Transport Assessment and Travel Plan Threshold (Gross floor area in m ² unless stated)
A1 Retail	>800
A1 Non Food Retail	>1500
A2 Financial and professional services	>2500
A3 Restaurants and cafes	>2500
A4 Drinking Establishments	>600
A5 Hot food takeaways	>500
B1 (a) Offices other than those within A2; (b) Research and Development; and (c) Light Industry	>2500
B2 General Industry	>4000
B8 Storage and Distribution	>5000
C1 Hotels	>100 bedrooms
C2 Residential Institutions, Hospitals and nursing homes	>50 bedrooms
C2 Residential College and school	>150 students
C2 Residential institutions – Institutional hostels	>400 residents
C3 Dwelling houses	>80 units
D1 Non-residential institutions	>1000
D2 Assembly and Leisure	>1500
Other Uses	To be determined in consultation with the local highway authority
Transport Statement	
All	'Major' development not above the thresholds

- x. The Council may still require that a Transport Assessment and a Full Travel Plan accompany applications for new developments below these thresholds, where the Council, in consultation with the local highway authority, considers that a development is likely to have a significant negative impact on the operation of transport infrastructure; or a cumulative impact from a number of developments in the vicinity is expected.

Appendix 9: Car Parking Standards

i. The following minimum and maximum parking standards will be used as set out in Policy IC3.

Use Class	Broad Description	Specific Land Use	Minimum Car Parking Standards (including garages)	Maximum Car Parking Standards (gross floor space where applicable)
A1	Shops	Food Retail	1 space per 14 m ²	
		Non Food Retail	1 space per 20 m ²	
		Retail Warehouse	1 space per 40 m ²	
A2	Financial and Professional Services	Banks / Building Societies, Estate and Employment Agencies, Professional and Financial Services	1 space per 30 m ²	
A3	Restaurants and Cafes	Restaurants and Cafes	1 space per 5 m ² of public floor area	
A4	Drinking Establishments	Public Houses / Wine bars / Other Drinking Establishments	1 space per 5 m ² of public floor area	
A5	Hot Food Takeaways including Drive - Through's	Use for the sale of hot food off the premises	1 space per 12 m ² unless in a town / district centre location	
B1	Business	Light Industry, Business Parks, Offices, Call Centres, Research and Development	1 space per 30 m ²	
B2	General Industry	General Industry	1 space per 45 m ²	
B8	Storage and Distribution	Storage or Distribution Centres, Wholesale Warehouses, Repositories	1 space per 100 m ²	
C1	Hotels	Hotels, Boarding Houses and Guest Houses	1 space per bedroom inclusive of staff provision parking	
C2	Residential Institutions	Residential Care Homes / Nursing Homes	1 space per 5 beds <i>plus</i> 1 space per 10 beds for visitors / staff. Note: There may be a requirement for additional car parking where a proposal includes an element of low care or where there would be a number of more "mobile" residents, in which case C3 Dwelling House Standard will apply.	
		Residential Training Centres and Halls of Residence	1 space per bed	
		Hospitals	1 space per bed	

C3	Dwellings (including HMOs)	1 Bedroom	1 space per dwelling	1 space
		2 Bedroom	1.5 spaces per dwelling (one allocated and one shared between 2 units for flexible use);	2 spaces
		3 Bedrooms	2 spaces per dwelling	2 spaces
		4+ Bedrooms	3 spaces per dwelling	4 spaces
	Retirement developments	Warden assisted independent living accommodation	1 space per 3 beds <i>plus</i> 1 space per 10 beds for visitors / staff	1 space per 2 beds <i>plus</i> 1 space per 10 beds for visitors / staff
	Visitor unallocated	per dwelling	0.25 spaces per dwelling	
C4	Houses in Multiple Occupation	As per C3 Standards	As per C3 Standards	
D1	Non-Residential Institutions	Art Galleries, Museums, Libraries	1 space per 20 m ²	
		Halls and Places of Worship	1 space per 5 m ²	
		Schools	1 space per 2 staff <i>plus</i> 1 space per 10 students	
		Crèche / Day Nurseries	1.5 per 2 staff plus drop off zone (in or outside of curtilage) of 1 space per 10 children	
		Medical Health Facilities	4 spaces per consulting room	
D2	Assembly and Leisure	Cinemas, Bingo and Casinos, Conference Centres, Music and Concert Halls	1 per 5 seats	
		General Leisure: Dance Halls (But not Night Clubs), Swimming Baths, Skating Rinks and Gymnasiums	1 space per 22 m ²	
Miscellaneous / Sui-Generis		Theatres	1 space per 5 seats	
		Motor Car Showrooms	1 space per 50 m ² internal showroom	
		Petrol Filling Stations	1 space per pump	
		Taxi Booking Offices	1 space per licenced taxi operating from the business. On-site off-street and dedicated car parking to be provided, or where this cannot be achieved spaces should be located within 100 metres of the office.	

		Vehicle Repair and Service Stations	1 space per 50 m ²
Charging Points for ULEV's		Non-residential developments	20 to 50 spaces: 1 bay for use by electric vehicles only > 50 spaces: Min 2 bays for use by electric vehicles only
		Residential Development Schemes over 10 dwellings:	1 per detached dwelling

Further Guidance and Application

What constitutes a car parking space?

1. A car parking space is a clearly defined and suitably surfaced space or garage.

Dimensions

2. Each space should be 2.4m in width and 5m in length.
3. Parking spaces in front of garage doors should be a minimum of 5.5m in length to enable up and over doors to open. A relaxation of this standard to 5m may be considered depending on the type of garage door to be installed.
4. Domestic garages should be a minimum size of 3m in width x 6m* in length to enable bicycles or other storage at the rear of the garage. (*unless alternative storage is provided)

Accessing Spaces

5. A minimum 6 metres clearance is required to enable cars to reverse out of a car parking space.

Mobility parking in non-residential developments

6. Mobility parking spaces (3m by 5m) shall be provided at a minimum level of 1 per 10 car parking spaces.
7. A 1.2m hatched area is required both sides of the space (only 1 space if it is at the open end of a row) and normally 1 metre hatched area behind.

Cycle parking in residential developments

8. Adequate space within should be provided for cycle parking either within the curtilage of each dwelling or within a convenient and secure communal space.

Cycle parking in non-residential developments

9. A minimum of 1 per 10 car parking spaces is required. Long stay covered areas shall be provided on all developments employing 30 or more full or part time staff.

Motorcycle parking in non-residential developments

10. A minimum of 1 per 25 car spaces. Long stay covered areas shall be provided on all developments employing 30 or more full or part time staff.

Parking in Town Centre Locations

11. In the Town Centres of Burnley and Padiham or where schemes including redevelopment to secure the future of a heritage asset, the minimum standards (other than for taxi booking offices) may not be applied in full in cases where public parking exists nearby or where on-street parking is available and the development would not cause or exacerbate congestion, highway safety issues or on-street parking problems.

Electric Car Charging Points

12. Additional provision over and above the minimum requirements set out above will be encouraged and supported in line with Policy NE5 subject to the consideration of the townscape impact in accordance with Policy SP5 and IC5. Where these affect heritage assets, care should also be taken to avoid harm and damage to historic fabric in accordance with Policies HE2 and 3.

